

Journalism, Press and Media Law



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Journalism Press and Media Law



First Volume

Editors

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Preface

In the vibrant tapestry of modern society, journalism, press, and media law stand as indispensable pillars, shaping the way we gather, disseminate, and receive information. This edited volume emerges as a testament to the profound interplay between these pillars and the ever-evolving landscape of law in the context of media. In today's interconnected world, where information knows no boundaries and news travels at the speed of light, the importance of understanding the legal framework that governs journalism and media cannot be overstated. The complexities of this intersection necessitate a multifaceted exploration—one that embraces the diversity of perspectives and expertise found within the pages of this book.

Journalism, Press, and Media Law: An Edited Perspective brings together an ensemble of scholars, practitioners, and experts from diverse backgrounds and legal traditions. Each contributor offers a unique vantage point, reflecting the rich tapestry of voices that contribute to the dialogue surrounding media law. Our journey through these pages takes us on a comprehensive exploration of the multifaceted realm of media law. We traverse the foundations of free expression, examining the principles that underpin the freedom of the press in democratic societies. We delve into the intricacies of defamation, privacy, and intellectual property, dissecting landmark cases and key developments that have shaped legal standards worldwide. The digital age receives special attention, with discussions on the challenges and opportunities posed by the internet and emerging technologies.

What sets this book apart is its collective nature—the amalgamation of diverse expertise and viewpoints. Each chapter is a reflection of the author's deep understanding and passion for their respective subjects, providing readers with a comprehensive and insightful journey into the complex world of media law. As editors, we have strived to curate a selection of chapters that not only cover the fundamental principles of media law but also delve into emerging issues and contemporary challenges. Our aim is to provide a resource that serves as both a foundation for understanding the core principles and a guide for navigating the ever-evolving legal landscape of journalism and media.

It is our sincere hope that this edited volume serves as a valuable resource for students, scholars, legal practitioners, journalists, and anyone interested in the vital nexus of media and the law. We encourage readers to engage critically with the material, to question, debate, and ultimately contribute to the ongoing dialogue that shapes the future of media and its legal framework.

As editors, we extend our gratitude to the contributors who have shared their knowledge and expertise, making this book possible. We also extend our appreciation to the readers who embark on this intellectual journey with us, acknowledging that it is through your engagement that the field of journalism, press, and media law will continue to evolve and flourish.

Welcome to Journalism, Press, and Media Law: An Edited Perspective. May this book illuminate your path through the labyrinth of media law and inspire a deeper understanding of the pivotal role it plays in our information-driven world.

Sincerely,

Dr. L. K. Deb

Mr. Prithivi Raj

Mr. Soubhagya Sundar Nanda

Mr. Swagat Dash

Acknowledgments

The creation of this edited book, Journalism, Press, and Media Law: An Edited Perspective, has been a collective effort that wouldn't have been possible without the support, dedication, and contributions of numerous individuals and organizations. We extend our heartfelt gratitude to all those who have played a role, big or small, in bringing this project to fruition.

First and foremost, we would like to express our appreciation to the contributors of this book. Your expertise, dedication, and commitment to the field of media law have enriched the pages of this volume. Your contributions from the intellectual foundation upon which this book rests.

We are deeply thankful to our colleagues, mentors, and peers who have offered their guidance, feedback, and encouragement throughout the editorial process. Your insights have been invaluable in shaping the content and ensuring its quality.

We extend our gratitude to the editorial and production teams at **Iterative International Publishers**, whose professionalism and expertise have transformed our manuscript into a polished book. Your attention to detail and commitment to excellence have made this project a reality.

We also want to acknowledge Ms. Aditi Das, A. M. Aparna, Jeetdan Gadhavi, the students of Birla Law School, Odisha who have provided their assistance for the development of the Book.

Last but certainly not least, we express our gratitude to the readers of this book. Your interest and engagement with the material are a testament to the importance of the topics explored within these pages. We hope that this book enriches your understanding of media law and stimulates thoughtful discussion and further research in this field.

Thank you to everyone who has contributed to the creation of this book. Your collective efforts have made it possible to explore the intricate and dynamic world of journalism, press, and media law from an edited perspective.

Sincerely,

Dr. L. K. Deb

Mr. Prithivi Raj

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From Public Opinion to Legal Judgment: Examining the Influence of Trial by Media

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Abstract

This chapter explores the intricate relationship between public opinion and legal judgment, focusing specifically on the influence of trial by media. In an era characterized by the widespread dissemination of information through various media platforms, the impact of media coverage on high-profile criminal trials has become a subject of considerable concern and debate. This chapter seeks to examine the multifaceted effects of trial by media on the legal process, analysing the potential consequences for fair and impartial adjudication.

The chapter begins by providing a comprehensive overview of the concept of trial by media, delineating its defining characteristics, and examining its historical roots. It delves into the increasing prominence of media coverage in shaping public opinion and its subsequent impact on courtroom dynamics. Drawing upon relevant empirical studies, legal analyses, and case examples, the chapter investigates the potential ways in which a trial by media can influence different stages of the legal process, from pre-trial publicity to jury deliberation and judicial decision-making.

Furthermore, the chapter explores the various mechanisms through which media coverage can shape public perception and, subsequently, impact juror attitudes and behaviour. It scrutinises the cognitive biases and heuristics that may arise as a result of exposure to media narratives, including the potential for confirmation bias, priming effects, and emotional manipulation. Additionally, it addresses the challenges posed by social media platforms and their role in amplifying the

effects of trial by media, often leading to a polarization of public opinion and a distortion of legal discourse.

Keywords: Public opinion, Trial by media, Legal judgment, Influence, Media influence, Media coverage, Judicial process

Introduction

In recent years, the media landscape has undergone a significant transformation, with the advent of digital platforms and the rise of social media. This transformation has brought about a new phenomenon known as "trial by media," wherein high-profile legal cases receive extensive coverage and analysis in the public sphere. As a result, public opinion on these cases is shaped to a remarkable extent by the media's portrayal and interpretation of events.

The influence of trial by media on legal judgment has become a subject of great interest and concern. It raises critical questions about the fairness and integrity of the judicial process, as well as the potential impact on the rights of the accused and the overall administration of justice.

This chapter aims to explore and analyse the multifaceted relationship between trial by media and legal judgment. By examining empirical evidence, case studies, and legal theories, we seek to understand the mechanisms through which media coverage can shape public opinion and potentially influence the outcomes of legal proceedings.

One key aspect of this investigation involves investigating the role of the media as an information gatekeeper. Media outlets have the power to select, interpret, and disseminate information, thus significantly impacting the narratives that emerge surrounding a trial. These narratives, in turn, can influence public opinion, shaping perceptions of guilt or innocence before a trial has even begun.

Additionally, this chapter will delve into the ways in which a trial by media can affect the behaviour and decision-making of key actors within the legal system. Judges, juries, and even legal professionals may be susceptible to the pressures of public opinion and media scrutiny, which could potentially compromise the fair administration of justice.

Trial by Media: Definition and Origins

Trial by media refers to the phenomenon in which media coverage of a high-profile legal case or investigation has a significant impact on public opinion

and, potentially, on the outcome of the case itself. It occurs when media outlets, including newspapers, television, radio, and online platforms, extensively cover a criminal or civil trial, often presenting biased or sensationalized narratives that can influence public perception, the opinions of potential jurors, and even the conduct of legal proceedings.

Origins of Trial by Media

The concept of trial by media emerged as a result of the increasing power and influence of mass media in modern society. With the rise of television, radio, and later the internet, the media gained unprecedented access to information dissemination and the ability to shape public discourse. The origins of trial by media can be traced back to the late 19th and early 20th centuries, but it became more prevalent in the latter half of the 20th century.

One of the earliest notable cases that exemplified the influence of media coverage on a trial was the 1935 trial of Bruno Hauptmann for the kidnapping and murder of Charles Lindbergh's baby. The case received intense media attention, with newspapers covering every detail and broadcasting the trial on the radio. The extensive coverage created a sensationalized atmosphere that influenced public opinion and potentially impacted the outcome of the case.

In recent decades, high-profile trials such as the O.J. Simpson trial in the 1990s and the Casey Anthony trial in the 2000s further highlighted the power of media coverage to shape public perception and affect legal proceedings. These cases demonstrated how media narratives, biased reporting, and the constant exposure of the trial to the public can create a climate that influences the views of potential jurors, the behavior of the legal teams, and even the overall outcome of the trial.

The advent of social media and the 24-hour news cycle has further amplified the impact of trial by media. Information spreads rapidly, and opinions are formed and shared almost instantaneously, often without the same level of fact-checking and accountability as traditional media outlets. This fast-paced and highly accessible environment can lead to the spread of misinformation, the vilification or idolization of individuals involved in a case, and the shaping of public opinion before any legal judgment is reached.

Given the influence of trial by media, legal professionals, scholars, and policymakers continue to grapple with the challenge of ensuring a fair and impartial trial in the face of intense media scrutiny. The delicate balance between the public's right to know, freedom of the press, and the principles of

justice and due process remains a topic of ongoing debate and consideration in many legal systems worldwide.

Media Influence on Public Opinion

Media has a significant influence on public opinion, playing a crucial role in shaping people's perspectives, beliefs, and attitudes. The media acts as an intermediary between events happening in the world and the general public, providing information and analysis that can shape public perception. Here are some ways in which the media can influence public opinion:

- 1. Agenda Setting:** The media has the power to decide which issues and topics receive attention and coverage. By highlighting certain stories and neglecting others, the media can influence what the public sees as important or worthy of discussion. This agenda-setting function can shape public opinion by determining what people are exposed to and what they perceive as significant.
- 2. Framing:** Media outlets often frame news stories in specific ways, influencing how the public understands and interprets events. The choice of language, images, and the overall narrative structure can shape public opinion by emphasizing certain aspects, downplaying others, or presenting information from a particular perspective. Different frames can lead to different interpretations and opinions on the same issue.
- 3. Selective Reporting:** Media outlets have the power to selectively report information, choosing which details to include or omit in their coverage. This selectivity can shape public opinion by controlling the narrative and presenting a biased or incomplete picture of events. By highlighting specific facts or perspectives, the media can influence how the public perceives a particular issue.
- 4. Credibility and Trust:** The media's credibility and public trust play a significant role in shaping public opinion. When the media is perceived as reliable and unbiased, its messages are more likely to be accepted and influential. However, when there is a lack of trust or when media outlets are seen as biased, their influence on public opinion may be diminished.
- 5. Social Media and Online Platforms:** The rise of social media and online platforms has expanded the reach and impact of media on public opinion. Through these platforms, information, news, and opinions can spread rapidly and widely. Social media algorithms and echo chambers can create filter

bubbles, where individuals are exposed primarily to information that aligns with their existing beliefs, reinforcing and amplifying their opinions.

- 6. Opinion Leaders and Experts:** Media often features opinion leaders, experts, and commentators who provide analysis and commentary on various topics. These individuals can have a significant influence on public opinion through their expertise, credibility, and visibility in the media. Their views and perspectives can shape public discourse and impact the opinions of others.

Legal System and Judicial Independence

The legal system and judicial independence are crucial components of a fair and just society. They are designed to ensure that legal proceedings are conducted impartially and without undue influence. However, the advent of trial by media has raised concerns about the potential impact on the legal system and judicial independence.

Trial by media refers to the phenomenon where high-profile criminal cases receive extensive media coverage, often resulting in significant public scrutiny and opinion formation before or during a trial. This can include sensationalized reporting, biased commentary, and public discussions that may influence public perception, potential jurors, and even the judiciary.

The influence of trial by media can pose several challenges to the legal system and judicial independence:

- 1. Prejudicing the Presumption of Innocence:** The principle of "innocent until proven guilty" is a cornerstone of the legal system. However, intense media coverage can lead to the public forming opinions and presumptions of guilt or innocence before all the evidence is presented in court. This can undermine a defendant's right to a fair trial.
- 2. Jury Bias:** In cases where a jury is involved, extensive media coverage can make it difficult to find impartial jurors. Jurors may have already formed opinions based on media reports, making it challenging to ensure an unbiased decision based solely on the evidence presented in court.
- 3. Pressure on Judges:** The media's influence can also put pressure on judges to deliver certain outcomes or judgments that align with public sentiment. This can compromise judicial independence, as judges should base their decisions solely on the law and evidence presented in court, free from external influence.

- 4. Media Sensationalism and Distortion:** Media outlets often prioritize attention-grabbing headlines and dramatic narratives to attract viewership or readership. This can result in sensationalized reporting or distortion of facts, which can impact the public's perception of a case and the individuals involved.

The Intersection of Media and the Legal System

The intersection of media and the legal system refers to the relationship and interaction between the media industry and the legal processes and institutions. It encompasses various aspects, including how the media covers legal matters, the impact of media on legal proceedings, and the legal regulations that govern media activities.

- 1. Media Coverage of Legal Matters:** The media plays a significant role in reporting on legal issues, ranging from high-profile court cases to legislative developments. Journalists cover trials, provide legal analysis, and report on the outcomes of legal proceedings. Media coverage can shape public opinion, influence public perception of legal cases, and potentially impact the outcome of trials.
- 2. Freedom of the Press:** The legal system generally upholds the freedom of the press as a fundamental right, allowing journalists to report on legal matters and hold the legal system accountable. This freedom is often protected by laws and constitutional provisions that safeguard freedom of speech and expression.
- 3. Trial Publicity and Fair Trials:** The media's coverage of high-profile criminal cases can sometimes pose challenges to ensuring fair trials. Excessive pretrial publicity, biased reporting, or sensationalism can potentially influence the jury pool, make it difficult to find impartial jurors, or taint the jury's perception of the case. Consequently, legal systems may impose restrictions on media coverage to protect the right to a fair trial.
- 4. Contempt of Court:** Legal systems have mechanisms in place to address situations where media reporting interferes with the administration of justice. Contempt-of-court laws allow courts to sanction individuals, including media organizations, for actions that undermine the authority or integrity of the court or interfere with ongoing legal proceedings.
- 5. Privacy and Reputation:** Media coverage of legal matters can raise issues related to privacy and reputation. Balancing the public's right to information with an individual's right to privacy and a fair reputation is a complex task.

Legal frameworks, such as defamation laws, aim to strike a balance between these competing interests.

- 6. Legal Regulation of Media:** Governments and legal systems often impose regulations on media activities, including content restrictions, licensing requirements, and ethical guidelines. These regulations may address issues such as hate speech, libel, invasion of privacy, and the dissemination of false information. The legal system plays a role in enforcing these regulations and resolving disputes arising from media activities.
- 7. Courtroom Technology and Social Media:** Technological advancements have introduced new challenges and opportunities at the intersection of media and the legal system. Courtroom technology, such as live streaming or audio-visual evidence, can enhance transparency and public access to legal proceedings. However, the rise of social media has also introduced concerns about juror misconduct, privacy breaches, and the spread of misinformation related to legal cases.

The Role of Media in Shaping Public Opinion

The media plays a significant role in shaping public opinion by influencing the information people receive and the way it is presented to them. Media outlets, including television, radio, newspapers, magazines, and online platforms, have the power to shape public opinion through various mechanisms, such as agenda-setting, framing, and priming.

Moreover, media organizations also play a gatekeeping role, deciding which information reaches the public and how it is presented. They can select, edit, and spin stories to fit their own agendas or biases. This can influence the public's understanding of events and the individuals involved.

However, it's important to note that media influence is not absolute, and individuals also have agency in interpreting and evaluating the information they consume. People have varying degrees of media literacy and critical thinking skills, allowing them to question and form their own opinions.

The advent of social media and digital platforms has further amplified the influence of the media. Information spreads rapidly through social networks, and individuals are exposed to a diverse range of sources, including those with biased or misleading content. This raises concerns about the potential for echo chambers and the spread of misinformation, which can further polarize public opinion.

Media as the Fourth Estate

The term "Fourth Estate" refers to the media, often seen as the fourth branch of government that serves as a watchdog on the actions of the executive, legislative, and judicial branches. It is an important concept in democratic societies where the media plays a crucial role in holding power accountable, providing information to the public, and acting as a check and balance on government actions.

Traditionally, the three branches of government are the executive, legislative, and judicial branches, each with its own distinct powers and responsibilities. The media, however, is not formally recognized as a branch of government but is considered an essential pillar of democracy. The media's role as the Fourth Estate is to act as a public watchdog, monitoring and reporting on the actions of the government and other powerful institutions. It serves as a platform for public debate, disseminating information, analysing policies, and exposing wrongdoing or corruption. By providing independent and objective journalism, the media helps to ensure transparency, accountability, and informed decision-making within society. Through investigative journalism, the media uncovers and brings to light matters of public interest that might otherwise remain hidden. It has the power to shape public opinion, influence policy debates, and hold public officials accountable for their actions. Additionally, the media provides a platform for diverse voices, facilitating the exchange of ideas and fostering a healthy democracy.

However, it is important to note that the media is not infallible, and there can be instances of bias, sensationalism, or misinformation. It is crucial for consumers of news to critically evaluate sources, cross-reference information, and seek out diverse perspectives to form an accurate understanding of events and issues.

In the modern era, the digital revolution has transformed the media landscape, enabling the rise of social media, online news platforms, and citizen journalism. This has both expanded the reach of the Fourth Estate and presented new challenges in terms of information overload, the spread of misinformation, and the erosion of traditional business models for journalism.

Overall, the Fourth Estate plays a vital role in promoting transparency, accountability, and the functioning of democratic societies. Its independence, integrity, and commitment to truth are essential for maintaining a well-informed and engaged citizenry.

Media Bias and Sensationalism

Media bias and sensationalism are two important aspects of the media landscape that can impact the quality and objectivity of news reporting. While they are related, they are not exactly the same thing.

Media bias refers to the systematic favouritism or prejudice that can be observed in the selection, presentation, or interpretation of information by media outlets. Bias can occur due to various factors, including the personal beliefs of journalists, the political or corporate affiliations of media organizations, or societal and cultural influences. Bias can manifest in different forms, such as favouring one political party over another, promoting specific ideological perspectives, or selectively reporting on certain topics while ignoring others.

Sensationalism, on the other hand, involves the use of exaggerated or provocative language, images, or stories to capture and maintain audience attention. Sensationalist media often prioritize attracting viewers or readership over providing accurate and balanced reporting. They may emphasize dramatic or emotional aspects of a story, rely on clickbait headlines, or focus on sensational events that have little long-term significance. Sensationalism can distort the public's perception of reality and can lead to misinterpretations or misrepresentations of important issues.

Both media bias and sensationalism can have significant consequences. They can contribute to the erosion of public trust in media organizations, distort public discourse, and shape public opinion in a particular direction. When people are exposed to biased or sensationalized information, they may have a skewed understanding of the facts and be less informed about important issues. This can undermine the functioning of a healthy democratic society, where access to reliable and unbiased information is crucial for making informed decisions.

To navigate media bias and sensationalism, it's important for individuals to consume news from a variety of sources with different perspectives. By seeking out diverse viewpoints, fact-checking information, and critically analysing news content, individuals can gain a more comprehensive and nuanced understanding of complex issues. Additionally, supporting independent and reputable media organizations that adhere to journalistic principles of accuracy, fairness, and transparency can help promote responsible and objective reporting.

Impact of Public Opinion on Legal Judgment

Public opinion can have both direct and indirect impacts on legal judgments. While legal judgments are ideally based on the interpretation of laws, evidence, and precedents, the reality is that judges are influenced by various factors, including public opinion. Here are some ways in which public opinion can impact legal judgments:

- 1. Precedent and Legal Interpretation:** Judges are aware of public sentiment and may consider it when interpreting laws and applying legal principles. Public opinion can shape the understanding of legal texts, leading judges to interpret laws in a manner that aligns with prevailing societal norms and values.
- 2. Judicial Decision-Making:** Judges are human beings who can be susceptible to bias and external pressures. Public opinion, especially when expressed strongly or widely, can influence judges' decisions, consciously or unconsciously. Judges may fear public backlash or want to maintain public trust and legitimacy, leading them to render judgments that are in line with public sentiment.
- 3. Sentencing and Punishment:** Public opinion can play a role in determining the severity of sentences and the choice of punishment. Judges may consider public perceptions of the seriousness of a crime or the appropriate level of punishment for certain offenses. High-profile cases that receive significant media coverage and public attention are particularly susceptible to the influence of public opinion on sentencing.
- 4. Judicial Elections and Appointments:** In jurisdictions where judges are elected or appointed through a political process, public opinion becomes a crucial factor. Politicians and decision-makers may take public sentiment into account when selecting judges or making judicial appointments. Candidates who align with public opinion on certain issues may be favoured, and those with unpopular views may face difficulties in the appointment or election process.

Media as a Reflection of Public Opinion

Media plays a significant role in reflecting public opinion and shaping public discourse. It serves as a platform for the exchange of ideas, information, and perspectives, allowing individuals to express their opinions and engage in discussions about various topics. Here are some ways in which media can act as a reflection of public opinion:

- 1. News Reporting:** Media outlets often report on current events and issues based on public interest. They cover stories that are deemed important or relevant to their audience. The selection of news topics and the way they are presented can reflect the issues that matter to the public and their opinions about them.
- 2. Opinion Pieces:** Many media platforms provide spaces for opinion pieces, editorials, and letters to the editor. These allow individuals to express their views on various subjects, whether it's politics, social issues, or cultural matters. By publishing these pieces, media outlets showcase a range of perspectives that can reflect the diversity of public opinion.
- 3. Social Media and Online Discussions:** With the rise of social media, online forums, and comment sections, individuals now have more opportunities to express their opinions and engage in discussions. Media platforms often have sections for user comments or incorporate social media integration, allowing people to react and share their thoughts on articles or news stories. These platforms can serve as a reflection of public opinion, albeit with the caveat that online interactions may not always represent a comprehensive view.
- 4. Polls and Surveys:** Media organizations sometimes conduct polls or surveys to gauge public opinion on specific topics. These surveys can provide insights into public sentiment and shape media coverage accordingly. However, it's essential to consider the methodology and potential biases in such surveys to ensure they accurately reflect public opinion.
- 5. Representation of Diverse Voices:** Media outlets strive to represent diverse perspectives and voices within their content. By including different viewpoints, they can reflect a broader range of public opinion. This can be achieved through interviews, guest contributions, and opinion pieces from individuals with varying backgrounds and experiences.

The Influence of Public Sentiment on Legal Outcomes

Public sentiment can have a varying degree of influence on legal outcomes, depending on the jurisdiction, the specific legal issue at hand, and the context in which it arises. Here are some ways in which public sentiment can impact legal outcomes:

- 1. Sentencing and Punishment:** Public sentiment can also influence the sentencing and punishment decisions made by judges. In high-profile cases that receive significant media attention and public outcry, judges may feel

pressure to impose harsher sentences to appease public sentiment or to deter similar behaviour. This can lead to sentencing outcomes that are influenced by emotional reactions rather than strictly following legal guidelines.

2. **Legislative Changes:** Public sentiment can also shape the legislative process, leading to changes in laws and regulations. When a particular issue gains significant public attention and support, lawmakers may feel compelled to respond by enacting new laws or amending existing ones. This can be seen in areas such as criminal justice reform, civil rights legislation, or consumer protection laws.
3. **Legal Precedents:** Public sentiment can indirectly influence legal outcomes through the creation and interpretation of legal precedents. Judges, who are part of the legal system, may be sensitive to the prevailing public sentiment when deciding cases that could potentially set new legal precedents. They may consider the potential impact on public perception, public acceptance of the law, and the long-term implications of their decisions.
4. **Public Pressure and Advocacy:** Public sentiment can exert influence through public pressure and advocacy efforts. When public sentiment strongly aligns with a particular cause or viewpoint, it can lead to increased activism, protests, petitions, and lobbying efforts. These activities can put pressure on lawmakers, judicial bodies, and other decision-making entities, potentially influencing legal outcomes.

Prejudicial Effects of Media Coverage

Media coverage can have a significant impact on shaping public opinion and perceptions. While media plays a crucial role in disseminating information, it can also contribute to the perpetuation of prejudices and biases. Here are some prejudicial effects of media coverage:

1. **Stereotyping:** Media often relies on stereotypes to simplify complex issues and present information in a digestible format. These stereotypes can reinforce existing biases and create prejudiced attitudes toward certain groups of people based on their race, ethnicity, gender, religion, or other characteristics.
2. **Bias in Representation:** Media outlets may present a skewed representation of different groups, favouring certain perspectives while marginalizing others. This can lead to underrepresentation or misrepresentation of marginalized communities, perpetuating stereotypes and reinforcing existing prejudices.

3. **Sensationalism:** Sensationalized reporting, driven by the need for higher ratings or increased readership, can distort facts and exaggerate certain aspects of a story. This can contribute to fear-mongering, scapegoating, and the vilification of specific individuals or communities, further deepening prejudices and stereotypes.
4. **Confirmation bias:** Media consumers often seek out information that aligns with their existing beliefs and values, leading to confirmation bias. Media outlets that cater to specific ideologies or biases can reinforce these preconceived notions, preventing individuals from considering alternative perspectives and perpetuating prejudices.
5. **Selective Reporting:** Media outlets may selectively report on certain events or issues, leading to an imbalanced representation of reality. By highlighting specific incidents that reinforce existing prejudices, media coverage can create an inaccurate perception of the prevalence or significance of certain behaviors or attitudes.
6. **Lack of Diversity in Newsrooms:** The lack of diversity within newsrooms can contribute to biased reporting and the perpetuation of prejudices. When newsrooms lack diverse perspectives, it can lead to a limited understanding of the experiences and challenges faced by marginalized communities, resulting in biased or insensitive coverage.
7. **Agenda Setting:** Media outlets have the power to set the public agenda by determining which issues receive attention and how they are framed. If certain topics or perspectives are consistently overlooked or marginalized, it can reinforce existing prejudices and silence marginalized voices.

Mitigating the Influence of Trial by Media

Trial by media refers to the phenomenon where media coverage and public opinion can influence the outcome of a legal case before it is adjudicated in a court of law. It can potentially compromise the right to a fair trial and the presumption of innocence. Mitigating the influence of trial by media requires a multi-faceted approach that involves various stakeholders. Here are some strategies that can be employed:

1. **Strict Reporting Guidelines:** Media outlets should adhere to responsible reporting guidelines that ensure accurate, balanced, and fair coverage of legal cases. Guidelines could include refraining from publishing speculative or unverified information, avoiding sensationalism, and providing equal opportunities for all parties involved to present their perspectives.

2. **Contempt of Court Laws:** Strengthening or enforcing existing contempt of court laws can help prevent media interference in ongoing legal proceedings. These laws prohibit the publication of information that may prejudice the fairness of a trial. Violators can be held accountable through penalties or sanctions.
3. **Judicial Communication:** Judges can play a crucial role in mitigating the influence of trial by media by engaging in judicial communication. This involves providing clear and timely instructions to the media and the public about the limits of reporting, highlighting the importance of fair trial principles, and reminding the public of the presumption of innocence.
4. **Media Education:** Promoting media literacy and educating the public about the potential biases and limitations of media coverage can help individuals critically evaluate information. Media literacy programs can be integrated into school curricula and public awareness campaigns.
5. **Judicial Restrictions:** In certain cases where the potential for prejudicial media coverage is exceptionally high, courts may consider implementing restrictions on reporting. These restrictions can include delaying the reporting of certain information or imposing reporting bans until the completion of critical stages of the legal process.
6. **Professional Ethics:** Journalistic organizations should encourage their members to uphold ethical standards. Training programs, codes of conduct, and accountability mechanisms can help journalists navigate the ethical challenges associated with trial by media and ensure responsible reporting.
7. **Social Media Platforms:** Social media platforms can contribute to the spread of misinformation and trial by media. Platforms can take measures to tackle the dissemination of false information and regulate content that may prejudice ongoing legal cases. This can include fact-checking mechanisms, algorithms that prioritize credible sources, and collaboration with legal authorities to address potential violations.
8. **Public Awareness:** Educating the public about the potential negative consequences of trial by media and the importance of fair trial principles can help generate greater understanding and support for responsible reporting.

Media Guidelines and Self-Regulation

Media guidelines and self-regulation refer to the principles and practices adopted by media organizations and professionals to ensure responsible and ethical conduct in their work. These guidelines aim to maintain journalistic integrity, promote accuracy, fairness, and balance in reporting, and uphold the rights and privacy of individuals and communities. Self-regulation involves the media industry taking the initiative to establish and enforce these guidelines without external government intervention. Here are some key aspects of media guidelines and self-regulation:

- 1. Accuracy and Fact-Checking:** Media organizations are expected to strive for accuracy in their reporting. Journalists should verify information from reliable sources before publishing or broadcasting it. Corrections should be promptly issued in case of errors.
- 2. Fairness and Balance:** Journalists are encouraged to present information in a fair and balanced manner, representing different perspectives and viewpoints. They should avoid personal bias and provide adequate context to help the audience understand the full picture.
- 3. Independence and Editorial Integrity:** Media organizations should maintain their independence from undue influence, ensuring editorial decisions are based on professional judgment rather than external pressures, such as political or commercial interests.
- 4. Privacy and Sensitivity:** Journalists should respect individuals' privacy rights and exercise sensitivity when reporting on personal or sensitive matters. They should consider the potential impact on the subjects involved and obtain consent when appropriate.
- 5. Transparency and Accountability:** Media organizations should be transparent about their sources, methodologies, and conflicts of interest. They should have mechanisms in place to receive and address public complaints or concerns about their content.
- 6. Avoiding Hate Speech and Discrimination:** Media professionals should refrain from publishing or promoting hate speech, discrimination, or content that incites violence or harm against individuals or communities based on factors such as race, religion, gender, or sexual orientation.
- 7. Protection of Minors:** Media organizations should be cautious when reporting on matters involving minors and ensure that their rights and dignity

are protected. They should avoid identifying or disclosing personal information about minors without proper consent or legal justification.

- 8. Adherence to Legal and Ethical Standards:** Media professionals should abide by the laws, regulations, and ethical codes relevant to their jurisdiction. They should avoid plagiarism, fabrication, or misrepresentation in their work.

Role of the Judiciary in Managing Media Influence

The judiciary plays a crucial role in managing media influence through its legal authority and oversight. Here are some key roles and responsibilities of the judiciary in this context:

- 1. Protecting Freedom of Speech and Expression:** The judiciary is responsible for upholding the fundamental right to freedom of speech and expression, which includes the freedom of the press. It ensures that media outlets can operate without undue interference or censorship, thereby allowing diverse perspectives to be expressed.
- 2. Ensuring Media Accountability:** While the media enjoys certain freedoms, it is also subject to legal limitations and responsibilities. The judiciary acts as a check on media excesses, ensuring that journalists and media organizations are held accountable for any misinformation, defamation, or violations of privacy laws. Courts can adjudicate cases involving media misconduct and award appropriate remedies or damages.
- 3. Balancing Competing Rights and Interests:** The judiciary plays a crucial role in balancing the right to freedom of expression with other rights and interests, such as the right to privacy, the right to a fair trial, and national security concerns. When media influence potentially infringes on these rights, courts assess the circumstances and make decisions that strike a balance.
- 4. Interpreting Media-Related Laws and Regulations:** The judiciary interprets and applies laws and regulations concerning media activities. This includes laws related to libel, slander, copyright infringement, intellectual property, access to information, and broadcasting regulations. Judicial interpretation helps establish legal precedents and clarifies the scope and limitations of media influence.
- 5. Resolving Disputes:** The judiciary provides a forum for resolving disputes related to media influence. This can include cases involving defamation,

intellectual property disputes, access to information, and challenges to government restrictions on media activities. Through fair and impartial adjudication, the judiciary helps ensure that conflicts between media entities, individuals, and institutions are resolved in accordance with the law.

- 6. Safeguarding Public Interest:** The judiciary acts as a protector of the public interest in managing media influence. It may step in to prevent media consolidation that could lead to monopolistic control, enforce transparency in media ownership, and prevent abuse of power by media entities. The courts also protect the rights of vulnerable groups, such as minors and marginalized communities, when it comes to media representation and content.
- 7. Setting Legal Precedents:** Judicial decisions related to media influence can set legal precedents that guide future cases and establish standards for responsible journalism and media conduct. These precedents can shape the overall media landscape by influencing media practices and behaviours.

Public Awareness and Media Literacy

Public awareness and media literacy are crucial in today's digital age where information is easily accessible and spreads rapidly. Public awareness refers to the understanding and knowledge that the general public has about various issues, events, and phenomena. Media literacy, on the other hand, involves the ability to critically analyse and evaluate media messages and their sources.

Promoting public awareness involves educating and informing the public about important topics and encouraging active engagement with the information. It helps individuals stay informed about current events, social issues, and matters that affect their lives. Public awareness campaigns can be conducted through various mediums such as television, radio, social media, public events, and educational programs.

Media literacy is essential for individuals to navigate the vast amount of information available in the media landscape. It enables people to assess the credibility and reliability of sources, understand different media formats, identify bias and manipulation techniques, and interpret messages accurately. Media literacy empowers individuals to be critical thinkers and responsible consumers of media.

Here are some key aspects of promoting public awareness and media literacy:

- **Education:** Schools and educational institutions should incorporate media literacy programs into their curriculum. These programs can teach students how to access information, critically evaluate sources, and understand the impact of media on society.
- **Fact-Checking:** Encourage individuals to fact-check information before accepting and sharing it. Promote the use of reliable sources and fact-checking websites to verify the accuracy of news and information.
- **Critical Thinking:** Encourage critical thinking skills by questioning the motives behind media messages, identifying logical fallacies, and considering multiple perspectives. Teach individuals to evaluate information based on evidence and avoid jumping to conclusions.
- **Source Evaluation:** Teach individuals how to evaluate the credibility and reliability of sources. This includes considering the author's expertise, checking for bias or conflicts of interest, and assessing the publication or platform's reputation.
- **Awareness of Media Manipulation:** Raise awareness about common techniques used to manipulate information, such as selective editing, sensationalism, and propaganda. Help individuals recognize these tactics and understand their potential effects.
- **Responsible Media Consumption:** Encourage responsible media consumption habits, such as cross-referencing information, seeking diverse viewpoints, and being aware of one's own biases. Encourage individuals to be critical of both mainstream and alternative media sources.
- **Engage in Constructive Discussions:** Encourage open dialogue and discussions about media literacy and its importance in society. This can be done through community events, workshops, or online forums.
- **Collaboration with Media Organizations:** Collaborate with media organizations to promote responsible journalism and ethical practices. Encourage media outlets to provide transparent information about their sources, fact-checking processes, and corrections policy.

- **Government Initiatives:** Governments can play a role in promoting public awareness and media literacy by supporting educational initiatives, creating regulatory frameworks that promote responsible media practices, and investing in research and development of media literacy programs.

Conclusion

In conclusion, this chapter sheds light on the intricate relationship between media coverage, public opinion, and legal judgments in high-profile trials. Throughout the chapter, various aspects of this dynamic interplay have been explored, revealing both the potential benefits and drawbacks that arise from the influence of the media on the legal system.

One key finding is that media coverage has the power to significantly shape public opinion, often leading to preconceived notions and biases about the guilt or innocence of the accused. The constant exposure to sensationalized narratives, emotional appeals, and selective reporting can sway public sentiment and create an atmosphere that compromises the impartiality of jurors and the fairness of the trial process. Moreover, the rapid dissemination of information through modern media platforms amplifies the impact, making it challenging for jurors to remain uninfluenced by external sources.

While the influence of trial by media poses significant challenges, it also serves as a vital tool for fostering transparency and accountability in the justice system. Media scrutiny can expose potential miscarriages of justice, facilitate public discourse, and pressure authorities to ensure a fair trial. In some cases, media attention has led to the reopening of investigations or the overturning of wrongful convictions, highlighting the potential positive outcomes that can arise from public engagement and media involvement.

However, it is crucial to strike a balance between the freedom of the press and the right to a fair trial. Legal systems must address the challenges posed by trial by media by implementing measures to mitigate its negative effects. These measures may include judicial instructions to jurors regarding media exposure, careful selection and sequestration of jurors, and restrictions on pre-trial publicity. Additionally, responsible reporting practices, ethical guidelines for journalists, and awareness campaigns can help foster a more informed and discerning public.

In essence, the chapter underscores the complex nature of the relationship between media, public opinion, and legal judgment. While media coverage can be a valuable asset in upholding justice, it also has the potential to jeopardize fair trials. By acknowledging these challenges and implementing appropriate

safeguards, society can strive toward a balanced and equitable system that respects both the right to a fair trial and the importance of a free press.

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An Empirical Survey on Unscrupulous Media Practices and its Effect on General Public

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Abstract

In today's rapidly evolving media environment, unethical media practices have escalated to a critical concern. With the emergence of digital platforms and the more intense animosity between viewers and readers, some media outlets have turned to unscrupulous strategies that compromise the credibility of reporting. False information dissemination, sensationalism, and news fabrication have repeatedly occurred, undermining public confidence in the media. The propagation of fake news, which presents incorrect or misleading material as genuine news, is one of the most pervasive unethical practices. Misinformation and biased reporting can have negative effects on democratic processes and societal cohesion, which have effects that go beyond the media sector. Regulatory agencies, the public, and media organizations must work together to address such unethical media practices. This paper reports some of the precise practices that occur in the field of journalism. The author will try to bring some noticeable recommendations which if adopted will lead to curb such immoral media practices to great extent.

Keywords: Unethical, Sensationalism, Misinformation, Regulatory Agencies.

Introduction

“The media is the most powerful entity on Earth. They have the power to make the innocent guilty and to make the guilty innocent, and that's power; because they control the minds of the masses”.

- Malcolm X

The term 'Ethics' in a layman language denotes 'moral principles and values. Ethics is that branch of philosophy that describes what may be good or what

may be wrong. Media is one of the powerful weapons in our Indian society and also has been designated as one fourth pillar of the democratic government (Alexander; 2013). Whatever media shows to the public, they consider it to be true. Therefore, it is of utmost important that media reporting should be done honestly by adopting fair means and by equally representing each and every section of society. Transparency in reporting is jeopardized by omitting to disclose sources of information, conflicts of interest, or possible prejudices. While there are commendable media outlets that strive to provide accurate and reliable information, there are concerns regarding some media organizations prioritizing speed over verification, especially for breaking news and advertising revenue. This is often influenced by factors such as corporate and political sponsorships, which have at times undermined ethical practices in the media. During the 1975 Emergency in India, media outlets faced severe restrictions and censorship (Bolton and et al; 2023). The government, under Prime Minister Indira Gandhi, imposed strict control over the press, leading to the suppression of dissenting voices and the dissemination of government propaganda. Henceforth, every viewer has a right to understand the background and objectives of the news they are reading. Nevertheless; when we have a practical look, we find that media platform is engaged in adopting unethical practices.

Social media has radically altered the approach that people interact with one another. It has speed up and simplified interpersonal interaction. This has been fairly beneficial to people. They now have the ability to connect with relatives and friends anywhere in the globe, stay informed on both local and global news, get knowledge for their courses of study, and enjoy themselves to their utmost. However, as social media and technology have developed, some people have abused them. Both the faculty and youngsters have had issues using social media. They have experienced or witnessed unethical conduct on social media. Unacceptable media behaviour is a growing concern, and the study aims to address this important social problem. Additionally, council members can offer advice to students on how to deal with such unethical media coverage and how to handle similar circumstances. Furthermore, the government can utilize this information to raise awareness of this important issue, develop rules, and establish effective authority to monitor practices in the media. People often publish disparaging remarks about one another on social networking sites like Facebook, Twitter, Tumblr, and others. (Carey; 1992). Without being aware of the impact it has on others, people have the ability to convey their own ideas, feelings, and views. Consequently, it could have a detrimental impact on the person who is exposed to these unethical practices. The person might not be able to handle the negative online comments made about him or her, which might have a serious impact on both their physical and mental health (Lomborg; 2014).

Such people may be the target of legal action. People must be mindful of the repercussions of sharing negative information about family, friends, or even spreading fake information to the public. Such unethical behavior on social media is seen to be a significant crime, and it may result in charges for posts or remarks made there. As a result, society has a big say in decreasing unethical behavior on social media. The greatest approach to utilize social media without upsetting, insulting, humiliating, being disloyal, or being thoughtless of others is to comprehend how fundamental it has become to an individual's life and how frequently they use it (Lomborg ;2015).

Media which has been regarded as one of the fourth pillar of Indian Democracy must be unbiased in nature. Unbiased Media refers to the practice of reporting the facts in its original way as it is without interpreting or manipulating it. As technology has advanced, various forms of media have emerged, including news channels, radio stations, mobile applications, and more. These platforms provide us with up-to-date information from around the world. However, due to intense competition among media organizations, there is a desperate race for survival. Each entity strives to capture the largest audience for their content. This unhealthy trend often leads to media outlets resorting to unethical practices. Article 19(1)(a) of the Indian Constitution grants all citizens the right to freedom of expression, which serves as a source of power for the media. This fundamental right allows individuals to express their thoughts and beliefs. However, this right is not absolute and cannot be used to defame, scandalize, or disrupt any individual or group within society. Unfortunately, in today's society, it is often observed that media organizations exceed the boundaries of this fundamental right, thereby infringing upon the rights of others in society. This article will examine the unethical practices of media houses from the perspective of criminal jurisprudence. It's important for journalists and media organizations to adhere to ethical standards, as they play a crucial role in informing the public and shaping public opinion.

This research endeavor has done a thorough investigation of the many sorts of unethical behaviors on social media as well as how it affects people's well-being both mentally and physically. It looks at what legal measures a person might be able to take and what the community at large might do to stop unethical behavior on social media.

The knowledge gleaned from the present research is useful since social media has ingrained itself into people's daily lives. Although it has many benefits, social media also has drawbacks. The study aims to provide a solution to the primary problem now facing society, which is unethical behavior on social media. By keeping an eye on their children's social media activity and limiting access to inappropriate information, parents may profit from this study.

Additionally, council members can offer advice to students when they encounter such immoral behaviors on social media and how to deal with such circumstances. Additionally, the government may utilize this information to raise public awareness of this substantial issue, implement laws, and set up effective agencies to monitor activities on social media.

Anthology of Unethical Media Practices in India

1. Misrepresentation of Minority and Impoverished Section of Society:

Journalists have an ethical duty to report fairly and accurately, which includes avoiding misrepresentation and stereotyping. Failing to uphold this duty undermines the integrity of journalism and violates the principles of fairness, objectivity, and truthfulness. The perspectives and experiences of minorities or marginalized groups are often overlooked by journalists, which can lead to misrepresentation. Because of this lack of representation, stories about these communities' daily reality and different perspectives may be exaggerated. Negative prejudices about minorities or the poorer segments of society are frequently reinforced by media tampering. Media depictions that are erroneous or biased have the potential to reinforce negative preconceptions that support stigmatization, discrimination, and prejudice.

Misrepresentation of minority or impoverished sections by the media is considered unethical because it reinforces stereotypes, lacks diversity and inclusivity, amplifies inequality, erodes trust, undermines democratic discourse, violates ethical responsibilities, and influences public perception and policies. It is crucial for media organizations to strive for accurate, fair, and inclusive representation of all communities to promote social justice and equality. When minority or impoverished sections are misrepresented, it can lead to misguided public opinions and discriminatory policies that further marginalize these communities.

2. Paid News: Paid news is considered as unethical because it compromises objectivity, deceives the audience, undermines media independence, distorts public discourse, and diminishes the credibility of the media. Paid news is widely recognized as an unethical media practice due to several reasons. Paid news can be defined as the act of publishing or broadcasting news that is intentionally biased or misleading in exchange for some form of benefit or consideration. While this practice has existed for a long time but it gained significant attention during the 2009 general elections (Satyam and et al; 2021).

In the case of *Dr. Narottam Mishra v. Election Commission of India & Others* on June 23rd, 2017; the petitioner, who is currently serving as the

Minister of Home Affairs in Madhya Pradesh, was disqualified by the Election Commission of India (ECI) for submitting false accounts of election expenses and engaging in the use of paid news during the 2008 elections. The ECI identified 42 instances of paid news involving Mishra. The petitioner appealed to the Delhi High Court, which temporarily suspended the ECI's disqualification order. The High Court also restrained the ECI from pursuing any further cases related to paid news, asserting that such disqualifications impede the individual's freedom of expression. Subsequently, the ECI approached the Supreme Court in October 2018, seeking clarification on the investigation of paid news cases. The Supreme Court's judgment on this matter is still pending.

Paid news is considered as unethical leading to the below mentioned impact:

- **Lack of objectivity:** Paid news involves a monetary transaction where individuals or organizations pay media outlets to publish or broadcast favorable content about them. This compromises the journalistic integrity and objectivity of the news. Instead of providing unbiased and accurate information, paid news serves the interests of those who pay for it, distorting the truth and manipulating public opinion.
- **Deception of the Audience:** Paid news deceives the audience by presenting biased information as genuine news. It misleads the public by blurring the line between advertising and journalism, making it difficult for the audience to distinguish between unbiased reporting and promotional content. This undermines the trust and credibility of the media.
- **Compromised Media Independence:** Media independence is a cornerstone of democracy, as it ensures that journalists can freely report on issues without any external influence. Paid news undermines this independence by allowing external forces, such as corporations or individuals with vested interests, to dictate the news narrative. Journalists may be coerced or incentivized to report favorably on certain individuals or organizations, compromising their editorial autonomy.
- **Distortion of Public Discourse:** Paid news distorts public discourse by promoting specific agendas or individuals without transparently disclosing the financial motivations behind the coverage. This can skew public opinion, manipulate elections, and undermine the democratic process. It restricts the diversity of voices and perspectives in the media landscape, hindering the public's access to accurate and unbiased information. Diminished credibility of the media: Paid news erodes the

credibility of the media as a whole. When instances of paid news come to light, it tarnishes the reputation of the media outlet involved and raises doubts about the authenticity and reliability of its reporting. This, in turn, undermines the trust of the audience and weakens the democratic functioning of society.

3. **Sensationalism:** A strategy employed to try to capture an audience's attention is sensationalism (Jensen; 2010). Media outlets frequently utilize startling language, exaggeration, and outright lying. Concerns about sensationalism are also raised by the ethical tensions it creates with the journalistic code of ethics. The inflated nature goes against a journalist's obligation to be truthful and impartial. It is their responsibility as journalists to inform the audience of the truth and avoid lying in their reporting. Sensationalism disobeys several moral rules in favour of these strategies.

The media, sensationalism, and politics are all interconnected. As per Dagnes; "Media actors will start using exaggerated words, and then politicians will pick up on them,"; (Swis; 2015). In the end, sensationalism won't disappear any time soon. News will be loaded with flashy and sometimes entirely fake stories as long as it's profitable. However, if we choose to be an informed and deliberate consumer, we can pay attention to the many excellent articles written by trustworthy journalists that keep us informed and prioritize content above clicks.

4. **Lack of Verification:** When information is not confirmed before being reported, it may spread misleading or inaccurate information. For the sake of truth and dependability, journalists have a duty to fact-check and cross-verify material from many sources. Online misleading information dissemination has recently risen sharply in relevance. Since it may have an impact on markets, elections, and the spread of disease, its hazards to societies are genuine and unlikely to go away without intervention. Due to its negative effects on the accuracy and dependability of news reporting, lack of verification is commonly acknowledged as an unethical media practice. lack of verification as an unethical media practice leads to the spread of misinformation, breaches journalistic responsibility, violates public trust, undermines public discourse, damages individuals or organizations, and devalues evidence-based reporting. It is essential for media organizations and journalists to prioritize thorough verification processes to ensure the accuracy and integrity of their reporting.

The following factors highlights the reasons why lack of verification is considered as unethical:

- **Spread of Misinformation:** Failing to verify information before reporting can result in the dissemination of false or misleading news. In an era of rapid information sharing, unchecked misinformation can quickly spread and have significant consequences, including shaping public opinion, causing panic, or damaging reputations.
- **Violation of Public Trust:** Lack of verification erodes the trust that the public places in the media. When news organizations fail to verify facts and present inaccurate information, it undermines the credibility of the entire media industry. This can lead to a loss of trust, skepticism, and a diminished belief in the reliability of news sources (Hall, 1996).
- **Breach of Journalistic Responsibility:** Journalists have a professional responsibility to ensure the accuracy of the information they present to the public. Neglecting the verification process undermines this responsibility and compromises the integrity of journalism as a whole.
- **Ethical Duty to Report Truthfully:** Journalists have an ethical duty to report the truth and present information that has been thoroughly vetted and verified. Neglecting this duty can lead to the publication of unsubstantiated claims, unverified rumors, or biased narratives, which misinform and mislead the audience.
- **Damage to Individuals or Organizations:** Publishing unverified information can cause harm to individuals or organizations who may be wrongfully implicated or misrepresented. This can result in reputational damage, legal complications, and personal distress for those affected.
- **Impact on Public Discourse:** By presenting unsubstantiated or misleading information as fact, a lack of verification may prejudice public opinion. This may prevent fruitful debates, diverge viewpoints, and promote the spread of false information in society.
- **Undermining the Value of Evidence-Based Reporting:** Journalism should be grounded in evidence-based reporting, relying on verified facts and credible sources. Neglecting the verification process weakens the foundation of evidence-based reporting and undermines the principles of responsible journalism.

5. **Privacy Invasion:** It is against the law to get a glimpse into someone else's private affairs without that person's permission or a compelling reason related to the public interest. Without proper consent, the publication of private information, photographs, or recordings can injure people and tarnish their reputations. Privacy invasion is becoming increasingly prevalent in society. As a result, it is becoming a matter of an enormous concern. We have been overwhelmed with innovation. Latent breaches of our privacy and apparent intrusions into our personhood render us defenseless. The law on privacy recognizes a person's inalienable right to privacy, which is to be left alone and to have his personal space respected. Modern culture has given rise to the necessity for privacy and the acknowledgement of that right. This is the natural tendency to hide private information from the public.

Articles 19 and 21 of the Indian Constitution recognizes the right to privacy as a basic right. Therefore, Article 19 is responsible for ensuring that media outlets have the freedom of speech and expression to publish any information subject to state restrictions imposed to protect the sovereignty and integrity of the State, friendly relations with foreign States, public order, decency, or morality, or in relation to contempt of court, defamation, or incitement to commit an offence. Following the passage of the Right to Information Act, 2005, some exceptions to the rule of privacy have been made by Indian law for the benefit of the general public (Obar; 2015).

The rapid and significant growth of electronic media in recent years has brought privacy concerns to the forefront. The media now has the power to expose an individual's private life to the public, thereby increasing the risk of invading their personal space and privacy. In the past, when information was not easily accessible to the public, the likelihood of such invasions was relatively low. In India, newspapers served as the primary source of public information for many years. However, their impact was limited due to the high illiteracy rates among the majority of the population. This landscape has transformed today with a heightened public awareness, improved literacy rates, and, most notably, the explosion of visual, electronic, and social media platforms. These advancements have facilitated an unparalleled information revolution.

6. **Fabrication or Plagiarism:** Fabrication and plagiarism are highly unethical practices in media due to their violation of journalistic integrity and ethical standards. Plagiarism is the unauthorized use or copying of another person's work without giving proper acknowledgment. Fabrication is the creation of fictitious information or events. Both methods jeopardize journalism's credibility by sharing content that is inaccurate or pirated. Journalism entirely relies on the trust of its audience, and when false or plagiarized

information is presented, it damages that trust. This can lead to skepticism, disbelief, and a diminished belief in the reliability of news sources.

Fabrication and plagiarism are violations of the norms and professional ethics that journalists are supposed to observe. Journalists must convey the truth, properly credit sources, and respect the rights of intellectual property in order to practice journalistic integrity. These basic ethical values are undermined by fabrication and plagiarism. They may violate intellectual property rights or defame people or organizations, which can have legal repercussions (Krishma; 2017). Additionally, media organizations that engage in these kinds of acts may face legal action along with substantial harm to their reputation.

- 7. Conflict of Interest:** A conflict of interest arises when journalists have unreported financial or personal interests that could affect their reporting. The independence and integrity of journalism are compromised when favours, gifts, or bribes are accepted in exchange for favourable coverage. Conflicts of interest should never be present in the reporting or decision-making processes of the media. News organizations have a responsibility to present neutral and objective reporting. Conflicts of interest can undermine objectivity by adding assumptions or changing how information is presented (Miller; 2016). To preserve their credibility and the trust of their audience, journalists and media organizations must declare and manage any potential conflicts of interest.

Recommendations to Curb Unethical Media Practices in India

Several suggestions might be taken into consideration in order prevent unethical media practices in India.

- 1. Strengthen Media Regulating Bodies:** Enhance the efficiency and independence of media regulating organizations like the News Broadcast Standards Authority and the Press Council of India. These organizations must have the authority to look into complaints, uphold moral standards, and punish transgressions.
- 2. Implement Stronger Codes of Ethics:** Create and uphold comprehensive codes of ethics for media organizations and journalists. Accuracy, fairness, impartiality, avoiding conflicts of interest, and ethical reporting should all be covered by these codes.
- 3. Promoting Transparency in Media:** Promote transparency and media accountability by making media organizations more accessible to the general

population. Promote the regular disclosure of ownership details, financing sources, and potential conflicts of interest by media outlets.

- 4. Encourage Independent Fact-Checking Groups:** Support and resources should be made available to impartial fact-checking organizations that can substantiate and counter erroneous information. Working together with these groups will help to promote truthful reporting and it will raise public awareness of false information.
- 5. Promote Self-Regulation:** Encourage media organizations to create and uphold their own ethical standards to promote self-regulation within the media business. Industrial groups shall ought to actively promote moral behaviour and make their members responsible for any kind of infringement.

Conclusion

The media plays a crucial role in the governance and development of a country, as seen in historical events the role of the media in the 1975 Emergency and recent protests related to farmers and policies like the Citizenship Amendment Act (CAA) and National Register of Citizens (NRC) has been significant and impactful (Crawford, 2009).

Many journalists and media organizations faced harassment, arrests, and imprisonment for their critical reporting. In recent times, media coverage of protests related to farmers' issues and policies like the CAA and NRC has played a crucial role in shaping public discourse and bringing attention to these issues. Media outlets have covered the protests extensively, providing platforms for different perspectives, amplifying the voices of protestors, and highlighting their demands (Hagen; 1998). It is imperative to note that media freedom and ethical journalism are essential for educating the public, promoting discourse, and keeping those in positions of authority accountable. A vibrant democracy requires a diverse and independent media ecosystem. However, it is imperative that media outlets follow ethical guidelines, validate facts, offer fair coverage, and respect the concepts of justice and objectivity when covering such important events.

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Grounds for Effectuating Media Ban in India: A Critical Analysis

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Introduction

Freedom of press is an essential tenet of freedom of speech and expression guaranteed under the Constitution of India. It is also integral for the right to information. Freedom of press is vital for well-being of democracy and plays significant role as its fourth pillar. In democracy, people are expected to exercise their right to vote diligently based on the truthful information and narration disseminated by the mass media. Similarly, free press is integral for rule of law and social order¹. Thus, the freedom of press is integral to mass media including audio, visual and print media to undertake this democratic obligation diligently. The horizon of mass media is enlarged in the modern technological era. Presently, visual media consists of online and offline Television Channels, YouTube channels, Instagram feeds and reels, etc. Print media consists of newspapers, magazines, etc. Audio media comprises of All India Radio, FM Radio Channels, Online Audio-books, etc. By looking at the history, A V Dicey had referred the existence of freedom of press provided in the declaration of rights of man², French constitution of 1791³ as well as Belgian Constitution⁴. Dicey identified that the freedom of press in French and Belgian Constitution had been adopted from the English law as the English Courts recognise the right of every man to say and write what he pleases, especially on social, political, or religious topics, without fear of legal penalties⁵. In *Rex v. Cobbett*⁶, Lord Mansfield observed that,

¹ Virendra Kumar. (2005) Free press and independent judiciary: their juxtaposition in the law of Contempt of courts, *Journal of the Indian Law Institute* , 47(4), pp. 447-468

² The Declaration of the Rights of Man proclaimed the right of every citizen to publish and print his opinions, and the language has been cited.

³ Constitution of 1791 guaranteed to every man the natural right of speaking, printing, and publishing his thoughts without having his writings submitted to any censorship or inspection prior to publication.

⁴ A V Dicey. (1915), *Introduction to the Study of the Law of Constitution*, Macmillan, , 8th Ed. London, pp.146-147

⁵ *Ibid* at p.147

⁶ 29 St. Tr. 49

“The law of England is a law of liberty, and consistently with this liberty we have not what is called an *imprimatur*; there is no such preliminary license necessary; but if a man publish a paper, he is exposed to the penal consequences, as he is in every other act, if it be illegal”.

However, this liberty is subjected to the law of libel, slander, treason, contempt and the morals as well. Hence, there is always an element of risk of violation of above laws and standards involved in writing as well as speaking by media which is akin to the individuals. Basically the English laws stands for free speech and free writing and but did not confer any privilege to the press⁷. Thus ‘freedom of press’ can also be identified equally with individual freedom of speech and expression subject the general principles of law like law of libel, treason contempt and morals without any exceptions. In India, we have adopted the freedom of press which is also subjected constitutional restrictions of freedom of speech and expression provided under Article 19(2) of the Constitution of India along with the same restrictions imposed under the English law. The question which comes out in the modern era is about the reasonability in the media ban under the present legal framework without offending the freedom of press. Banning the media is a harsher punishment than imposing monetary penalty or invoking criminal imprisonment. There is no doubt that media ban shall not be the rule but an exception. This exception thus shall clearly be indexed based on the modern socio-legal standards to rule-out the chances of any ambiguity. It is the high time to identify the set grounds for banning the mass media in default.

Media Ban and Freedom of Press

The Indian Independence was the right time in the history to uplift the freedom of press which was suppressed during the British raj through draconian laws. Lord Canning’s Gagging Act was a classic example, whereas the licensing made mandatory on the behest that nothing should be written against the government. However, due to partition and the connected disruptions, the independent India protected the freedom of press only with care and caution⁸. That’s why the Constitution originally did not guarantee freedom of press but only guaranteed freedom of speech and expression⁹. Because, media can not only constitute power to people, but also constitute disruption and disorder if it

⁷ *Ibid* at p.148

⁸ Rajeev Dhavan. (1986), The press and the constitutional guarantee of free speech and Expression, *Journal of the Indian Law Institute* , 28(3), 299-335, 305

⁹ In the Constitutional Assembly Debates on freedom of press on 1st September. 1949, Dr. B.R. Ambedkar said that, “We cannot give any assurance to any newspaperman here and now that we have made a case which is fool-proof and knave-proof”.

is unregulated without any bounds. Because, media is also used as a tool in the power politics to shape the mass psychology of people by spreading misinformation, non-information, one sided information, distorted information, and coloured information than the real information. Misuse of media is thus detrimental to the life of parliamentary representative democracy. But, still media plays vital role in the longevity of parliamentary democracy. The same was observed by Patanjali Sastri CJ in *Romesh Thappar v. State of Madras*¹⁰.

“Freedom of speech and of the press lay at the foundation of all democratic organizations, for without free political discussion no public education, so essential for the proper functioning of the process of popular government, is possible”.

Similarly, J. Venkataramiah observed in *Indian Express News Papers v. Union of India*,

“In today's free world freedom of press is the heart of social and political intercourse. The press has now assumed the role of the public educator making formal and non-formal education possible in a large scale particularly in the developing world, where television and other kinds of modern communication are not still available for all sections of society. The purpose of the press is to advance the public interest by publishing facts and opinions without which a democratic electorate cannot make responsible judgments”.

Thus, people must be able to freely exercise their voting mandate based on true information and narratives without any influence. Black J. in *Martain v. City of Struthers*¹¹, observed that "freedom to distribute information to every citizen wherever he desires to receive it is so clearly vital to the preservation of a free society that, putting aside reasonable police and health regulations of time and manner of distribution, it must be fully preserved"¹². The same mandate for media is also applicable to socio-economic sectors. Society must be able to take an informed decision with respect to their social as well as economic aspects of life. Thus, media is like a double edged sword, can be used for strengthening the society or causing havoc in the society. Thus, the legal system must ensure that mass media is not violating our constitutional principles and values. Any media causing havoc must be penalised or banned as a last resort. It is the bounden duty of media to bring the ill-motives, bad impacts and mishaps of the ruling

¹⁰ AIR 1950 SC 124

¹¹ 319 U.S. 141 (1943)

¹² Endorsed and quoted this Privy Council principle by J. Venkataramiah, E.S. in *Indian Express News Papers v. Union of India*, AIR 1986 SC 515

government to the limelight to public. Thus criticising the ruling government cannot be termed as adverse impact on the sovereignty and security of the state. Thus, the narrative that the state is equal to the ruling government is catastrophic in nature to the well-being of the democracy. The media shall be free to criticise the government on their laws, policies and actions, subject to the reasonable restrictions provided in Art.19(2) of the constitution of India i.e., the interests of the security and sovereignty of India, friendly relations with foreign states, public order, decency or morality, contempt of court, defamation or incitement to an offence. Because, now a days the ruling governments are spending crores of money for public relations and disseminating the information of governmental welfare actions to the grass root level. Thus, the media shall more than acting as the spokesperson of the government shall critically look into the governmental actions to fulfill their democratic obligations to showcase the negatives of the government. This will ensure that the governments will work and engage with public without crossing the constitutional limits. On the other side, the media shall not conjoin with opposition side to concoct or falsify the correct information with objective of pull down a virtuous government and causing disruption in the society. Thus, it is the function of the law to erupt a proper balance between these two sides of the effects of media. Law can use two methods to ensure proper balance in this regard. The functions of the law in regulating media is of two fold.

- Firstly, individual instances of violations of reasonable restrictions provided under Article 19(2) can be penalised or civil damages can be imposed through civil and criminal defamation, civil and criminal contempt, and criminal incitement to commit offence. Here, by using the existing civil and criminal laws can be used to address specific instances of legal violation.
- Secondly, once a mass media is turned out to be a continuous offender of constitutional principles or the law or there is a grave violation of constitutional values or non-adherence to reasonable restriction provided under Art.19(2) of the constitution, a permanent or temporary ban on media can be imposed based on the gravity of the impugned actions.

The second instance related to partial or complete media ban is needed to be analysed more, as there is an absence of clear cut guidance on the imposition of media ban in India. Media ban as provided in the second instance, shall have repercussions over the fundamental rights like right to life, right to equality and freedom to engage in business, trade and profession. Thus, the grounds for media ban shall be formulated very carefully by upholding the spirit of the Constitution in conformity with Art. 19(2) of the Constitution. As the time progresses and considering the rapid changes to the society and technology, the

grounds for media ban shall be elaborated without violating the constitutional morality and principles. Thus Art.19(2) shall be the cornerstone for setting out the grounds for media ban. Further, the information disseminated through the media and its impacts are not analysed by looking at the media or the government. The Supreme Court analysed the information impact and approved the standard of average person, not the standard of an intelligent person. Supreme Court identified average person would include "reasonable strong minded, firm and courageous men, and not those of weak and vacillating mind, nor of those who scent danger in every hostile point of view"¹³. The central government or the judiciary analysing the applicability of reasonable restrictions on freedom of press, shall step into the shoes of a reasonable man to check the particular act of the media.

Media Ban: Current Standing of India

With respect to regulations of newspapers, the Press Council of India (PCI) is a statutory, quasi-judicial body established under the Press Council Act, 1978 with the mandate of preserving the freedom of the Press and to maintaining and improving the standards of newspapers, news agencies and journalists in India. PCI is authorised to set the ethical code of conduct for newspapers, news agencies and journalists. PCI is also empowered to warn, admonish and censure the newspapers and individuals on complaints of violation of ethical code of conduct or professional misconduct. The PCI is authorised to exercise the powers of a civil court while exercising its quasi-judicial functions entrusted under the Act. However, the Act didn't confer any power to temporarily or permanently ban the newspapers in India. Censure is an ineffective remedy, as the erring newspapers are having a tendency to repeat the same¹⁴. Bureau of Outreach and Communication (BOC) is an integrated body of three different government departments can withhold the government advertisements to such defaulted newspapers. Still, these measures are insufficient to provide either a temporary or permanent ban of press media. However, as per clause 17(vii) of Print Media Advertisement Policy-2020, BOC can impose penalty on publications censured by PCI due to violations of the 'Norms of Journalistic Conduct' or having indulged in any anti-national activity. Such penalty includes temporary ban of media like suspension for fifteen days for first offence, two months for second offence and six months for the third offence. However, power to impose permanent ban is not included in the Policy, 2020.

¹³ *Ramesh v. Union of India*, AIR 1988 S.C. 775.

¹⁴ Standing Committee on Communications and Information Technology (2023), Action Taken by the Government on the Observations/Recommendations of the Committee contained in their Twenty-seventh Report (Seventeenth Lok Sabha) on 'Ethical Standards in Media Coverage, 38th Report, Ministry of Information and Board Casting, Lok Sabha Secretariat.

Prasar Bharati (Broadcasting Corporation of India) Act, 1990 established a broadcasting corporation for India known as *Prasar Bharti* and a broadcasting council to regulate and conduct the affairs of *Doordarshan* Television Network and *Akashvani* All India Radio. Thus, this Act didn't give wider power to broadcasting corporation and council to regulate the affairs general mass media in India. However, the Cable Television Networking (Regulation) Act, 1995 is enacted with the objective of regulating the operation of cable television networks in the country. Section 19 and 20(3) of the Act permits an authorised officer as well as the central government under the public interest to prohibit by order any cable operator from transmitting or re-transmitting any channel not in conformity programme code, advertisement code, or causing disharmony, enmity, hatred on grounds of religion, race, language, caste or community or any other relevant ground between different religious, racial, linguistic or regional groups or castes or communities or which is likely to disturb the public tranquillity. These provisions are in effect preventing such channel from broadcasting through cable operators, which in turn resulted in the media ban in broadcasting through cable operators.

Further, the emergence of new mode of broadcasting through internet protocol is permitted in India and regulated through Guidelines for Provisioning Internet Protocol Television (IPTV) Services, 2008. It provides for the broadcasting of television channels through IP Network either through wired or wireless mode by telecom service providers which is also regulated by Telecom Regulatory Authority of India (TRAI). However, the IPTV service can also be provided by cable television network operators who are continued to be regulated by the Cable Television Networking (Regulation) Act, 1995. The audience for the conventional television channels are significantly reduced and the social media platforms and its contents gained momentum in the modern era. Thus, the government of India under the Information Technology Act, 2000 formulated the Information Technology (Intermediary Guidelines and Digital Media Ethics Code) Rules, 2021 to regulate the social media intermediaries and the online curated contents. Under this Rules, the primary obligation to exercise due diligence is vested with the social media intermediaries to set out their internal rules and regulations to prevent its users to host, display, upload, modify, publish, transmit, store, update or share any information which is harmful to child, violating IP Rights, violates any law in force, threatens the unity, integrity, defence, security or sovereignty of India, friendly relations with foreign States, or public order, or causes incitement to the commission of any offence, etc. The complaints against such intermediary or publisher shall be directed to the Inter-departmental committee (IDC) under Rule 14 of the Rule, 2021. The Committee shall after providing adequate hearing, can make necessary recommendation to the Ministry of Information and Broadcasting (MIB) and the MIB shall after considering the recommendations will issue

appropriate order and directions including the deletion of the content. The recommendations may include,

1. warning, censuring, admonishing or reprimanding such entity; or
2. requiring an apology by such entity; or
3. requiring such entity to include a warning card or a disclaimer; or
4. in case of online curated content, direct a publisher to—
5. re-classify ratings of relevant content; or
6. edit synopsis of relevant content; or
7. make appropriate modification in the content descriptor, age classification and parental or access control;
8. delete or modify content for preventing incitement to the commission of a cognisable offence relating to public order;
9. in case of content where the Committee is satisfied that there is a need for taking action in relation to the reasons enumerated in sub-section (1) of section 69A of the Act, it may recommend such action.

Section 69A of the Information Technology Act, 2000 granted power to central government or authorised officers to direct the relevant governmental agency or intermediary to block the public access of information from a computer source on the grounds of maintaining public order, sovereignty, integrity, defence, security of state and incitement to an offence¹⁵ An intermediary failed to adhere to such directions shall be punishable with maximum imprisonment of 7 years and also liable for fine. Thus Section 69A is also a tool in the hands of the government for ban of online media and news portals. Further, the IT Rules of 2021 granted power to the authorised officer to analyse the information published online and to pass its recommendations to the MIB for blocking such information in case emergency nature. The Secretary, MIB is authorised to issue such directions for the purpose of blocking such information to such identified or identifiable persons, publishers or intermediary in control of such computer resource hosting such information or part thereof in case of emergency nature without even giving such person an opportunity of hearing. Final order shall only be passed by the secretary, MIB only after considering the recommendations of the Inter-departmental committee constituted under Rule 14.

¹⁵ For example, central government banned 138 betting apps and 94 online money lending apps by invoking Section 69A of the Information and Technology Act, 2000. Available at <https://indianexpress.com/article/explained/explained-law/centre-blocks-online-platforms-section-69a-it-act-debate-explained-8434750/>.

Media Ban under the Guidelines for Up-linking and Down-linking of Satellite Television Channels in India, 2022

Satellite television channel ban is also possible presently in India through non-renewal of permission to uplink and downlink the television channels by Ministry of Information and Broad casting (MIB) as per the Policy Guidelines for Up-linking of Television Channels from India, 2022 replacing the Policy Guidelines for up-linking of television channels from India, 2011. The ground for non-renewal of permission to use up-linking and down-linking of satellite channels are in effect the grounds for media ban in India. Clause 9 of the Guidelines clearly indicated that the licensed user for up-linking shall continue to adhere to the conditions laid down for the granting license for renewal of license after 10 years. The renewal can be denied on the grounds of violation of original conditions of licensing for up-linking put forwarded under clause 6 and 7 or continuing obligations provided under clause 8. Such grounds include,

1. Maintenance of minimum net worth provided under Appendix II of the guidelines;
2. Adherence to Foreign Direct Investment (FDI) Policy;
3. Full disclosure of shareholders, residential status of board of directors and Key managerial personnel, loan agreements, other finalised agreements, control over management and assets;
4. Clearance and approval by the Department of Space, Ministry of Home Affairs and other authorities, if required;
5. Permission fees and bank guarantee;
6. Adherence to the Programme & Advertising Codes, as laid down in the Cable Television Networks (Regulation) Act, 1995 and the Rules
7. Other terms and conditions stipulated by the Department of Space and WPC Wing of Ministry of Communications.

A violation of any of these grounds will lead to cancellation or non-renewal of the license and automatic ban on that media. The major ground of security clearance is a replica of clause 10.4 of the earlier guidelines, 2011, which mandated permission and renewal of satellite linking required security clearance from Ministry of Home Affairs (MHA). In *Madhyamam Broadcasting Limited v. Union of India*,¹⁶ the MHA denied the security clearance for 'Media-One Channel, thus resulted in non-renewal of license by MIB. However, the reason for denial of security clearance was not communicated to the aggrieved party by the MHA. The High Court of Kerala through a Writ petition analysed the legality of denial of security clearance and non-renewal of link license. The

¹⁶ 2022 LiveLaw (Ker) 68

relevant files of MHA made available to the court through a sealed cover. The conclusions of committee of officers of MHA and intelligence bureau submitted for perusal of the Court alone. MHA Kerala High Court held that the inputs of committee of officers of MHA are of serious nature and falls under the security rating parameters validated the recommendation of non-renewal by the committee of officers which is accepted by the MHA. The High court observed that protecting national security involves avoiding any possibility that may threaten national security. The national security is an executive responsibility, where Legislature and Judiciary have only complementary roles. The High court uphold the order of MHA and MIB by stating that the principles of natural justice and the interference by courts have very limited role in the matter of national security. Division bench of Kerala High Court upheld the decision of the single bench.

However, on Appeal the Supreme Court of India analysed the different grounds for non-renewal of linking, which in fact, resulted in the ban of Media One Channel¹⁷. Supreme Court identified following grounds for non-renewal discerned from the Clause 10 of the Guidelines. They are,

1. The channel should not have violated the programme and advertisement code on five or more occasions;
2. The channel should not have been found guilty of violating the terms and conditions of permission; and
3. The channel must fulfil all the terms and conditions that apply to the grant of permission as modified by the letter of permission.

The Apex court factually analysed whether there is a perpetuation of violation of above grounds by Media One channel or not, including the connection with *Jamat-e-islami Hind*. The court also clarified the extent of applicability of the principles of natural justice when issues of national security are involved. The Court observed that MHA and MIB denied to disclose even the summary of the reasoning for denying of the security clearance. The Court observed that, when relevant material is disclosed in a sealed cover, there are two injuries which are perpetuated against the aggrieved party. Firstly, the documents are not available to the affected party. Secondly, the documents can be relied upon by the opposite party-government in the course of their arguments, and the court will arrive at a finding by relying on those materials unknown to the aggrieved party. This has necessarily left the Appellants with no remedy. If the State discards its duty to act fairly without following natural justice, then it must be justified before the court on the facts of the case. Firstly, the State must satisfy the Court that national security concerns are involved. Secondly, the State must satisfy the

¹⁷SC Civil Appeal No. 8129 of 2022

court that an abrogation of the principle(s) of natural justice is justified. Based on this analysis the Apex court identified that the freedom of press which is protected under Article 19(1)(a) has effectively been eclipsed without providing them with an effective and reasonable avenue to challenge the decision. This infringes upon the core of a right to fair hearing. The Apex Court identified that the single judge and division bench of the High Court did not provide any clarity on the nature of the ‘inputs that were of a serious nature’ made by the committee of officers and there is no mention of the security rating parameters that have been relied on. Thus, Apex court held that it is a non-reasoned order which perpetuates the non-application of judicial mind in assessing the veracity of the inputs. The Court thus allowed the appeal and ordered MIB to renew the permissions in terms of this judgment within four weeks and directed other authorities to co-operate in issuing necessary approvals to Media One Channel.

Thus, in this case the Apex Court on the one side upheld security clearance mandate as one of the conditions required to be fulfilled for renewal of permission under the Guidelines, which in turn legitimatised the usage of security clearance as a tool for media ban by adhering to the principles of natural justice. The Court also clarified that concerns of ‘national security’ used for media ban does not have a fixed meaning and it derives its meaning from the context. However, in case of non-disclosure of the grounds to the aggrieved party for denying security clearance on account of national security, the government shall have the duty to prove that there is adequate material to conclude that the non-disclosure of the information is in the interest of national security; and a reasonable prudent person would arrive at the same conclusion based on these material. The Court shall also determine whether the State makes the claim in a bona fide manner or not. The court still observed that the judiciary allows due deference to the State to form its opinion on national security, but it has the power to review the opinion of the state only on a limited ground that of whether there exists any nexus between the material and the conclusion arrived at by the state. Thus, the ground of national security is not compromised in this case, but clearly intimated the government to form such opinion based proportionality and sound material evidence. The same approach is reflected in *Anuradha Bhasin v Union of India*¹⁸, the Supreme Court of India held that ban of internet services which in would affect the freedom of speech and expressions and freedom of press would be illegal and that such orders for internet ban must satisfy the tests of necessity and proportionality.

¹⁸ (2020) 3 SCC 637

Conclusion and Suggestions

The present legal frameworks for media ban in India are developed based on the reasonable restrictions specified under Art.19(2) of the Constitution of India. The flaws of present legal framework for media ban are actually underlying in the wide quasi-judicial power exercised by the central government and its officers in effectuating media ban. Here, there is a wide discretionary power vested with the pure executive body in fixing violation of the grounds provided under Art.19(2) of the Constitution. Granting discretionary power to pure executive body like designated officer of central government to permanently take away the fundamental right of freedom of press is unreasonable, arbitrary and contrary to the constitutional principle of separation of power. It is clearly provided that the reasonableness of the restrictions imposed on the freedom of press shall have procedural and substantive¹⁹. Substantive reasonableness include adherence to natural justice include a fair opportunity of hearing and reasoned decision. Thus, when there are violations by a media which are expected to be susceptible to a media ban by invoking the grounds provided under Art.19(2) by the central government, then the matter shall be referred to a designated tribunal and shall be adjudicated by a designated tribunal by following the principles of natural justice. Furthermore, the burden of proof of reasonableness is with the state to prove that the restriction is justified²⁰. Here, the central government is the adjudicator with onus of proof, which cannot be assimilated with the principles of natural justice, especially with the principle underlying in *Nemo iudex in causa sua*. Thus, exercise of such enormous quasi-judicial power by the pure executive officers and by the central government is detrimental to the fundamental right to freedom of press. Giving unscrupulous power to the government will force the media to adhere to the instructions of the government and the ruling parties. Free and fair media can be ensured if power to adjudicate media ban is entrusted to designated tribunal with judicial members and technical members as the experts from the media itself. Because, the free and fair media is essential facet for public empowerment. The ideal move shall be the establishment of a permanent body like PCI or IDC to conduct the preliminary inquiry of violation of the grounds and its proportionality for media ban for all media and to form the preliminary opinion and to submit its report to central government. The report can either to be accepted or challenged by the parties involved before the tribunal for the final order. This will uphold the natural justice principles and the principle of separation of power.

Similarly, the reasonable restrictions specified under Art. 19(2) of the Constitution is also not comprehensively covering the major threats to the

¹⁹ *Kishan chand Arora v. Commr. of police*, AIR 1961 SC 705

²⁰ *Municipal Corporation of City of Ahmedabad v. Jan Mohammed Usmanbhai*, (1986) 3 SCC 20.

peaceful existence of the society. In India we have a versatile heterogenic society, hence there shall be positive legal steps to protect the peaceful existence of different classes of society. A small spark of discontent may lead to the large fire of riots and social exclusion, which the country already witnessed several times, even after independence. Any attempt by any media or by any person to incite class hatred shall be condemned, thus it should be added as a ground for effectuating media ban. This notion was there before the constitutional Assembly. A.K. Ayyar in a letter dated 4 April 1947 addressed to B.N. Rau proposes to add "incitement to class hatred" as a restriction to freedom of speech. The free speech and freedom of press shall not be extended to persons and media for spreading hatred and eventually chaos in the society. The ground of 'promote feelings of enmity or hatred between different sections of the people of India' was even recognised as objectionable matter under Section 3 of the repealed Press (objectionable Matter) Act, 1951. Thus, the elaboration of the list of grounds provided under Art.19(2) shall considered based on the modern needs of strengthening the social fabric of India.

Whistleblowing and Investigative Journalism in India; A Comprehensive Analysis

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Abstract

India's complex social, economic, and political landscape has made it a breeding ground for corruption and unethical behavior. The function of investigative journalism and whistleblowing in India's sociopolitical environment is examined in this chapter. It looks at the ethical issues, difficulties, and historical background of these activities. Whistleblowing and Investigative Journalism have emerged as some of the most effective tools in combating corruption and promoting transparency. This chapter seeks to provide a comprehensive analysis of Whistleblowing and Investigative Journalism in India by giving a historical overview of Whistleblowing in India, followed by a argument of the role of Investigative Journalism in exposing corruption. It will also examine the ethical and legal implications for Whistleblowers and Journalists in India. This analysis is essential in understanding the effectiveness of Whistleblowing and Investigative Journalism in promoting accountability, transparency, and good governance in India.

The chapter further identifies significant instances of investigative journalism and whistleblowing in India, illuminating their social effects. It also addresses how technology and social media are growing in their support of investigative journalism and whistleblowing. The chapter ends with a reflection on what the future may hold for this crucial aspect of Indian media.

Keywords: Whistleblowing, Investigative journalism, Legal framework, Technology.

Introduction

Whistleblowing and investigative journalism are vital in fostering transparency, accountability, and uncovering hidden truths within societies. In the context of India, a nation marked by a vibrant democracy and a complex social fabric, these practices have played a significant role in exposing corruption, misconduct, and malpractices across various sectors. Through their efforts,

whistleblowers and investigative journalists have challenged the status quo and prompted systemic reforms, strengthening India's democratic foundations.

Whistleblowing refers to the Act of individuals or insiders within organizations coming forward to disclose information about wrongdoing, often in the public interest. These courageous individuals expose corruption, fraud, human rights violations, environmental damage, and other unethical practices that would otherwise remain concealed. Their disclosures can have far-reaching consequences, affecting public policy, legal proceedings, and public perception. In parallel, investigative journalism serves as a crucial pillar of democracy by delving deep into issues and unearthing facts that may be hidden or deliberately obfuscated. Investigative journalists employ rigorous research, data analysis, and interviews to investigate complex matters of public concern. Their relentless pursuit of truth often leads them to expose high-profile scandals, political controversies, and societal injustices. *(What Is Whistleblower?, n.d.)*

India's whistleblowing and investigative journalism landscape has witnessed notable achievements and challenges. The traditional and digital media has been instrumental in shedding light on issues ranging from corruption in government bodies, financial irregularities, and corporate malfeasance to human rights violations, environmental hazards, and social injustices. However, these pursuits have not come without risks and obstacles. Journalists and whistleblowers have faced threats, intimidation, legal challenges, and even physical harm, underscoring the need for robust legal frameworks and support systems to protect them.

Recently, whistleblowing and investigative journalism in India has gained significant prominence, with landmark cases and exposés making headlines. The revelation of large-scale financial scams, such as the Vijay Mallya and Nirav Modi cases, have showcased the impact of investigative journalism in exposing high-profile economic offences. Additionally, healthcare, education, and law enforcement whistleblowers have played crucial roles in highlighting malpractices, leading to systemic reforms.

The digital age has also transformed the landscape of whistleblowing and investigative journalism in India. Social media platforms, online portals, and digital tools have empowered citizen journalists and whistleblowers, rapidly disseminating information and promoting greater public participation. However, the rise of fake news, misinformation, and the erosion of trust in media have also posed challenges to the credibility and impact of these practices.

In this comprehensive analysis, we will delve deeper into the state of whistleblowing and investigative journalism in India. We will explore the legal

frameworks, existing challenges, notable cases, and the evolving role of technology. By examining the successes and limitations of these practices, we aim to shed light on the importance of whistleblowing and investigative journalism as pillars of democracy and catalysts for positive change in India's societal fabric.

Historical Context

Whistleblowing and investigative journalism in India has a rich historical context, deeply intertwined with the country's political, social, and economic developments. The evolution of these practices can be traced back to various periods in India's history, marked by significant events and the efforts of individuals to uncover corruption, malpractices, and societal injustices. The concept of whistleblowing can be traced back to the ancient Indian texts such as the Arthashastra, which describes the role of a "Prajapati" or a public servant who was responsible for reporting any fraudulent or corrupt activities in the kingdom to the king. However, the modern concept of whistleblowing emerged in India during the 20th century.

Investigative journalism in India has its origins in the years before independence, when newspapers and journalists were crucial to the cause of freedom. Publications like "The Hindu," "Amrita Bazar Patrika," and "Bengalee" critically reported on British colonial policies, human rights abuses, and social inequalities. Journalists like Dadabhai Naoroji, Ferozeshah Mehta, and Gopal Krishna Gokhale used their platforms to expose the injustices of British rule and advocate for political reform.

Following India's independence in 1947, investigative journalism played a crucial role in shaping the nation's democratic landscape. Journalists like Kuldip Nayar, B. G. Verghese, and Arun Shourie gained prominence for their fearless reporting and groundbreaking investigations. They highlighted important issues such as corruption, government malfeasance, and human rights violations. Their work contributed to public awareness, debates, and policy changes.

In 1962, the Public Interest Disclosure and Protection of Informers (PIDPI) Resolution was passed, which encouraged government officials to report any unethical or corrupt practices by their colleagues or superiors. However, this resolution was not legally binding and did not provide any protection to whistleblowers.

With the birth of investigative journalism as a unique genre, the media environment underwent a substantial change in the 1970s and 1980s. Through in-depth reporting, journalists like P. Sainath, Prabhash Joshi, and Harivansh

Rai exposed rural poverty, caste-based discrimination, and political corruption. These journalists focused on grassroots issues and brought marginalized voices to the forefront, challenging the narratives propagated by mainstream media.

In the 1990s, economic liberalization opened new avenues for investigative journalism. Journalists and media houses increasingly focused on corporate malpractices, financial frauds, and economic inequalities. The expose of the stock market scam by Sucheta Dalal and Debashis Basu, known as the "Harshad Mehta Scam," was a landmark case that shook the nation and exposed deep-rooted corruption within the financial system.

The early 2000s witnessed the emergence of a new wave of investigative journalism in India, driven by the advent of digital media and the rise of citizen journalism. Online platforms and independent news portals allow journalists to pursue investigations without being constrained by traditional media organizations. This era saw the rise of whistleblowers and citizen journalists who used the internet and social media to expose corruption and malpractices.

Notable cases of whistleblowing and investigative journalism in India include the Tehelka sting operation in 2001, which exposed corruption in defence procurement, and the Radia Tapes scandal in 2010, which uncovered the nexus between politicians, corporate lobbyists, and media personalities. These cases highlighted the power of undercover journalism and its role in revealing systemic corruption.

However, the practice of whistleblowing and investigative journalism in India has not been without challenges. Journalists and whistleblowers have often faced legal threats, defamation suits, harassment, and physical violence. In some cases, investigative journalists have been targeted or silenced by influential individuals or entities seeking to suppress the truth (Agarwal & Mukherjee, n.d.).

In response to these challenges, the Whistleblower Protection Act was enacted in 2014 to provide legal safeguards and protection to individuals who expose wrongdoing. The Act encouraged whistleblowers to come forward without fear of retaliation and provided mechanisms for their complaints to be investigated. The protection of whistleblowers and the efficient application of the law, however, continue to be issues. Despite this, the implementation of the act has been slow and ineffective, and many whistleblowers have faced retaliation and harassment. In fact, a study (Kanojia et al., 2020) conducted found that only 36% of Indian companies have a formal whistleblowing policy, and even fewer have a hotline or an independent ombudsman to investigate complaints. This lack of protection and support for whistleblowers has discouraged many

individuals from reporting any wrongdoing and has hindered the fight against corruption in India. (Association Progressive Communications.Pdf, n.d.)

Legal Framework

The legal framework in India for investigative journalism and whistleblowing consists of numerous laws, rules, and court interpretations that control press freedom, journalistic duties, and whistleblower protection. While these legislative measures aim to protect the rights of journalists and whistleblowers, there are still various issues that need to be undertaken in order to provide a strong foundation for their protection.

1. Whistleblower Protection

- ***The Whistleblower Protection Act, 2014:*** This Act was passed in order to establish a legal framework for whistleblower protection in India. It establishes mechanisms for reporting wrongdoing, ensures confidentiality, and prohibits victimization or retaliation against whistleblowers. It also establishes the Central Vigilance Commission (CVC) as the designated authority to receive and inquire into complaints. However, the Act has faced criticism for its limited scope and the absence of an independent authority for investigation, which affects its effectiveness.
- ***The Right to Information (RTI) Act, 2005:*** The RTI Act plays a significant role in facilitating whistleblowing and investigative journalism by providing a mechanism for accessing government information. This Act allows citizens to seek information from public authorities, enabling journalists and whistleblowers to gather evidence and expose wrongdoing. However, challenges remain in terms of delays in obtaining information and instances of non-compliance by public authorities.
- ***Protection under the Indian Penal Code (IPC):*** Whistleblowers may seek protection under provisions such as Section 154 (Giving false information), Section 182 (False information, with the intent to cause public servant to use his lawful power to the injury of another person), and Section 409 (Criminal breach of trust by a public servant) of the IPC. These sections penalize false information or misconduct by public servants, providing some legal recourse for whistleblowers. However, there have been instances where whistleblowers have been implicated under these provisions, highlighting the need for more robust safeguards. (Ijalr, 2021)

2. Protection of Journalistic Freedom:

- ***The Constitution of India:*** The Constitution guarantees freedom of speech and expression as a underlying right under Article 19(1)(a). This provision provides the basis for the protection of journalistic freedom in India. However, this right is not outright and can be restricted on grounds such as public order, defamation, incitement to violence, or contempt of court.
- ***Defamation Laws:*** Civil and criminal defamation laws have implications for investigative journalism. Journalists risk legal action if their reporting is deemed defamatory. While the Supreme Court of India has recognized the importance of guarding the freedom of the press, there have been instances where defamation cases have been used to intimidate or suppress critical reporting.

Despite their being several laws India's whistleblower laws are ineffective for a number of reasons. First, one of the main causes for the law's failure is that the Whistle Blower Protection Act (WBP Act) is not widely known. The common of individuals are oblivious of the Act's provisions and consequences. Because of this ignorance, instances of corruption and malpractice have gone unreported. Another factor in the WBP Act's failure is the absence of a suitable implementation mechanism. There are no defined criteria for the investigation of these concerns, nor is there a clear process for filing complaints. This has led to a lack of openness and accountability in the Act's implementation. Third, the lack of a sufficient framework for safeguarding whistleblowers is another issue that contributes to the law's failure.. Whistleblowers are not explicitly protected by any mechanism against harassment and reprisal. This has undermined public confidence in the system and deterred people from coming forward to report instances of fraud and corruption. Fourth, the law has failed because there is a poor framework in place for investigating and prosecuting cases involving whistleblowers. Because there is no established procedure for the investigation and prosecution of such incidents, the system lacks openness and accountability. Another factor contributing to the law's failure is the absence of a suitable framework for compensating whistleblowers. Because there is no established procedure for compensating whistleblowers, there is a lack of confidence in the system, which deters people from coming forward to disclose instances of fraud and corruption. Overall, the laws pertaining to whistleblowers in India are failing due to a absence of knowledge, implementation mechanisms, protection systems, investigation and prosecution systems, and compensation systems.(*American UniversitySchool.Pdf*, n.d.)

Challenges

Whistleblowing and investigative journalism in India faces numerous challenges that hinder their effectiveness and pose risks to whistleblowers and journalists. These challenges include:

- 1. Threats and Intimidation:** Whistleblowers and journalists often face threats, intimidation, and harassment from individuals or entities seeking to suppress their disclosures or investigative work. This can include physical violence, legal action, smear campaigns, or even death threats, leading to self-censorship and a chilling effect on reporting.
- 2. Lack of Legal Protection:** While India has introduced laws like the Whistleblower Protection Act, the legal framework for whistleblower protection remains inadequate. The Act has scope limitations, lacks an independent investigative authority, and inadequate protection against retaliation. Whistleblowers often face the risk of reprisals without sufficient legal recourse or protection.
- 3. Defamation and Libel Laws:** Defamation and libel laws in India can be misused to silence whistleblowers and investigative journalists. Legal action, both civil and criminal, can be taken against journalists for publishing sensitive information, leading to self-censorship and curbing critical reporting.
- 4. Lack of Journalist Shield Laws:** India does not have specific laws protecting journalists from revealing their sources or confidential information. Journalists may face pressure to disclose their sources, undermining their ability to protect whistleblowers and carry out investigative reporting.
- 5. Limited Access to Information:** Whistleblowing and investigative journalism rely on access to information, particularly from public authorities. However, obtaining information through the Right to Information (RTI) Act can be challenging due to delays, non-compliance by public authorities, and instances of information being withheld.
- 6. Financial Constraints:** Investigative journalism requires substantial resources for in-depth research, data analysis, and fieldwork. Many media organizations in India face financial constraints, making it challenging to allocate resources and support investigative reporting. This can limit the capacity to uncover and report on complex issues.

- 7. Political and Corporate Influence:** Powerful political and corporate entities can influence media organizations, resulting in self-censorship and suppression of critical reporting. Ownership patterns and advertising revenue dependencies can compromise the independence and objectivity of media outlets.
- 8. Digital Misinformation and Fake News:** The rise of digital media has led to the spread of misinformation and fake news, which can overshadow legitimate whistleblowing and investigative journalism efforts. Disinformation campaigns and propaganda can undermine public trust in media and dilute the impact of credible reporting. (Latan et al., 2023)

Addressing these challenges requires a multi-faceted approach. It includes strengthening legal protections for whistleblowers and journalists, reforming defamation laws to balance freedom of expression and protecting reputation, ensuring the independence and autonomy of investigative bodies, promoting media pluralism, and nurturing a culture of transparency and accountability in public institutions.

Whistleblowing and investigative journalism in India faces numerous challenges. Journalists often encounter threats, intimidation, and physical violence for their work. The nexus between politicians, businesses, and the media industry poses additional hurdles, with powerful entities exerting pressure to suppress stories. The chapter delves into these challenges and examines their impact on journalists' ability to engage in investigative reporting.

Ethical Considerations

The act of whistleblowing and reporting on classified information has raised ethical and legal concerns for both the whistleblowers and journalists. The whistleblowers are often viewed as traitors, while journalists may face imprisonment for publishing classified information. However, the decision to disclose such information is often driven by a sense of moral obligation. As noted by Olesen, whistleblowers have a duty to report on illegal activities or unethical behavior that pose a threat to public safety. In some cases, whistleblowers may not have an alternative means of making their voices heard, and therefore, choose to take the risk of reporting. On the other hand, journalists have a duty to inform the public and hold those in authority accountable. However, they must also balance their obligation to report with the legal consequences of publishing classified information. As noted by Olesen journalists may be protected under the First Amendment, but they may still face legal repercussions if they violate laws related to classified information. Overall, the decision to blow the whistle or report on classified information is a

complex ethical and legal issue that requires careful consideration of the potential consequences for both the whistleblower and journalist.(Banisar, 2011)

Ethical considerations play a crucial role in whistleblowing and investigative journalism in India. Upholding ethical standards ensures that principles of integrity, fairness, transparency, and accountability guide the actions and practices of whistleblowers and journalists. Ethical considerations include sourcing information, protecting sources, verifying facts, avoiding conflicts of interest, and responsibly reporting sensitive issues. Here are some critical roles of ethical considerations:

- 1. Truth and Accuracy:** Whistleblowing and investigative journalism aim to discover the truth and provide accurate information to the public. Ethical journalists strive for factual accuracy, diligently verifying information and sources before publishing or reporting. Truthfulness is essential for maintaining credibility and public trust.
- 2. Protecting Sources:** Whistleblowers often provide vital information that exposes wrongdoing. Ethical considerations dictate that journalists should protect the confidentiality and anonymity of whistleblowers whenever possible. This protection encourages individuals to come forward with information without fear of retaliation.
- 3. Independence and Objectivity:** Ethical journalism requires independence from external influences and political, corporate, or personal biases. Journalists should strive to present information objectively, without undue influence or favouritism. They should avoid conflicts of interest that could compromise their integrity or the credibility of their work.
- 4. Respect for Privacy and Dignity:** Ethical whistleblowing and investigative journalism respect the privacy and dignity of individuals involved. Sensationalism, intrusive reporting, or the unwarranted disclosure of personal details should be avoided unless it serves a clear public interest and is necessary for the story's integrity.
- 5. Balance and Fairness:** Ethical reporting seeks to present a balanced and fair perspective by providing all relevant viewpoints and allowing subjects of investigation the opportunity to respond. Journalists should avoid presenting biased or one-sided narratives and fairly represent the facts.
- 6. Transparency and Accountability:** Ethical whistleblowing and investigative journalism require transparency in the methods, sources, and motives behind

the reporting. Journalists should be transparent about their affiliations, funding sources, and potential conflicts of interest. They should also be accountable for errors and be willing to correct them promptly.

7. **Public Interest:** Ethical considerations prioritize the public interest and the greater good. Whistleblowing and investigative journalism should focus on matters of public concern, exposing corruption, malpractices, and injustices that have significant societal implications. Journalists must weigh the potential harm caused by their reporting against the public's right to know. (*Journalism and Whistleblowing: An Important Tool to Protect Human Rights, Fight Corruption, and Strengthen Democracy - UNESCO Digital Library*, n.d.)

Ethical considerations guide the actions of whistleblowers and journalists in navigating complex ethical dilemmas. Adhering to ethical standards helps maintain credibility, promotes responsible reporting, and ensures that whistleblowing and investigative journalism promote transparency, accountability, and a more just society.

Notable Cases

Whistleblowing and investigative journalism in India has been instrumental in exposing high-profile cases of corruption, malpractices, and societal injustices. Here are some notable cases that have made a significant impact:

1. **Bofors Scandal (1980s):** The Bofors scandal was one of India's most infamous corruption cases. Journalists Chitra Subramaniam and N. Ram and whistleblower Sten Lindstrom exposed a kickback scheme in procuring Bofors howitzers for the Indian Army. Their investigation revealed the involvement of high-ranking politicians, resulting in a public outcry and political consequences. (*What Is the Bofors Scam Case? | India News, The Indian Express*, n.d.)
2. **Tehelka Sting Operation (2001):** The Tehelka sting operation, also known as Operation West End, exposed corruption in defence procurement. Tehelka, an investigative news magazine, conducted an undercover operation, revealing several politicians and defence officials accepting bribes. The operation led to the resignation of the then Defense Minister and triggered a nationwide debate on corruption.
3. **Radia Tapes Scandal (2010):** The Radia Tapes scandal involved leaked phone conversations between corporate lobbyist Niira Radia and various influential individuals, including politicians, journalists, and corporate

leaders. The tapes, exposed by investigative magazine Open and Outlook, exposed the collusion between the corporate and political world, revealing the nexus of power and influence.

4. **Coal Scam (2012):** Journalists and whistleblowers played a crucial role in exposing the coal scam, also known as "Coalgate." Investigative reports by journalists such as Josy Joseph, Prashant Bhushan, and whistleblower IAS officer Ashok Khemka revealed irregularities and corruption in allocating coal blocks to private companies. The scandal led to the cancellation of coal block allocations and significant political controversy.
5. **Panama Papers (2016):** The International Consortium of Investigative Journalists (ICIJ) exposed the Panama Papers leak, which named various Indian officials, businesspeople, and celebrities as participants in offshore tax avoidance. The ICIJ worked with Indian journalists, notably those from The Indian Express, to look into and uncover the widespread usage of offshore accounts for illegal activities.
6. **PNB Scam (Nirav Modi Case) (2018):** Investigative journalism played a critical role in uncovering the Punjab National Bank (PNB) scam involving jewellery businessman Nirav Modi. Journalists from various publications, such as The Indian Express, followed the trail of fraudulent transactions and exposed the multi-billion-dollar scam. The case led to a significant shakeup in India's banking sector and highlighted the need for more robust regulatory measures. (PRESENT STATUS OF WHISTLEBLOWING CASES IN INDIA, n.d.)

These cases demonstrate the power of whistleblowing and investigative journalism in exposing corruption, financial irregularities, and political scandals. They have prompted public discourse, investigations by law enforcement agencies, and, in some instances, legal and policy reforms. These courageous acts have contributed to the fight against corruption and the pursuit of transparency and accountability in India.

Technology and Social Media

Technology and social media have significantly transformed the landscape of whistleblowing and investigative journalism in India, playing a pivotal role in uncovering wrongdoing and disseminating information to the public. Here are some critical roles of technology and social media:

1. **Access to Information:** Whistleblowers and investigative journalists now have easier access to information because to technology. There is a lot of

information available on the internet, in digital databases, and on online platforms that can be used to discover unreported information, financial irregularities, and links between people and organisations.

2. **Digital Tools for Investigation:** Various digital tools and software have emerged that aid investigative journalism. Data mining, data visualization, and analysis tools help journalists sift through vast amounts of information, identify patterns, and uncover insights. These tools enhance the efficiency and effectiveness of investigations.
3. **Crowdsourcing and Citizen Journalism:** Social media platforms enable crowdsourcing of information and citizen journalism, empowering individuals to contribute to investigations. Whistleblowers can anonymously share information, documents, or video evidence through secure digital platforms, reaching a broader audience and increasing the chances of exposing wrongdoing.(OECD, 2018)
4. **Real-time Reporting and Dissemination:** Social media allows for real-time reporting and immediate dissemination of information to the public. Journalists can provide live updates, share breaking news, and engage directly with the audience. This enables whistleblowers and journalists to raise awareness and quickly generate public interest in their investigations.
5. **Amplifying Impact and Building Networks:** Social media platforms provide a global reach, allowing whistleblowers and investigative journalists to expand the impact of their work. Sharing investigations on social media can attract the attention of influential figures, organizations, and media outlets, leading to broader exposure, collaborations, and support for their cause.
6. **Anonymous Communication and Protection:** Technology offers secure communication channels and platforms that allow whistleblowers to maintain anonymity and protect their identity. Encrypted messaging apps and anonymous submission platforms provide a safer environment for whistleblowers to share sensitive information without fear of being identified.
7. **Combating Disinformation and Fake News:** While social media can be a source of misinformation, it can also serve as a tool to debunk fake news and disinformation campaigns. Journalists can use social media platforms to fact-check claims, provide accurate information, and counter false narratives.(OECD, 2018)

However, it is essential to acknowledge the challenges and risks associated with technology and social media in whistleblowing and investigative journalism. These include privacy, data security, the spread of misinformation, online harassment, and the need to verify the authenticity and credibility of online sources.

Ultimately, technology and social media have opened up new avenues for whistleblowing and investigative journalism in India, facilitating the gathering and dissemination of information, empowering citizens, and enhancing transparency. However, ethical and responsible use of these platforms, coupled with critical thinking and fact-checking, remain necessary for preserving the integrity and reliability of the information shared.

Conclusion

In conclusion, whistleblowing and investigative journalism in India is vital in exposing corruption, promoting transparency, and holding those in power accountable. Through their brave efforts, whistleblowers and journalists have brought numerous cases of wrongdoing to light, contributing to public awareness, policy reforms, and societal change.

However, the landscape of whistleblowing and investigative journalism in India is not without challenges. Threats, intimidation, legal constraints, and financial limitations pose significant obstacles to the effective functioning of whistleblowers and journalists. Strengthening legal protections, addressing defamation laws, and ensuring the independence of investigative bodies are crucial steps to overcome these challenges.

Ethical considerations provide a moral compass for whistleblowers and journalists, guiding their actions to pursue truth, fairness, and public interest. Upholding ethical standards ensures the credibility and integrity of their work, fostering trust between the media and the public.

Technology and social media have revolutionized the field of whistleblowing and investigative journalism, enabling more accessible access to information, facilitating collaboration, and amplifying the impact of their work. However, responsible use of technology, including fact-checking, protecting sources, and combatting disinformation, is essential for maintaining the integrity of the information shared.

In India, whistleblowing and investigative journalism have played pivotal roles in exposing high-profile scandals, from corruption cases to financial irregularities. These endeavours continue to shape public discourse, trigger

investigations, and drive the demand for greater transparency and accountability in public and private institutions.

Moving forward, it is crucial for society to recognize the importance of whistleblowing and investigative journalism and to provide adequate legal protection and support to those who risk their careers and personal safety to expose wrongdoing. Only through a robust framework, ethical practices, and technological advancements, can whistleblowing and investigative journalism thrive, contributing to a more just and transparent society in India.

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Fundamentally Toxic Relation between Media, Politics, and Propaganda: An Analysis

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Abstract

It is the imperative obligation of media to disseminate the right information for the awareness of people and it has to perform its duty with integrity, fearlessness and responsibility. Media has become ubiquitous nowadays and part and parcel of human life. In a democratic society, a lot of faith is reposed on it. Many political theorists and jurists consider media as the fourth pillar of democracy. But when it forgets its socio-moral duties and becomes a puppet in the hands of various stakeholders, it causes irreparable damage to society by spreading false and one-sided information in the form of propaganda.

In this book chapter, the researchers have tried to analyze the fundamentally toxic relationship between media, politics, and propaganda by discussing examples from the 20th and 21st centuries highlighting how political outfits manipulated the common folk by spreading propaganda through mass media. To understand this situation better, the role of media as the fourth pillar of democracy, the judicial approach to disseminating propaganda and hate speeches, along with certain other related concepts, have also been analyzed holistically. This book chapter also tried to find possible solutions to tackle propaganda and hate in the name of journalism.

Introduction

Media is considered to be one of the most powerful entities in the modern world. It can influence the human mind in several ways unimaginable and can thus make him either a rational human being with a healthy and productive thought process or an anti-social element with unhealthy thought processes and ideas.

In this book chapter, an attempt has been made to discuss the toxic relationship between media, politics, and propaganda. The researchers have also analyzed the concepts of mass media and propaganda. Along with this, discussions on the role of media as the fourth pillar of democracy and certain media theories that aim in understanding how media impacts the minds of individuals have also been incorporated in this paper. The judicial approach while dealing with hate speeches, fake news, and hate propaganda has also been scrutinized.

The paper concludes by trying to answer the question that how a relationship between propaganda and democracy can prove to be both lethal as well as healthy and suggests some measures to deal with the same.

Mass Media and its Importance

The term mass media is made up of two terms; mass and media. The word mass is derived from the French word *masse* which means a large amount, lump, or heap,²¹ and the word medium is derived from the Latin word *medius* which means middle.²²

According to the *Merriam-Webster Dictionary*, the word mass refers to a very large quantity or number²³, and the word *media* is the plural form of the medium which means the word medium means the manner or way for conveying something.²⁴

Merriam-Webster's Dictionary defines mass media as a medium of communication such as newspaper, television, radio, etc. which can be used to reach the masses.²⁵ The *Oxford Dictionary* defines the term mass media as the sources of information and news.²⁶ These sources must reach and influence many people, including newspapers, magazines, radio, and television.²⁷

Thus, mass media can be defined as a medium through which masses and classes regularly learn about what is happening in and around the world.

²¹ Etymology Online, (2023, May 28th). *The etymology of the Word Mass* <https://www.etymonline.com/search?q=mass>

²² Etymology Online, (2023, May 28th). *The etymology of the Word Mass* <https://www.etymonline.com/search?q=mass>

²³ Merriam Webster (2023, May 28th). *Mass* <https://www.merriam-webster.com/dictionary/mass>.

²⁴ Merriam Webster, (2023, May 28th). *Medium* <https://www.merriam-webster.com/dictionary/medium>.

²⁵ Merriam Webster, (2023, May 28th). *Mass Media* <https://www.merriam-webster.com/dictionary/mass%20media>.

²⁶ The Oxford Learners Dictionary, (2023, May 28th). *Mass Media*, https://www.oxfordlearnersdictionaries.com/definition/american_english/the-mass-media.

²⁷ The Oxford Learners Dictionary, (2023, May 28th). *Mass Media*, https://www.oxfordlearnersdictionaries.com/definition/american_english/the-mass-media.

Importance of Mass Media in a Democracy

Media plays a crucial role in the society. It acts as an informer and a socializer. It keeps people updated regarding various events happening in and around the world and also caters to the entertainment needs of people belonging to all age groups. It helps in cultural exchange and also promotes an imperative role in education.

Politics too are today highly dependent on media. Through social media platforms, not politicians reach a large number of people but also directly communicate with them through live sessions. In addition to this, a huge chunk of political funds is spent on advertising on media platforms like newspapers, radio, television, and recently on micro-blogging and social networking sites at and around the time of elections.

Certain algorithms are created which repeatedly show people advertisements related to a particular political party and in this way, through the use of technology and propaganda, the entire political atmosphere prevailing in a country is changed altogether.

With the availability of 24-hour channels nowadays, nearly every corner of the globe is covered by the media. Additionally, a sizeable portion of people believe that the news media, whether print or electronic, is accurate. It's crucial to always keep in mind that the media serves as the general public's primary source of information and has been given increased duty for maintaining and protecting public trust.

Role of Media in Democracy

Just as oxygen is a necessity for the sustenance of human life, in the same manner, responsible media is vital for the existence of a healthy and successful democracy. For the survival of a democracy, the press and media must be proactive.²⁸ Many political thinkers have even referred to media as the fourth pillar of democracy, the other three being; legislature, executive, and judiciary.²⁹

In a democracy freedom of speech and freedom of individual go hand in hand. This is because a vibrant and successful democracy can exist only if individuals are having the freedom to articulate and put forward their views

²⁸ The Sikkim Chronicle, (2023, May 28th). *Press and Media: The Fourth Pillar of Democracy*, <https://www.thesikkimchronicle.com/press-and-media-the-4th-pillar-of-democracy/>.

²⁹ The Sikkim Chronicle, (2023, May 28th). *Press and Media: The Fourth Pillar of Democracy*, <https://www.thesikkimchronicle.com/press-and-media-the-4th-pillar-of-democracy/>.

and ideas without any fear of legal sanctions and censorship. A democracy cannot function properly unless the people are well-informed about the issues and are having a lot of alternative solutions to the problems that arise on day to day basis.

“The Right to Freedom of Speech and Expression” is considered to be a universal and indispensable right that shall be available to all people without any form of discrimination or distinction. In a democracy, this right acquires much greater importance. This was one of the major reasons behind conferring this very right the status of a human right by **Article 18** of the Universal Declaration of Human Rights 1948³⁰ and **Article 18** of the International Covenant on Civil and Political Rights 1966.³¹

In India, the Freedom of Speech and Expression is provided as a Fundamental right under **Article 19(1) (a)** of the constitution.³² An analysis of this article shows that this right is available not only to individuals but also the media establishments.

It is worth noting that in India various laws have been made for regulating how ideas and views have to be disseminated by the media houses. These laws; the Press and Registration of Books Act, of 1867, the Press Council Act, of 1978, the Cinematograph Act, of 1952, the Cable Television Networks (Regulation) Act, of 1995, and the Information Technology Act, of 2000, etc.³³

Owing to the technological revolution a lot of media content is now available over the OTT platforms. Recently in 2021, new IT Rules have been framed by the central government to regulate the content over OTT platforms and also to hold them accountable for the content that is disseminated to the public at large.³⁴

In the past few years’ independence and freedom of media and press in India has reduced to a great extent and this is quite an alarming scenario. India is ranked 161 in 2023 according to World Press Freedom Index and this figure is not at all encouraging.³⁵

³⁰ Article 18, The Universal Declaration of Human Rights 1948.

³¹ Article 18, The International Covenant on Civil and Political Rights 1966.

³² Article 19(1) (a) Constitution of India (1950).

³³ The Sikkim Chronicle, (2023, May 28th). *Press and Media: The Fourth Pillar of Democracy*, <https://www.thesikkimchronicle.com/press-and-media-the-4th-pillar-of-democracy/>.

³⁴ The Indian Express, (2023, May 28th). *Govt frames new rules to hold social media, OTT accountable for the content*, <https://indianexpress.com/article/technology/tech-news-technology/govt-frames-new-rules-to-hold-social-media-ott-accountable-for-content-720506/>.

³⁵ Reporters Sans Frontiers, (2023, May 28th). *Data of Press Freedom Ranking 2023*, https://rsf.org/en/ranking_table.

Commenting on the need for a free media in democracy, the Supreme Court in ***Indian Express Newspaper v. Union of India & Others***,³⁶ held that if the press ceases to be independent then the healthy influence of the press and public opinion will soon get substituted by the traditional influences of landlordism and feudalism.

Media and the Human Mind

Media impacts the mind of human beings in a big way. Various sociologists and communication researchers have tried to understand how media impacts the mind of people and have put forward various theories about the same. These theories have been mentioned hereinafter:

- 1. Hypodermic Needle Theory:** This theory was developed in the 1920s and 1930s was one of the earliest theories about the influence of mass media on audiences. This theory suggests that media messages are injected directly into the brains of passive audiences who in turn respond to the media messages accordingly.³⁷ However, this theory is no longer accepted widely but still it continues to influence the way audiences talk about the media.
- 2. Two Step Flow Theory:** This theory of communication proposes that interpersonal interaction is having a far stronger effect on shaping public opinion than what mass media outlets have. It was formulated in 1948 by **Paul Lazarsfeld and Hazel Gaudet** in their book titled ***The People's Choice***. *This book was authored* after conducting thorough research into the decision-making process of voters during the 1948 U.S. presidential elections.³⁸

As per this theory, the content from mass media first reaches “opinion leaders”. These opinion leaders are active media users and they collect, interpret, and diffuse the meaning of media messages to less-active media consumers. This implies that most people receive information from opinion leaders via interpersonal communication rather than from mass media. As per this theory, word-of-mouth transmission of information plays a crucial role in the communication process and mass media is having only a limited influence on most individuals.³⁹

³⁶ 1986 AIR 515

³⁷ The Lesson Bucket, (2023, May 28th). *The Hypodermic Needle Theory*, <https://lessonbucket.com/media-in-minutes/the-hypodermic-needle-theory/>

³⁸ The Encyclopedia Britannica, (2023, May 28th). *Two-Step Flow Theory*, <https://www.britannica.com/topic/two-step-flow-model-of-communication>.

³⁹ The Encyclopedia Britannica, (2023, May 28th). *Two-Step Flow Theory*, <https://www.britannica.com/topic/two-step-flow-model-of-communication>.

3. Cultivation Theory: This theory was proposed by **George Gerbner**. As per this theory, people who watch television frequently are more likely to get influenced by the messages which are broadcasted from the television. This theory further states that the influence of these messages goes to such an extent that the views as well as perceptions of the people who watch television to a great extent start reflecting what they repeatedly see and hear on television. Thus, television contributes independently to how people perceive their social reality. Due to the constant exposure to the media people unconsciously end up shaping their thought processes and behavior based on what they are fed by the media.⁴⁰

Propaganda and its Types

The word **propaganda** is derived from the title and work of Congregation for Propagation of the Faith - an organization of Roman Catholic cardinals founded in 1622 for carrying on missionary work.⁴¹

According to **Merriam-Webster Dictionary**, propaganda means deliberately spreading ideas, facts, etc. to support one's cause and to damage an opposing cause.⁴² According to the **Oxford Dictionary**, propaganda means using false and misleading statements which are exaggerated and are used to garner support for a particular political leader.⁴³

Thus, propaganda can be defined as statements, images, etc. which are misleading, exaggerated, and one-sided and are usually spread keeping in mind some political idea or motive. They are mainly used to garner support for a political idea and are one-sided in nature.

Propaganda is not at all considered to be good for society as it not only hampers the growth of society but also has a detrimental impact on the civil and political rights of the citizens. Keeping this in mind, in **Article 20** of the International Covenant on Civil and Political Rights 1966, a duty has been imposed on the states to prohibit any kind of propaganda by the use of the law.⁴⁴ As per this article, any kind of national, religious, and racial hatred which constitutes incitement of discrimination, hostility, or violence shall be prohibited by the

⁴⁰ The Communication Theory, (2023, May 28th). *Cultivation Theory*, <https://www.communicationtheory.org/cultivation-theory>

⁴¹ The Encyclopedia Britannica, (2023, May 28th). *Propaganda*, <https://www.britannica.com/topic/propaganda>.

⁴² The Merriam Webster, (2023, May 28th). *Propaganda*, <https://www.merriam-webster.com/dictionary/propaganda#h1>.

⁴³ The Oxford Learners Dictionary, (2023, May 28th). *Propaganda*, https://www.oxfordlearnersdictionaries.com/definition/american_english/propaganda.

⁴⁴ Article 20, The International Covenant on Civil and Political Rights 1966.

states by the use of the law.⁴⁵ Propaganda is nowadays widely used by political outfits around the world and is mainly classified into two categories. These are:

- 1. Covert Propaganda:** Covert means something which is not shown openly or is concealed.⁴⁶ Covert propaganda is also based on the same idea. It includes things such as political advertisements which are either unsigned or are signed with false names. It also includes certain false statements that are made by editors, politicians, or other such outfits as they have been secretly bribed by governments, political backers, or business firms.
- 2. Overt Propaganda:** Overt on the other hand means something which is outwardly visible or open to view.⁴⁷ Thus overt propaganda means a situation in which propagandists and the ones who back them are known to the people who react to these statements.

Even though there is usually a difference made between covert and overt propaganda but it is worth noting that in reality, all the political outfits use combinations of both these forms of propaganda to further their interests.

Mainly, political outfits use propaganda for intensifying social and political divisions in society. Propaganda is also used for intensive political indoctrination employing long political lectures and discussions. Additionally, political candidates, party programs, and positions on political issues that are “packaged” and “marketed” by advertising firms influence the thought processes of people at an unprecedented level.

How has Propaganda Shaped Human History?

Propaganda has been widely used throughout human history to mobilize support for many causes, both good and bad. One can find a plethora of examples where propaganda has been used by political outfits to turn tables. Following are some of the well-known examples of the use of propaganda:

- 1. Russian Revolution 1917:** Russian Revolution also popularly known as the October Revolution of 1917. The success of this revolution was dependent largely on the Marxist Propagandas which was spread across the revolutionaries at that time.⁴⁸ During the First World War, the Bolsheviks

⁴⁵ Article 20, The International Covenant on Civil and Political Rights 1966.

⁴⁶ The Merriam Webster, (2023, May 28th). *Covert*, <https://www.merriam-webster.com/dictionary/medium>.

⁴⁷ The Merriam Webster, (2023, May 28th). *Overt*, <https://www.merriam-webster.com/dictionary/medium>.

⁴⁸ The British Broadcasting Company, (2023, May 28th). *Russian Revolution: Ten propaganda posters from 1917*, <https://www.bbc.com/news/world-europe-41833406>.

put forward anti-war propaganda which was greatly influenced by the ideas of Lenin.⁴⁹

With the power and support that they enjoyed at that time, the revolutionaries gained access to conventional printing facilities. Through these printing facilities, they were able to spread their propaganda which soon turned into official state propaganda which mocked the old regime owing to its inability to command. Many posters containing anti-clerical, anti-monarchial caricatures were largely made available to the revolutionaries during the time of the Russian Revolution.⁵⁰

- 2. The First World War:** During the First World War, propaganda was widely used and spread in favor of the war through propaganda films. In addition to this many advertisements and fliers were attached all through the participant countries to promote the propaganda.

In Britain, there was a poster in which there were two children who were sitting along with their father in the living room. The girl was asking her father what he did during the First World War or what his contribution was to the war. The idea behind this was to strike at the pride of fathers that they were doing nothing during this war and in the future their children will reprimand them for not contributing enough to the war. The main reason was to compel the men with families and children to join the armed forces.⁵¹

Similarly, in Germany and the USA, many films were made during wartime to foster support for national causes and as a means to mobilize the masses. Some of the most popular films of this time were; *Battle of the Somme*, *My Four Years in Germany*, *Hearts of the World*, etc.⁵²

- 3. Second World War:** Propaganda was also widely used during the Second World War and was used both by the Allied Powers as well as Axis Powers. A poster titled *Together* was passed all across Britain. It showed people of various races and religions such as Blacks, Indians, and Whites armored to fight in the war. The main idea behind this was to encourage people from all races to come together and fight as a united army in need of time.⁵³

⁴⁹ The British Library, (2023, May 28th). *Propaganda in the Russian Revolution*, <https://www.bl.uk/russian-revolution/articles/propaganda-in-the-russian-revolution>.

⁵⁰ The British Library, (2023, May 28th). *Propaganda in the Russian Revolution*, <https://www.bl.uk/russian-revolution/articles/propaganda-in-the-russian-revolution>.

⁵¹ The Canva, (2023, May 29th), *50 Powerful Examples of Visual Propaganda And The Meanings Behind Them*, <https://www.canva.com/learn/examples-of-propaganda/>.

⁵² Thompson, Kristin, And Bordwell, David (2014). *Film History: An Introduction*, MC Graw-Hill, Boston.

⁵³ The Canva, (2023, May 29th), *50 Powerful Examples of Visual Propaganda and The Meanings Behind Them*, <https://www.canva.com/learn/examples-of-propaganda/>.

Another poster showed Hitler sitting on the telecommunication wires and trying to overhear various things. The poster read, be careful of what you say. The main idea behind this was to spread the message to Allied Powers and Agencies working for them that Nazi Germany is having the means to listen to the communication which was going on between the various groups.⁵⁴

4. **Cold War:** Cold War was more of an ideological conflict that the world grappled with in the second half of the 20th Century. Both the Soviet Union and the United States and their allies used every possible method to portray how good life was offered by their socio-economic system. Along with this they also tried to portray the alleged deficiencies of their rival's system.⁵⁵

In the U.S.S.R and Soviet Bloc, it was the Communist Party that controlled the flow of information. The newspapers, radio, and television focused on disseminating anti-Western and anti-capitalist stories.⁵⁶

In the USA, the intelligence agencies used the media, to broadcast uncensored accounts of the news to sow seeds of discontent and foment opposition in the minds of common folk against the communist ideology. During the same time, a lot of anti-communist education documentaries were made by the USA and were televised all across the USA in schools as well as homes.⁵⁷

5. **Iraq War 2003:** The USA invaded Iraq in 2003 on the grounds that it was possessing Weapons of Mass Destruction. Thousands of people were killed during this war and it is considered to be both a diplomatic and economic failure of the USA.⁵⁸ Nowadays it is argued that the main reason behind this war was to bring down the government of Saddam Hussein and gain control over the Iraqi Oil Fields.⁵⁹

The US Army was criticized worldwide for its actions. To justify its actions, the American Government established several campaigns that were aimed at

⁵⁴ The Canva, (2023, May 29th), *50 Powerful Examples of Visual Propaganda and The Meanings Behind Them*, <https://www.canva.com/learn/examples-of-propaganda/>.

⁵⁵ The Encyclopedia Britannica, *Cold War- Policies, Propaganda, and Speeches*, <https://www.britannica.com/study/cold-war-policies-propaganda-and-speeches>.

⁵⁶ The Encyclopedia Britannica, *Cold War- Policies, Propaganda, and Speeches*, <https://www.britannica.com/study/cold-war-policies-propaganda-and-speeches>.

⁵⁷ Pickowicz, Paul, *Revisiting Cold War Propaganda: Close Readings of Chinese And American Film Representations of The Korean War*, *Journal of American-East Asian Relations* (2010).

⁵⁸ The Washington Post, (2023, May 29^h). *Iraq War- An Intelligence Failure of White House Spin*, <https://www.washingtonpost.com/politics/2019/03/22/iraq-war-wmds-an-intelligence-failure-or-white-house-spin/>.

⁵⁹ The CNN, (2023, May 29th). *Why Iraq War Was Fought For Big Oil*, <https://edition.cnn.com/2013/03/19/opinion/iraq-war-oil-juhasz/index.html>.

the common folk of the USA. Similar tactics were used by the American Military and Government to bring down Saddam Hussein and his government and to justify it. The main reason behind this was that by allowing the media to broadcast live images of combat, the military satisfied television viewers' desire for spectacular action, and to avoid any critical dimension amid the fighting.⁶⁰

- 6. Cambridge Analytica and USA Elections:** Cambridge Analytica is a social media monitoring firm that helped Donald Trump in winning US Presidential elections in 2016. Before the election, it gained access to the data of around 50 million Facebook users through highly questionable means.⁶¹

Using that data, Cambridge Analytica created a tool of “psychological warfare” to manipulate American voters with targeted Facebook ads and social media campaigns. Cambridge Analytica used highly sensitive personal data which was taken from Facebook users without their knowledge to manipulate them into supporting Donald Trump.⁶²

This scandal has highlighted an important fact that over a period owing to technological advancements, many innovative techniques have been invented to spread propaganda ideas. But most importantly this controversy has once again raised an important question that whether or not the connection between propaganda and democracy is fundamentally toxic.

Politics and the Usage of Propaganda in India

Owing to the persuasive power of propaganda and its ability to shape the mind and thought processes of individuals, many political parties and ruling governments nowadays are resorting to propaganda to further their interests. By controlling media houses and other platforms the ruling dispensations are trying to hack the mind of common folk and create a fake image of them in front of the world which is far from the reality. The usage of propaganda in India has a rich history:

- 1. Propaganda During the Revolt of 1857:** Propaganda was used for the first time by the British during the Rebellion of 1857. In many newspapers in Britain and India, various accounts of incidents related to the revolt of 1857.

⁶⁰ David L, (2009), War and Mass Mediated Evidence- Cultural Studies — Critical Methodologies.

⁶¹ The Times, (2023, May 29th). *Facebook's New Controversy Shows How Easily Online Political Ads Can Manipulate You*, <https://time.com/5197255/facebook-cambridge-analytica-donald-trump-ads-data/>.

⁶² The Times, (2023, May 29th). *Facebook's New Controversy Shows How Easily Online Political Ads Can Manipulate You*, <https://time.com/5197255/facebook-cambridge-analytica-donald-trump-ads-data/>.

During the revolt, the propaganda was mainly promoted through political cartoons that emphasized racial differences and styled the British as keepers of peace and justice. This propaganda was also able to instill fear of Muslims and Hindus in the minds of the British. The underlying idea behind all this was that the British wanted to portray Indians as savages who needed enlightenment that could be provided to them only if Britain ruled over them.⁶³

- 2. Propaganda in Post- Independence Era:** Even after India's independence propaganda was used by almost every political party but nowadays it is argued that it is being used to a great extent. As argued by some scholars and think tanks the ruling dispensation led by current Prime Minister- Narendra Modi is trying to spread Hindutva propaganda to hide its fascist characteristics.⁶⁴

According to a report published in the National Herald, the BJP and RSS's ideology which focused on building a *Hindu Rashtra* was the antithesis of Congress's ideology which focused on strengthening democracy and secularism.⁶⁵ During the general elections media team of BJP didn't leave any stone unturned to erase the legacy of Congress and its leaders. Innumerable embarrassing instances have been recorded where members of the BJP are themselves involved in the spreading of false propaganda and circulation of photoshopped images of Modi. In recent times thousands of fake messages were circulated all across India in which it was said that Narendra Modi has been chosen as the best PM in the world by UNESCO.⁶⁶

- 3. Propaganda During Covid-19:** During the first wave of COVID-19 in India, a congregation took place in Markaz in Delhi. This congregation which took place in the Nizamuddin area of Delhi was attended by a group of people who belonged to Tabliqi Jamat.⁶⁷

Several news channels, social media pages, and newspapers broadcasted and published long and elaborative versions which tried to establish a link

⁶³ Summers C Claire (2015). *Indian Rebellion of 1857*. Harding University.

⁶⁴ The Counter-Currents, (2023, May 29th), *Narendra Modi The Failed Prophet of Propaganda*, <https://countercurrents.org/2020/06/mr-narendra-modi-the-failed-prophet-of-propaganda/>.

⁶⁵ The Counter-Currents, (2023, May 29th), *Narendra Modi The Failed Prophet of Propaganda*, <https://countercurrents.org/2020/06/mr-narendra-modi-the-failed-prophet-of-propaganda/>.

⁶⁶ The National Harold, (2023, May 29th). *CM Modi To PM Modi- A Journey Fueled by Fake Propaganda*, <https://www.nationalheraldindia.com/opinion/cm-modi-to-pm-modi-a-journey-fuelled-by-fake-propaganda>.

⁶⁷ The Indian Express, (2023, May 29th), *Persecution and propaganda evident in media coverage of Tablighi Jamaatis: Bombay HC*, <https://www.newindianexpress.com/thesundaystandard/2020/aug/23/persecution-and-propaganda-evident-in-media-coverage-of-tablighi-jamaatis-bombay-hc-2187047.html>.

between the outbreak of the COVID-19 pandemic and the congregation of Tablighi Jamat.

As observed by the Honorable High Court of Bombay, it was nothing but propaganda that was spread through print and electronic media alike against those who had come to Markaz in Delhi. According to the High Court of Bombay, it was an attempt to create a picture that the Muslims were the ones who were responsible for spreading the Covid-19 virus in India. Given the extent to which this propaganda was circulated, it was observed by the court that it was a virtual persecution that took place against the Indian and foreign Muslims. A division bench of the Bombay High Court, consisting of Justices T V Nalawade and M G Sewlikar while quashing FIRs against foreigners belonging to the Jamat said that, a political government always tries to find a scapegoat whenever there is a pandemic or calamity. In the view of the court, the current circumstances highlighted that there was a high probability that these foreigners were chosen to make them scapegoats.⁶⁸

In this way, they gave the pandemic a communal angle and caused unrest amongst the common folk.

During the second wave of coronavirus in India an article published by the media agency The Wire in which it stated that there is a Facebook page called 'Citizen vs. Government' and this page was broadcasting all sorts of dangerous conspiracies about the pandemic regularly. According to this report on May 1, 2021, a clip was shared by this page from a news channel named Sudarshan TV in which the editor of the aforementioned news channel- Suresh Chavhanke "exposed" Bill Gates as the mastermind of the COVID-19 conspiracy against India as he had a so-called plan to depopulate the world which was conceived in a secret meeting called "Event 201". This video has since garnered over 1.4 million views on YouTube.⁶⁹

Judicial Approach in Tackling Propaganda

In recent years, there has been a spur in the incidents of dissemination of hate propaganda in India.

Hate propaganda can be termed as the public promotion and incitement of hatred against a particular group or community. In the hate propaganda

⁶⁸ The Indian Express, (2023, May 29th), Persecution and propaganda evident in media coverage of Tablighi Jamaatis: Bombay HC, <https://www.newindianexpress.com/thesundaystandard/2020/aug/23/persecution-and-propaganda-evident-in-media-coverage-of-tablighi-jamaatis-bombay-hc-2187047.html>.

⁶⁹ The Wire, (2023, May 29th). Fake News, Quackery Mar India's COVID Fight but Government is Doing Nothing About Infodemic, <https://thewire.in/media/fake-news-quackery-mar-indias-covid-fight-but-government-is-doing-nothing-about-infodemic>.

individuals are targeted based on their religion, race, ethnicity, sex, sexual orientation, gender identity, etc. Hatred in the form of hate propaganda conveys vilification and detestation and thus leads to segregation, ostracism, violence, and even genocide in extreme situations. It can be disseminated in the form of pamphlets, flyers, telephonic and digital messages.⁷⁰

Fake news, biased news broadcasted by news channels carrying certain ideologies, and, above all hate speeches by people who hold some kind of authority influence the psyche and the conduct of the individuals.

Fake news poses a major threat to the society. Commenting on the dangers of fake news, **CJI DY Chandrachud** remarked, “Fake news poses a serious threat to the independence and impartiality of the press in the current society.”⁷¹ He further added that millions of people can get misguided by fake news and this is in direct contradiction with the fundamentals of democracy.⁷²

In the ***Publisher and Editor of Divya Himachal v. Prakash Chand***, the Himachal Pradesh High Court has observed that the publication of false news is not a public service, but a disservice.⁷³

A bench of the Supreme Court headed by then **Chief Justice- NV Ramana** expressed concern over the spread of such fake and communal news while hearing petitions led by Jamiat Ulama-i-Hind that sought directions to the Union Government for stopping the dissemination of fake news and for taking action against a certain section of media for disseminating communal hatred. It was observed by their lordships that any form of communalization of news brings a bad name to the country.⁷⁴

As far as the dissemination of hate speeches is concerned it is imperative to look into the decision of the Supreme Court in the case of **Pravasi Bhalai Sangathan v. Union of India and Ors.** In this case, a PIL was filed by Pravasi Bhalai Sangathan. It is an organization that works for the welfare of inter-state migrants. The appellant prayed that:

⁷⁰ The University of York, (2023, June 6th), Hate Propaganda: A Guide for Students, Faculty and Staff, <https://rights.info.yorku.ca/hate-propaganda-a-guide-for-students-faculty-and-staff/>

⁷¹ NDTV, (2023, June 6th), *Fake News endanger democratic values of fraternity- Chief justice of India* <https://www.ndtv.com/india-news/fake-news-can-endanger-democratic-values-of-fraternity-chief-justice-of-india-3884393>

⁷² NDTV, (2023, June 6th), *Fake News endanger democratic values of fraternity- Chief justice of India* <https://www.ndtv.com/india-news/fake-news-can-endanger-democratic-values-of-fraternity-chief-justice-of-india-3884393>

⁷³ 2017 SCC Online HP 2474.

⁷⁴ The Hindustan Times, (2023, June 7th), *Supreme Court airs concern over the spread of fake and communal news*, <https://www.hindustantimes.com/india-news/supreme-court-airs-concern-over-spread-of-fake-and-communal-news-101630606816789.html>

- The court must declare making hate speeches by any political or religious leader or representative based on religion, race, caste, place of birth, etc. is a violation of Articles 14, 15, 16, 19, 21, 38, and 51(A) of the Constitution.
- It was also pleaded that steps must be taken by state governments to declare hate speeches as an act against the Union of India, for suo moto registration of FIR in case hate speeches are made, and for the suspension of those authorities and derecognition of those political parties whose leaders make such hate speeches.

The petitioner contended that the existing legal framework was not sufficient for dealing with the menace of hate speeches but the respondents contended that the existing legal framework was sufficient. The Honorable Supreme Court of India disposed of the writ petition by stating that the existing laws were sufficient to contain the menace of hate speeches. The court further added that it is the lack of effective implementation that is the real issue and also, that the court shall not entertain a petition for issuing of the non-enforceable directions.

Additionally, it was stated in the judgment that the National Human Rights Commission (NHRC) is having the power to initiate suo-moto proceedings against authors of hate speeches. The Law Commission was also asked by the Court to define the term “hate speeches” and also to suggest ways to strengthen the Election Commission of India so that actions can be taken against political parties for making hate speeches.⁷⁵

But even after this judgment, not much change has come. Every then and now leaders from various political outfits actively engage in making hate speeches and these hate speeches are then broadcasted and disseminated via various media outlets. The approach of the courts in dealing with such cases especially when the maker of hate speech is a person of position, influence, and authority is quite questionable.

The Delhi High Court while dealing with the case of hate speeches during the North-East Delhi Riots said that if hate speech is made with a smile on the face then it lacks criminality and thus the maker cannot be held liable.⁷⁶

⁷⁵ AIR 2014 SC 1591.

⁷⁶ The Indian Express, (2023, June 7th), *Hate Speech Case- If Said With A Smile No Criminality*, <https://indianexpress.com/article/cities/delhi/hate-speech-case-if-said-with-smile-no-criminality-says-hc-7836774/>

Just like hate propaganda, fake news, and hate speeches also have the potential to destroy the harmony prevailing between individuals of different communities in a country. Given the diverse society of India such propaganda, hate speeches and fake news might cause communal unrest and resultantly, large-scale destruction of life and property.

Various researchers also back this idea. In 1954, **Gordon Allport** gave his **Scale of Prejudice**. On this scale, five stages of prejudice have been ranked from the lowest to the highest. First of all, prejudice arises from derogatory speech or antilocution, after this avoidance comes into the picture, it is followed by discrimination and this might lead to physical attacks or hate crimes. At the highest level, the prejudice that roots in hate speech might even lead to ethnic cleansing or genocide.⁷⁷

Thus, there is a dire need to deal with the toxic relationship between media, propaganda, and politics in the best possible manner and also at the level of urgency.

Conclusion

Media came into being as an entity that made people aware of the happenings from all over the world and also provided them with a much-needed dose of recreation and entertainment. But over time, it became all pervasive and became the major driving force behind the success and failure of various political events. In the contemporary world, political outfits are shelling out millions of rupees for getting the support of various media agencies to further their greed for power.

There are a lot of examples to prove the fact that today media in India has lost its independence and has become the mouthpiece of the government and the freedom of speech and expression have been abridged to a great extent. This is not only against the basic idea of democracy but also against some well-known precedents. Throughout human history, politicians have used media to spread propaganda and by doing this they have served their end. Thus, it won't be wrong to conclude that the relationship between media, politics, and propaganda is fundamentally toxic and poses a major threat to the existence of a free society and a vibrant democracy.

⁷⁷ International Society for Traumatic Stress Studies, *Global Perspectives on the Trauma of Hate-Based Violence Briefing Paper*.

To Deal with this Situation, it is Imperative that:

1. It is imperative for media houses to realize that in a democracy, media is the fourth pillar and thus they must show truth and not falsehoods.
2. A successful democracy thrives upon healthy debates and exchange of opinions but when the minds of people are overpowered by propaganda messages then even these debates do not yield a positive output. Thus, individuals must be careful while accepting any idea that is spread through media channels that have a reputation for carrying a particular ideology.
3. Governments also need to realize that in a democracy government must be open to criticism so that it can learn from its mistakes and do good to society. Thus, they must refrain from spreading propaganda.
4. It must be noted that propaganda can also be used for constructive purposes such as bringing about revolutionary changes in society. Historically, it has been used to promote women's workforce in Russia by shattering the traditional notions of femininity.⁷⁸
5. Judiciary should play an active role in containing hate speeches and dissemination of propaganda for the good of society.
6. Stringent legislation to deal with media houses that spread fake news, propaganda, and hate speeches can also go a long way in ensuring the social cohesion.

⁷⁸ The British Library, (2023, May 28th). *Propaganda in the Russian Revolution*, <https://www.bl.uk/russian-revolution/articles/propaganda-in-the-russian-revolution>.

The Impact on Public Policy and Censorship: Media Ownership and Control

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Introduction

Public policy, media, and censorship are interconnected and have a big impact on society. Censorship is the suppression or banning of any content in books, movies, the news, or any other form of communication that is deemed offensive, socially undesirable, or a security risk. The term "media" refers to the many forms of communication, including the internet, radio, television, and print media. The body of laws, rules, and principles used to control society is known as public policy. It has long been a source of discussion how censorship, the media, and public policy are related. This article investigates the effects of censorship on the media and public policy, as well as the function of public policy in policing censorship and defending free speech.

The Impact of Censorship on Media

Media censorship has a significant influence. It restricts the freedom of speech and innovation and makes it more difficult for journalists to cover significant topics. Governments, businesses, or people may impose censorship, which can be overt or covert. When the government imposes censorship, it often does so in the sake of public morality, national security, or the protection of individual rights. Censorship, however, is often employed to silence dissidents or shape public opinion.

The loss of freedom of speech is among the censorship's most severe effects on the media. The capacity of journalists to act as watchdogs for society is hampered when they are unable to report on significant subjects or voice their views. In nations where censorship is pervasive, the media often serves as the government's mouthpiece and critical news is censored. This may result in a lack of openness and accountability in the government, which might have detrimental effects on society.

Loss of creativity is a result of media suppression, too. When authors and artists are subjected to censorship, they are compelled to practise self-censorship,

which may hinder originality and creativity. As a result, media may become homogenised, with all of the material adhering to a small number of standards or norms. This may be especially harmful in countries with limited variety and freedom of speech.

The media may become more fearful as a result of censorship. The self-censorship that results from journalists being scared to report on particular topics or to voice their ideas may be just as harmful as overt censorship. This could result in the media only covering stories that are regarded safe or uncontroversial, or failing to cover critical stories.

The Role of Public Policy in Regulating Censorship

Censorship is severely restricted by public policy. The government must balance the necessity to defend public morals and national security with its need to guarantee freedom of speech. Legislation, rules, and recommendations are only a few examples of public policy's numerous guises. Depending on the situation and the particular problems at hand, they may be utilised to control censorship in a variety of ways.

Protecting freedom of speech is one of public policy's most crucial functions in controlling censorship. By including this right in the constitution or other legal instruments, this may be accomplished. Although it is legal to express oneself freely in many nations, this right is often curtailed or violated in reality. By fostering media variety and the growth of independent media, public policy may be utilised to defend freedom of speech.

There are further ways that public policy may be utilised to control censorship. For instance, legislation may be used to prohibit incitement to violence or hate speech, two types of communication that are not protected by the right to free expression. Regulations may also be employed to avoid media monopolies, which can restrict competition and variety.

The Role of Media in Public Policy

Public policy is significantly influenced by the media. The media may raise awareness of significant topics, spark discussion, and provide a stage for many viewpoints. The media may expose corruption, violations of human rights, and other concerns that can help shape public policy via investigative journalism. In order to make sure that public policy serves the interests of society, the media may also hold governments responsible for their deeds and policies.

Through its coverage of many subjects, the media may also sway public opinion and influence governmental decisions. Public opinion may be influenced by media coverage, which in turn can affect how policy is made. As decision-makers react to public opinion, this may result in changes to public policy. As an example, regular coverage of a certain problem by the media, such as climate change, may raise public knowledge of and support for relevant measures.

The agenda for public policy may also be determined in part by the media. The media may influence the public's opinion of what concerns are significant and what measures should be prioritised by emphasising certain topics while neglecting others. Policymakers may feel under pressure as a result to address popular concerns.

The Importance of Balancing Censorship and Freedom of Expression

While censorship may be required in certain situations, it is crucial to strike a balance between this and the need to uphold freedom of speech. Censorship is often used as a strategy to silence dissident opinions or manage public opinion. A lack of accountability and openness in government, a loss of innovation and variety in the media, and a chilling impact on the media are just a few of the negative effects this may have on society.

Freedom of speech is not a guaranteed right, however. There are valid justifications for restricting the right to free speech, such as to safeguard national security or to stop hate speech or violent provocation. Careful examination of these conflicting interests is necessary to strike a balance between censorship and freedom of speech.

It is crucial for decision-makers to understand the media's effect on public opinion and policymaking. Policymakers can make better choices about how to control censorship and safeguard freedom of speech if they have a better knowledge of the role that the media plays in society. This necessitates a sophisticated strategy that considers the intricacy of the pertinent problems.

Establishing precise rules for what may and cannot be banned is one way to strike a balance between censorship and freedom of speech. This may make sure that censorship is only used when required and is not employed to silence critics or manipulate public opinion. In order for the public to understand why specific information is being restricted, guidelines may also assist to guarantee that censorship is clear and responsible.

A free and independent media should also be supported and protected. This may be accomplished by enacting legislation that safeguards journalists' rights to free

speech and against reprisal or censorship. Additionally, measures that assist media sustainability, such as subsidies for public media or tax breaks for independent media organisations, may be used to accomplish this goal.

In the end, each society's beliefs and interests will determine how censorship and freedom of speech are balanced. National security and public morality may take precedence over freedom of speech in certain nations, while variety and originality in the media may be valued more highly in others. In order to strike the correct balance for their society, it is crucial for policymakers to participate in a public discussion about these problems and to collaborate with civil society organisations and media partners.

Finally, it should be noted that censorship, the media, and public policy are all interrelated and have a big impact on society. Censorship may restrict people's ability to express themselves freely and be creative, and it can also chill the media. By balancing the need to safeguard national security and public morality with the need to maintain freedom of speech, public policy plays a critical role in controlling censorship. Public opinion can be shaped, the public can be informed, and public policy may be affected. It's crucial to strike a balance between censorship and freedom of speech and doing so calls a rigorous analysis of the conflicting interests at stake. Ultimately, a healthy democracy and a fair society rely on a free and independent media that is safeguarded by strong public policy.

Furthermore, censorship and media regulations might change over time since they are not constant. Policymakers must modify their policies as technology develops and new media outlets appear in order to handle new concerns. For instance, the emergence of social media has given birth to new issues with regard to the control of material, such as hate speech and false information. Policymakers need to figure out how to control these new media platforms while upholding free speech.

Additionally, censorship and media regulations might range significantly across various nations and areas. While some nations have strong censorship laws that restrict free speech, other nations have more tolerant laws that uphold it. These discrepancies may have important ramifications for the media and public policy and may affect international discussions on censorship and free speech.

The controversy over China's internet censorship is one illustration of this. Access to certain websites and social media platforms is restricted in China due to strong censorship regulations. Some have argued that this violates the right to free speech, while others claim it is important to preserve social stability and national security. In order to preserve national sovereignty and safeguard its

population from dangerous information, the Chinese government has justified its censorship practises.

The controversy surrounding internet censorship in China brings to light the difficulties in striking a balance between censorship and the right to free speech in various cultural and political settings. While some could argue that censorship is required to safeguard public morals and national security, others might see it as a violation of human rights and a barrier to free and open discourse.

Another example is the current argument in the US around Section 230 of the Communications Decency Act. Online platforms, including social media corporations, are exempt from liability under Section 230 for user-generated material. Some claim that this allows these platforms to dodge accountability for damaging information, while others claim that it is important to safeguard online freedom of speech.

The controversy around Section 230 brings to light the difficulties in striking a balance between censorship and freedom of speech in the age of modern technologies. Policymakers need to figure out how to control social media businesses' content without restricting free speech, given their growing influence and power.

In conclusion, censorship, the media, and public policy are intricately entwined concerns with far-reaching effects on society. The opposing interests that must be balanced between in order to maintain freedom of speech and censorship must be carefully taken into account, as well as the values and priorities of each society. To strike the proper balance for their society while simultaneously adjusting to new challenges and technological advancements, policymakers must collaborate with civil society organisations and media groups. Ultimately, a healthy democracy and a fair society rely on a free and independent media that is safeguarded by strong public policy.

Promoting media literacy and critical thinking abilities is one method that politicians might strike a balance between censorship and freedom of speech. Policymakers can enable people to make informed choices and participate in productive debate about contentious subjects by teaching them how to assess information and recognise sources of prejudice and disinformation.

By enabling people to choose what material to absorb and what to ignore, media literacy may also assist to lessen the need for censorship. By giving individuals access to a variety of viewpoints and ideas, this may contribute to the development of a more varied and open media environment.

By using alternative media channels, censorship and freedom of speech may be balanced in another way. Alternative media platforms that place a higher priority on freedom of speech and transparency are becoming more and more popular as social media platforms gain dominance.

A more varied and open media environment may be provided through alternative media platforms like decentralised social networks and blockchain-based media platforms. These platforms place a high priority on decentralisation and transparency, which may lessen the impact of centralised power structures and support a more democratic media landscape.

Alternative media platforms, nevertheless, can provide fresh problems for content control. Traditional regulatory methods may not work since these platforms often operate decentralised and internationally. In order to manage these platforms in a new manner without restricting free speech or killing innovation, policymakers must come up with new ideas.

Policymakers may encourage media openness and accountability in addition to media literacy and alternative media channels. The public may be informed honestly and transparently about media outlets' financing and ownership sources as well as their ownership, thanks to laws that mandate these things.

Policymakers may aid in reducing the sway of strong interest groups and fostering a more democratic media environment by encouraging openness and accountability in the media. By ensuring that people have access to accurate and impartial information, this may also assist to lessen the need for censorship.

In the end, striking a balance between censorship and freedom of speech requires a multidimensional strategy that considers the intricate and dynamic structure of the media ecosystem. Policymakers can create a more diverse and open media environment that empowers citizens to make informed decisions and engage in productive dialogue about contentious issues by promoting media literacy, supporting alternative media platforms, and promoting transparency and accountability in the media.

Censorship and Ethical Violations on Present-Day Platforms

On today's platforms, censorship and ethical abuses are still problems. Particularly social media platforms have come under fire for how they handle content filtering and how they affect public conversation.

The exclusion of former US President Donald Trump from social media sites like Twitter, Facebook, and YouTube is one of the most visible instances of

censorship on these sites. This action was brought forth by the perception that Trump's postings on social platforms encouraged violence and broke community norms. While some hailed the choice as an essential step to safeguard public safety, others denounced it as an assault on free expression and an illustration of prejudice and censorship by these platforms.

The decision to ban Trump has generated continuing discussions about the limitations of free speech and the function of social media platforms in policing content. Although social media firms have the authority to enact their own rules and control material on their networks, many contend that these rules should be open to all users and applied equally. There have been complaints of censorship and prejudice as a result of critics pointing out that these principles have not always been consistently enforced.

On modern platforms, ethical transgressions are a significant issue in addition to censorship. The use of social media platforms to disseminate misinformation and misleading information as well as to tolerate abuse and hate speech has drawn criticism.

The Cambridge Analytica incident is among the most egregious instances of unethical behaviour on social media networks. Without the users' permission, Cambridge Analytica, a political consulting business, had access to the data of millions of Facebook users. Concerns regarding the influence of social media on the 2016 US Presidential election result arose as a result of the use of this data to produce targeted political advertising.

The Cambridge Analytica crisis made clear the need for stricter data privacy laws and more openness around the collection and use of personal information on social media platforms. Additionally, it sparked debate on the moral ramifications of exploiting social media data for political objectives as well as the function of social media platforms in policing political campaign and advertising material.

The dissemination of propaganda and false information on social media platforms is a further ethical problem. False information has been disseminated concerning elections, public health, and other significant topics through social media platforms. Concerns about the influence of social media on public opinion and the dissemination of misinformation and propaganda have arisen as a result of this.

Social media companies have taken action to prevent the dissemination of misleading information and boost transparency surrounding political advertising in order to allay these worries. To prevent the spread of erroneous information

and propaganda, several platforms have instituted fact-checking programmes, content moderation guidelines, and other safeguards.

These steps, however, have not always been successful, and there are still continuing discussions over the function of social media platforms in controlling material and preserving the integrity of public dialogue.

In conclusion, censorship and moral transgressions are persistent problems on modern platforms. Particularly social media platforms have come under fire for how they handle content filtering and how they affect public conversation. Although social media sites have the authority to control what is posted there, there has to be more openness and consistency in how these rules are applied. In order to stop the spread of misinformation and propaganda on these platforms, more data protection laws and policies are also required. Policymakers, civil society groups, and media stakeholders will ultimately be responsible for striking the correct balance between censorship and freedom of speech while maintaining the integrity of public conversation.

Interconnection of Public Policy and Media and its Contemporary Issues

Our culture is shaped in many different ways by the complicated and dynamic interplay between public policy and the media. While media coverage has the potential to affect public opinion and policy results, public policy affects the media landscape. The importance of the media to democracy, the control of media ownership and concentration, and the difficulties presented by new media platforms and technologies are only a few of the current topics surrounding this link.

The function of media in democracy is one of the most urgent modern challenges in the link between public policy and media. The media is crucial for educating the public and keeping government leaders responsible in democracies. However, the emergence of false news and misinformation has eroded public confidence in established media outlets, raising worries about how the media may affect democratic processes.

Policymakers have worked to control media ownership and concentration, promote media variety and pluralism, and bolster media literacy initiatives in an effort to allay these worries. These initiatives seek to advance a positive media landscape that upholds democratic ideals and values.

The regulation of media ownership and concentration is a current problem in the relationship between public policy and the media. The ownership of the media

is heavily concentrated in many nations, with a small number of powerful businesses controlling the market. As a result, media variety and pluralism may be hampered, and the quality of the material produced may suffer.

In order to solve this problem, governments have put in place policies that restrict the concentration of media ownership, support variety and pluralism in the media, and foster competition in the media industry. However, there is continuous discussion over the efficacy of these laws and how much they can foster a positive media landscape.

The difficulties offered by new media platforms and technology are also a crucial current concern in the relationship between public policy and the media. New potential for citizen journalism, political action, and public involvement have been made possible by the emergence of social media platforms and other new media technology. However, the propagation of misinformation, hate

speech, and cyberbullying are just a few of the serious problems that these new technologies also provide.

Policymakers have attempted to control social media platforms, advance media literacy and digital citizenship initiatives, and promote openness and accountability in the IT sector in an effort to solve these issues. The best way to reconcile regulating social media sites with preserving free expression and innovation is still up for dispute.

Along with these current concerns, wider developments in globalisation, digitization, and media convergence also influence how public policy and media interact. These developments are changing the media environment and presenting both policymakers and media stakeholders with new possibilities and difficulties.

In general, the interaction between public policy and the media is intricate and dynamic, shaping our society in a variety of ways. The importance of the media to democracy, the control of media ownership and concentration, and the difficulties presented by new media platforms and technologies are only a few of the current topics surrounding this link. Policymakers, civil society organisations, and media stakeholders will need to collaborate to identify novel solutions that support a healthy media environment and democratic norms and principles in order to solve these concerns.

Media ethics is a significant problem pertaining to the relationship between public policy and the media. The moral values and standards that guide the conduct of journalists and media organisations are referred to as media ethics.

Accuracy, impartiality, fairness, and openness are some of these guiding principles.

For the media to remain credible and trustworthy, media ethics are essential. However, there have been a number of high-profile instances of prejudice, falsification, and plagiarism in the media in recent years. These unethical actions may erode public confidence in the media and diminish the function of the media in a democratic society.

Many media organisations have created journalistic professional standards and codes of ethics to address these problems. These codes specify the moral precepts and rules that reporters should adhere to while doing their jobs, such as standards for source, fact-checking, and conflict of interest.

In addition to these laws, media literacy and media education initiatives are gaining ground. These initiatives seek to instill in the general public the values of critical thinking, information literacy, and digital citizenship. Policymakers want to build a more educated and involved public that is better able to manage the complicated media environment by fostering media literacy.

The link between public policy and the media is further complicated by the problem of media diversity and representation. The term "media diversity" describes how different voices and viewpoints are represented in the media. This encompasses variety in terms of socioeconomic status, gender, race, and ethnicity.

For the sake of fostering a more inclusive and fair society, media variety is crucial. However, the lack of diversity and representation in several media businesses has drawn criticism. Women and people of colour, for instance, are often underrepresented in newsrooms and media output.

Policymakers have put in place a number of policies and programmes to advance media diversity and representation in order to address this problem. These regulations include programmes to broaden media ownership, encourage diversity in recruiting and employment practises, and support the production of diverse media.

In conclusion, the relationship between public policy and the media is a crucial topic that greatly affects our society. The importance of media in democracy, the regulation of media ownership and concentration, the difficulties presented by new media technologies and platforms, media ethics, and media diversity and representation are contemporary concerns connected to this interconnectivity. Policymakers, civil society organisations, and media

stakeholders may come up with creative answers that support a healthy media environment and democratic ideals and tenets by cooperating.

New Laws to Improve Censorship Issues and Their Modernization

The censorship and regulatory environment are changing, presenting policymakers with new possibilities and problems. Numerous initiatives to update current rules and regulations to better handle these difficulties have been made in recent years.

The implementation of new rules to handle internet censorship and hate speech is one of the most important advances in this field. Many nations have put in place rules and regulations requiring internet platforms to remove dangerous or unlawful information, such child pornography, terrorist propaganda, and hate speech. Additionally, several nations have enacted legislation that holds internet service providers accountable for the material submitted by their users.

Critics contend that these regulations may be used to limit free expression and damage the open character of the internet, hence their adoption has been contentious. As a result, several nations have established independent authorities to supervise the regulation of internet material in an effort to strike a balance between the need to safeguard individuals from dangerous information and their right to free speech.

The subject of media ownership and concentration is another area where legislators are attempting to update current legislation. Media ownership is heavily centralised in many nations, with a few numbers of corporations owning the vast majority of media channels. This could result in possible conflicts of interest, as well as a lack of diversity and representation in the media.

Some nations have put laws and rules in place to encourage media variety and reduce media concentration in order to solve this problem. For instance, the Federal Communications Commission (FCC) in the US has developed regulations to set a cap on the number of media outlets that may be held by a single business in a given area. Similar to this, several nations have public broadcasting stations to provide substitute news and information sources.

Finally, there is a growing understanding of the need to update current rules and regulations to reflect the issues brought on by new media platforms and technology. For instance, false news and misinformation, which can spread quickly via social media and other internet platforms, are a problem in many nations. Some nations have implemented rules and regulations requiring internet

platforms to mark or delete incorrect or misleading material in order to solve this problem.

Concern is also increasing about how algorithms and artificial intelligence are influencing how information is disseminated and the public domain. While others are looking at the idea of regulating or even outright banning certain kinds of algorithms, other governments are asking for more openness and responsibility in the usage of these technologies.

In general, modernising the laws and rules governing media control and regulation is a difficult and constant task. Protecting free expression while advancing public safety and democratic principles calls for a delicate balance. It is crucial to participate in fruitful discussion and look for novel ideas as policymakers continue to wrestle with these problems in order to advance a healthy media landscape and uphold democratic ideals.

Data privacy and protection is a significant issue where legislators are working to update current legislation. People are creating more data than ever thanks to the development of digital technology, and businesses and other organisations often gather and analyse this data. Due to this, worries about data privacy and the need to safeguard personal data from misuse and abuse are on the rise.

Many nations have put laws and rules in place to preserve the privacy of personal data in order to deal with this problem. For instance, the General Data Protection Regulation (GDPR), which sets tight guidelines for the collecting, processing, and storage of personal data, was created by the European Union. To safeguard the privacy of personal data, the United States has enacted regulations like the California Consumer Privacy Act (CCPA).

In addition to these rules and legislation, there is a rising push to create privacy-enhancing technologies (PETs) that may aid people in safeguarding their online privacy. These technologies include instruments like differential privacy, decentralised networks, and encryption that allow people to regulate how their personal data is collected and used.

The necessity to handle the difficulties provided by the global nature of the internet is another significant problem connected to the modernisation of censorship and media controls. Since the internet often crosses international boundaries, it may be challenging for individual nations to control online material and activity. The need for international collaboration and coordination in the regulation of the internet and associated technologies has risen as a result of this.

The creation of the Global Internet Forum to Counter Terrorism (GIFCT), which unites governments, tech firms, and civil society organisations to explore tactics to counter terrorist material online, is one instance of this. Similar to this, the UN has created the Global Commission on Internet Governance to examine problems pertaining to internet governance and provide suggestions for legislative and regulatory frameworks.

Last but not least, it is important to remember that the modernization of censorship and media laws is a continuous process that requires continual involvement and discussion among politicians, civil society organisations, and media players. It calls for a readiness to change with new technology and shifting social mores while defending core ideals like democracy and freedom of speech.

Conclusion

Finally, it should be noted that censorship, the media, and public policy are all interrelated problems that have a big influence on our society and democracy. Media ethics, media diversity and representation, data privacy and protection, internet censorship and hate speech, and the regulation of media ownership and concentration are all crucial subjects that need continual attention and participation from stakeholders and governments. We can make sure that the media continues to be an essential and dependable source of information and a cornerstone of democracy by cooperating to create creative solutions and regulatory frameworks that support a healthy media environment and democratic principles.

Public policy, media, and censorship are interrelated and have a big impact on society. Censorship may restrict people's ability to express themselves freely and be creative, and it can also chill the media. By balancing the need to safeguard national security and public morality with the need to maintain freedom of speech, public policy plays a critical role in controlling censorship. Public opinion can be shaped, the public can be informed, and public policy may be affected. It's crucial to strike a balance between censorship and freedom of speech and doing so calls a rigorous analysis of the conflicting interests at stake. Ultimately, a healthy democracy and a fair society rely on a free and independent media that is safeguarded by strong public policy.

In today's culture, censorship, the media, and public policy all play important and varied roles. While preserving freedom of speech, censorship and media controls help to safeguard the public from dangerous information. Public policy is crucial in defending democratic principles and fostering a positive media environment at the same time. Policymakers must be ready to adjust to new

technology and shifting societal norms in order to accomplish these aims while also defending basic rights like freedom of speech and privacy. We can make sure that the media continues to be an essential and dependable source of information and a cornerstone of democracy by cooperating to create creative solutions and regulatory frameworks that support a healthy media environment and democratic principles.

It's crucial to remember that censorship and media restrictions shouldn't be used to stifle dissent or restrict access to information. As a result, it is crucial that decision-makers in government and the media exercise caution and make sure that laws are created and put into practise in a manner that upholds democratic principles and safeguards freedom of speech.

In addition, the relationship between censorship, the media, and public policy is always changing, especially in light of technological advancements and globalisation. To keep rules current and effective, policymakers must maintain a constant conversation with the media's stakeholders, civil society organisations, and the general public.

The goal of censorship, media, and public policy is to promote a thriving and healthy media environment that fulfils the needs of the general public. The protection of basic rights and

principles and ensuring that media organisations are held responsible for their conduct must be balanced carefully in order to accomplish this. We can continue to create a media climate that supports democratic ideals, free speech, and informed decision-making through continued involvement and cooperation among policymakers, media stakeholders, and the general public.

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A Legal Analysis of the Freedom of Press in India

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Abstract

One of the foundational elements of a democratic system is journalism. Journalism, also known as the "Fourth Estate," educates the public about its civic and social responsibilities. Journalists serve as the society's watchdogs. The media is not, however, entirely at liberty to act upon whatever it deems fit. The media are governed by the same laws that govern the behaviour of the State, its institutions, and its citizens. The legal system regulates journalism much like it does any other profession. The Indian Constitution serves as the nation's main framework of legislation governing the media.

The freedom of speech and expression is one of the most essential rights bestowed by the Constitution to all its citizens, including the media. This chapter makes a concerted effort to acknowledge the right to free speech and expression for the media and press. The authors seek to explain how the law has interpreted this right via various laws, court decisions, and cases.

Keywords: Media, Press, Journalism, Freedom, Constitution, Speech, Expression

Introduction

Man has communicated his ideas by a variety of means, including symbols, signals, voice, script, print, and now computer language, since long before there was any legal history or memory. Achieving this goal is impossible without ensuring that each and every citizen has the fundamental freedom to express their ideas and opinions, given how crucial ideas and information are to the development and survival of a free and democratic society. Being able to speak and express oneself completely became known as "the right to free speech and expression".

The Preamble to the Indian Constitution makes the commitment to safeguard the freedom of thought, expression, and belief for all Indian citizens. The Preamble to the Indian Constitution guarantees every Indian citizen the freedom of speech and expression, religious freedom, and the ability to follow their own beliefs, focusing on the fundamental purpose of the Constitution of India. The Fundamental Rights are covered in Part III of the Indian Constitution. In order to preserve the individual rights, that the Constitution's framers deemed essential, the right to freedom is guaranteed under articles 19, 20, 21, and 22 of the Constitution of India. The freedom of speech and expression is one of the six freedoms provided for by the right to freedom in Article 19.

The right to express one's ideas, convictions, and opinions freely is guaranteed to all Indian citizens by the constitution. They have the right to explore, to receive, and circulate information and ideas for this specific purpose. Since the exercise of freedom of expression necessitates a means of communication for ideas and information, it stands to reason that the means of communication must likewise be free. Contrary to the the United States Constitution, the freedom of the press is not specifically mentioned in the Constitution of India. However, the Supreme Court has particularly established time and again that the right to freedom of the press is a part of the protection of the right to free expression, which also includes the right to publish and distribute, by applying the logic explained above. As per to the Honourable Supreme Court, it was redundant to create a distinct clause for the freedom of the press.

1. The Concept of Freedom of Press

The free press is an extremely important asset in a democracy. It is a particularly significant public opinion medium, infusing life into the democratic system of government. And the Indian constitution clearly establishes and guarantees media freedom in accordance with that. As stated in Dr. Ambedkar's draft article, "no law shall be made abridging the freedom of speech, of the press, of association, or of assembly, except for considerations of public order and morality".⁷⁹

Democracy is inconceivable without the freedom of speech and expression. It is protected by the Indian Constitution, the Universal Declaration of Human Rights, and numerous other international agreements that have been made to assure the preservation of fundamental freedoms and human rights. They emerge from these assurances that the public has the right to **acquire**

⁷⁹ Dr. Ambedkar's Draft Article II (I) (12) and (7). (1984, May).

information and opinions without any hindrance and to propagate them across borders, as this is a crucial component of the democratic process. In reality, this right is exercised on a daily basis by the press.

The right to free speech and expression thus involves two indispensable rights, namely:

- The right to receive news and viewpoints; and
- The freedom to disseminate news, information, and viewpoints.

These rights essentially rely on everyone associated with the press having the freedom to carry out their responsibilities as information gatherers and communicators without obstruction.

2. Role of the Media

The media has been crucial in fostering the growth and education of the populace. The media has played a huge part in society, from the conservative one to the one that is more accepting. The word "freedom" today refers to the lack of any forms of control, interference, or limitations. It is so obvious that the phrase "freedom of the press" refers to the freedom to print and publish without interference from the government or any other public authority.

In the matter of *Ranjit D. Udeshi v. State of Maharashtra*⁸⁰, Justice Hidayatullah stated that "Freedom of speech and expression is that cherished right on which our democracy rests and is mean for the expression of free opinions." A vehicle for social, public, and political discourse is the press and media. It serves as a forum for opinion expression as well as a channel for disseminating information about the events of public affairs. Always considered to be the fourth pillar of democracy.

It serves as a public educator and is the fourth pillar of the State. A key sign of democracy is the freedom of the press to report on topics of public concern. A free press can enlighten citizens about the accomplishments and shortcomings of their leaders, communicate the needs and preferences of the people to the government, and act as a forum for the free exchange of ideas. These crucial processes stop working when media freedom is restricted, which causes leaders and citizens to make bad decisions and suffer negative consequences.⁸¹

⁸⁰ AIR 1965 SC 81

⁸¹ *Media Freedom*. (2023, June 21). Freedom House. <https://freedomhouse.org/issues/media-freedom>.

In a country like India, the media, which is regarded as the fourth pillar of democracy after the legislature, executive, and judiciary, is harshly criticised these days for its publications, news items, and accusations of favouring any particular person or party in order to stir up controversy or achieve their own TRP and consumer targets.

Although freedom of the press is not specifically mentioned under Article 19 of the Indian Constitution, it has been contended that it follows naturally from the general freedom of speech and expression that is given to all citizens. As defined by the judiciary, this freedom now encompasses not only the freedom to write and publish what the author deems appropriate, but also the freedom to run a business, allowing for the dissemination of information and the avoidance of excessive and prohibitive burdens that restrict circulation.

3. Provisions Regarding Freedom of Press

For political liberty and the efficient operation of democracy, it is crucial that people have the fundamental right to freedom of the press, which is implicit in the right to free speech and expression. The freedom of the press is implied in the freedom of speech and expression even though it is not specifically mentioned in Article 19(1)(a) of the Indian Constitution. For political freedom and the efficient operation of democracy, it is imperative that the fundamental right to freedom of the press exists alongside the right to free speech and expression.

According to Lord Mansfield, "the freedom of the press" "consists in printing without any licence subject to the consequences of law." Therefore, the freedom of the press refers to the freedom to print and publish anything one wants without seeking permission first. Press freedom is not just applicable to magazines and newspapers. Additionally, it includes booklets, circulars, and any other type of publication that serves as a platform for information and opinion.⁸²

Therefore, Freedom of the Press Encompasses:

- Freedom of access to all information sources (including one's own opinions that are taken from others or published at the direction of another person)⁸³
- Freedom of expression

⁸² Lovell v. City of Griffin, 303 U.S. 444 (1938)

⁸³ M.S.M Sharma v. Sri Krishna Sinha, AIR 1959 SC 395

- Freedom of circulation⁸⁴

In *Indian Express Newspapers Pvt. Ltd. v. Union of India*⁸⁵, the Supreme Court explained the freedom of the press and noted that while it has not been applied in Article 19, it is understood in Article 19 (1) (a). The phrase refers to freedom from government influence that could affect the publication's editorial content and readership. A democratic voter cannot be expected to make sound decisions without the publication of facts and opinions, thus, there cannot be any interference in the name of the public interest.

Article 19 (1) (a) of the Indian Constitution, which is only available to Indian citizens and not to foreign people, grants to the citizens, the freedom of speech and expression in India. According to Article 19(1)(a), one has the freedom to express their opinions in any way, including through writing, speaking, gesturing, or any other form.⁸⁶ The rights to communicate and to spread or publish one's opinions are also included.

Because it enables citizens to actively engage in the social and political life of a nation, the right listed above, granted by our constitution, is regarded as one of the most fundamental components of a healthy democracy. People's freedom to express their emotions and share their opinions with the general public is crucial for maintaining the democratic way of life. The press, a potent tool for mass communication, ought to be allowed to contribute freely to the creation of a robust, enduring society.

Denying citizens, the right to freedom of the press would inevitably weaken their ability to influence public opinion and be antithetical to democracy. Article 19(1)(a) of the Constitution simply mentions freedom of speech and expression; it does not make any particular mention of freedom of the press. Dr. Ambedkar, the Chairman of the Drafting Committee, made it abundantly clear during the debates of the Constituent Assembly that there were no special rights granted or any need to specifically mention press freedom because both the press and an individual or citizen enjoyed the same freedom of expression. The authors of the Indian Constitution believed press freedom to be a crucial component of freedom of speech and expression as has been implicitly guaranteed under Article 19(1)(a) of the Constitution.⁸⁷

The Daily Newspapers (Price and Pages) Order, 1960, which set the maximum number of pages and size that could be published by a daily at a

⁸⁴ Romesh Thappar v. State of Madras, AIR 1950 SC 124

⁸⁵ AIR 1986 SC 515

⁸⁶ Pandey, J. N., & Srivastava, S. S. (2014, January 1). *Constitutional Law of India*.

⁸⁷ Dr. Amedkar's Speech in Constituent Assembly Debates (VII, 980). (n.d.).

price, was challenged in the matter of *Sakal Papers Pvt. Ltd. v. Union of India*.⁸⁸ In the interest of the general public, the State went on to justify the statute as a fair restriction on a newspaper's commercial activity. The Honourable Supreme Court overturned the Order and ruled that a citizen's freedom of speech cannot be restricted in order to impose limitations on their commercial operations.

Later, the Honourable Supreme Court reiterated the same decision in *Bennett Coleman v. Union of India*⁸⁹ that freedom of speech and expression is not only measured by the level of circulation but also by the volume of news and views. The press is entitled to unrestricted free dissemination and circulation. Article 19(I)(a) would be violated and the press would no longer be protected if a law were to single out the press and impose prohibitive burdens on it that would limit circulation, punish personal freedom of choice, prevent the launch of new newspapers, and force the press to accept funding from the government.

Judicial Trend on the Freedom of Press in India

The fight for free expression in India first started in 18th-century British India. The history of the nationalist movement in India is inextricably linked to the history of journalistic freedom in that country. Through a number of laws designed to stifle the potential for a consolidated outburst against colonial domination, the nationalist movement for a free India was fought with restriction of the freedom of speech and expression. The British government occasionally felt the need to create repressive legislation to neutralise the power of the print media, which is evidence that the press played a crucial role in fostering political consciousness.

1. The Press and Registration of Books Act, 1867⁹⁰

The Press and Registration of Books Act, which was passed in 1867, is the earliest surviving legislation specifically targeted at the media. However, the goal was to impose government control over press freedom. It was a piece of legislation that gave the government the power to control printing presses and newspapers through a system of registration and to safeguard copies of books and other printed materials in India.

⁸⁸ AIR 1962 SC 305

⁸⁹ AIR 1973 SC 106

⁹⁰ *Press and Registration of Books Act, 1867*. (1867, March 22).

https://www.indiacode.nic.in/handle/123456789/2272?sam_handle=123456789/1362

2. The Official Secrets Act, 1923⁹¹

The Official Secrets Act, 1923, a general law intended to protect the security of the State against disclosures of secret information along with other forms of information sabotage, in particular, exerts a greater effect on the media. The Indian Press (Emergency) Powers Act of 1931 mandated the press to provide safeguarding upon the Executive's request.

The Act (as amended by the Criminal Law Amendment Act, 1932) provided a provincial government the power to order a printing press to deposit a security that would be forfeited if the press printed anything that furthered any of the nefarious acts listed under Section 4 of the Act, which included fostering hatred or contempt for the government or provoking disaffection with it; stirring up animosity and hatred between different classes of subjects which led a public servant to resign or neglect his duty.

3. The Press (Objectionable Matter) Act, 1951⁹²

The preamble of the press (Objectionable Matter) Act, which sought "to provide against the printing and publication of incitement to crime aid other objectionable matter," had an innocent-sounding preface. The other enhancements included the following: While the Act of 1931 was a permanent statute, the Act of 1951 was a temporary statute that was only to be in effect for a two-year period. It called for a judicial inquiry by a sessions Judge before security could be demanded from a printing press or forfeited to the government. The person against whom a complaint was brought could also request that the matter be decided with the assistance of a jury and had the right to appeal the sessions Judge's decision to the High Court.

4. The Press Council Act, 1965⁹³

A press council was established in 1965 under the Press Council Act of 1965, which was passed to put the press commission's recommendations into practise, following the British model. The council was created with the intention of protecting press freedom and preserving and raising Indian

⁹¹ *Official Secrets Act, 1923* | Bare Acts | Law Library | AdvocateKhoj. (n.d.). Copyright 2023, [advocatekhoj.com](https://www.advocatekhoj.com).

<https://www.advocatekhoj.com/library/bareacts/officialsecrets/index.php?Title=Official%20Secrets%20Act,%201923>

⁹² *The Press (Objectionable Matter) Act 1951* - B&B Associates LLP. (2020, June 29). B&B Associates LLP. <https://bnblegal.com/bareact/the-press-objectionable-matter-act-1951/>

⁹³ *Press Council Act, 1965* | Bare Acts | Law Library | AdvocateKhoj. (n.d.). Copyright 2023, [advocatekhoj.com](https://www.advocatekhoj.com). <https://www.advocatekhoj.com/library/bareacts/press/index.php?Title=Press%20Council%20Act,%201965>

newspaper standards. To convey articles that were not illegally punished but were nonetheless offensive, a code of conduct was to be established.

Scope of freedom of the press Under Article 19(1) (A)

1. Freedom to Disseminate Information

The freedom of the press is meaningless without this freedom. Romesh Thapar v. State of Madras⁹⁴ makes this right explicit, despite the fact that it is also implied in the freedom of expression.

2. Freedom of Critique

The press, like everyone, is free to critique the government, even though this is not expressly allowed. However, there is a responsibility for the press to do so occasionally if something out of the ordinary occurs, including questioning the government's personnel, policies, actions, laws, and remarks and the like.

3. Receiving Information without Restriction

Lack of information prevents the press from educating the public and renders the right to free speech meaningless because there is no access to the information that can serve as the foundation for any expression.

4. Having the Right to Interview Anyone

This right is essential for educating society as a whole and obtaining first-hand knowledge from subject matter specialists on specific topics.

5. Freedom to Report on Court Matters

The Supreme Court ruled in Sahara India Real Estate Corporation Ltd v. SEBI⁹⁵ that the media has a right to report on legal processes. The Supreme Court ruled in Saroj Iyer v. Maharashtra Medical (Council) of Indian Medicine⁹⁶ that the right to publish accurate accounts of the court processes observed is valid even when it is in opposition to quasi-judicial institutions.

⁹⁴ AIR 1950 SC 124

⁹⁵ (2013) 1 SCC 1

⁹⁶ AIR 2002 Bom 97

6. Access to and Reporting on Parliamentary Proceedings

Parliamentary privileges⁹⁷ are in conflict with the right of reporting on legislative processes, which is implied in the right of expression.⁹⁸ The freedom of speech and expression shall prevail above parliamentary privileges. The live broadcast of parliamentary proceedings is now mandatory.

7. Freedom to Serve as a Platform for Advertising

We are aware that the majority of outlets — whether it be a radio station, news channel, mobile application, or newspaper — rely heavily on advertising revenue. *Tata Press v. Mahanagar Telephone Nigam*⁹⁹ was the case that led to the Supreme Court including the right to advertising as a component of the freedom of expression.

8. Freedom to Broadcast

Power to broadcast is crucial in today's technological age because it is one of the main avenues for information dissemination. This right extends to online content like websites, blogs, and mobile applications as well as broadcasting on radio and television news programmes.

9. Limitations to Freedoms

We are aware that there is no such thing as an unfettered or absolute right. Unrestricted freedom, or liberty without any justifiable limitations, undermines the whole goal of granting that freedom in the first place—that is, to empower individuals—because it causes individual rights to conflict with one another. Since we are aware that others' rights to similar freedoms or rights should not be interfered with while we enjoy our own. Since Article 19(1)(a) grants the freedom of the press its authority, it is also subject to the reasonable restrictions placed on that provision by Article 19(2), which are described as follows:

- **State Integrity and Sovereignty:** It was added through an amendment to rein in the out-of-control protests for separate entities for the various regions of India. This limitation would apply to any expression or mode of communication that impairs the integrity or sovereignty of the state. It is forbidden to let the freedom of speech

⁹⁷ Articles 105 & 194 of the Constitution of India

⁹⁸ Article 19(1)(a) of the Constitution of India

⁹⁹ 1995 AIR 2438

and expression be used as a weapon to undermine a state's integrity or sovereignty. It is crucial to recognise at this point that "sedition" is not a justification for imposing reasonable restrictions as stipulated by Article 19(2) of the Constitution.

- **State Security:** The exercise of freedom of expression is not permitted in any way that poses a threat to national security. This limitation would apply to any communication that encourages citizens to rebel, engage in violence, riot, or other forms of discontent against the government and its subjects. The Supreme Court ruled in *State of Bihar v. Shailabala Devi*¹⁰⁰ that remarks made by anyone (citizen or non-citizen) that incite individuals to commit crimes like dacoity, murder, robbery, etc. pose a clear threat to the safety of the state. As a result, such a speech will be seen as being against the state's sovereignty or integrity, and the decision to halt or limit such communication is encompassed under reasonable restrictions of Article 19(2).
- **Morality or Decency:** The state has the right to restrict a person's freedom of expression in order to uphold morality or decency in the nation. Sections 292 to 294 of the IPC elaborate on this ground in more detail. The aforementioned parts include a variety of actions that are considered crimes, including selling pornographic books to children and making lewd gestures in public etc.

The Supreme Court ruled that S. 292 of the IPC is constitutional since it forbids obscenity in public places and promotes public decency and morals in *Ranjit Udeshi v. State of Maharashtra*¹⁰¹. The Supreme Court further clarified in *Chandrakant Kalyandas Kakodkar v. State of Maharashtra*¹⁰² that when addressing the issue of morality and decency, the court must take into account the proposition of whether or not the offensive or immoral acts were sufficient to taint the young people's minds or whether there is a chance that their minds would become depraved. Article 19(1)(a) on defamation expressly forbids harming a person's reputation in the name of freedom of speech or expression. A serious limitation on the freedom of speech and expression is the act of defamation, which can be described as doing harm to someone's reputation.

¹⁰⁰ 1952 AIR 329

¹⁰¹ AIR 1965 SC 81

¹⁰² 1970 AIR 1390

No one has the right to use any word, sign, or gesture to subject another person to hatred, mockery, or contempt. The Civil Laws of Torts forbid defamation since it is seen as a very serious offence. Additionally, it violates Section 499 of the Indian Penal Code. It is understood that anything has a protection under the reasonable restrictions under Article 19(2) of the Constitution because it is prohibited by two legislations and is defined as unlawful under the same. The Supreme Court ruled that criminal defamation is a legitimate restriction under Section 19(2) in *Subramaniam Swamy v. Union of India*¹⁰³.

Conclusion

One of the most significant basic rights is the freedom of speech and expression. It involves sharing one's opinions verbally, in writing, visually, in audio-visual tools, through commercials, and through any other form of communication. It also includes the freedom of speech, the freedom of the press, and the freedom to publish and distribute. Thus, the extent of this fundamental right is rather broad. No of the media, the word "freedom of expression" refers to any act of obtaining, receiving, and disseminating knowledge or ideas.

Every Indian person is guaranteed freedom of expression by the nation's Constitution, which makes this paramount. All Indian citizens have the right to freedom of speech and expression under Article 19 (1) of the Indian Constitution. Therefore, Indian citizens have the fundamental right to express their ideas, thoughts, and viewpoints freely. They are entitled to seek out, receive, and share information and ideas for this reason in particular. Since the exercise of freedom of expression entails a means of communication for ideas and information, it seems only reasonable that the means of communication must likewise be free.

The freedom of the press is not explicitly acknowledged in the Indian Constitution. The Supreme Court, however, has been implementing the rationale stated above and has quite specifically decided that the right to freedom of the press is a part of the protection of the right to free expression, which also includes the right to publish and circulate. Therefore, the Apex Court determined that it was unnecessary to enact a distinct clause for media freedom. The freedom of the media is clearly included in the definition of free speech and free expression as stated in several court rulings and case laws that have construed these two concepts.

¹⁰³ (2016) 7 SCC 194

India's press freedom needs to be critically examined because it faces a number of obstacles that could hinder its efficacy. There are questions concerning the scope of this freedom, despite the fact that India has a thriving media environment with many channels and a right to free speech that is protected by the constitution. In India, journalists frequently experience threats, intimidation, and violence, especially when covering volatile topics like corruption, intercommunal strife, or the policies of the government. Furthermore, there is an unsettlingly high concentration of media ownership, which could result in prejudicial views and self-censorship.

The independence and impartiality of reporting are further questioned by the influence of political parties and significant corporations on media organisations. In addition, it is possible to discern attempts to crush dissent and investigative journalism in the employment of defamation laws and sedition accusations against journalists. Even though India has made great strides towards establishing a free press, these difficulties highlight the necessity for ongoing efforts to protect and strengthen press freedom, ensuring that it can function without fear or favour and act as an independent sentinel in a democratic society.

In contrast to the press's traditional role as the voice of the people to the government, some of the major mainstream media outlets today actively promote political parties while condemning those of the opposition and avoid discussing pertinent topics like public welfare, corruption, the evaluation of government policies, etc.

Although it's also true that completely independent forums like WhatsApp, YouTube, Telegram, and Facebook are increasingly vulnerable to fake news fuelling mob lynching, fear-mongering, hate speech, propaganda spreading, and indecency promotion, emphasising the need for some reasonable press restrictions. Press freedom enjoys the same rights as those of regular citizens. Without a question, we must grant the press a certain amount of independence in order to maintain democracy and foster enlightened citizens in the country.

Constitutional Status of Media Trial in India: A Socio-Legal Perspective

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Introduction

FREEDOM OF speech and expression is protected by article 19(1) (a) of Indian Constitution. This freedom encompasses the right to express freely, convictions or opinions by speaking, writing, printing pictures, or in any manner, whatsoever. Freedom of speech and expression is the foundation of democracy because without free public discussion, public education, which is so essential for the proper functioning of a popular government, is impossible. Media freedom is fundamental to the life of an individual in a democratic polity; the media is one of the vital pillars of a free society and is an instrument of social and political dynamisms.

The Indian Constitution does not employ the term "freedom of the press" unlike the Constitution of USA, which expressly mentions 'the liberty of the press', that is, the freedom to publish what one pleases without prior permission. But freedom of expression necessarily includes freedom to propagate ideas, with the latter ensured by liberty of publication and circulation, both essential elements of freedom of the press. Moreover, the press is merely another manifestation of the individual or citizen. Press editors and managers are all citizens, and when they write in newspapers they are thereby exercising their individual right of expression. It is then, settled law in India that the right of freedom of speech and expression includes the liberty of the press as well.

This right extends to communication - media other than the press, cinema and theatre, for example. Thus, media freedom will be used to denote the general workings of the right of freedom of speech and expression in the various media sectors. Television and radio, being state owned, are little influenced by any media freedoms.

Historical Background

Before Independence in India, there was no constitutional or statutory guarantee of individual or media freedom. At most, some common law freedom could be claimed by the press, as observed by the Privy Council in *Channing Kobold v. Emperor*. The freedom of the journalist is an ordinary part of the freedom of the subject and to whatever length the subject may go, so also may the journalist, but apart from Statute Law, his privilege is no other and no higher. The range of his assertions, his criticisms or his comments is as wide as, and no wider than, that of any other. Leaders of the Independence movement attached great significance to this freedom of speech and expression for both the individual and media. With this object in view, the Constitution of India in article 19(1) (a) guaranteed to every citizen the basic human right of freedom of speech and expression. Articles 19(1) (f) (e) and (g), 20, 21 and 22 guaranteed the individual certain other rights as well. In addition, article 19(i) (a) was made suspendable only while a proclamation of emergency ordered by the President under articles 352 and 358 was in effect. Article 19(2) was initially somewhat more liberal and confined to a limited number of subjects, as is evident from the original text.

Nothing in sub clause (a) of clause (1) shall affect the operation of existing law insofar as it relates to, prevents the State from making law relating to libel, slander, defamation, contempt of court or matter which offends decency or morality or which is against security of state or tends to be overt.

The courts have always, unfailingly, guarded the freedom of press, and they continue to do so. However, the judiciary sensed trouble in certain cases when the media began to deliver its own verdict before the evidence was verified or the guilt proved. It is here that the need to demarcate a line arose in order to ensure the media remains well within its job of fair reporting. In an attempt to contain this adverse effect of the media, the legislature and the judiciary have attempted to frame rules and guidelines to that effect. This article/ chapter attempts to discuss the various facets of media trials and the laws pertaining to them.

Media and Democracy

Media is often termed as the fourth pillar of democracy; it is an indispensable part in keeping democracy vibrant and reaching out to the masses. Media plays an instrumental role in educating and delivering the truth to people. However, in recent times, the media has exceeded its role by bringing its lens into the courtrooms and setting up its own trials, parallel. The transition from

responsible reporting to investigating various high-profile cases or cases of infamous crimes has made the media trial a common practice. From aiming to grab the highest television rating points to trying to stay relevant in the changing times, the media has overstepped its limits. The unconscious transition in its role has not only interfered with the fair administration of justice but also pressurised the judiciary to act in a certain way. It has, also, hampered the fundamental and constitutional rights of both the accused and the victim of a crime. In the developing countries, media trial is getting prominent day by day. It is seen that though the political parties are not in much favour of the media trial, but due to the extreme pendency problem and decreasing trend of faith on the judicial system, public supports the trend of trial by media.

Constitutionality of Media Trial

The makers of our Constitution had given great importance to the concept of democracy. Indeed, Article 19 (1) (a) of the Constitution guarantees freedom of speech and expression which also includes freedom of the press within its scope. This article gave rise to the fourth pillar of democracy, namely the media or the press. It is very important that the media of a country function in a very independent, free, and powerful way as they form the basic essence of a democratic country. Furthermore, the media is not only in charge of being a platform where an individual can express their feelings, but also responsible for building people's opinions on various topics of national interest and also on international agenda. They are the watchdog of several company officials and also an important element in eliminating the wrongs in our system by bringing them to the knowledge of all. In a few cases, even the judicial part of the state has benefited from the ethical and fearless journalism that has led to an awareness of the issue. The Constitution guarantees many rights to the media directly or indirectly. The constitutionality of media trials also depends upon the impact it leaves on the society. We will discuss a few of these rights.

Firstly, freedom of press is mentioned under Article 19 of the Indian Constitution. The right to freedom of expression is involved in Article 19(1). This right includes many other rights. This right includes and gives the power to impart information in every form such as orally or in writing, print, or any other form. The freedom of the press is not included directly in the constitution but it is covered under Article 19 of the constitution by the Interpretation done by the Supreme Court of India. Supreme court in many cases has resolved the issue of the Right to freedom of press in this modern time. The court heard cases on the role of media through different platforms such as electronic media, social media and etc. The court has always uplifted justice for society. The court imposes a restriction on the coverage which can affect the harmony, peace of the society.

Secondly, the Contempt of Courts Act, 1971 gives immunity to the media to publish the proceeding of the court. The court can interfere only on the matters which obstruct the proceeding of the court in any matter be it civil or criminal in nature. The court cannot allow the media to hamper the idea of justice. Sometimes media gives its verdict even before the court which can mislead the people and can destroy the public reputation of a person. These are called contempt because the concept of media trial is prone to several biases, a one-sided trial in which the other party is not given any fair chance of being heard which is a violation of a fundamental right to a fair trial.

Is Media Trial a Fair Trial

There is a huge difference in conceptual basis of media trial and fair trial. Human Rights are not respected in cases of media trial. The privacy and dignity of an individual goes up for a toss. Right to privacy and principle of fair trial are invested largely on people. Media trial is considered to be a type of investigative journalism. Right to fair trial is a constitutional right enshrined under Article 19, 20, 21, 22. There is a tendency of media houses to influence the verdict of courts and violates the basic tenant of justice. Generally, trial by media can be considered as contempt of court. Any kind of fair trial must not be put under influence by media reports and newspaper publications. A more mature approach is expected out of journalists and media houses where transparency is the need of the hour but mudslinging won't help but create a hindrance to an ongoing trial and destroy the privacy of a particular individual.

The Jessica Lal's Murder case is a classic example of how the media puts pressure on the lawyers to not take up the case from the accused side. In the said case senior lawyer Ram Jethmalani took up the case but the media used headlines such as "Defense of the indefensible".

Conflict between Freedom of Press and Privacy

A fundamental question has always been on the rise regarding the relative weight of privacy versus the public interest, when we consider the conflict between freedom of media to disseminate information and right to privacy. There is no such codified law on right to privacy, on acquiring constitutional recognition the personal data protection bill has been drafted in 2019. The personal data protection bill has been brought forward to protect the privacy of people due to invasion by media. The thought process behind granting such unlimited freedom is to ensure that the press and media are independent of such unnecessary restrictions. The personal data protection bill has strengthened the basic right to privacy of each and every individual. The media should be well

aware enough to differentiate between “what is of public interest and what the public is interested in”. The requirement of the media houses is to adhere to the code of ethics issued by self-regulatory organizations.

Legality of Media Trial in Different Countries

- 1. United States of America:** The freedom of press was imposed as an absolute right in the charter of fundamental rights in 1791 and there no reasonable restrictions are a part of it. If the court of justice is prejudiced and proceedings is interfered with, there are relatively no chances to take legal action against the offenders.
- 2. United Kingdom:** The court has the power to defer any publication under sec 4(2) relating to the proceeding or any part of the proceeding according to the court. There is a substantial risk of prejudice in the administration of justice in such proceedings.

Judicial Trend in India

- 1.** In the case of *Reliance Petrochemicals Ltd. Vs Proprietors of Indian Express Newspaper*, the issue raised that continuation of such injunction especially when the shares are oversubscribed and the company has to bear loss because of the insensitive loss because of such reporting the court in this matter held that there must be a reasonable ground to believe that the loss incurred is apprehended in the continuance of injunction is real. The balance of convenience has to be checked by the test of acceptance.
- 2.** In the case of *State of Maharashtra v. Rajendra Jawanwal Gandhi*, the court while dealing with an issue of an alleged attempt to rape a mirror the court observed that the trial by the media in any form is the antithesis of the rule of law which led to failure of justice. It was further stated that the judge has to be a guard himself from being partial to anyone.
- 3.** The other case in which the judiciary tries to differentiate between the judiciary and media trial is *M.P Lohia v. State of W.B* in which the court held that the dowry death was sub-judice when he article titled “Doomed by dowry” was published. The interview consists of an interview with the family. The court observed that these articles interfere in the justice process. The publisher and the other members include were held responsible for the article which indulges inactivity such as media trial which sub-judice an issue.

4. Sanjay Dutt was granted imprisonment for 5 years by the apex court of the country. He was involved in the 1993 Mumbai serial Blast. He was in communication with some of the major names of the mafia world. In 1993, Sanjay Dutt confessed that he was in possession of AK-56 rifles with him. He was charged under Terrorist and Disruptive Activities (Prevention) Act (TADA), 1987. . He was able to secure a bail after 18 months of the imprisonment. The TADA court gave judgment after 11 years and held that Sanjay Dutt had weapons only for self-defence and not any kind of terrorist activities. After which Supreme court cut short the punishment for 5 years which ended in 2016.
5. The high court on Monday made the observation while disposing of a batch of public interest litigations (PILs) filed by former police officers, activists, lawyers and NGOs from Maharashtra in the aftermath of actor Sushant Singh Rajput's death in June 2020. They had requested the court to issue restraint orders to media reporting on the actor's death. After hearing out the arguments of various parties for weeks, the court had reserved its judgment on November 6, 2020. A bench of Chief Justice Dipankar Datta and Justice Girish S. Kulkarni said the reportage by television channels, especially *Republic TV* and *Times Now*, after the actor's death was "contemptuous". The judges, however, restrained themselves from initiating any action against the said channels.
6. The brutal gang rape that happened in Delhi shocked the world. A girl of 23 years was being raped and was tortured and beaten in private bus in which she was travelling with one of her male friends. Six men in the bus raped her and had fight with her friend. She was admitted to the nearest hospital but after 11 days she was shifted to the hospital in Singapore where she could not survive. The case was known as "Nirbhaya Case" which means fearless. The girls fight against the incident and her death had become a symbol of resistance by the women all around the world. The incident was worth of all the criticism which was received. The case outrage was too much and the people around India was furious against the state government and the central government for not providing safe environment for the women. The outrage led to amendment in laws including Juvenile Justice Act.

Criticism of Media Trial

The role of the media is extremely vital in a democracy. The pillars of the democratic structure should function independently without affecting each other's role. Judges have opined that media houses have completely overstepped their limits in high profile cases of *Indrani Mukherjee and the*

Jessica Lal Case. On the intervention by the media some of the accused were even released.

Along with three other judges of the Supreme Court, Chief Justice R.M. Lodha stated the matter to be of extremely serious nature and laid down few guidelines to balance the interests and rights of parties. In the wake of the growing cases of media trials, it is necessary for the Supreme Court to investigate the matter as it leads to the public conviction of the accused based on information provided by prosecutors and the police, although the trial before the court of law is not still started. The courts took news of a media briefing by police and other investigative agencies seriously. Nothing should be done to hinder the investigation process and the secrecy of the investigation. All of these require some checks as they all fall within the scope of Article 21 of the Constitution. When a trial is already pending in the Court, the parallel media trial should not be allowed. The Supreme Court is now expected to consider developing guidelines for the media on criminal case coverage and briefing by investigative agencies.

It is a matter of utmost necessity that the Supreme Court should order for investigation in the growing cases of media trials, as it leads to the public being convinced of the accused which is based on information and facts which is provided by the prosecutors and the police, before the trial gets started. The courts consider the media briefing by police and other investigative agencies seriously. There should be zero tolerance towards hindering of routine investigation, it comes within the ambit of Article 21 of the Indian Constitution. A parallel media trial should not be run when the matter is already subjudice. Several guidelines are already in the pipeline when a trial is already pending in the Court, the parallel media trial should not be allowed.

Conclusion

Every citizen of this nation has the right to have a fair knowledge of various events happening around the world, this responsibility lies with the media of the country. Power and freedom comes together, as the trial media has in recent times given some fluctuating outcomes. There have been both pros and cons of hyper activism of the media as it has both resulted in positively administering justice but on the other hand acted as hindered the result for litigants. Trial by media has often lead to create an atmosphere of mob lynching, and it successfully deviates the public from real issues and changes the mind set of general public to a large extent. Public opinion is often based on facts provided by the media and trial it conducts over the television. Sometimes it feels that every media house only wants and TRP and no one is interested in knowing the

truth. Maybe it is time for the media to regulate and follow some strict standards and ethics of journalism and if these standards are not followed then there should be some penal provisions that should be imposed. The Indian media fiercely enjoy independent journalism. The government is regulating the screening of the movies then why can't media be regulated by some authority? The freedom of the press can be good if it is in the interest of the public or its viewer. The media is the cornerstone of our democracy and operates in the interest of the public but sometimes it can also hinder the legal process. As pointed out by some, sadly, in today's times the quality and standard of journalism has dropped to such an extent that with the due course of time we lose interest in knowing the real facts and the truth behind the entire episode. The Honourable Courts are the most competent authority to decide on any cases and there should not be any kind of objection posed to the courts. Free and fair trial under Art 21 will be more beneficial to the society. The court eventually comes to the rescue of the society at large when the manipulative attitude of the media loses ground and fails to convince people with its diluted facts and issues. After going through various facets of media trials, it could easily be comprehended that despite being the fourth pillar of democracy and acting as a watchdog for the regulatory bodies, sometimes media outdoes itself. In the race to have the maximum TRP, the media houses, though unintentionally, malign the process of administering justice. By critical evaluation of various instances, it could be established that the practice of media trials is not only unconstitutional but also violates rights granted to each citizen of this country. It is mentally draining for an individual to be presented as a culprit when he is innocent until proven guilty in the eyes of law. The trials conducted with the four walls of media houses are based on the information that has been tipped off to them by the various authorities involved in the investigation, that is to say, they don't even have access to documentation and reports. Character assassinating and portraying an individual as a convict on national television just based on hearsay evidence is the biggest blunder these media houses can come up with. When a sub-judice case or matter is dragged onto national television various factors come into play simultaneously giving it a form of aggressive journalism. The judiciary has been critical of the overactive and prejudicial reporting by the media.

In the *Labour Liberation Front case*, Justice L. Narasimha Reddy lamented the "abysmal levels to which the norms of journalism have drifted." In *M.P. Lohia v. State of West Bengal*, the Supreme Court cautioned the publisher, editor and journalist of a magazine that had reported the facts of a sub-judice case, thus "interfering with the administration of justice. The Indian Law Commission's recent report entitled *Trial by Media: Free Speech vs. Fair Trial under Criminal Procedure (Amendments to the Contempt of Court Act, 1971)* has made recommendations to address the damaging effect of sensationalised news

reports on the administration of justice. While the report has yet to be made public, news reports indicate that the Commission has recommended prohibiting publication of anything prejudicial towards the accused — a restriction that shall operate from the time of the arrest. It also reportedly recommends that the High Court be empowered to direct postponement of publication or telecast in criminal cases. Such cases reflect on the vital role played by courts in the wake of growing cases of media trial. Hence it would not be out of place to suggest that in order to prevent any controversy as well as conflict, the media should follow the guidelines of the Supreme Court while reporting on sensitive cases. It will be better if they act in their basic capacity as information disseminators, rather than create an environment of trial of cases. They can be whistle blowers for the investigating agencies, rather than flashing/ sensationalising inadmissible evidences on their media platforms & channels.

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A Study on the Confluence of Media and Privacy Laws in the United States and India– Fixing the ‘Conflict-Compliment’ Dichotomy

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Abstract

Freedom of the Press and by extension the wider Freedom of Speech and Expression is a hallmark of any free society. But one of the building blocks of Constitutionalism is the right to privacy. The right to be left alone was recognized even in the magna carta too, but today, it is one of the most basic rights that are secured in any Constitutional democracy. So, we have two laws that are clearly inviolable. And this leads to a head-on conflict. How is this dichotomy fixed? This paper studies the fundamental aspects of the freedom of press and the freedom of privacy in India and the United States. Subsequently, the paper analyses the challenges posed to Privacy by the Media. The paper also analyses the growing impact of social media and the challenges that it poses to the Right to Privacy. The paper has adopted a comparative approach, studying the positions in India and the United States, with the intention to study the similarities and key differences in these jurisdictions and to understand how each of them address the challenges posed by the intersection of Privacy and Press Freedom.

Keywords: Freedom of Speech and Expression, Freedom of the Press, Right to Privacy, India, United States of America

Introduction

Freedom of Speech and Expression, or ‘Free Speech’ was one of the earliest recognised Human Rights that also found mention in the Universal Declaration of Human Rights (UDHR). Over, what has now spanned nearly a century, Free Speech as a concept has been expanded to cover a vast expanse of rights. Article 19 of the UDHR provides for Free Speech, which also includes the ability to access information freely (Article 19, UDHR). Like the UDHR, Article 19 of the International Covenant on Civil and Political Rights (ICCPR) also

recognises Free Speech while also recognising the right to access information in any form through all media.

Free Speech is a recognised right in various countries domestically also. National Constitutions, particularly of democratic nations recognise the importance of the right of Freedom of Speech and Expression which is guaranteed to the citizens. The Constitution of the United States of America recognises the Right of Free Speech via the First Amendment to the United States Constitution. This Amendment covers Free Speech and has also been expanded to cover the Liberty of the Press and access to information. The Right to Privacy as a manner of expression has also since been recognised.

The Constitution of India recognises certain rights that are inalienable and immune from unreasonable interference of the State. These Rights enshrined in Part III of the Constitution are called Fundamental Rights. The Right to Freedom of Speech and Expression is recognised within Article 19 (1) (a) as a Fundamental Right. This Article has been expanded by judicial interpretation to include within its fold various rights including the *inter alia*, Freedom of Press. The Second part of this paper understands the evolution of the Freedom of Press and its current position in India and the United States.

The Law of Privacy is a recognition of the individual’s right to have some personal space to themselves, which is inviolable. It may also be viewed as the Right to be left alone (Divan, 2006). The UDHR has recognized the Right to Privacy in Article 12. Further, the ICCPR has also recognized this right under Article 17. Apart from these instruments the Convention on the Rights of the Child, (CRC), the International Convention on the Protection of the Rights of All Migrant Workers and Members of Their Families, Reports of the UN Special Rapporteur on the Right to Privacy, UN Personal Data Protection and Privacy Principles, and a couple of OECD guidelines also acknowledge the status of Privacy as a Human Right.

Just as is the case with Free Speech Right, the Right to privacy has also been conferred protection with the Constitutions of United States as well as India. The Right to Privacy, while being recognized as a Fundamental Right, has been done so through judicial interpretations and expansion in both these jurisdictions. In India, after a series of cases that spread across several decades, the Supreme Court finally put to the rest this question on the right to privacy as a Fundamental Right in the case of *Justice KS Puttuswamy v. Union of India* (Puttuswamy, 2017). Similarly so, in the United States too, the recognition traced its way through cases, finally culminating with its acceptance in *Griswold v. Connecticut* (Griswold, 1965), wherein Justice Douglas stated that privacy was protected by a “penumbra cast by the First, Third, Fourth, Fifth,

and Ninth Amendments”, all of which form a part of the Bill of Rights. The Third part of this paper understands the evolution of the Freedom of Press and its current position in India and the United States.

Evolution of Freedom of the Press

The Constitutions of both, the United States of America and India, guarantee the Freedom of Speech and Expression as a Fundamental Right (Jain, 2018). There are however a couple of key differences between the Constitutions. Firstly, in India the Right to Freedom of Speech and expression has always been recognized, since the coming into force of the Constitution in 1949-50. However, that is not the case with the United States. The Free speech right was recognized in the United States *vide* the First Amendment to the U.S. Constitution, which forms a part of the larger Bill of Rights. Secondly, the Freedom of Press in India is a judicially evolved right, whereas in the United States, although recognised by judicial pronouncements too, the right finds express mention in the law itself.

The law in the US states that “Congress shall make no law... abridging the freedom of speech, or of the press...” (1st Amend, US Const.). This Right includes within its fold Free Press and access to information, (Stanley v. Georgia, 1969) and the right to commercial advertisements (Virginia Board, 1976) (Bates, 1977), amongst others. In the *Pentagon papers* (Sullivan, 1964) (NYT, 1971) case the Supreme Court of the United States clarified that the reason it was important to have a free press was to have a neutral conduit through which information passed between the electors and the elected and as a neutral platform for debate. In the landmark case of *Terminiello v. Chicago* (Terminiello, 1949), Justice Douglas stated that the maturity of a nation is measured against its tolerance of a dissident.

The Fundamental Right to Freedom of Speech and Expression is guaranteed by Article 19(1)(a) of the Indian Constitution. Since the Indian Constitution came into force, the judiciary has adopted a forward-looking attitude towards Free Speech, and this is clearly evidenced by how expansive and accommodative the right has now become. The judiciary has through many of its judgements provided that Article 19(1)(a) contains within its fold inter alia the right to know, receive, and impart information (MIB v. CAB, 1995). In *Printers (Mysore) Ltd. v. Assistant Commercial Tax Officer (Printers (Mysore))*, 1994, the Supreme Court has reiterated that though freedom of the press is not expressly guaranteed as a Fundamental Right, it is implicit in the freedom of speech and expression. In *Reliance Petrochemicals Ltd. v. Indian Express* (Reliance Petrochemicals, 1989), the Court emphasised the right of the people to know. The Freedom of Press in India also involves within its fold the issues

of free circulation (Sakal Papers, 1962), quality of the views and news (Bennett Coleman, 1973), and access to advertisements including government advertisements (Dainik Sambad, 1989), amongst others.

We see now that there are significant similarities between the Freedom of Press in India and in the United States. Another similarity is that the Press, neither in India, nor in the United States enjoys any freedom that is not otherwise available to the public (Jain, 2018). It is clear from decisions in the United States that the press clause does not give the press access to information that the public generally does not have (Nixon, 1978). And the press is not entitled to be treated any differently than any other member of the public (Branzburg, 1972). Similarly so in India, as the Freedom Press is merely a species under the genus of the Freedom of Speech and Expression (Sakal Papers, 1962), it stands on no higher footing than the freedom of speech of a citizen, and the press enjoys no privilege as such distinct from the freedom of the citizen (Jain, 2018). A further point of similarity arises on the understanding in both jurisdictions that Press Freedoms are for the benefit of the society and not the Press itself (Jain, 2018) (LII, n.d.).

Evolution of the Right to Privacy

There is stark a contrast between the Right to Freedom of Speech and Expression and the Right to Privacy in the United States. This is in the sense that, the Liberty or Freedom of Press is an enumerated Right that is enshrined in the First Amendment (1st Amend, US Const.), as opposed to the Right to Privacy which has been judicially read into multiple Amendments to the constitution including the First, Fourth, and Ninth Amendments. However, in the case of India, the Right to Privacy is also an unenumerated judicially evolved Right, just like the Freedom of Press. This section focuses on the Evolution of the Right to Privacy in India and the United States the Constitution of the United States came into force in 1789. There is no express provision providing for the Right to Privacy in the United States, however, in the year 1890, Louis Brandeis (later Justice Brandies of the Supreme Court of the United States) and Samuel Warren authored the seminal article titled “The Right to Privacy (or ‘the right to be let alone’)” published in the Harvard Law Review of that year (Brandeis, 1890). In this article the authors argued for the recognition of Privacy as a right. This is considered to be one of the most influential articles ever written and also one of the first (if not the first) article written that advocated for the recognition of such a right. Warren and Brandeis were of the opinion that the need to recognize the Right to Privacy emanated from the fact that the absence of such a right had the ability to cause injury to the psychological integrity and self-image of an individual (Brandeis, 1890). Justice Brandeis’ inclinations towards the recognition of such a right has also

influenced his decisions, such as his dissent in the case of *Olmstead v. United States* (Olmstead, 1928), wherein he stated that the prevention of publication was merely an instance of the violation of the right of an individual to be left alone (Glancy, 1979). This dissenting opinion would find support in *Griswold v. Connecticut*, 381 U.S. 479 (1965), a landmark judgement in the realm of marital privacy, and also formed the foundation for the overruling of *Olmstead* in *Katz v. United States* (Katz, 1967), and the landmark abortion rights judgement of *Roe v. Wade* (Roe, 1973), that touched upon reproductive rights within the realm of the Right to privacy (Gallagher, 2015).

In India, the need to adjudicate on issues of privacy arose for the first time with the Supreme Court being called upon to adjudicate *Kharak Singh v. State of UP* (Kharak Singh, 1963). Herein, certain regulations contained in the UP Police regulations, that permitted domiciliary visits were held to be unconstitutional on the ground that despite the right to privacy not being a part of the Constitution, “nothing is more deleterious to a man's physical happiness and health than a calculated interference with his privacy” which in turn affect the concept of personal liberty. A similar position was adopted in *Govind v. State of Madhya Pradesh* (Govind, 1975), a case involving comparable legal provisions. A similar vein of reasoning was adopted by the Supreme Court until the question of the Right to privacy being an integral part of the Fundamental Rights was settled in the landmark 9 judge bench decision of *Justice KS Puttuswamy v. Union of India* (Puttuswamy, 2017).

We have since moved on from addressing questions merely on what is a settled principle, on the law of privacy. Today, with the advent of the information age and the rapid, exponential growth of the internet, we have reached a point where, it has become important to ensure privacy of the data that is collected through the deep and pervasive presence of the internet in our daily lives. Consequently, the focus has now shifted to data protection. The gold standard for data protection laws across the globe has been occupied by the European Union’s General Data Protection Regulation, (GDPR). Even prior to the GDPR, the United States had witnessed multiple legislations on privacy, which encompassed different aspects of public life that involved transacting using the internet. The Child Online Privacy Protection Act (COPPA) addresses the sensitive issue of protecting children online, Health Insurance Portability and Accountability Act (HIPPA) and its updated extension the Health Information Technology for Economic and Clinical Health Act provide data protection law coverage to health-related data. The Fair Credit Reporting Act, and the California Consumer Privacy Act provide similar protection to data generated in the world of financial transactions. These are just some of the legislations that extend the principle of Privacy to cyberspace.

India is also no stranger to recognizing privacy concerns in the cyberspace. The Information Technology Act, 2000, serves as the nodal legislation to ensure data protection. In furtherance of this statute, the Government of India had issued the Information Technology (Reasonable Security Practices and Procedures and Sensitive Personal Data or Information) Rules in 2011 (SPDI Rules), which predominantly performs the same functions that the HIPPA, CCPA, COPPA and such other legislations perform in the United States. The judgement of the Supreme Court in the aforementioned *Puttuswamy* case also plays a significant role, as it recognized along with the omnibus Right to Privacy, the concept of informational privacy. There is, however, an absence of specific legislation. While attempts have been made to bridge this gap in the form of the Right to Privacy Bill, 2011, Personal Data Protection Bill, 2019, and the Digital Personal Data Protection Bill, 2022, which is in the draft stage, the gap in the form a dedicated data protection legislation that can further the interests of the Right to Privacy in the cyberspace is yet to be enacted. This raises concerns, especially in the realm where the Freedom of the Press and the Right to Privacy interact and overlap, particularly when the media has also established itself within the pervasive world of cyberspace.

The answers to questions on the intersection between media and privacy laws, are addressed in the section below.

Media and Privacy – Conflicting or Complementary?

Freedom of the Press and the Right to Privacy are generally considered as complementary provisions. It isn't uncommon for both these rights to be referred to in the same breath (Hughes, 2014). In the Indian case of *KS Puttuswamy*, the Right to Privacy was established by reading it into the concept of personal liberty, but also the Right to freedoms under Article 19, particularly Articles 19(1)(a) and 19 (1)(d) which refer to the Freedoms of Speech and Expression, and Movement respectively. Similarly, so in *Stanley*, the Supreme Court of the United States recognized privacy as an expression (*Stanley v. Georgia*, 1969). This leads us to the conclusion that Privacy is an extension of speech and expression. But so is the Freedom of Press, and therefore it isn't uncommon for the Freedom of Press to come in conflict with the Right to Privacy, thereby leading to a perception that these rights are in conflict with each other (Hughes, 2014).

The judiciary in both India and the United States has been called upon to decide questions of balance between these seemingly competing rights. In *Federal Communications Commission v. Pacifica Foundation* (Pacifica, 1978), a question involving a ban on indecent speech transmitted through the radio was required to be answered. While upholding the ban, the Court reasoned that the

presence of children at home, and the ability of the radio to invade the privacy of one's home was sufficient grounds to uphold the ban. This judgement clearly seems to favour Privacy over the Liberty of the Press (Haydel, 2009). However, the nature of judgements clearly tilts in the favour of the Freedom of Press in questions that involve public personalities or publicly available information. In *Huskler Magazine v. Fallwell* (Huskler, 1988), a preacher was declared to be public personality and his public persona was allowed to be subject to parodic publication by the Press. Similarly, in *Bartnicki v. Vopper* (Bartnicki, 2001), the SCOTUS stated that it would be inappropriate to remove the shield of the First Amendment just because the information was received through inappropriate channels, especially when the information is of public importance. In *Cohen v. California* (Cohen, 1971), it was clearly stated that privacy concerns public individuals would not outweigh the interests of the Press protected by the First Amendment (Haydel, 2009). However, the SCOTUS has also refused to completely ignore the Right to Privacy enjoyed by public individuals (Roy L Moore, 2018, p. 409). In *Hugo Zacchini v. Scripps-Howard Broadcasting Company* (Zacchini, 1977), a human cannonball performance, which was broadcast without consent of the performer was held to be a breach of privacy of the performer. It is also pertinent to note that while the Freedom of Press cannot commonly override privacy rights, newsworthiness and consent to publications are grounds on the basis of which privacy within the private lives of individuals may be waived (Roy L Moore, 2018, p. 437).

In India also, a similar position seems to have been adopted. In the landmark judgement of *R. Rajagopal v. State of Tamil Nadu* (Rajagopal, 1995), it was clarified that public officials do not have the benefits of the Right to Privacy in cases involving their public duty or action. Professor DD Basu is also of the opinion that any resolution to issues of balancing Press Freedom and Privacy interests are best addressed by turning to American decisions (Basu, 2016). But in *CPIO, Supreme Court v. Subhash Chandra Agarwal* (Agarwal, 2019), it was clarified that the private lives of public servants are also as equally protected as that of any private individual. While the standards and degree of protection applicable might be different on a case-to-case basis, there can be no blanket exemption of Privacy Rights in favour of Press or publication freedom.

One of the major conflicts that arise when the Rights of Free Speech and Privacy interact is during a sting operation. Stings, by their very nature, are intrusive and invasive. They involve recording persons without their consent, which, quite obviously is a violation of the Right to Privacy. In (Bahal, 2010), a case where journalists were criminally charged for a sting on corrupt public officials, the Delhi High Court initially, and later the Supreme Court, intervened to prevent charges from being pursued (Divan, 2006). Similarly, in *RK Anand v. Delhi High Court* (RK Anand, 2009), the Supreme Court was called on to

examine *inter alia* whether the conduct and airing of a sting operation by a TV channel could be termed as a trial by the media. In this case, the Supreme Court felt that all actions taken by the Delhi High Court pursuant to the sting was appropriate and the sting itself was justifiable (Divan, 2006). However, the court did not grant and continues to not have granted a blanket sanctification to stings. And this position must be noted with due diligence because the court here is attempting to balance Press and Privacy Rights, while also ensuring that the media does not appropriate to itself the mantle of the judge, jury, and executioner by conducting media trial.

The actress Shilpa Shetty was granted relief by the Bombay High Court in such a case. The matter emanated from her partner being accused of producing and distributing pornography. In that context certain media outlets made comments that she believed violated her privacy. She prayed that a gag order be issued restraining all media outlets from reporting on the matter. The presiding judge in the matter, Justice Gautam Patel exhibited the perfect example of balancing Act in the order passed. The Court restrained media houses from publishing material that completely pertained to Ms. Shetty’s personal life completely unrelated to the issue at hand, and asked for such content that was already published, to be removed. However, the Court also carefully noted that it wasn’t passing a blanket gag order, as Ms. Shetty was a public figure, whose Right to Privacy, was compromised, at least with regards to subject matter that pertained to her public life (Deshpande, 2021). This isn’t a position that is different from the one evolved by the American judiciary.

Based on the findings of this section, it becomes clear that the conflict between Press and privacy Rights are merely perceived. While there are circumstances where one may supersede the other, the primary focus is to arrive at a balance between both the rights. In fact, the judicial approach, has not merely been one of attaining balance, but has actually been an attempt to create a structure where these rights complement each other. Since Privacy has been recognised as a mode of expression too, in India as well as in the United States, it becomes quite clear that the seamless existence of one can strengthen the exercise of the other too. Surveillance and censorship often go hand in hand, making it that much clearer that Privacy and the Press also have to go hand in hand, and the jurisprudence in both the nations surveyed here also presents a positive picture. The following section focuses on social media and the new challenges it brings, if any, to Privacy laws.

A New Challenge – Social Media and the challenges to Privacy

While this paper in the earlier section referred to the impact that the media has on privacy laws and vice-versa, it is pertinent to note that the newest form of

media, i.e., social media is posing challenges to the idea of Press and Media. For one, this internet fuelled media form has a significantly larger reach than any other form of media that has existed in human history. Secondly, the nature of social media is such that anyone with a camera and an internet connection, or just a smartphone, can become a reporter. While in the past, the term Press had become synonymous with Media, and any rights of the press was also readily available to the newer forms of Media, such an automatic extension is not without problem in the case of electronic media and particularly social media. However, it is also true that the Freedom of the Press is an extension of the Freedom of Speech and expression and the media itself has no additional rights that aren't otherwise available to the general public. This is true in India as well as in the United States. But it is undeniable that the evolution of Media and its expansion to social media has the effect of pulling the rug from underneath one's feet, because the challenges posed haven't been imagined, let alone addressed, in the past.

It is interesting to note that the Right to receive and impart information, is available not merely as a general right, but it also extends to the specific circumstance of being available across any and all media. Therefore, we may argue that for as long as social media serves as a source of information, it is a legitimate method of obtaining information. This is buttressed by the case of (LIC, 1993) wherein the Supreme Court Stated that The Supreme Court has stated in this case that a liberal interpretation given to the freedom of speech and expression, will lead to the conclusion that this right includes “the right to propagate one's views through the print media or through any other communication channel” (Jain, 2018, p. 1441).

In the United States, the case of *Peterson v Moldofsky* (Peterson, 2009) was a pioneering judgement in the realm of privacy laws influenced by the presence of social media. In this case, the District Court in Kansas relief for breach of privacy to the plaintiff whose explicit pictures had been shared by the defendant via email to some friends and family members of the plaintiff. The defendant's argument that an email to just a few members was not sufficient to constitute publication was not accepted by the court who felt that an email could be transmitted further, via the internet to billions of people, and therefore would constitute publication (Hermes, 2014).

While the internet and social media have been terrific when it comes to furthering Free Speech, we have seen that challenges to Privacy laws have also increased manifold. Journalism (and by extension Press and the Media), very regularly tread the thin line separating what is legal and ethical from what is not (Brock, 2016). While this could be contained on an institutional level in the case of traditional media, how are we going to control every individual who has now

acquired the ability to play the role of independent press due to social media and the internet? While the Press has the ability to inform and empower, it also has the ability to deceive.

The flipside, however, is that organisations controlling media and organised traditional media had a monopoly on what was provided as news (Brock, 2016). The seriousness of this is compounded in cases where the media is owned, controlled, and operated by the State. Advertisements provided by the State are also a huge source of revenue for the Media. Additionally, a lot of the news we consume are territorially restricted. Social media and the internet provide a solution to a lot of these issues, in the form of access to vast and wide independent content that isn't necessarily controlled by the State or organisations. "Search engines and social networks increase the diversity of the news people consume. Journalists no longer have a monopoly on the production of information which has public value – if they ever did" (Brock, 2016).

In India, the Information Technology (Intermediary Guidelines and Digital Media Ethics Code) Rules, 2021, have been recently enforced, wherein amongst other things, social media intermediaries, have been tasked with the responsibility regulating and moderating content. Social Media Intermediaries are basically platforms where content can be posted. It is now up to these platforms to decide what content can be objectionable, including on the grounds of breach of privacy. Social Media gave everybody the ability to be a journalist. But it also broke down the walls that privacy had built. This law now brings back the balance between privacy and media rights.

Suggestions and Conclusion

Over the course of this paper, we have seen the path traced by the Freedom of Press and the Right to Privacy. And we have seen that each of these rights have their own space and importance within the Constitutional jurisprudence and the Rights framework of India and the United States, the two jurisdictions that have been surveyed in this paper.

The Freedom of Press is an extension of the Freedom of Speech and Expression and is considered one of the hallmarks of any democracy. The Right is considered an integral aspect of creating an educated and knowledgeable citizenry, which in turn goes on to strengthen the democratic roots of the country. The Right to Privacy is considered to be an extension of the Right to Life and interestingly we have also seen that it is treated as an extension of one's Right of expression. The Freedom of Press is a right that enables transparency and openness. The Right to Privacy, is on a fundamental level, the right to be left alone. Given these circumstances, it become quite obvious that,

these rights *prima facie*, seem to be in conflict with each other. This paper has focused its analysis on how the law and particularly the judiciary has attempted to bridge this gap between the Right to Privacy and the Freedom of Press. We have seen that the judiciary has attempted to create a balance between the enjoyment of these right by drawing difference between the public life and private life of individuals. The judiciary has also created a separate class of individuals who are in the public eye, such as public servants and celebrities, for example, and has watered down their access to the Right to Privacy. The judiciary has also stepped in to draw a line beyond which the Media and the Press cannot interfere with the Privacy of an individual.

While such a balance might have been easier to achieve, when the media and press were traditionally owned. With advent of social media and the internet, this balance has become tougher to maintain, because, as noted in this paper above, everyone with a smartphone and an internet connection can now be the Media or the Press. The advent of social media also poses privacy concerns with respect to the vast amounts of data that is collected and processed and the security concerns surrounding the same. Given these circumstances, it becomes imperative that the Privacy jurisprudence is strengthened and capacity building exercises in this regard be given a much-needed impetus and the intermediary guidelines of 2021, are a step in this direction.

Another challenge to Privacy is posed by Surveillance, and very closely related to surveillance is censorship. Any state that has a Big Brother like attitude towards surveillance is also naturally going to lean towards censoring the media. This is just one example of how Privacy and Media are Rights that complement each other as opposed to being in conflict with each other. Historically, there are plenty of examples where data collected and controlled by the State has been abused. The use of data collected in Netherlands for welfare schemes was used by the Nazis to target Dutch Jews upon occupation. Similarly, so in Rwanda, where ID cards mandated by the former colonial government, indicated the ethnic and tribal divisions, was used as an identifier by the Hutus to attack the Tutsis (Brock, 2016). This has only increased by leaps and bounds in the internet age, with the State becoming one of the largest consumers of data. Considering that the State also has the ability of surveillance and censorship, them having such large amounts of data is a scary prospect as it can lead to targeting select individuals for the views they hold.

Based on the findings of this paper, we may conclude that, while Privacy and Press seem to come in conflict with each other, they actually complement each other. Both these Rights also have in many ways, at their foundation, the same Right of Free Speech and Expression. The absence of the Freedom of Press can actually culminate in the erosion of the Right to Privacy. While there are

undeniable overlaps in the operation of these rights, we have been able to, primarily by judicial efforts, arrive at acceptable solutions that balance their operation without violations.

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Navigating the Legal Landscape: Exploring Mass Media Law and its Implications on Freedom of Expression

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Abstract

The rights, obligations, and constraints of media organisations and practitioners are governed by a broad variety of legal principles and laws known as "mass media law." This essay explores the complex relationship between media regulation and free expression. In today's rapidly evolving digital world, the legal framework around mass media has become increasingly complicated, with important implications for the fundamental right to freedom of expression. The paper begins by highlighting the important role that the media plays in contemporary society as a powerful tool for public information, public opinion, and democratic engagement. Despite its immense power, the media is subject to a number of legal frameworks that try to strike a difficult balance between preserving individual liberties and promoting the wider public interest. The idea then looks at the challenges and complexities of regulating the media while preserving the right to free speech. Constitutional provisions, defamation laws, content limitations, and intellectual property rights are only a few of the many legal weapons and tactics discussed in this article that are employed globally. It also looks at the tension between preserving free speech as a key tenet of democracy and adopting measures to guard against potential drawbacks including hate speech, inaccurate information, and invasions of privacy. The paper give some light on how the law of mass media is dynamic and always evolving to keep up with new developments in technology and shifting social mores. For instance, the emergence of social media platforms has created additional difficulties, including controlling the dissemination of misinformation, protecting data privacy, and preventing online abuse. It is a constant challenge for legislators and policymakers around the world to strike a balance between the necessity for regulation and the need to prevent stifling

free speech. The report emphasises the significance of encouraging an informed and nuanced public conversation on mass media legislation and freedom of expression as it draws to a close. It emphasises the requirement for thorough legal systems that safeguard people's rights while fostering lively public discourse. It also emphasises the value of media literacy and education in enabling people to engage with the media critically, separate fact from fiction, and have an active role in influencing the judicial system.

Keywords: Media Regulations, Free speech, Media laws, Abuse, Rights

Introduction

Background and Significance

An outline of India's media laws' evolution and history is given in this section. It outlines significant instances that have influenced the nation's press freedom.

Prior to Independence: Press freedom was restricted during colonial authority, which included pre-censorship and licencing. To regulate the flow of information, laws like the Vernacular Press Act and the Metcalfe Act were put into effect. The Indian independence movement was put down by the application of seditious and defamatory legislation.

In the years following independence, efforts were made to change the media regulations. The establishment of the Press Law Enquiry Committee resulted in the repeal of some legislation and the amending of existing laws. India's Press Council was founded to control the media.

The press freedom has been upheld as a fundamental right in numerous court instances. *Romesh Thappar's case* made clear that only the justifications listed in Article 19(2) of the Constitution should be used to impose press limitations. Press censorship for the sake of upholding public order was deemed unconstitutional in the *Brij Bhushan case*.¹⁰⁴ The *Benette Coleman case*¹⁰⁵ upheld the press's right to set its own prices, page counts, and circulation. Strong criticism of the government is protected under journalistic freedom, as the *Kedar Nath Singh case*¹⁰⁶ demonstrated. The *Prabha Dutta case*¹⁰⁷

¹⁰⁴ Indiankanoon.org. (2023). *Brij Bhushan And Another vs The State Of Delhi* on 26 May, 1950, <https://indiankanoon.org/doc/43023/>.

¹⁰⁵ Global Freedom of Expression. (2021). *Bennett Coleman & Co. v. Union of India - Global Freedom of Expression*, <https://globalfreedomofexpression.columbia.edu/cases/bennett-coleman-co-v-union-of-india/>.

¹⁰⁶ Global Freedom of Expression. (2021). *Kedar Nath Singh v State of Bihar - Global Freedom of Expression*, <https://globalfreedomofexpression.columbia.edu/cases/nath-singh-v-bihar/>.

¹⁰⁷ Indiankanoon.org. (2014). *Prabha Dutt vs Union Of India & Ors* on 7 November, 1981, <https://indiankanoon.org/doc/671310/>.

established that the government might decline media requests for legitimate reasons.

Free Speech and Media Regulation

The relationship between free speech and media regulation centres around striking a balance between the necessity for laws to promote responsible and ethical media practises and the fundamental right to freedom of expression. While media regulation seeks to address issues like misinformation, hate speech, privacy, and the public interest, free speech guarantees people the freedom to express their opinions and ideas without censorship or intervention. Legal frameworks, industry self-regulation, and governmental oversight are just a few of the different ways that media regulation can be implemented. These laws frequently concentrate on matters like privacy protection, ownership concentration, ownership standards, media monopolies, defamation, and libel. The objective is to establish a compromise between defending the right to free expression and averting the consequences that could result from unrestrained media practices.

Insufficient media control, according to critics, can stifle the diversity of opinions and ideas by limiting freedom of expression and encouraging censorship or self-censorship. They support minimum interference and stress the value of media liberty and independence.

On the other hand, proponents of media regulation contend that it is essential to make sure that the media sector adheres to ethical standards, accuracy, and accountability. They think that certain restrictions are necessary to defend the rights of individuals, preserve the general welfare, and stop the spread of false or harmful information.

In the end, the relationship between free speech and media regulation is a delicate balancing act that seeks to promote standards of responsibility, accuracy, and accountability in the media environment while striving to protect the ideals of free expression. For a public dialogue to be lively, diverse, and informed, the appropriate balance must be struck.

Impact of Media on Democratic Participation and Public Opinion

As a result of the global influence of social media platforms like Facebook, Twitter, and Instagram on public opinion and political discourse, communication, information access, and political discourse have all undergone revolutionary change.

Since social media provides direct and individualised communication channels that bypass traditional media gatekeepers, it has fundamentally changed how politicians, parties, and interest groups interact with the public. It has developed into a potent tool for political mobilisation and activity, enabling grassroots movements to plan demonstrations, exchange knowledge, and spread awareness of crucial issues.

Social networking, however, comes with hazards and obstacles. Fake news and misinformation are easily disseminated, which has serious effects on public opinion and decision-making. Using user preferences to prioritise material results in echo chambers that polarise political opinions and prevent productive discussion. Political engagement may be deterred by online bullying and hate speech on social media.

People's opinions of political problems, candidates, and parties are shaped by social media platforms, which have a considerable impact on public opinion. Selective information exposure, the influence of online networks and influencers, and the emotional resonance of viral content are some of the elements that determine its impact. Although the use of social media can help democratise political discourse by amplifying underrepresented voices and promoting different viewpoints, the prevalence of online trolling, echo chambers, and misinformation degrades the value of political discourse and damages public confidence in democratic institutions.

The spread of misinformation and the use of information as a weapon against political opponents have become commonplace on social media. Conspiracy theories, manufactured news articles, doctored photos, and deepfake movies can all be used to spread false or misleading information. Individuals, political parties, or foreign governments who want to sway public opinion may use such strategies. It is difficult for the public to tell fact from fiction since it is so simple to spread false information on social media, which has undermined public confidence in established news sources. Material weaponization refers to the use of sensitive or confidential material to discredit or damage political rivals, with immediate and negative internet repercussions.

These issues with information weaponization and disinformation threaten the democratic process by undermining institutional confidence and creating a poisonous climate for political dialogue. Social media sites need to be accountable for the content they contain, and users need to critically assess the data they access online.

Democratic countries face both possibilities and challenges as a result of social media's impact on public opinion and political dialogue. To fully realise its

potential, people, governments, and platform developers must confront the risks and work to improve the internet environment for political communication. To do this, it's necessary to encourage digital literacy, civil discourse, and the fight against the propagation of false information. Social media can improve democratic participation in this way, helping to create a more educated and active populace.

Power and Responsibilities of Media Organizations and Practitioners

Media professionals have an ethical obligation to ensure that the information they deliver is truthful, impartial, and well-balanced. They ought to make an effort to present a thorough and impartial knowledge of the information they discuss, avoiding bias and sensationalism. This entails completing in-depth research, confirming sources, and presenting several viewpoints on complicated problems. Maintaining ethical standards helps journalists uphold the public's trust and protect the integrity of their profession.

Media personnel are legally responsible for abiding by the law when reporting. To do this, one must comprehend and uphold legal precepts including defamation, confidentiality, and privacy. In order to respect the rights of people and organisations, journalists must be aware of their legal obligations when acquiring and publishing information. Media practitioners safeguard themselves and their companies from legal liabilities and promote ethical journalism by adhering to the law.

Media personnel have a social obligation to assist the general welfare of society by offering accurate, pertinent, and varied news. As they inform the public about topics that have an impact on their lives and society as a whole, they should prioritise key issues and events. The promotion of transparency, accountability, and democratic involvement are all goals that journalists work tirelessly to advance. To effectively inform the public, develop understanding, and encourage productive discourse, one must possess strong communication abilities.

Media practitioners should exhibit professionalism, honesty, and a dedication to public service in addition to these fundamental duties. They should avoid any activities that may jeopardise their independence and reputation and be open about their sources and potential conflicts of interest. Media professionals support a well-informed society, the preservation of democratic ideals, and the advancement of public welfare by fulfilling their responsibilities.

The Press Council of India's guidelines lay forth the obligations of journalists in serving the public interest with accurate and unbiased news. Journalists should

reveal misconduct supported by indisputable facts and proof rather than disseminating false, misleading, or twisted information. While journalists have the freedom to draw attention to corruption and irregularities in public institutions, it is crucial that their reports are supported by reliable evidence before publishing.

The court determined that the government has the right to control deceptive, unfair, and false commercial advertisements in the case of *Tata Press Ltd. v. Mahanagar Telephone Nigam Ltd.*¹⁰⁸ In *Hamdard Dawakhana v. Union of India*,¹⁰⁹ the court found that while commercial ads constitute a type of expression, not all of them are protected by Article 19(1)(a) of the Indian Constitution, which upholds the right to freedom of speech and expression.

According to Article 19(1)(a) of the Indian Constitution,¹¹⁰ media outlets and journalists are entitled to freedom of speech and expression. They are the fourth pillar of democracy and they should have the freedom to criticise individuals in positions of authority. Since their job serves the public interest, journalists shouldn't be subjected to harassment for their behaviour.

*Romesh Hapar v. State of Madras*¹¹¹, Patanjali Shastri was a case where the court emphasised the importance of free speech and the press in democratic societies as well as how important they are to the general public's education and the smooth operation of popular government.

A number of regulations exist to protect journalists from harassment because they understand how crucial press freedom is to a democratic society.

Legal Framework

The main goal of media laws is to guarantee that journalists and media professionals follow professional and ethical practises and refrain from engaging in unethical or unprofessional behaviour. Individuals are accountable for any criminal offences or illegal activities performed through their work as journalists, including reporters, correspondents, authors, editors, and publishers, who can be tried in a court of law.¹¹² To sustain peace, law and order, and a positive social climate, it is crucial to have well defined media regulations and a

¹⁰⁸ *Tata Press Ltd. v. Mahanagar Telephone Nigam Ltd.* JT 1995 (5) SC 647.

¹⁰⁹ *Hamdard Dawakhana v. Union of India*, AIR 1960 SC 554

¹¹⁰ Amrit, K. and Faculty, G. (n.d.). *E-Content for the Students of Bachelor of Laws (LL.B), Patna Law College, Patna University Right to Freedom of Speech and Expression Article 19(1) (a)*, https://www.patnalawcollege.ac.in/notice/88274-e_content-_art_19.pdf.

¹¹¹ Global Freedom of Expression. (2021). *Romesh Thappar vs The State Of Madras - Global Freedom of Expression*, <https://globalfreedomofexpression.columbia.edu/cases/thappar-v-madras/>.

¹¹² Unit 7 Media Laws And Regulatory Framework Structure. (n.d.), <https://egyankosh.ac.in/bitstream/123456789/57224/1/Unit7.pdf>.

regulatory framework. It is the responsibility of governments to ensure that the media operates in a way that promotes society as a whole.¹¹³

1. Press and Registration of Books Act, 1867

Newspapers, books, and printing machines are subject to the original 1867 Press and Registration of Books Act, which was passed by the British government. To help the British government take legal action against any critical publications, the law tracked ownership information for printers, editors, and publishers. Editors, press personnel, and owners of newspapers, periodicals, and printing presses were all subject to restrictions under the Act.¹¹⁴ The law is currently handled by the Ministry of Information and Broadcasting in India after changes were made in 1958.

The legislation requires publications to reveal their printer's name and address, publisher and editor information, and place of publication. The law's implementation is the responsibility of the Press Registrar, a ministry representative. It is required to send the Registrar copies of printed materials for free. The declaration is revoked and there are consequences for breaking the law if you don't publish after three months of getting permission. It makes it illegal for multiple proprietors of publications in the same language to use the same title. False statements in the declaration may cause it to be revoked. The Press Registrar or other authorised officers carry out the duties outlined in the law.

2. Working Journalists Act, 1955

The Working Journalists Act, officially known as the Act Concerning Conditions of Service and Other Provisions for Working Journalists and Other Newspaper Employees, was passed in 1955 in reaction to the unfavourable working conditions and exploitation of journalists in the newspaper business. The regulation of the working conditions for journalists and non-journalist personnel in newspapers is done as a welfare measure. The Act addresses a number of topics, including working hours, leave, pay, the makeup of wage boards, employees' provident funds, the recovery of money owed by employers, and retrenchment. However, there have been difficulties in putting the Act into practise, particularly with relation to pay board recommendations.¹¹⁵

¹¹³Sharma, V. (n.d.). Regulatory Mechanism For Electronic Media: Protecting Freedom Of Speech From The Onslaught Of Uncontrolled Media, <https://ili.ac.in/pdf/vsharma.pdf>.

¹¹⁴The Press And Registration of Books Act, 1867 Arrangement Of Sections. (n.d.).<https://ddashboard.legislative.gov.in/sites/default/files/A1867-25.pdf>.

¹¹⁵ Working Journalists And Other Newspaper Employees (Conditions Of Service) And Miscellaneous Provisions Act, 1955. (n.d.), <https://wbic.gov.in/sites/default/files/WORKING%20JOURNALIST%20ACT1955.pdf>.

Employees now face job instability due to factors like the waning of the labour movement, the length of judicial proceedings, and the growing use of contract labour in the newspaper industry. The Majithia Wage Boards recommended compensation increases for those working in newspaper enterprises in 2010.¹¹⁶ In contrast to the audio visual media industry, news organisations like Press Trust of India, Bhasha, United News of India, and Univarta are covered under the Working Journalists Act.¹¹⁷

3. Press Council of India Act, 1978

On the advice of the first Press Commission of India, the Press Council of India was set up in 1966. Initially eliminated between 1975 and 1977 due to the emergency, it was eventually reinstated in 1978.¹¹⁸ The 28-member council has a chairperson who is chosen by a committee made up of the speaker of the Lok Sabha, the chairman of the Rajya Sabha, and a PCI member who was previously on the council. The PCI consists of editors, working journalists, representatives of newspaper management, and individuals who have been recommended by groups like the University Grants Commission, Sahitya Academy, and the Bar Council of India.

Protecting press freedom and maintaining/improving press standards are the PCI's key goals. It decides on grievances brought by journalists and the general public against publications and journalists, and it has the authority to reprimand editors or journalists for moral transgressions or offences against popular taste. The Council has published recommendations and carried out research on a number of subjects, including press freedom, defamation, investigative reporting, obscenity, the right to reply, privacy, and the rejection of advertisements.

The PCI's complaint process is, however, frequently criticised for taking too long and lacking the ability to impose penalties. Sometimes people will call it a "paper tiger" or "toothless tiger." There have been calls for a media council with additional disciplinary authority that would oversee publications and television networks. As the media environment has changed to include private news channels, the PCI still only deals with newspapers. The statutory press council in India is in contrast to the voluntary press councils for self-regulation in other democratic nations like Sweden, Canada, the United States, Australia, and New Zealand.

¹¹⁶ Pib.gov.in. (2023). *Recommendations of Majithia Wage Board for Newspaper Employees Notified*, <https://pib.gov.in/newsite/PrintRelease.aspx?relid=78886>.

¹¹⁷ Gandhi, I. (n.d.), <https://egyankosh.ac.in/bitstream/123456789/59500/3/Block-3.pdf>.

¹¹⁸ JudicateMe. (2021). *All You Need To Know About The Press Council Act, 1978* | JudicateMe, <https://judicateme.com/all-you-need-to-know-about-the-press-council-act/>.

Although there is constant discussion regarding the PCI's efficacy and the need for expanded regulation given the changing media landscape, it is generally agreed that the PCI serves a key role in preserving press standards and promoting press freedom.

4. Ombudsman

In order to defend the rights of residents and offer impartial oversight, the word “ombudsman” was first used in Sweden in 1809.¹¹⁹ Ombudsmen have been appointed in India in fields like banking and insurance as well as in clinics, schools, and other organisations. Ombudsmen in the media sector receive and look into complaints from readers, listeners, and viewers about the truth, fairness, balance, and taste of news reporting. They offer solutions or reactions to any problems mentioned in news reporting. In addition to the Times of India and The Hindu in India, many media outlets in the US and the UK have their own ombudsmen.

To uphold journalistic ethics and act as a self-regulatory mechanism, media organisations are in favour of creating an ombudsman. The qualities of a successful ombudsman include being seen as a representation of the community, having access to media outlets where they may voice their disapproval of institutional choices, and having seniority or standing within the field. An ombudsman's duties include keeping an eye on and checking news and editorial content for accuracy, fairness, and balance. They alert the editor to bad material, start inquiries, or respond to reader complaints by offering justifications. Ombudsmen may also occasionally publish columns to criticise or laud news stories and hold public forums to interact with readers. The majority of ombudsmen, however, serve as advisors rather than police officers.

The Organisation of News Ombudsmen was founded in the US¹²⁰ with the goals of advancing ethical standards in news reporting, creating guidelines for the ombudsman position, facilitating the adoption of ombudsmen positions more widely, offering a forum for members to share experiences and ideas, and establishing connections with publishers, editors, and professional associations. Ombudsmen are seen as representatives of the people and are expected to be impartial when reviewing complaints, providing forums for constructive criticism, and resolving issues with publications that readers have. While not all media organisations have ombudsmen, many do have internal processes for

¹¹⁹ The Daily Star. (1999). *The Role of the Ombudsman: The Swedish Experience*, <https://www.thedailystar.net/news/the-role-of-the-ombudsman-the-swedish-experience>.

¹²⁰ Newsombudsmen.org. (2019). *About ONO – Organization of News Ombudsmen and Standards Editors(ONO)*, <https://www.newsombudsmen.org/about-ono/#:~:text=The%20first%20newspaper%20ombudsman%20in,Toronto%20Star%20%E2%80%94%20was%20in%201972>.

reviewing content frequently and handling complaints and corrections from the general public.

5. Indian Penal Code and Criminal Procedure Code

The laws and rules of a country's legal system must be followed by media professionals. There are numerous laws in place to uphold law and order, including the Indian Penal Code (IPC) and Criminal Procedure Code (CrPC) in India.

Seditious material is covered by Section 124A of the IPC, which forbids the distribution or sale of materials that promote hostility, contempt, or disaffection against the government. When commenting on topics of public concern, media professionals should take care to not break this section's rules.

The IPC's Section 153A targets activities that undermine harmony and incite hostility amongst various communities. Journalists covering racial unrest should be aware of this clause and abide by the rules established by the Press Council of India¹²¹.

The IPC also has pertinent sections regarding defamation, obscenity, publishing false statements, and outraging religious beliefs.¹²² The CrPC has similar clauses on court summonses, search warrants, seizure of publications, contempt, and refusal to produce documents. In order to avoid committing crimes, reporters and correspondents who are tasked with covering events should arm themselves with knowledge of these parts. In order to ensure compliance and responsible reporting, media professionals should familiarise themselves with the relevant laws and provisions.

Balancing Freedom of Expression and Media Regulation

It is a challenging undertaking for societies around the world to strike a balance between media regulation and freedom of expression. On the one hand, the right to freedom of expression gives people the opportunity to express their thoughts, engage in intellectual dialogue, and take part in democratic processes. It is essential for encouraging accountability, openness, and the smooth operation of a democratic society.¹²³ On the other side, media regulation tries to safeguard the public interest, guarantee ethical journalism, stop the dissemination of false

¹²¹ Use (2023). *Section 153A: its use and misuse - NEXT IAS*, NextIAS, <https://www.nextias.com/current-affairs/25-02-2023/section-153a-its-use-and-misuse>.

¹²² Garg, R. (2022). *Is criminal defamation law against Article 19 and the Right to Reputation* – iPleaders, <https://blog.ipleaders.in/is-criminal-defamation-law-against-article-19-and-the-right-to-reputation/>.

¹²³ Uchicago.edu. (2022). *Balancing Free Speech and Social Media Regulation* | University of Chicago Law School, <https://www.law.uchicago.edu/news/balancing-free-speech-and-social-media-regulation>.

information, and address problems like hate speech, incitement to violence, and defamation.

It can be difficult to strike the correct balance between these two goals. As a result of censorship and a chilling impact on public debate¹²⁴, excessive regulation can suffocate free speech and threaten press freedom. On the other hand, a lack of regulation can permit the spread of damaging information and unethical behaviour that could endanger people or society as a whole.¹²⁵

Thomas Friedman praises India as a wonderful democracy by his words “*The more time you spend in India, the more you realize that this country is one of the world’s greatest wonders- a miracle with a message. And the message is that democracy matters*” because it upholds fundamental liberties and recognises the value of democracy. Social media has developed into a potent instrument for people to communicate their ideas and opinions globally in the twenty-first century. Articles 19 through 22 of the Indian Constitution provide individual freedom, including the right to free speech. However, the state may set ostensible limitations on this right.

Internet connectivity is crucial for people to enjoy their right to free speech and expression, according to the UN Special Rapporteur¹²⁶. States were asked to make sure that it was accessible at all times, including during political instability, as internet access was seen as a fundamental human right. The *Faheema Shirin R K v. State of Kerala & Ors*¹²⁷ case acknowledged mobile phones and internet connectivity as crucial components of daily life connected to the fundamental rights to life, liberty, privacy, and freedom of speech and expression.

The Supreme Court of India ruled in *Anuradha Basin v. Union of India*¹²⁸ that Article 19(1)(a) of the Indian Constitution includes freedom of speech and expression on the internet as a fundamental right. Additionally, it was determined that orders to shut down the internet must fulfil the need and proportionality standards and that vague limits on internet services are unconstitutional.

¹²⁴ Gautam Bhatia, Indian Constitutional Law and Philosophy, (2013). *The Chilling Effect in India*, <https://indconlawphil.wordpress.com/2013/12/05/the-chilling-effect-in-india/>.

¹²⁵ Portal. (2014). *Protecting freedom of expression and information - Portal* - www.coe.int, <https://www.coe.int/en/web/portal/protecting-freedom-of-expression-and-information>.

¹²⁶ Report of the Special Rapporteur on Key Trends and Challenges to the Right of All Individuals to Seek, Receive and Impart Information and Ideas of All Kinds through the Internet, 2011, UN General Assembly Doc.A/HRC/17/27.

¹²⁷ *Faheema Shirin R.K v. State of Kerala and Ors*, (2019)WP(C) No.19716 of 2019(L)India

¹²⁸ *Anuradha Basin v. Union of India*, (2020)SCC Online SC 25

It is frequently necessary to create legislative frameworks and regulatory procedures that set boundaries for freedom of expression while guarding against abuses in order to balance these conflicting goals. Laws that safeguard people against libel and hate speech, support ethical journalism standards, and create independent regulatory agencies to monitor media practises are a few examples of such systems. The promotion of responsible journalism also depends heavily on professional standards of conduct and self-regulation by media organisations. It's crucial that media regulation is carried out in an open and accountable manner, with precise standards and protections in place to avoid excessive involvement or the stifling of dissenting voices. Governments should work to foster an atmosphere that promotes a diversified and pluralistic media landscape where a variety of viewpoints can be voiced while guaranteeing the protection of vulnerable groups and the general welfare.

In the end, effective media regulation and freedom of expression require continual discussion, adherence to democratic values, and observance of human rights principles. This delicate balance needs to be continually reviewed as societal dynamics and technological developments change.

Conclusion

Concerns have been expressed recently concerning the impact of the commercialization of media in India, particularly electronic media, on democratic principles and human rights. It is crucial that the government create an independent regulating organisation in order to solve these problems and guarantee a fair and responsible media environment. All kinds of media, including print, electronic, and social media news, would be subject to regulation by this organisation, known as the Media Regulatory and Development Authority of India (MRDAI).

There are a few ideas that ought to be taken into consideration in order to guarantee the MRDAI's efficacy and integrity. First and foremost, the organisation should be led by a well-known media figure with a track record of neutrality and integrity. Reduced bureaucratic influence will enable the regulatory body to function freely and without undue political intervention.

It is suggested that the chairman's term be set at six years or until they reach the age of 65, whichever comes first. This guarantees that good leadership lasts a reasonable amount of time while also allowing for new ideas and preventing someone from having undue influence for an extended period of time. A post-chairmanship prohibition should also be put in place to stop the chairman from holding any positions in government that would affect their objectivity, such as Comptroller and Auditor General.

Funds for MRDAI should be allotted from the Consolidated Fund of India in order to guarantee the independence and sustainability of the regulatory body. This would protect the body from outside influences and pressures while ensuring the financial resources required for its activities.

The Indian government may take substantial steps towards advancing responsible and ethical journalism, defending democratic ideals, and defending citizens' rights in the dynamic media environment by putting these recommendations into practise and establishing the MRDAI.

Legality of Sting Operation and Phone Tapping

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Abstract

A sting operation is an undercover operation to apprehend someone who is committing a crime while lying about it. It is meticulously planned and executed for the purpose of catching the group or individual committing the offence thereby ensuring transparency and reliability in the evidence collected against such groups or individuals. On the other side, sting operations hurt society and its people by impermissibly violating their privacy. People's freedom and liberties may be restricted by sting operations. The freedom provided by Article 19(1)(a) of the Constitution of India is linked to the obligation to obey all laws since great power also comes with great responsibility. The Telegraph Act of 1885 governs wiretapping, a part of sting operations that is equally vulnerable to abuse, anarchy, and disaster. There is no specific law that governs these measures in India. There is a clear absence of any such guidelines for such operations or media campaigns. The law must define who and to what extent the media may have a harmful influence on someone's life, as well as how media activities should be regulated. A code of conduct must be in place for the sting operations in order to avoid falling for that trap.

Introduction

The first thing that springs to mind when we hear the term "sting operation" is that it refers to an undercover operation that is specifically designed to catch a group or an individual committing an offence under false pretences. In other words, a sting operation is a method to catch people indulging in an unlawful act. For instance, the agent may act as a syndicate member or a supplier to lure the criminal into his meticulously planned "honey trap." This operation is frequently conducted by either the government's law enforcement agency or a journalist in order to unearth societal inequities and misconduct. Therefore, sting operations may be thought of as a kind of investigative or undercover journalism. A police officer posing as a drug buyer or a journalist posing as an official in need of bribes to finish their job can both demonstrate a sting operation. It's vital to keep in mind that sting operations on the basis of their intended use can be classified into two categories:

1. **Positive Sting Operations:** By drawing attention to wrongdoings and violations, these operations hope to increase public awareness, transparency, and responsibility of both state and non-state actors.
2. **Negative Sting Operations:** These actions infringe on the privacy of the target organization or individual in an effort to stir up controversy. It is done for selfish gain in an effort to attract attention or harm the reputation of the targeted individual or organization.

Thus, the problem to discern between sting operations as positive or negative is frequently encountered. The morality, ethics, and legality of such journalism, as well as the admissibility of such evidence, may be questioned.

Several countries including the USA, Canada, and the UK have empowered their law enforcement agencies to use sting operations for the purpose of acquiring evidence. However, India doesn't have any explicit laws that deal with the legitimacy and acceptability of sting operations. Consequently, it is hard to evaluate the validity of a sting operation objectively since the journalist may harbor prejudices in support of or against a potential target. In the present day, where technology for video doctoring is widely accessible, it is also important to take into account the veracity of the audio and video obtained from the sting operation.

The 1973 movie "Sting," which was about a plot by two people to deceive a third person into committing a crime, is where the term "Sting Operation" first appeared. The term "Sting" also illustrates how, in a democratic society, the media can be both potent and harmful to the populace. It has the potential to be both strong and toxic by revealing wrongdoings, breaching someone's fundamental right to privacy, or even by deceiving someone into accepting a bribe and promoting corruption.

Phone Tapping in a String Operation

One common strategy in sting operations is to bug someone's phone to eavesdrop on the conversation of the targeted individual. Phone tapping is the practice of secretly listening to or recording a phone call in order to get information about another person's whereabouts. Telephones and other communication instruments are covered under Entry 31 of the Union List of the Constitution, which is based on Entry 7 in the Federal List of the Government of India Act, 1935. According to the renowned jurist Seervai, the Government of India Act, 1935, and our Constitution have kept the entry that stated, "Posts and telegraphs; telephones, wireless, broadcasting, and other like forms of

communication." The term "telegraphs" did not thus need to be interpreted broadly to encompass telephones, wireless, broadcasting, etc.

Section 5(2) of the Indian Telegraphic Act of 1885 grants both the Central Government and the State Governments the right to tap telephones. Sometimes it may be necessary for an investigating authority or agency to record the phone calls of the investigation's target. Such authorities must get permission from the Home Ministry before performing such an act. The order may be issued by the Secretary to the Government of India in the Ministry of Home Affairs in cases involving the Central Government. The Secretary to the State Government in charge of the Home Department may issue the order if a State Government is involved. The intercepting instructions are valid for a maximum of 60 days unless they are earlier revoked. They can only be prolonged for a total of 180 days. The application must provide specific reasoning. Furthermore, the necessity of phone tapping must be proven. The ministry determines whether to grant authorization after carefully considering the proposal and its merits. Each agency completes an authorization form before placing a phone under surveillance. This document is signed by the State Home Secretary for the States. Since a disclaimer on the survey form specifies that the subject is not an elected official as it is illegal to bug politicians' phones. Phone tapping must be with the department's permission. But if it's done without permission then the perpetrator will face legal action for invasion of privacy.

Telephone tapping is permitted under Rule 419A of the Indian Telegraph (Amendment) Rules, 2007. The standards provide that papers pertaining to such directives must be destroyed every six months unless they are required for current or future functional purposes. Service providers must also delete any data referencing the interception's orders within two months of the stopping of interception. It should be noted that the Central Government released the Indian Telegraph Right of Way (Amendment) Rules, 2021 in 2021.

Media Rights Vis-À-Vis Media Ethics

It wouldn't be wrong to say that free and independent media is essential for a thriving democracy everywhere. Sting operations are one such strategy used by the media to uphold transparency and accountability and provide people with a perspective on social, political, and economic issues impacting the country as a whole. The courts have consistently maintained that freedom of the press is an intrinsic part of Article 19 (1) (a) of the Constitution of India which safeguards freedom of speech and expression even though it does not expressly identify it as a fundamental right.

In the landmark decision of the State of Uttar Pradesh vs. Raj Narain¹²⁹, Justice Mathews said that people have a right to know about every public act carried out by their public authorities or representatives. Citing Article 19 of the Universal Declaration of Human Rights, the Supreme Court similarly emphasized the link between human rights and press freedom. It said that using sting operations as a strategy may help achieve the same objectives as journalism which is concerned with serving the public interest. However, no right is infallible. Freedom of the press is only guaranteed with reasonable constraints, as stated in Article 21 of the Constitution of India, 1950 which lays a greater responsibility on those who desire that it is practiced without infringing individual privacy and dignity.

Every right has the potential to be abused and cause havoc if it is unlimited or absolute. Even though sting operations may be a manifestation of the freedom of journalists in a democracy, they inevitably carry the responsibility to not invade the privacy of others. The privacy, reputation, and careers of persons exposed to these operations are sometimes ruined since they are frequently carried out only for the self-serving purpose of increasing TRPs. Such consequences clearly violate Article 21 of the Indian Constitution.

Admissibility of Evidence Obtained Illegally

Indian law was influenced by the British legal system, and this effect may also be seen in the admission of evidence. According to Section 5 of the Indian Evidence Act of 1872, admission is determined using the relevancy criteria, much like in British law.

According to the "fruits of the poisonous tree" theory, in a court of law, evidence is accepted or disregarded purely on the basis of its reliability and source. Evidence collected by coercion, threats, or pressure is likely to be unreliable. Courts are urged by the disciplinary concept to prevent unethical actions while acquiring evidence during the investigative phase. India has a conciliatory posture towards this notion. The Indian courts have the power to accept such evidence notwithstanding its illegal origins. Indian courts have a unique perspective on this principle, in contrast to American courts. The collecting of evidence using coercive means is deemed "illegal" by judicial rulings because the Fourth Amendment's right to privacy is strictly preserved in the USA. Currently, Indian law does not rigorously implement the aforementioned notion. Indian courts have the ability to take into account evidence obtained by eavesdropping, theft, wrongful arrest, sting operations,

¹²⁹ State of Uttar Pradesh vs. Raj Narain, 1975 AIR 865 (India)

etc. due to the thoroughness of the Indian Evidence Act and the need that any fact be materially relevant.

The First Law Commission Report recognized a major abuse of power by the police in acquiring statements or evidence, and similar practices are still in use today. People in India regularly endure illegal detentions and cruel police treatment as a result of their lack of knowledge and legal rights. Therefore, it is even more important to keep such evidence out of the courtroom. Due to the surge in human rights breaches and the expansion of Article 218, it is critical to re-evaluate including this idea in the current legislation. A competent criminal justice system must respect social norms and human dignity, both of which are violated by wiretapping, unlawful searches, and other practices. The use of evidence that was gathered illegally in India is not prohibited by law.

The Hon'ble Supreme Court of India in *Umesh Kumar v. State of A.P.*¹³⁰ had declared that admission of a document would not be questioned even if it had been obtained unlawfully. The fact that a piece of evidence's admissibility is unaffected even if it was obtained dishonestly or unlawfully is otherwise significant if its truthfulness can be shown to justify the means. The Hon'ble Supreme Court noted in *Pooran Mal v. Director of Inspection of Income Tax (Investigation)*¹³¹ that no other provision in any law prohibits evidence on the grounds of its method of acquisition while making the decision regarding the admissibility of material seized in a search which is allegedly vitiated by illegality.

Journalism does not use the phrase "fruit of a poisoned tree." The Supreme Court stated in *Selvi v. State of Karnataka*¹³² observed that if involuntary admissions were taken into consideration during a trial, the investigators would feel driven to "compel such statements, often through methods involving coercion, threats, inducement, or deception." The validity and legitimacy of scientific tests like the polygraph and narcoanalysis were assessed by the court in this case.

According to the Supreme Court, the right to privacy is a fundamental right protected by Article 21 of the Indian Constitution. The fundamental right can be used against the state as long as reasonable restrictions are in place. The unalienable rights guaranteed by the constitution and safeguarded by national law are superior to all other actions.

¹³⁰ *Umesh Kumar v. State of A.P.* (2013) 10 SCC 591: AIR 2014 SC 1106

¹³¹ *Pooran Mal vs. Director of Inspection of Income Tax*, (1974) 93 I.T.R. 505 (S.C.) (India)

¹³² *Selvi Vs State of Karnataka* (2010) 7 SCC 263

The court in *Baldev Singh v. State of Punjab*¹³³ had observed that the legislation prohibiting the use of any evidence that was acquired illegally must be approved right away. The privacy ruling makes it clear that section 5 of the act read with article 20 and 21 are applicable. The same would enable the exclusion of information obtained illegally.

Relevance of the Evidence Obtained by Sting Operations and Phone Tapping

It is mostly a political and evidence-based debate as to whether information obtained through sting operations and phone tapping is acceptable. The judicial interpretation is similarly hazy and perplexing as a result of the divergent viewpoints held by various courts. The only statute that gives sting operations the ability to discover an unborn child's wrongful sex determination is Pre-Natal Diagnostic Techniques Act. The basic rule of acceptance in common law is the relevance of the evidence. Thus, illegally obtained evidence will be accepted as long as it is relevant to the subject at hand. Furthermore, these practices are permissible since they are regarded as "extrajudicial confessions".

The Delhi High Court in *Raja Ram Pal vs. Hon'ble Speaker, Lok Sabha & Ors.*¹³⁴ upheld the legitimacy of sting operations and determined that it was significant evidence to show the misbehaviour of 11 Members of Parliament based on their acceptance of bribes. Similar to this, in *Anirudha Bahal v. State*¹³⁵, the Hon'ble Judge of the Delhi High Court said that sting operations were a part of freedom of speech and expression, particularly in order to create a society free of corruption and accountable for its deeds. Before deciding whether or not to admit the evidence, it is crucial in this specific case to take the journalist's goals and motivations into account.

Common law seems to adhere to this idea when deciding whether evidence obtained unlawfully can be allowed into evidence. Evidence is nonetheless admissible, even when agent provocateurs are involved and privacy has been violated. Evidence gathered by an extrajudicial statement given to a third party under specific circumstances is allowed in sting operations. Actually, comments made during sting operations are more convincing than any further legal explanations since they are documented and therefore really demonstrable. It is advised that courts only exercise their discretion in cases where it is claimed that evidence was obtained unlawfully if doing so has a detrimental effect on the evidence's validity and jeopardizes the fairness of the trial. In various rulings, the courts have concluded that while upholding the integrity of the criminal

¹³³ *Baldev Singh vs State of Punjab* (1999) 6 SCC 172

¹³⁴ *Raja Ram Pal vs. Hon'ble Speaker, Lok Sabha & Ors* (2007) 3 SCC 184 (India)

¹³⁵ *Aniruddha Bahal vs. State* 2010 172 DLT 269 (India)

justice system is unquestionably a rationale for rejecting evidence obtained by sting operations, this discretionary power should not be used to penalize the procurer. Furthermore, courts are not obligated to balance their need to maintain the right to a fair trial against the admissibility of such evidence.

An important phone-tapping case that generated a lot of controversies was the Chandra Shekhar phone-tapping case from 1990. Chandra Shekhar, a then-Janta Dal member made the shocking statement that the government had illegally tapped the phones of 27 MPs, including his own. After then, a CBI investigation showed that the government had been widely tapping phones.

In *PUCL v. Union of India*¹³⁶, Justice Kuldeep Singh put it succinctly that the incidence or occurrence of any public emergency or the presence of a public safety interest is the first stage under Section 5(2) of the Telegraph Act. The competent is authorized to make an order of interception under section 5(2) of the Telegraph Act after concluding that doing so is necessary or advantageous for India's sovereignty and integrity. As a result, it was determined that telephone tapping breached the basic right to privacy and established protections against the state's use of its surveillance powers arbitrarily. The Indian Telegraphic Rules, 1951 were amended by the Centre following the PUCL case.

In *K.L.D. Nagasree v. Government of India*¹³⁷, "For the reason of making an order for interception of messages in the exercise of powers under Section 5(1) and (2) of the Telegraph Act, 1885, the happening of any public emergency or the existence of a public safety interest is the sine qua non (mandatory)."

The AP High Court ruled in *Rayala M. Bhuvaneswari vs. Nagaphanender Rayala*¹³⁸ that the husband's action of listening in on his wife's conversation with others was unlawful and violated her right to privacy. The Telegraph Act provided protections against unlawful and gratuitous interference in the telegraph and telephone mechanisms. The spouse in the aforementioned instance was secretly recording his wife's conversations on tape.

The judiciary, however, has rejected and departed from the aforementioned viewpoint in order to further the greater good of the public. In *State of Haryana v. Ved Prakash*¹³⁹, the Supreme Court declared taped confessions to be inadmissible, stating that such conduct suggested "involuntariness and

¹³⁶ *People' Union for Civil Liberties (PUCL) vs. Union of India* [1997] 1 S.C.C. 301 (India)

¹³⁷ *K.L.D. Nagasree v. Government of India*, AIR 2007 AP 102

¹³⁸ *Rayala M. Bhuvaneswari v. Nagaphamender Rayala* AIR 2008 AP 98

¹³⁹ *State of Haryana vs. Ved Prakash* 1994 Cr LJ 140 (India)

influence." In *Vijay Shekhar v. Union of India*¹⁴⁰, the Supreme Court of India also pointed out that a warrant against some well-known people based on a sting operation is invalid and superfluous. A request to develop guidelines was made specifically in the case of *R.K. Anand v. Registrar, Delhi High Court*¹⁴¹. A similar argument, nevertheless, had been rejected by the Supreme Court in a previous case on the grounds that doing so may threaten press freedom and that a few isolated incidents were insufficient evidence to justify outlawing this kind of journalism.

When deciding whether or not the sting operation was admissible as evidence, the court should take into account whether or not its goal was to further the public good. The right of the defendant to a fair trial must be weighed against. A rigorous law prohibiting the use of evidence collected through sting operations cannot be in place because doing so could violate someone's right to a free and fair trial if doing so prevents the administration of justice by the court system. The courts should choose a middle ground while expressing their own opinions. The seriousness of the offence committed should also be considered by the courts while evaluating the case's circumstances. This would change based on the particulars of each situation and the available information.

The question in *R.M. Malkani v. State of Maharashtra*¹⁴² was whether or not a person may be charged with a crime as a consequence of some damaging information from a phone call he had with another person. The appellant, in this case, intended to rob a reputable doctor of Rs. 15,000 so that he could blame him for being careless in a patient's death. Instead of taking the bribe, the doctor made the decision to contact the police's anti-corruption unit. The doctor then followed the police officer's orders and phoned the appellant to discuss the payment requirements, the delivery location, etc. Malkani was not aware that the conversation was being recorded, yet the incriminating comments he made led to charges being brought against him. The Supreme Court ruled that having a conversation overheard by another person was a mechanical process and that there was no element of compulsion or behaviour that might have been seen as coercive and would have breached the Act in any other circumstance. When it came to the issue of admission, the Court applauded the method, describing it as a "mechanical eavesdropping device." However, hastily the Supreme Court may be comprehending its error and added that "it should be used sparingly, under proper direction, and with caution,". A comparison of the tape-recorded evidence with a photograph of an important incident led to the conclusion that Sections 7 and 8 of the Evidence Act [1872] would not exclude the inclusion of evidence that was improperly obtained. Because the eavesdropper did not put

¹⁴⁰ *Vijay Shekhar vs. Union of India* 2004 4 SCC 666 (India)

¹⁴¹ *R.K. Anand v. High Court of Delhi*, (2009) 8 S.C.C. 106

¹⁴² *R.M. Malkani v. State of Maharashtra* AIR 1973 SC 157

the person under duress or breach his privacy, the Apex Court concluded that illegally obtained evidence would be acceptable in court. As a result, Ray, J. thought that recording the talk would not go against Articles 20(3) and 21 of the Indian Constitution.

According to the standard set in the Malkani case, several court rulings have admitted evidence that was collected illegally for the purpose of convicting defendants. In the case of *S. Pratap Singh v. State of Punjab*¹⁴³, the Supreme Court allowed the tape record of a phone call between the Chief Minister's wife and a doctor to be used as evidence to back up the testimony of witnesses who had asserted that such a talk had taken place.

Additionally, a conversation recorded on tape and preserved in a room was permitted to be presented as evidence in *Yusufalli Esmail Nagree v. State of Maharashtra*¹⁴⁴. In this case, the municipal clerk Munir Ahmed Sheikh was bought off by the appellant Nagree. After receiving a tip from the clerk Sheikh, the police set up a trap at his home by placing a sound recording device where the bribe money was supposed to be placed. Later, the Court approved the use of this tape as proof to back up the Sheikh's testimony. According to the Court, if a photograph was taken without the subject's knowledge, using the same reasoning would also render a conversational tape created without the talkers' knowledge relevant and admissible.

In *N. Sri Rama Reddy v. V. V. Giri*¹⁴⁵, popularly referred to as the "Presidential Election case," the petitioner alleged that a man by the name of Jagat Narain had tried to convince him not to run for office. Their conversation was recorded, and it was eventually aired in court to disprove Narain's claims that it never had a place. In this case, the Court cited the discussion to illustrate how a "witness might be contradicted when he denies any question tending to impeach his impartiality" [Section 153 of the Indian Evidence Act], noting that the audio would so become the primary and direct evidence.

Although this could be the police's fast cure, the problem is that it jeopardizes the rights of the general public. Furthermore, the strategies that may be employed to achieve the objective have received little consideration. The measures provided, however, were entirely inadequate and could not compensate for the fact that mechanical eavesdropping was no longer subject to any constitutional limitations. The statute from 1971, which granted the government the authority to listen in on any phone call it wanted without being held accountable or answering to anybody, makes this discovery all the more

¹⁴³ *S. Pratap Singh v. State of Punjab* AIR 1964 SC 72

¹⁴⁴ *Yusufalli Esmail Nagree v. State of Maharashtra* AIR 1968 SC 147

¹⁴⁵ *N. Sri Rama Reddy v. V.V.Giri* AIR 1971 SC 1162

serious. Protections in the form of rules were only created two decades later after a non-profit organization took the initiative and sought the Supreme Court for direction.

Right to Privacy in Sting Operation and Phone Tapping

Nothing in sub-clause (a) of Article 19(2) of the Indian Constitution shall affect the application of any current law insofar as it relates to libel, slander, defamation, contempt of court, or any matter which determines the security of or tends to overthrow the state.

When the Supreme Court granted limited interference to clause (2) of Article 19 in the *Romesh Thapar Case*, it established an important norm after authorizing the imposition of limits on the freedom of speech and expression for particular purposes. Any legislation imposing limitations that may be used for reasons other than those stated in it cannot be deemed constitutional or legitimate in any way.

On the other hand, it has been ruled that the Fundamental Right to "Freedom of Expression" that Indian citizens are granted under Article 19(1)(a) includes "Freedom of the Press" as a part of it. It has long been held that "Freedom of the Press" is necessary for people to exercise their inalienable right to "Speech and Expression" in a free and open society. It is therefore impossible to declare "Freedom of the Press" illegal and unconstitutional. Additionally, the Constitution prohibits the exercise of this power if it will jeopardize someone's morality or sense of decency.

The Indian Constitution provides total journalistic freedom, however, there are certain limitations. Article 19(2) was changed on June 18, 1951, to add the term "reasonable" to the restrictions. The restriction ought to make sense. In other words, it must not be excessive or unsuitable. The restriction shall also be imposed in a fair, equitable, and reasonable way. In a landmark ruling in the *Sakal Papers case*, the Supreme Court held that Article 19(2) of the Constitution only permits the imposition of reasonable constraints on the topics listed in Article 19(2) and on no other reasons. Therefore, the state is not allowed to restrict freedom of speech and expression in order to improve the general welfare of a section or a group of people unless such action can be supported by the law coming under clause (2) of Article 19. Furthermore, since the target of a sting operation nearly always isn't aware that a hidden camera is present, it is true that all sting operations do, at some time, violate the right to privacy. This suggests that, in order to be videotaped, he has not given his consent to be captured on camera. On the other hand, it may be argued that illegal activity committed by a public employee while on the job and in contravention of his

official obligations does not merit protection under the Right to Privacy. The public can see how a public employee performs their duty. The right to privacy does sometimes seem to outweigh the public interest. If a person does not owe the public anything, then, unless they break the law, their ethically problematic behaviors are not exposed to public scrutiny. Article 21 by default includes a right to privacy.

Subba Rao J contends that Article 21's definition of "liberty" is sufficiently inclusive to encompass privacy. His Lordship highlighted that the right to privacy is a crucial aspect of human liberty despite the fact that he did not declare it to be a basic right. Although it is thought as a fundamental right, there are several limitations. It could be constrained if there is a compelling public interest. However, the court has limited the scope of its authority to issues involving close familial relationships, marriage, motherhood, and childbirth. On the other hand, in the sting operations conducted by the media in India, only the work of government personnel in their offices is covered. A public servant's official work should be open to the public and transparent since it is in the public interest. However, the court's decision states that the Right to Privacy does not apply to this official position. Sting Operation originally was out to expose high-level malfeasance, but it instead turned into cheap entertainment.

Sting operations are frequently carried out to apprehend spies, organized criminal leaders, and corrupt authorities. They are also used to demonstrate infidelity. It is also advantageous to use sting operations to apprehend terrorists and anti-national individuals. In order to serve the public interest these events have substantially grown.

As part of sting operations, wiretapping or telephone tapping was considered a significant breach of privacy and as such was governed by law and by guidelines set by a court ruling. The media's fundamental right to free speech has been misused, and there is no legislation in place to control it or strike a balance between it and the right to privacy.

Unauthorized tapping is a violation of the right to privacy, and the victim may file a complaint with the Human Rights Commission. An FIR may be filed at the nearest police station once the person is aware of illicit phone tapping. Additionally, the injured party has the right to submit a court complaint against the person or organization violating the Act in an authorized manner under Section 26(b) of the Indian Telegraphic Act, which imposes a three-year imprisonment for anyone found guilty of tapping. The offender (or offender(s)) may also be prosecuted even if the data was transferred lawfully in phone tapping.

Substantive Safeguards

The Supreme Court concluded in 1997 in response to a petition brought by Justice Sachar in the PUCL case that the Right to Privacy guaranteed by Article 21 is subject to legitimate restrictions that the State may impose. In the interests of public order, state security, friendly relations with foreign countries, national sovereignty and integrity, or to prevent incitement to commit a crime, the state may impose reasonable restrictions.

The Supreme Court acknowledged the absence of procedural safeguards for the substantive provisions of the aforementioned Section when upholding Section 5(2) of the Telegraph Act of 1885 as constitutional in the P.U.C.L. (supra) and it cited the Maneka Gandhi case to emphasize the significance of procedural backing for any substantive provision dealing with a person's fundamental rights. Because of the "right to privacy" guaranteed by Article 21 of the Indian Constitution of 1950, the need for procedural safeguards for the requirements of Section 5(2) assumes paramount significance. An individual's right to privacy is protected by Article 21 and would be violated by listening in on private conversations without a legal and ethical procedure, which might render the substantive provision allowing the interception invalid.

The occurrence of any public emergency or the existence of a public safety interest is the sine qua non for making an order for message interception in the exercise of powers under Sub-Section (1) or Sub-Section (2) of Section 5 of the Telegraph Act, 1885, according to the ruling in K.L.D. Nagasree (supra).

Protections against unauthorized and illegal interference with telephone and telegraph networks are also provided under the Telegraph Act, 1885. Therefore, Section 25 states that "any person intending to intercept or familiarise himself with the contents of any message shall be punished with imprisonment for a term which may extend to three years or with a fine, or both," if they damage, remove, tamper with, or touch any battery, machinery, telegraph line, post, or other items.

Conclusion

Sting operations were initially intended to improve society, but recent instances of sensationalism and profit have caused some to question their intentions. As a result, a particular law or regulation that not only outlines the requirements to be fulfilled but also safeguards journalistic freedom must be passed. Due to the acceptable level of uncertainty, the judge must establish admission standards in order to stop the abuse.

A good method for exposing wrongdoing and improper behaviour in the public domain has been the use of sting operations. We have seen several situations where sting operations have been crucial in making sure that everyone is treated fairly. To defend the fundamental principles of the Indian Constitution, it is necessary to distinguish between sting operations that breach privacy and those that reveal debasement and behave similarly to other operations. However, given the current situation, where political corruption is at its highest, it is difficult to distinguish between sting operations that have political motivations, especially among those that are actually meant to check the social order, and those that are the results of fabricated news reports backed by different political parties and their corporate sponsors.

Thanks to recent important technological breakthroughs, people are today more linked than ever. As long as criminals and terrorists try to use technology for their evil purposes, governments all over the world will continue to use it to invade our private spaces. It is essential to have a set of effective regulations that have been agreed upon. From this point on, it is suggested that a sovereign quasi-judicial body be established with both forces based on censure and execution. Legislation is also requested to be passed in order to stop media from violating people's privacy. There are a few guidelines for the broadcasting of sting operations. Since no legal immunity is given, journalists should follow the guidelines to prevent being penalized. Courts must give less weight to the fact that the suspect was coerced into committing an offence than the admissibility of evidence since there is no regulation limiting the admission of evidence gathered through sting operations. The fact that the crime would have been committed regardless of the presence of inducement must be emphasized.

To lessen the impact of the State's intrusion into our private lives, it is better to create comprehensive regulatory frameworks. There is an urgent need for regulations to govern the admissibility of illegally obtained evidence for a fair trial.

Comparative Analysis of Freedom of Press in Various Countries Along with Legality of Media Trial

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Abstract

In democratic societies free and objective press allows public debates on essential issues and checks on power of the ruling dispensation. At the same time it is also important that the information that we consume from the media is true, unbiased and not propagandist or in common parlance many times referred as media trial of any issue. The Supreme Court has stressed time and again that the right to press is a fundamental right in India but at the same time also pointed out the need for the press the need for the media to carry responsible coverage and not run after garnering publicity for its publication. The present chapter has been divided into five parts as it tries to encapsulate this particular emotion enunciated by the courts in our country through discussing the evolution of media, its significance and subsequent movement towards yellow journalism. The chapter further discusses the right to freedom of press in India and its effect along with comparison with right to freedom of press in US and UK. The chapter also discusses the constitutionality of the media trial and the impact that a media trial has on the psyche of judge and subsequently its impact on the result of the case. Chapter concludes with relevant suggestions on the topic.

Constitutionality of Media Trial in India

1. Introduction

Media assumes an indispensable job in embellishing the assessment of the general public and it is equipped for changing the entire perspective through which individuals see different occasions. Heinous crimes must be censured and the media would be supported in requiring the culprits to be rebuffed according to the law. Be that as it may, the media can't usurp the elements of the judiciary and stray from objective and fair announcing. While a media shackled by government guidelines is unfortunate for democratic government, the ramifications of continued unaccountability are even more harming. Steps should be taken so as to keep media preliminaries from disintegrating the social liberties of residents, whereby the media have a more clear meaning of their

privileges and obligations, and the courts are enabled to rebuff the individuals who blatantly dismiss them.

With the augment of 24 hours news channels and scores of paper dailies, the fixation on giving breaking news has arrived at new statures. The Indian judiciary today is constantly under the media's glaze. The Indian media has embellished the appointed authority's robe and begun directing equal preliminaries one outside the entrances of courts, past the shackles of methodology in the public arena.

2. Historical Background and Evolution of Media and Media Trial in India

Press in our democratic government is known as the Fourth Estate meaning that it is as significant as other three known organs of the State for example Legislature, Executive and the Judiciary. Media is a pillar for a vote based arrangement, as through the mode of mass media thoughts across social orders are imparted; these thoughts are premise of support and discussion. Correspondingly, the freedom of media has been perceived just as secured by the Indian Supreme Court under Art. 19(1)(a) which is Right to freedom of speech. Indian media has grown up, from being only worked by the State to the arrangement by corporate who are generally observed as expert and, impartial in their inclusion of the occasions.

Post-liberalization, the capability of media has improved to an extraordinary degree. In post 90's media blast, numerous universal news organizations like CNN, Bloomberg, TV 18 system and BBC entered Indian media advertise and increased the seriousness in the fragment which was earlier secured by Doordarshan. This was a result of Apex courts' choice in *Secretary, Ministry of I and B Vs. Cricket Association of Bengal (CAB)*¹⁴⁶ where the Supreme court saw that administration has no monopoly on electronic media and a resident, under Art. 19(1)(a) has right to broadcast and communicate to the viewers or the audience through electronic media TV and radio any significant occasion. The government can impose restriction on such right just on the grounds determined in Article 19(2) and not on any other ground. State control on electronic media is not mentioned in clause 2 of Art.19. Directions were given to the government to arrange a self-ruling position which was free and away from the shackles of government control. Prasar Bharti, an autonomous administering board was set up with the end goal of regulation.¹⁴⁷ On its inception media was offered with a ton of freedom so that unbiased, exhaustive and reasonable detailing should be possible on all the matters. The Supreme court in *Indian Express Newspaper* case mentioned the accompanying objective facts - "The expression "freedom of

¹⁴⁶ 1995 2 SCC 161.

¹⁴⁷ Prasar Bharti Act 1990, w.e.f 23.11.1997.

the press" has not been utilized in Article 19 however is fathomed in Article 19(1) (a).

3. Plan of Chapterization

The following research paper is divided in five parts. **Part 1** discusses the introduction and also the historical context of the topic. Apart from the introduction to the topic, and historical background this chapter contains objective, purpose, significance and likely contribution of the study. **Part 2** discusses the concept of freedom of press in India and other countries **Part 3** deals with the media trial and its impact. **Part 4** deals with constitutionality of media trial. **Part 5** deals with the conclusion on media trial and its constitutionality.

Freedom of Press and Comparative Study of Various Countries

1. In England

It is in the seventeenth century when the real advancement began. The Petition of Right, 1628 is a significant record which demonstrated from a certain point of view that an individual can't be detained basically on the grounds that he disagreed with the administration. Through this record, certain rights and freedoms were set out for the ordinary man as against the rights of the Crown.

In 1606, Sir Edwar Coke announced that if the court thinks any expressions of thought will in general affront individual and government authorities, at that point it would be culpable as a criticism regardless of whether such words ends up being valid. In 1644, when Civil War was at its pinnacle, John Milton's "Areopagitica" was published which is viewed as one of the most noteworthy works identifying "the right to freedom of speech and expression". He himself took an interest in the Civil War and bolstered the Parliament utilizing flyers. Be that as it may, despite what might be expected, "Areopagitica" turns out be an assault on the Licensing Order presented by the Parliament in the year 1643. Licensing Order of 1643 was a "Ordinance for the Regulating of Printing" and permitted pre-restrictions on publications. Milton's review assaulted the wrongs of censorship.

During the 1980s and 1990s, a few courts of UK applied the standard of free speech in some of the common law cases and they believe it to be their obligation to keep up free speech any place possible.¹⁴⁸ In the year 1948, when "Universal Declaration of Human Rights" (UDHR) was passed it ensured under Article 18 and 19 that "everybody has the right to freedom of thought,

¹⁴⁸ Roberts, John. (2011), The Development of Free Speech in Modern Britain, *Speakers' Corner Trust* <http://www.speakerscornertrust.org/forum/occasional-essays/>.

conscience and religion" and "everybody has the right to freedom of opinion and expression" separately. Practically all the cutting edge constitutions mirrored those Articles of UDHR, however it was not a similar case with the United Kingdom. In the wake of spending of numerous years, it was in 1998, that the United Kingdom joined the "European Convention of Human Rights" (ECHR) and consolidated Article 10 of ECHR which accommodates the "freedom of expression" within its domestic law the Human Rights Act, 1998. Article 10(1) of the Convention runs as follows "Everybody has the right to freedom of expression. This right will incorporate freedom to hold opinion and to receive and impart thoughts and information without obstruction by public authority and paying little heed to frontiers." Simultaneously, Article 10 further gives that "this Article will not keep States from requiring the permitting of broadcasting, TV or film endeavors." This "freedom of expression" is not an unbridled or unlimited right.

With the assurance of free speech comes the assurance of the free press and this opportunity is additionally not unhindered. Article 6 of ECHR recognizes the fact that everybody faced with a civil rights or obligations or of any criminal charge is entitled to a fair and public hearing and to be heard by an independent tribunal which is established by law. Since the United Kingdom joined the ECHR, the provisions dealing with the reasonable trial likewise applies in England and the opportunity of the press can be checked on the off chance that it hurts the interests of justice

2. In USA

In America, the "First Amendment" to their Constitution ensures the "Freedom of the press". It fundamentally restrains the intensity of the legislature to meddle with the spread of information and opinion. It takes out the dread of control by government or discipline while acquiring and distributing any data or supposition. This freedom is relevant to a wide range of communicate and written word, similar to books, magazines, paper, radio, TV, and so forth.

The primary explanation behind the assurance of the free press is identified with the production of a "fourth institution" outside the administration as a strengthening look at over the three organs of the administration – Legislature, executive and judiciary.¹⁴⁹ It is the principle assignment of the "press" to outfit with complete and unbiased information on all part of the "economic, political and social life of the nation". The "press" acts about as a significant remedy for any abuse of legislative force by its authorities and it likewise goes about as an

¹⁴⁹ Pal, Ruma and Pal Samaraditya (2010.), M. P. Jain, INDIAN CONSTITUTIONAL LAW, 6th ed, p. 1085.

instrument for making the chosen authorities responsible to the individuals who chose them.

While talking about opportunity of the press, one of the milestone decision for which the Supreme Court is acclaimed, is the decision given in *Near v. Minnesota*¹⁵⁰, wherein the Court recognized the presence of free speech and rejected the earlier limitation on publications. In this case, statute was passed by the Minnesota lawmaking body enabling the Courts to cease "malignant, outrageous and abusive newspapers". The main defence that can be utilized is the "defence of truth" told with a good intention. Finally, the Court concluded that the statute was unconstitutional and was not consistent with the First Amendment. In the year 2014, U.S. was positioned in the 30th situation out of 197 nations comparable to freedom of the press by an association called Freedom House. This report acclaimed the protections given by U.S. Constitution journalists and censured the experts for setting undue caps for analytical revealing undue cutoff points for the sake of "national security".

3. In India

In "The Constitution of India Bill" 1895, which was viewed as India's first verbalized constitutional vision, included the following provision identifying with the freedom of speech and expression by stating "Each citizen may express his thoughts by words or writings, and publish them in print without liability to censure they shall be liable to mishandles, which they may submit in the activity of this right, in the cases and in the mode the Parliament will decide." One can also find other constitutional documents namely the Commonwealth of India Bill 1925, Nehru Report 1928 and States and Minorities 1945 which also contain provisions similar to this freedom.

Article 19 (1) (a) gives that "all citizen shall reserve the right to freedom of speech and expression" This freedom assumes a crucial job in creating "public opinion" with respect to "economic, political and social matters". This freedom comprises within its ambit the "distribution of information", "freedom of propagation and exchange of ideas" that helps shaping one's opinion and perspective and discussions on issues of public concern. This freedom also incorporates the declaration of sentiments and perspectives with respect to any issue through any medium, for example, by "expressions of mouth", "writing", "picture", "printing", "film" etc.

In *Romesh Thappar v. State of Madras*¹⁵¹, Justice Patanjali Sikri observe that:

¹⁵⁰ 283 U.S. 697 (1931).

¹⁵¹ AIR 1950 SC 124.

“Freedom of speech and of the Press establishes the foundation of all democratic organizations, for without free political discussion no public education, so fundamental for the proper functioning of the procedure of mainstream Government, is conceivable.”

In *Maneka Gandhi v. Association of India*¹⁵², Justice Bhagwati has featured on the significance of "the right to freedom of speech and expression" as under:

"Democratic system depends on free debate and open discussion as it is the essential protection against any kind of government action. If democracy implies government of the individuals by the individuals, clearly every citizen must be qualified for partake in the equitable procedure and so as to empower him to wisely practice his privilege of settling on a decision, free and general conversation of open issues is significant."

In any case, this "right freedom of speech and expression" is not absolute and unrestricted. As indicated by Article 19 (2) of the Constitution of India, nothing in Article 19 (1) (a) can "keep the State from making any law, to the extent that such law forces sensible limitations on the activity of the privilege presented by the said sub-proviso in light of a legitimate concern for the power and uprightness of India, the security of the State, neighborly relations with remote States, open request, conventionality or ethical quality, or according to scorn of Court, Defamation or induction to an offense."

Media Trial and its Impact

"Trial" in a normal sense implies that a procedure that happens under the steady gaze of a Court of justice. According to Black's Law Dictionary, "trial" means "a formal judicial examination of evidence and determination of legal claims in an adversary proceeding".¹⁵³ The expression "Trial" is likewise characterized under the Section 2 (7) of the Banker's Books Evidence Act, 1891 as "any hearing before the Court at which evidence is taken." Therefore one can easily conclude that media is not a competent expert for directing any kind of trial. Therefore, "trial by media" is of casual root demonstrating the job taken up by media for all intents and purposes of a judicial forum and relegating itself the adjudicatory procedure.

To stay aware of the inexorably serious market, the media very often distorts the realities and sensationalize reports to catch the eye of people in general. The media is as often as possible discovered distributing one-sided suppositions and spreading partiality for the sake of "news". There are numerous occurrences

¹⁵² AIR 1978 SC 597.

¹⁵³ Justice V. Rajkumar, (2020), Trial by Media, <http://www.livelaw.in/trial-by-media/>).

when the media is discovered leading a trial of an accused and giving its own decision even before the court passed any judgment.

The Supreme Court of India has recorded on the outcome of media trial as under:

“The effect of TV and paper coverage on an individual's notoriety by making across the board impression of blame regardless of any decision in an official courtroom. During high profile cases, the media are regularly blamed for inciting an environment of public hysteria akin to a lynch crowd which makes a reasonable trial impossible but means that despite the consequence of the trial, in public perception the accused is already held guilty and would not have been able to carry on their remainder life without extraordinary public scrutiny.”¹⁵⁴

Media trial is not appreciated in a democratic society and there is judiciary to lead such trial, which is considered as the able organization for the administration of justice.

The Delhi High Court in a suo motu case¹⁵⁵ witnessed that the justice delivery system in India moves forward in a moderate way and in that course of time if an individual who is "innocent" is exposed to media trial then there is no real remedy for that individual. Consequently, in a case of "trial by media" it is uncommon to perceive any individual approaching a Court of law to guarantee help either by way of an "injunction" or for "damages". The Court further said that there is an extraordinary duty of the considerable number of Courts to secure the individual's rights and notoriety from a baseless "trial by media" by being increasingly watchful and ace dynamic. It could be said, the Courts need to invigorate the "rule of law". It is critical to shield a resident from being misled by the media, despite the fact that it adds weight to the criminal courts. Supposing a doubt that a crime has been committed, an individual is arrested then the individual ought not be proclaimed as innocent or guilty by the media since it is not within the capacity of media. This capacity goes under the space of the judiciary. Along these lines, the "trial by media" influences the judgment of the Court and at the equivalent time additionally hurts the blamed in light of the fact that the denounced ought to be for the most part assumed as blameless until he is demonstrated blameworthy.

1. Role of media

The Supreme Court of India clarified that the right of the people to know is the central rule behind the "freedom of the press". The Supreme Court expressed,

¹⁵⁴ R. K. Anand v. Delhi High Court, (2009) 8 SCC 106.

¹⁵⁵ 2009 (1) KLD 133.

"The essential capacity, consequently, of the press is to give far reaching and target information on all parts of the country's political, social, financial and social life. It has an educative and preparatory task to carry out. It assumes a significant job in moulding public opinion"¹⁵⁶.

The "freedom of the press" advances the "right to know" by giving the access to the overall population to all sources of information. It keeps the public aware about all the issues, so that when the opportunity arrives to settle on a sensible decision on issues identifying with the general public everywhere, the individuals are ready. With regards to investigative news coverage two components are generally huge, firstly, "the subject ought to be of public significance for the peruser to know" and besides, an effort is being made to hide reality from the public.¹⁵⁷

2. Media Trial and its Negative Consequences

Media is considered as the "fourth pillar" in a democratic system. It causes the majority to accumulate all the information accessible as for socio, political and financial issues. Over the previous decades, it has eventually formed into a key distributor of news by method for newspapers, magazines and so forth. There are cases where the media assumed a fundamental job in bringing the accused for offensive wrongdoing to equity, yet the inquiry emerges that to what degree this guideline of "free speech" can be extended to subvert "fair trial".¹⁵⁸ Trial by media urges the individuals to depend more on prompt media justice as opposed to trusting that the Court of law will give its decision on a specific case. In India, the media has changed into a "Populace Court" or "Janta ki Adalat", attempting by holding "media trials" not only to represent a one-sided assessment even before the declaration of a decision but also in producing a weight on the courts to settle as per their opinion.

The pattern that media preliminary has brought into this contemporary world is that "public interest" is not important but "what people in general is interested in" is more important. With the development of electronic media, the conduct of parallel trials by media outside the entrance of Court has arrived at new pinnacles. The parallel trial conducted relating to sub judice issues hampers the capacity of an appointed authority to decide a matter on its merits. At the point when any decision of the judge conflicts with this purported "media verdict" then the media even attempt to term it as biased or corrupt. In the event that the

¹⁵⁶ In Re: Harijai Singh and Anr.; In Re: Vijay Kumar, (1996) 6 SCC 466.

¹⁵⁷ Khan, Zehra. (2010), Trial-By-Media: Derailing Judicial Process in India, 1 MLR, p. 94.

¹⁵⁸ Shabnam Saidalavi. (2020), Media trial: freedom of speech v. fair trial, <https://www.lawctopus.com/academike/media-trial-freedom-of-speech-v-fair-trial/>.

sub judice issues are continually refreshed and examined, then an obfuscated domain is made then which leaves the case in a hazardous circumstance.

3. Media Trial and its Effect on Fair Trial

On a few events, media is found to exceed its right through its productions which are viewed as biased "to the right of the accused" to have a "reasonable trial". It will in general abuse the rule of "presumption of innocence", on which the Indian criminal justice system depends, by directing media trial. Media frequently overlooks the fact that law is not governed by feelings. The importance of right to fair trial can be comprehended from the reality the Article 21 of Constitution of India, which impliedly manages reasonable trial, can't be suspended even, during an emergency. The Supreme Court of India reiterated that "an accused has a right to fair trial. He has right to safeguard himself as a part of he being human as also fundamental right as enshrined under Article 21 of the Constitution of India".¹⁵⁹

The Supreme Court of India "trial by media" has seen that the law has set up a technique as indicated by which the preliminary of a blamed individual is to be directed and a preliminary by "electronic media", "press" or "public agitation" is opposing to control of law. This may bring about unsuccessful labor of equity. An adjudicator ought to never get impacted by such weights and carefully adhere to the standard of law. When an appointed authority discovers that the individual is liable of an offense then the inquiry identifying with the sentence to be granted ought to be tended to by the Judge himself, and it must be as indicated by the arrangements of the law. Justice H R Khanna has summarized the position in few words. Quoting his words:

"Certain aspects of a case are so much highlighted by the press that the publicity gives rise to strong public emotions. The inevitable effect of that is to prejudice the case of one party or the other for a fair trial. We must consider the question as to what extent are restraints necessary and have to be exercised by the press with a view to preserving the purity of judicial process. At the same time, we have to guard against another danger. A person cannot, as I said speaking for a Full Bench of the Delhi High Court in 1969, by starting some kind of judicial proceedings in respect of matter of vital public importance stifle all public discussions of that matter on pain of contempt of court. A line to balance the whole thing has to be drawn at some point. It also seems necessary in exercising the power of contempt of court or legislature vis-à-vis the press that no hyper-sensitivity is shown and due account is taken of the proper functioning of a free press in a democratic society. This is vital for ensuring the

¹⁵⁹ T. Nagappa v. Y.R. Muralidhar, (2008) 5 SCC 633.

health of democracy. At the same time the press must also keep in view its responsibility and see that nothing is done as may bring the courts or the legislature into disrepute and make the people lose faith in these institutions.”

4. Media Trial Affects the Sub-Conscious Of Judge

Another significant issue that emerges is whether the judges are affected by the media. It is a genuine issue to be stressed over and there are charges on the "media trials" having impact over the judges. The American view contrasts from that of the Anglo-Saxon view concerning this issue. The previous view is that "Members of the jury" and "Judges" are not liable to be influenced by the distribution of media, while the latter view is that there is an extent of judges getting affected intuitively however not deliberately which makes the individuals believe that such media publications have an impact upon the judges.¹⁶⁰ One of the most celebrated Judges of the twentieth Century Lord Denning clearly indicated in the Court of Appeal that Judges won't be guided by the "media publicity", but the House of Lords didn't acknowledge this view.

Constitutionality of Media Trial

The trial by media has got a legal sanction which means it could be stated as legal and constitutionally valid. The following legislative enactments provides for legality of media trial:

1. Freedom of Press

Article 19 of the International Covenant on Civil and Political Rights, 1966 enunciates the right to freedom of speech and mandates that everyone has the right to hold opinions without interference” and the “freedom to seek, receive and impart information and ideas of all kinds, orally or in writing or in print, in the form of art, or through any other media.”Moreover, as per Article 19(1)(a) of the Indian Constitution guarantees the freedom of speech and expression which impliedly covers within itself the freedom of press as well. The Supreme Court has expressed that trial by press, electronic media or trial by method for an public agitation are occurrences that can, best case scenario be portrayed as the counter theory of rule of law as they can prompt premature delivery of justice. In the words of the Hon’ble court, a Judge needs to monitor himself against such pressure.¹⁶¹

¹⁶⁰ 200th Law Commission of India Report, (2006), Trial by Media: Free Speech Vs. Fair Trial Under Criminal Procedure (amendments to the Contempt of Court Act, 1971).

¹⁶¹ State of Maharashtra v. Rajendra Jawanmal Gandhi, 1997 (8) SCC 386.

2. Immunity under the Contempt of Court Act, 1971

Under the Contempt of Court Act, 1971, any kind of pre-trial publications are protected against contempt proceedings. Any publication which can be seen to be interfering or obstructing the course of justice with regard to pending civil or criminal proceeding constitutes contempt of court under the Act. Under the Contempt of Court Act, 1971, media reportage on sensitive case where the media crosses the ethical or moral restrictions leading to speculation and accusation before any prosecution, is granted immunity despite the grave threat such publications pose to the administration of justice.

The Supreme Court has expounded that the fundamental principle behind the freedom of press is people's right to know.¹⁶² Elaborating on what the Supreme Court meant in the Judgment was that the media's job is providing unbiased and neutral information with regard to different aspects of the country's political, social, economic and cultural life. Media plays an important role in creating perception in people's mind as it is a primary source of gathering information for the public and therefore the responsibility of the media when disseminating such information increases manifold.¹⁶³

Conclusion

Media trial has potential effect on the intuitive of judges which will additionally influence the proper administration of justice. Indeed, even in *Re: P. C. Sen*¹⁶⁴, the authentic danger of biased comments by media was communicated and also raised worry the concern about the effects such remarks may have on the psyche of the judges. It was in *Rao Harnarain v. Gumori Ram*, where the Court hated the act of media trial and observed that journalists can't attempt to influence the judges. Despite the fact that judiciary has not obviously acknowledged that the judges are impacted by media trial however has shown concern about its potential impacts on the judge's subliminal.

The media trial likewise influences the "right to privacy". There is constantly a danger of the private life of an individual being brought to public area by media bringing in an invasion of privacy and space of an individual. Media trial likewise influences the reputation of the parties associated with a case. It influences the parties involved as well as the family of the parties. It was exceptionally obvious in the Double Murder Case where both the print media and electronic media damaged the security of the whole family engaged with that case and furthermore influenced the notoriety of the minor young lady, the

¹⁶² A.G. v. Times Newspaper, (1973) 3 All ER 54.

¹⁶³ In Re: Harijai Singh and Anr.; In Re: Vijay Kumar, (1996) 6 SCC 466, para 10.

¹⁶⁴ 1970 SC 1821.

family and furthermore the individuals who were referenced by the media to be associated with the case.

So, media trial is a significant issue which should be appropriately tended to and if the conditions request exacting limits ought to be forced on media to keep them from enjoying such exercises of media trial. The communication between the media and the public is the most essential aspect of freedom of press so that there is no space of rumor or suggestion and therefore the media should only focus on reporting the facts and leave the job of interpretation on the public.

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Ending Impunity: A Survey of International Measures to End Impunity for Violence against Journalists

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Abstract

According to a report by the New York-based Committee to Protect Journalists, at least 67 news media workers were killed worldwide in 2022, the highest number since 2018. In Ukraine alone, 15 news workers were killed. These numbers highlight the growing concern of rising impunity in attacking journalists around the world. Journalists on professional missions often face hostility from political or military authorities, de jure or de facto. The range of hostile action includes detention, disappearance, attack, torture, and even murder. It also includes censorship, the use of strict defamation laws, restrictions on or revocation of work permits or licences, movement restrictions, denial of entry or exit visas, and denial of access to information sources. Journalists may also be punished or coerced by acts directed at the organizations that employ them. These acts include confiscation of publications, closure or seizure of a newspaper, radio or television station, violence against property, and revocation, denial or non-renewal of a radio or television permit. A new form of violence against journalists is online harassment.

These acts of violence pose a severe threat to their right to freedom of speech and expression. This article will focus on international protection of journalists. The analysis will begin by introducing the problem and the scope of the study. Next, some data on mistreatment of journalists will be provided to indicate the magnitude of the problem. Then, international efforts to protect journalists will be covered, particularly from the U.N. and commonwealth countries. Circumstances which may allow for restrictions on journalists rights will also be discussed. Finally, conclusions and recommendations will be made which will cover the solutions already discussed in literature, such as special status for journalists.

Introduction

The right to free speech includes the ability to express oneself verbally, artistically, and psychologically. Any democratic society's foundation is freedom of thought and expression. It is a freedom that has, and continues to be, compromised in a number of States, as history attests. One of the fundamentals

of a democratic society, the right to freedom of expression is protected both internationally (by the Universal Declaration of Human Rights and the International Covenant on Civil and Political Rights) and regionally (by the Convention for the Protection of Human Rights). It ensures, among other things, that citizens are well-informed and, if properly implemented, that the rule of law is operating effectively. In light of the need to preserve journalists' integrity and keep them safe from acts of violence, protecting freedom of expression is therefore of utmost importance from this angle.

Jamal Khashoggi's murder in 2018 is among the most infamous and horrible situations. A gang of Saudi agents detained, murdered, and dismembered Khashoggi after he went to the Saudi consulate in Istanbul to get paperwork proving his divorce. His case rocked the entire globe, not the least of which was the claim that Crown Prince Mohammed bin Salman personally had authorised it. However, violent repercussions are regrettably commonplace for those who dare to practise this vocation, particularly in oppressive regimes.

The reality behind journalist killings is frequently disputed or discounted by local actors. A Palestinian American reporter for Al Jazeera named Shireen Abu Akleh was shot and died in May while documenting an Israeli army operation in the West Bank. Investigations by numerous US news organisations have revealed that Abu Akleh was probably slain by an Israeli soldier as her family looks for answers. Palestinian witnesses claim no gunfire was exchanged in the vicinity of Abu Akleh, despite Israel's claim that she was hit in the crossfire between Israeli forces and Palestinian rebels.

Bruno Arajo Pereira, a Brazilian environmental activist who was recording the destruction of the Amazon rainforest, and British freelance journalist Dominic "Dom" Phillips vanished in Brazil's Amazonas State in June 2022. The region was heavily impacted by crime. When Phillips and Pereira's remains were found later that month, local authorities came to the conclusion that they had been murdered on the same day they went missing. The authorities came under fire for their slow response even though police and the military started a search. When asked about their disappearance, Brazilian President Jair Bolsonaro responded dismissively, saying "anything can happen" when taking an "adventure."¹⁶⁵

These are just select examples which show the extent of impunity enjoyed by perpetrators of violence against journalists around the world. The practise of

¹⁶⁵ Brazilian media report covering the same available at <https://www1.folha.uol.com.br/internacional/en/brazil/2022/06/bolsonaro-says-dom-was-frowned-upon-in-the-amazon-and-should-have-paid-more-attention.shtml> (last visited 28th April 2023).

mistreating journalists is perhaps as old as the industry itself.¹⁶⁶ There are a number of organisations that collect and communicate information about press mistreatment. One such organization, the Committee to Protect Journalists¹⁶⁷, released a report recently where they highlighted that 67 journalists were killed in 2022, which was nearly a 50% rise from 2021.¹⁶⁸

The data most certainly understate the number of incidents and the number of people involved. Numerous journalists are impacted by a few isolated situations that involve the shutdown of media facilities, legal action against journalists, and death threats. Additionally, many cases are not reported accurately out of concern that informing a global monitoring organisation may result in reprisal and additional torture. In nations where press freedom is severely curtailed, self-censorship is widespread. It is challenging to quantify the impact of tight state limitations on the media, such as those in Haiti and Iraq. Similar to this, it is simpler to uncover violations of human rights in relatively open countries that are tight on journalists - Israel and India are two examples - than in closed cultures where the practise of independent journalism is exceedingly risky - North Korea and Myanmar are two examples of the latter.¹⁶⁹

The information that is currently available does not distinguish between how domestic and foreign journalists are treated. The incidents, however, imply that governments are reluctant to physically injure foreign journalists even while they are ready to place tight regulations on them. There appears to be a hierarchy of status among journalists. Foreign journalists from African or Asian countries may enjoy less protection in these regions than journalists from strong Western nations like the United States, which frequently have significant diplomatic sway and assistance clout over the underdeveloped nations of Asia and Africa.¹⁷⁰

With the growth of internet-based information, one should consider a broader understanding of the concept rather than the *stricto sensu* one when referring to journalists. As a result, everyone who regularly produces public-interest journalism, including media professionals and social media creators, can be referred to as a journalist. It is necessary to comprehend what a “journalist” is

¹⁶⁶ Amit Mukherjee, “International Protection of Journalists: Problem, Practice, and Prospects”, 11 *Arizona Journal of International and Comparative Law* 339 (1994).

¹⁶⁷ The Committee to Protect Journalists (CPJ), established in 1981 with its headquarters in New York, is the leading American group dedicated to keeping track of press-related events across the globe, looking into abuses, and opposing and making public violations of press freedom. The annual Attacks on the Press report, which tracks about 1,000 occurrences annually, has emerged as the most authoritative resource of its sort.

¹⁶⁸ Jennifer Dunham, “Deadly year for journalists as killings rose sharply in 2022”, *Committee to Protect Journalists*, 24 January 2023, available at <https://cpj.org/reports/2023/01/deadly-year-for-journalists-as-killings-rose-sharply-in-2022/> (last visited on 24 April 2023).

¹⁶⁹ *Supra* note 2.

¹⁷⁰ *Id.*

before moving on to the topics addressed in this paper. The word 'journalist' means any correspondent, reporter, photographer, and their technical film, radio and television assistants who are ordinarily engaged in any of these activities as their principal occupation.¹⁷¹

A resolution of the UN Human Rights Committee¹⁷² on a new definition of media, among other places, discusses how ongoing technological improvements have altered the traditional media environment. This has led to new concepts about what media is and how the media ecosystem is developing. The development of information and communication technologies has made it easier for a wider range of players to participate in public discourse. As a result, the European Court of Human Rights has frequently acknowledged that people, civil society organisations, whistleblowers, and academics, in addition to professional journalists and media, can all make significant contributions to public discourse, thus playing a role similar to or equivalent to that which has traditionally been played by the institutionalised media and professional journalists.

While executions are the harshest form of media repression, there are many other threats that journalists must contend with, such as kidnapping, torture, and other physical assaults as well as harassment, particularly online. Media professionals are made fearful by threats of violence and attacks, particularly those directed at journalists. This prevents residents from freely exchanging ideas, thoughts, and information. Women journalists are particularly vulnerable to threats and attacks, especially those made online. The Chilling: Global Trends in Online Violence Against Women Journalists, a discussion paper published by UNESCO¹⁷³, states that 73 percent of the women journalists polled reported experiencing threats, intimidation, and insults online as a result of their jobs.

UN Efforts to Combat Impunity for Violence against Journalists

The UN has shown a lukewarm approach to the issue of journalist safety till the very last decade. For a long time, it contented itself with sub-commissions and reports which were not implemented effectively. A major reason for the same

¹⁷¹ Article 2(a), Draft International Convention for the Protection of Journalists engaged in Dangerous Missions in Areas of Armed Conflict, 1975.

¹⁷² U.N., Human Rights Committee, General comment No. 34, Article 19: Freedoms of opinion and expression, 102nd session, Geneva, 11-29 July 2011, 12 September 2011 *available at* <https://www2.ohchr.org/english/bodies/hrc/docs/gc34.pdf>

¹⁷³ UNESCO, "The Chilling: global trends in online violence against women journalists; research discussion paper", 2021, *available at* <https://unesdoc.unesco.org/ark:/48223/pf0000377223> (last visited 24th April 2023).

was the ideological battle between the Western nations on one hand and the Soviet-bloc and developing countries on the other.¹⁷⁴

The issue of journalists' rights attracted significant attention at the UN twice between 1947 and 1975, separated by eighteen years of comparatively little attention. The first time was when information freedom was being discussed in a more general sense at the Commission on Human Rights' (CHR) Sub-Commission on Freedom of Information and the Press in the late 1940s and early 1950s. The CHR made a concerted attempt in the early 1970s to obtain international protection for journalists as the second example. A draft convention on freedom of information reflecting the Western liberal perspective on information issues was drafted during the first stage. But when the draft was submitted to the Economic and Social Council (ECOSOC) and then the General Assembly for ratification, a protracted, vexing, and contentious discussion and amending process began. The Soviet and developing countries urged for journalistic responsibility and media limitations while criticising the purported Western monopoly on communication and alleging that Western journalists were biased towards communists and the third world. Different drafts of an international treaty for the protection of journalists were discussed during the second term. All of the drafts, meanwhile, were involved in political debate, and the United Nations stopped considering any global treaty for the safety of journalists in 1975.¹⁷⁵

Up until the 1960s, UNESCO focused on technical issues, such as data collection for the various U.N. organisations, and generally non-political issues, such the implementation of international collaboration of an educational, scientific, and cultural nature. Following the developing countries' requests, UNESCO started looking at normative issues relating to the nature of information and the methods used to disseminate it in the 1970s. The topic of journalist protection was discussed at UNESCO as part of a larger conversation on a variety of issues relating to global communication flow. The sixteen-member International Commission for the Study of Communications Problems, led by Sean MacBride, was established in 1976 as a result. The Commission was created in 1977 as a direct response to Resolution 100 of the 19th General Session of UNESCO held in Nairobi in 1976.¹⁷⁶

A global document addressing press protection was written by the MacBride Commission as a conclusion of the discussions. The document noted the risks that journalists working in dangerous areas routinely confront and supported the

¹⁷⁴ *Supra* note 2 at 348.

¹⁷⁵ *Id.*

¹⁷⁶ The Macbride Report is available at <https://unesdoc.unesco.org/ark:/48223/pf0000043502> (last accessed 28th April 2023).

need for further protection, but it offered few specific, practical recommendations for how to put such protection into place.¹⁷⁷ One of the few specific recommendations was to create a roundtable to continue the conversation about these concerns.

Concrete steps in the direction of journalist protection were taken by the Human Rights Commission and UNESCO in the last decade by relying on the UDHR. The protection of the fundamental right to freedom of speech, which is enshrined in Article 19 of the Universal Declaration of Human Rights (UDHR)¹⁷⁸, depends on the safety of journalists and the fight against the continuation of impunity for those who kill them. In July 2011, article 19 was the subject of the General Comment 34 by the Human Rights Committee, where paragraph 23 stated that:

States parties should put in place effective measures to protect against attacks aimed at silencing those exercising their right to freedom of expression. Paragraph 3 may never be invoked as a justification for the muzzling of any advocacy of multi-party democracy, democratic tenets and human rights. Nor, under any circumstance, can an attack on a person, because of the exercise of his or her freedom of opinion or expression, including such forms of attack as arbitrary arrest, torture, threats to life and killing, be compatible with article 19. Journalists are frequently subjected to such threats, intimidation and attacks because of their activities. So too are persons who engage in the gathering and analysis of information on the human rights situation and who publish human rights-related reports, including judges and lawyers. All such attacks should be vigorously investigated in a timely fashion, and the perpetrators prosecuted, and the victims, or, in the case of killings, their representatives, be in receipt of appropriate forms of redress.¹⁷⁹

The UN Human Rights Council (HRC) made history in September 2016 with the adoption of HRC Resolution 33/2¹⁸⁰ on the safety of journalists. The Human Rights Council (HRC) is the leading human rights organisation in the world, and its decisions show States' strong collective resolve to address urgent human

¹⁷⁷ AC Welgemoed, "Application of Media Law: Attempts to Promote Separate Protection Measures for Journalists (Part 2)", 41 *De Jure* 399 (2008).

¹⁷⁸ Which states that: "Everyone has the right to freedom of opinion and expression; this right includes freedom to hold opinions without interference and to seek, receive and impart information and ideas through any media and regardless of frontiers."

¹⁷⁹ *Supra* note 2.

¹⁸⁰ Available at <https://documents-dds-ny.un.org/doc/UNDOC/GEN/G16/226/24/PDF/G1622624.pdf?OpenElement> (last visited 26th April 2023).

rights abuses and breaches. At least on paper, the Resolution represents the most ambitious worldwide agenda for improving journalist safety to date. States must act in response to this important UN resolution if they want to ensure the safety of journalists and stop crimes against them from going unpunished. In order to break the cycle of violence, the HRC Resolution 33/2 calls on States to engage on three fronts: PREVENT, PROTECT, and PROSECUTE.¹⁸¹

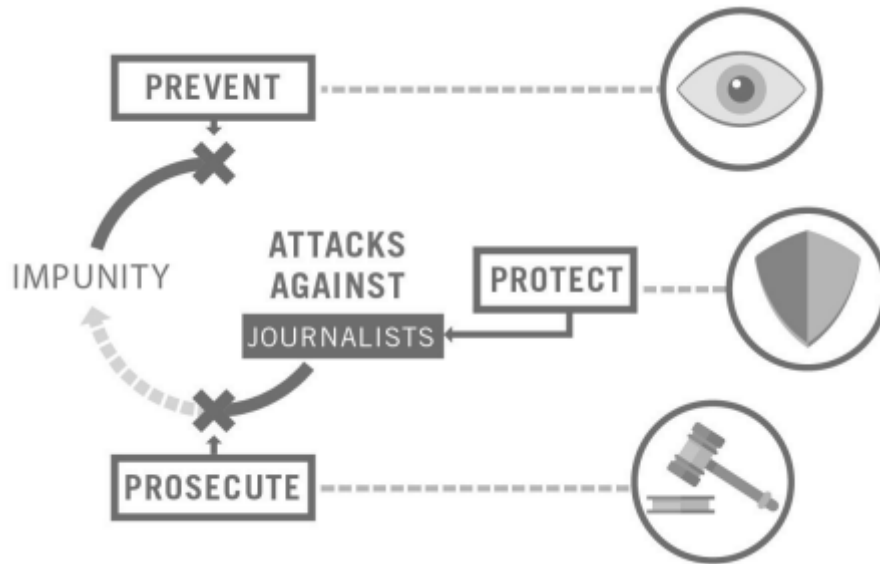


Figure 1: Notably India did not Support this Resolution.

UN's commitment to this issue can also be located in the Sustainable Development Goals. To "promote peaceful and inclusive societies for sustainable development, provide access to justice for all, and build effective, accountable, and inclusive institutions at all levels," reads Goal 16 of the 2030 Agenda for Sustainable Development (the SDGs). In order to measure how well the SDGs are being implemented, aims for ensuring public access to information and decreasing violence are explicitly acknowledged. The number of confirmed murders, kidnappings, forced disappearances, arbitrary detentions, and torture of journalists and media personnel (indicator 16.10.1) is a sign of progress towards Goal 16. The International Labour Organisation (ILO) and UNESCO are closely involved in the OHCHR's monitoring of this indicator, which draws on data gathered through various sources.

The "UN Plan of Action on the Safety of Journalists and the Issue of Impunity" is the first UN plan of action to address the problems of impunity and journalist safety. It was created by UNESCO after collaboration with other UN agencies, global organisations, non-governmental organisations, trade groups, and

¹⁸¹ Image courtesy Article 19 report, available at <https://www.article19.org/wp-content/uploads/2017/09/Safety-of-Journalists-guide.pdf> (last visited 26th April 2023).

UNESCO member nations. The UN Chief Executives Board, which is made up of the executive directors of the UN's specialised bodies, adopted it in April 2012. Since then, several UN resolutions have urged for a stricter implementation of it. With the help of numerous important partners, this UN Plan of Action will be modified to meet local needs. The Journalists' Safety Indicators were created by the International Programme for the Development of Communication (IPDC) of UNESCO as an essential effort to assess the situation in a particular country or region..¹⁸²

In 2017, UNESCO and the UN Office of the High Commission on Human Rights (OHCHR) conducted a consultation process on ways to strengthen the UN Plan of Action on the Safety of Journalists and the Issue of Impunity.¹⁸³ The UN plan notes several recommendations for all stakeholders, and on the topic of tackling impunity specifically, it stated:

xi. Ensure investigation into, and where required prosecution of, all attacks on journalists, including attacks against their family members, even after a lapse of years in the light of UNESCO Resolution 29/29 “Condemnation of Violence Against Journalists” (1997), which called on Member States to remove any statute of limitations on crimes against person when such crimes are perpetrated to prevent the exercise of freedom of information and expression or when their purpose is the obstruction of justice,

xii. Advance monitoring and reporting on SDG 16.10.1; respond to UNESCO's requests on judicial follow-up to killings, engage with UN human rights mechanisms, in particular the UPR; strengthen related data collection including through partnerships with UN entities, civil society and other stakeholders; consider using SDG indicator 16.10.1 as part of national monitoring and reporting on journalist safety issues; and ensure that monitoring and reporting efforts include the digital, physical and psychological safety of journalists, and incorporate gender-sensitive analysis.¹⁸⁴

¹⁸² Available at <https://webarchive.unesco.org/web/20220706081758/https://en.unesco.org/themes/safety-of-journalists/journalists-safety-indicators#:~:text=The%20JSIs%20allow%20for%20a,to%20crimes%20committed%20against%20them>. (last visited 28th April 2023).

¹⁸³ U.N., Strengthening the Implementation of the UN Plan of Action on the Safety of Journalists and the Issue of Impunity. The outcome document is available at <https://www.ohchr.org/sites/default/files/Documents/Issues/Journalists/OutcomeDocument.pdf>

¹⁸⁴ *Id* at 6.

While it is acknowledged that Member States are still in charge of conducting investigations into crimes against journalists, acts of violence and intimidation (such as homicide, kidnapping, hostage taking, harassment, intimidation, and unauthorised arrest and detention) are occurring more frequently and in more situations. Notably, the threat posed by non-state actors like terrorist organisations and illegal trade is growing. The varied legal measures available to ensure journalists' protection, as well as the varying needs of journalists in war and non-conflict zones, need for careful, context-sensitive consideration..¹⁸⁵

The prevalent trend has continued to be impunity, with few killers or attackers of journalists being brought to justice. When someone commits a crime, they are not subject to penalty, which is known as impunity. It suggests a potential breakdown in the functioning of the legal system as well as the development of conditions where crimes against free speech go unpunished, posing a major threat to that right. The expectation and practise of impunity may encourage abuses of multiple other human rights, including freedom of the press and freedom of expression, in addition to fostering various forms of criminality. Along with physically silencing journalists, arbitrary detentions and arrests, forced disappearances, harassment, and intimidation have all been frequently used to persuade a population to practise self-censorship.

The World Trends in Freedom of Expression and Media Development: Global Report 2021/2022 published by UNESCO notes¹⁸⁶ that “impunity for killings of journalists remains a serious concern: only 13 percent of cases recorded by UNESCO since 2006, or approximately one in ten, are currently considered judicially resolved”.¹⁸⁷ Research performed by UNESCO for the Report further demonstrates that where the number of journalist homicides is high, impunity for these killings is also high, posing a threat to a cycle of violence that will not end.

In other words, impunity continues to be one of the biggest threats to the security of journalists worldwide. The issue continues and even worsens as long as attacks on and harassment of journalists go unpunished. However, if there are serious legal repercussions, perpetrators might reconsider their actions. All parties involved, including the government and state authorities, must address the problem of impunity for crimes against journalists if there is any prospect of a resolution. Other pertinent clauses from the Universal Declaration of Human Rights, such as the right to life (Article 2), the prohibition of torture (Article 3), the right to liberty and security (Article 5), the right to a fair trial (Article 6), the

¹⁸⁵ U.N., “Plan of Action on the safety of journalists and the issue of impunity”, 4.

¹⁸⁶ Available at <https://unesdoc.unesco.org/ark:/48223/pf0000379826>

¹⁸⁷ *Id* at 17.

prohibition of punishment without the rule of law (Article 7), and the right to an effective remedy (Article 13), also touch on the safety of journalists and the issue of ending impunity for violent acts against them.¹⁸⁸

The UN has declared November 2 as the International Day to End Impunity for Crimes against Journalists.¹⁸⁹ 2022 also marked the 10th anniversary of the UN Plan of Action on the Safety of Journalists, which is a landmark document on this issue. The subject of journalist safety has received more attention from the UN since the plan was adopted, as shown by the rise in declarations, resolutions, and other normative texts, as well as the UN Secretary General's Call to Action for Human Rights. A component of the 2030 Agenda for Sustainable Development is protecting journalists. As well as bringing about changes on the ground, such as the establishment of national safety procedures in at least 50 nations, the Plan has helped to forge international coalitions of governments and civil society.

Present Situation in Commonwealth Countries

In this section, we will analyse where selected commonwealth countries stand on the issue of combating impunity with respect to violence against journalists, and make an effort to extract best practices from the policies of countries which show promising results.

1. India

According to the 2022 Global Impunity Index¹⁹⁰ India ranked 11th. Worryingly, along with Pakistan, India has appeared on the index every year since CPJ first started compiling it in 2008, demonstrating the persistent nature of impunity and violence against the press in these countries. In 2015, India's press regulatory body, the Press Council of India, had called for a two-minute news blackout on Nov 2nd to protest authorities' failure to prosecute the perpetrators of violence against journalists. This followed a spate of incidents in which journalists such as Narendra Dabholkar, Jagendra Singh, Sandeep Kothari and Akshay Singh were killed, with none of the perpetrators punished.¹⁹¹ As of the time of writing this article, the case of Narendra Dabholkar, the famous anti-superstition advocate from Maharashtra is still undergoing trial, 10 years after his death. The

¹⁸⁸ Radu Florin Geamanu, Freedom of Expression and Violence against Journalists, 24 *Lex ET Scientia International Journal* 118 (2017).

¹⁸⁹ Available at <https://www.un.org/en/observances/end-impunity-crimes-against-journalists> (last visited 26 April 2023).

¹⁹⁰ Published by the Committee to Protect Journalists, available at https://cpj.org/wp-content/uploads/2022/10/CPJ_2022-Global-Impunity-Index.pdf (last visited 24th April 2023).

¹⁹¹ A report by press agency The World on this issue is available at <https://theworld.org/stories/2015-10-15/india-terrible-punishing-attacks-journalists-here-s-how-terrible> (28th April 2023).

death of Jagendra Singh, a noted environmental activist who was burnt alive in Uttar Pradesh, was investigated by the police and his burn injuries were found to be self-inflicted, thus closing the matter. Another investigative journalist who was killed by the mining mafia was Sandeep Kothari. His death prompted even the-then Director-General of UNESCO, Irina Bokova, to issue a statement condemning the incident and request swift investigation.¹⁹² However, there has been no conviction with respect to his murder till date. Akshay Singh was a reporter who was covering the Vyapam scams in Madhya Pradesh. His death was attributed to a heart attack and the investigation by the Central Bureau of Investigation has little to show till date.¹⁹³

In 2020, the International Federation of Journalists released an open letter¹⁹⁴ which published chilling facts on the cases of impunity for violence against journalists in India. In India, 55 journalists and media personnel were slain between 2010 and 2020, but just one instance resulted in a conviction, according to the IFJ's documentation. After seven years, Jyotirmoy Dey, a journalist employed by Midday Newspaper and slain on June 11, 2011, in Powai, India, received justice. Gangster Chhota Rajan and eight other defendants were found guilty and given life sentences by an Indian court for murder and criminal conspiracy. The murder of K Satyanarayana, an Andhra Pradesh-based journalist, is one of the most well-known instances of impunity. Six individuals were detained, but within a month they were all released on bail. The investigations are often drawn out, unequal, and inconsistent. In certain cases, like the 2018 killing of Amit Topno, the challenge starts with attempting to determine the killer's motive.

In an answer to a question asked in the Rajya Sabha, Minister of State for Rajya Sabha Nityanand Rai stated¹⁹⁵ that the National Crime Records Bureau does not record crimes against journalists as a separate category. This is worrying in view of the growing international attention in combating impunity. The answer also contained a reference to a 2015 report by the Press Council of India and stated that India had adequate legislations to combat the issue of violence against journalists. The Press Council of India is mandated to monitor any developments that can threaten press freedom. Such a danger could originate from militants, government officials, political parties and their representatives,

¹⁹² Available at <https://articles.unesco.org/en/articles/director-general-deplores-killing-indian-journalist-sandeep-kothari> (last visited 28th April 2023).

¹⁹³ This summary has been compiled through reports from various media outlets.

¹⁹⁴ The IFJ is the world's largest organisation of journalists, and represents 600,000 media professionals from 187 trade unions and associations in more than 140 countries. Established in 1926, the IFJ advocates for journalists within the United Nations system and within the international trade union movement. Their 2020 open letter is available at <https://www.ifj.org/media-centre/news/detail/category/press-releases/article/india-ifj-calls-on-indian-government-to-end-impunity-for-crimes-against-journalists> (last visited 24th April, 2023).

¹⁹⁵ Available at <https://www.mha.gov.in/MHA1/Par2017/pdfs/par2019-pdfs/rs-24072019/3567.pdf> (last visited 24th April 2023).

members of the public, or even the press itself in the form of editorial-management conflicts.

In Chapter II of the report¹⁹⁶, it stated that it had resolved 49 complaints out of the 353 matters pending before it. But an enquiry into the nature of resolutions results in more questions than answers. The Council adjudicated a total of 31 such matters in 2015. Of these, charges were several to be substantiated in four matters while no matter was dismissed on merits. This is to be noted that not even a single complaint was discussed by the Council on merit. When the concerned respondents made sufficient amends or provided assurance of protection in five other cases, the Council withdrew its investigation. The remaining 22 complaints were dismissed because they were no longer relevant or because the Council felt that no further action was necessary. Why were so many complaints not discussed on merit? Why had the Council not pursued any course of action in any of the 49 complaints it addressed that year? There are no clear answers to these questions.

However, the Report does highlight ground level follow-up work done by the Council in cases where journalists were killed. The report uses emphatic language when discussing the findings of the death of a journalist, Shri Jagendra Singh in U.P.:

Police and administration had neither taken this incident seriously nor took cognizance of the statement given by deceased Jagendra. As a result, situation became out of control. It is absolutely clear. It has been noticed that the incidents of filing cases by Jagendra Singh and his rivals, against each other were taking place, even then police did not take cognizance of the case in an unbiased manner.¹⁹⁷

In the same report, the Press Council notes some recommendations for better protection of journalists.¹⁹⁸ These contain a call for separate legislation, stricter punishments, and better compensation for the victim's family. These indicate the Council is serious about the issue of impunity for crimes against journalists (as evident from its on-ground follow-up work and recommendations), but is perhaps hamstrung by some unknown factors when dealing with complaints themselves. Overall, the picture of combating impunity in cases of violence against journalists in India does not look promising.

¹⁹⁶ Available at https://mib.gov.in/sites/default/files/ANNUAL_REPORT_2015-16_PRESS_COUNCIL_ENG%20%281%29.pdf (last visited 24th April 2023).

¹⁹⁷ *Id* at 96.

¹⁹⁸ *Id* at 117.

2. United Kingdom

More than half of respondents to a survey conducted by the National Union of Journalists in November 2020 reported worrying statistics for journalist safety in the UK.¹⁹⁹ Just over 4 in 5 journalists experienced threats, abuse, or violence as a result of their work in the UK, and more than a third of women respondents said they did not feel safe doing so. In 2020, the National Committee for the Safety of Journalists held its first meeting, and preparations were made for the creation of a National Action Plan to combat impunity. This was in response to a recommendation from the Organisation for Security and Cooperation in Europe.

The National Action Plan was released in March 2021²⁰⁰ and includes recommendations for improving the criminal justice system's response to crimes against journalists, assisting media professionals and their employers in building the tools necessary to protect personal safety, and assisting online platforms in addressing the broader problem of abuse online.

3. Australia

Although the government included a clause to protect whistleblowers in 2018 when it toughened counter-espionage laws, Australia has no constitutional protections for free expression. Press liberties, according to media organisations, are still limited. Mastheads from News Corporation NWSA, a conservative media company owned by Rupert Murdoch, and Nine Entertainment in 2019 published front pages with the majority of the words obscured, giving the appearance that the copy had been edited to resemble a top-secret government document.²⁰¹

The right of the public to know what the government did in its name has long been restricted by regulations that Parliament has passed under the pretence of national security, according to the Media, Entertainment and Arts Alliance (MEAA). This is a growing concern in Australia²⁰², where the lack of free speech guarantees in the constitution allows the government to impinge on the press's freedom using the context of national security requirements. In 2022,

¹⁹⁹ Available at <https://www.ifj.org/media-centre/news/detail/category/press-releases/article/uk-four-in-five-journalists-have-experienced-threats-and-violence-at-work> (last visited 26th April 2023).

²⁰⁰ Available at <https://www.gov.uk/government/publications/national-action-plan-for-the-safety-of-journalists/national-action-plan-for-the-safety-of-journalists> (last visited 26th April 2023).

²⁰¹ Colin Packham, "Australian newspapers redact front pages to protest media curbs", *Reuters*, October 20 2019 available at <https://www.reuters.com/article/us-australia-security-media-idUSKBN1WZ0ED> (last visited 27th April 2023).

²⁰² Keiran Hardy and George Williams, "Press Freedom in Australia's Constitutional System", 7 *Canadian Journal of Comparative and Contemporary Law* 222 (2021).

Australia ranked 39th out of 180 countries on the World Press Freedom Index (meanwhile, India ranks 150th).²⁰³ The Index report also reports that journalists in Australia do not face much violence, so impunity for criminals is less of a concern in that region.

4. Canada

In 2022, Australia ranked 19th out of 180 countries on the World Press Freedom Index²⁰⁴ and like Australia, there seem to be very few instances of violence against journalists. In 2017, the Canadian government had passed the Journalistic Sources Protection Act²⁰⁵. This law updates the Canada Evidence Act to safeguard the source confidentiality of journalists. Unless the information or document cannot be obtained by any other reasonable means and the public interest in protecting the confidentiality of the journalistic source outweighs the public interest in the administration of justice, it permits journalists to withhold information or documents that identify or are likely to identify a journalistic source.

The 2017 enactment has been labelled as a “shield law” and was put to the test in 2019, in the case of *Denis v. Côté*²⁰⁶. The Canadian Supreme Court held that anyone who doesn't want to disclose their sources must demonstrate that they are “journalists” and that their source qualifies as a “journalistic source” under the Canada Evidence Act (CEA). The person who wants the information made public, however, must prove that they are unable to obtain it otherwise and that the public's interest outweighs that of safeguarding the source's confidentiality. The Supreme Court upheld this “shield law,” which states that the burden of proof for whether disclosing a source is necessary lies with the party seeking to compel the journalist to testify rather than the journalist themselves. The court overturned a March 2018 Quebec Superior Court ruling that disregarded Canada's recently-enacted 2017 federal legislation and required Denis to testify and disclose her sources in a case involving Marc-Yvan Côté, a former liberal politician in Quebec accused of fraud and bribery.

Conclusion

In our analysis, we have noted how journalists routinely are exposed to violence and examined numbers of such incidents, which are rising in some regions of

²⁰³ Rankings and detailed reports of individual nations are available at <https://rsf.org/en/region/asia-pacific> (last visited 27th April 2023).

²⁰⁴ Available at <https://rsf.org/en/country/canada> (last visited 28th April 2023).

²⁰⁵ Full text of which can be found at https://laws-lois.justice.gc.ca/eng/annualstatutes/2017_22/FullText.html#:~:text=It%20allows%20journalists%20to%20not,p ublic%20interest%20in%20preserving%20the (last visited 28th April 2023).

²⁰⁶ [2019] 3 SCR 482.

the world. Violence against journalists is a direct assault on their freedom of speech and expression and liberty, and they need the full support of their state machinery in order to fulfill their tasks without fear of losing their lives. However, the state machineries in parts of the world, including India, have often been lackadaisical in punishing perpetrators of such violence. This gives rise to a feeling of impunity, which the international community is striving hard to combat.

The need of the hour is a two-fold approach to end the menace of impunity. We need stricter and specialised laws for prosecuting those who indulge in violent acts against journalists. This special status is deserved keeping in mind the special role the media fulfils as the fourth pillar of State. Together with legislative inputs, we need greater awareness amongst the executive of this threat and a larger impetus to prosecute and punish these criminals. UK and Canada serve as good examples for such an approach, having prepared a National Action Plan to combat impunity in the UK and a specialised law titled Journalistic Sources Protection Act in Canada respectively.

India has so far shown a dismal track record in punishing those accused of crimes against journalists. With the 10th anniversary of the UN Plan of Action on the Safety of Journalists and the Issue of Impunity having been last year, the time is appropriate for India to take serious steps to combat this issue. The journalists of this country deserve to work in an environment where their rights and liberty are respected and where they do not have to fear for their life. India needs such fearless journalism if it intends to continue on its path to become a developed nation by 2047, as stated by our Prime Minister Shri Narendra Modi.

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Normalizing Hate One Post at a Time? Unlocking Project Hate on Face Book

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Introduction

The Internet has revolutionized the pace with which the world is exposed to (mis/dis) information. It can be given the credit for providing people with not only increased opportunities for pursuing education and employment even from remote locations but also gaining access to health resources, which has been exemplified during the COVID-19 pandemic.

However, it would be imperative to acknowledge that it has been serving as a global forum for advancing evils of intolerance and inequality.²⁰⁷ The downside of technology transcending geographical boundaries or blurring the rural/urban divide is manifested in it becoming a vehicle for delivering hate and fear in every corner. Today the internet is saturated with a plethora of social media platforms.

The primary purpose of these services from their inception was connecting people notwithstanding their temporal and spatial distance, with slight specific variations depending on their unique selling point. One of the most quintessential social media networks of our times has been Facebook which now also owns Instagram and WhatsApp. Even though Facebook started with a completely different purpose but with time it gave millions of people the ability to find and stay connected with old contacts while at the same time creating new associations. Going beyond that, social media is now being leveraged by the users to even share news and express their thoughts.

Nevertheless, today a point has come where Facebook and its associated companies have become a breeding ground for several activities particularly hate speech which often snowballs into adverse consequences for certain targeted groups. Hate Speech is an affliction that is found to be vexing for some particular groups of people more than the rest of the population causing forms of physical and psychological harm to the former while leaving the latter indifferent or rather unaware at best.²⁰⁸ It is not like hate speech has not existed before but when combined with the anonymity & wide reach that social media

²⁰⁷ Alexander Tsesis, "Hate In Cyberspace: Regulating Hate Speech On The Internet", (2001) 38 SDLR, 817

²⁰⁸ Minority Rights Group International, Susan Benesch "Defining And Diminishing Hate Speech" (2014)

like Facebook provides it has resulted in a deadly cocktail for many. This has been an issue of concern more so, given the behemoth number of members and the enormous control that it holds over them, so much so that recently there was a suggestion of giving it a seat at United Nations.²⁰⁹

Seen within this context, Facebook holds the immense potential of not just being a platform where hate propaganda is floated but carries the grave possibility of provoking individuals into committing actual crimes. Although most of the instances are not explicit but a regular dosage of such content in effect leads to the normalization of extreme sentiments. The severity of this problem increases exponentially in a country like India where evils like communalism and casteism are already entrenched, transforming in their ways every day. In order to get into the discourse of tackling online hate on Facebook, it is essential to dissect the connotations of “hate speech”.

Unloading the baggage of Hate Speech

In India, there are a number of laws that seek to deal with the issues created by hate speech but none of them provide its precise definition, due to which the ball is in the court of either the policemen who file arbitrary FIRs under Sections 295A, 153A of IPC, often resulting in curtailment of freedom of expression or the Judiciary where a non-uniformity persists in judging what constitutes hate speech.

Jeremy Waldron²¹⁰ believes that hate speech strikes at the root of two values that are intrinsic to democratic societies, namely inclusivity, and dignity. In multicultural societies, the co-existence of diverse groups is based on the assurance that each group and its members would be safeguarded from the strains of “hostility, violence, discrimination or exclusion”. Dignity, on the other hand, forms an essential element of equal citizenship whereby a member of every group is afforded respect and protection as an important object of the society. It ensures that no person is subjected to something that belittles their worth for being a member of a particular community.²¹¹

Hate Speech is not just a string of words merely meant to offend sensibilities but an expression which if made or repeated towards a targeted audience carrying an implication of incitement with a certain potential of the speaker runs the risk of radicalizing & provoking a set of individuals into committing acts

²⁰⁹ Ben Schott, ‘Give Amazon And Facebook A Seat At The United Nations’, *-Business Journal*. (October 3, 2021) <<https://Business-Journal.In/Technology/Give-Amazon-And-Facebook-A-Seat-At-The-United-Nations-Business-Journal/>>Retrieved November 18, 2021

²¹⁰ Jeremy Waldron, *The Harm In Hate Speech*, Harvard University Press (2012)

²¹¹ Gautam Bhatia, *Offend, Shock Or Disturb*, Oxford University Press (2016)

like genocide, ethnic cleansing, etc. A speech that has tangible and irreparable consequences on the life of people cannot seek protection under the garb of free speech.²¹²

This brings us back to Waldron, according to whom, in a society that is tethered by hate speech, the underlying waves of exclusion and abhorrence begin coming up to the surface in routine instances, thus in the process making the values of inclusiveness & dignity hazy. This deepens the crevices found between various communities, emboldening the position of powerful groups while locating the “others” in the cage of being dispensable, giving a toss to the guarantees of equal respect and status promised to every citizen of a modern democracy.

The Equality Act²¹³ of South Africa places a prohibition on hate speech within a framework of equality and non-discrimination. It puts an embargo on a kind of speech that intends to harm, hate or promote hate on the basis of “prohibited grounds” which are situated in a paradigm that has historically been responsible for propagating “systemic disadvantage” or undercutting the values of equality and dignity.²¹⁴

Waldron makes an essential contrast between dignity which refers to the “objective standing of a person in society” and taking offense which could be directive of subjective feelings ranging from hurt or irritation. For example, saying that “I don’t believe in the superiority of the God from X community” comes under the purview of free speech even though with an underpinning possibility of annoying a devotee. While making a statement like “People from x community are termites and deserve to be exterminated” clearly constitutes an assault on the conducive environment for a harmonious existence of the members of X community.

Supreme Court has rightly asserted this proposition in a case²¹⁵ where it was stated that hate speech amounts to an act where the conscious effort is to expose an entire community to hatred by delegitimizing their social standing and acceptance in the eyes of the privileged group. Hate speech goes on to have a societal impact, beyond the domain of individual annoyance. It serves to lay the groundwork for future attacks on a targeted group making it vulnerable to be dehumanized in such a manner that when they get killed, segregated, maimed, and violated, the vainness of their humanity is normalized to a point that it would stop being a matter of violation of human rights.

²¹² Law Commission Of India, “267th Report On Hate Speech” (March 2017)

²¹³ Promotion Of Equality And Prevention Of Unfair Discrimination Act 4 Of 2000

²¹⁴ Supra Note 5

²¹⁵ Pravasi Bhalai Sangathan Vs Union Of India & Ors., AIR 2014 SC 1591

In a recent case, the court sought to emphasize to determine the content that pertains to what was said, how and what did it expect to convey (specifically meant to denigrate, debase or provoke physical violence against a specific community), and the context (i.e. who said it under what circumstances) of the speech before we resort to criminalize it. This stress was critical in face of the divergence that has to be drawn between the speech that is coming from powerful prevailing groups from the ones who have been at the receiving end of historically systemic oppression and discrimination. The emphasis on this factor attempts to make a reconciliatory effort towards safeguarding the speech of persons coming from hitherto persecuted communities whose expressions might come across as more severe and discordant than usual from being restricted under the garb of hate speech.²¹⁶

Rise of Face Book as the Epicenter of Hate

2018 ought to be considered a critical point in this story of hate when Facebook introduced a new way in which the information exchange was to be operated. A timeline that was earlier known for displaying posts of mostly “friends” in a chronological fashion was modified to shove the posts with a huge number of likes, comments, or shares on the top. In no time, this model started serving as a mechanism for proliferating hate propaganda since it was a natural at pandering to emotions like anger, fear, and hate.

This ends up concentrating people into an echo chamber of like-minded groups while the algorithm works to tap on to the baser instincts of human psychology. Since it puts the content with the most likes on the top, it normalizes violence towards a specific group by fueling the impression that one is not alone in having this belief.²¹⁷ One of the crucial reasons why the more one uses Facebook, one is likely to be more extreme is observed to be the fact that the conventional drill of the content being scrutinized as being appropriate for being published gets circumscribed in the wilderness of content that is created by the users.²¹⁸

Cognitive bias is a contributing factor in this mess which gets engrossed when people resort to searching about a particular content that feeds their biases & agreement with their own beliefs, the propensity of which heightens with the prospects of proving the other party wrong in debates. Furthermore, a person is less likely to check the veracity of a claim in favor of its bias once it has been

²¹⁶ Amish Devgan Vs Union Of India, 2020 SCC Online SC 560

²¹⁷ Judge Lynn Adelman, Jon Deitrich, ‘Extremist Speech And The Internet: The Continuing Importance Of Brandenburg’, (2010) 4 HLPR 361

²¹⁸ George Mixon, ‘Not Your Father's Marketplace of Ideas: Hate Speech And The Fraudulent Marketplace Of Ideas Created By Social Media’, (2020) 4 Emory Int Law Rev 1

internalized. Repeated exposure to hate speech works to distort the perceptions of moral rights and wrongs embedded in social norms.

According to the internal documents leaked by whistleblower Frances Haugen, misinformation, toxicity, and content with violent tendencies are the most prevalent categories to garner re-shares. The documents bear evidence of the impact that the hate speech, divisive propaganda, and misinformation spread on Facebook and the apps in its belts are causing in the world.²¹⁹

The business model of social media like Facebook is based on generating revenue by selling the attention of the users to the advertisers, the more users spend time on Facebook the better for them monetarily. Even the CEO pointed out the concern with this approach which runs the danger of exposing people to excessively incendiary and scandalous content if not subjected to adequate checks. There have been instances when the recommendation algorithm took someone from a page that had no relation to violation of supposed community standards to a one that was outrightly in breach of such guidelines. All this in the background of Facebook declaring an emergency when they were said to be working constantly on this.²²⁰

Considering Instagram with almost 1 billion users which now comes under the aegis of Facebook, shedding light on the prevalence of hate on that side is equally significant. The form of hate might be toned down but it's almost like the same wine in a new bottle. The demographic factor is more inclined towards a comparatively younger audience, hence the apprehensions regarding the normalization of hate even more grave. Here, the hate is being peddled in the form of 'harmless-looking-supposed-to-be-funny memes'. The users ranging from millennials to young adults are getting exposed to hatred in the hopes of keeping up with the current events through Instagram.²²¹

²¹⁹Keach Hagey And Jeff Horwitz, "Facebook Tried To Make Its Platform A Healthier Place. It Got Angrier Instead" Available At <https://www.wsj.com/articles/facebook-algorithm-change-zuckerberg-11631654215?mod=Article Inline>, Retrieved 19 November 2021

²²⁰Global Witness, "Algorithm Of Harm: Facebook Amplified Myanmar Military Propaganda Following Coup", The Wall Street Journal (September 15, 2021) <<https://www.globalwitness.org/en/campaigns/digital-threats/algorithm-harm-facebook-amplified-myanmar-military-propaganda-following-coup/>> Retrieved 19 November 2021

²²¹Korva Coleman, "Instagram Has A Problem With Hate Speech And Extremism, 'Atlantic' Reporter Says", The Atlantic (March 30, 2019) <<https://www.npr.org/2019/03/30/708386364/does-instagram-have-a-problem-with-hate-speech-and-extremism>> Retrieved 19 November 2021

Journey from Speech to Crime

A study²²² has analyzed the comprehensive data on Facebook usage and the content generated from the activities of the users, which has found a correlation between the access to Facebook and violence suggesting how extremist content on the platform is now causing violence in the real world.

Anti Rohingya violence in Myanmar

A prominent incident took place in July 2014, when the rumor of a Muslim shop owner raping a Buddhist woman made to Facebook. The post was widely shared resulting in a mob gathering around the shop with riotous intentions. Armed men were witnessed to be setting cars on fire and plundering shops.²²³ Facebook is said to have ignored signs of incitement for violence and calls for action to handle them but their inaction made them a major contributor to the genocide.²²⁴ Raymond Serrato's research revealed that in the recent times, an anti-Rohingya group consisting of 55k members has been witnessing a rise of 200% engagement. It is believed after the initial attacks, the potency of Facebook to spread hatred and fear was enhanced even more than before since it was being used to set a specific narrative by the powerful groups. In an appalling revelation, the posts advocating "Muslim free" areas were shared almost 11k times.²²⁵

Delhi Riots 2020

The month of February encountered the National Capital being engulfed in the flames of communal riots. During the riots, several hate-filled videos and content targeting a particular community were shared across the platform. Facebook's language capabilities being inadequate was flagged as one of the contributory factors since it lacked the classifiers which could detect hate speech in Hindi.²²⁶

²²² Karsten Muller And Carlo Schwarz, "Fanning The Flames Of Hate: Social Media And Hate Crime", Competitive Advantage In The Global Economy (2018)

²²³ Timothy McLaughlin, "How Facebook's Rise Fueled Chaos And Confusion In Myanmar", WIRED (July 6, 2018) <<https://www.wired.com/story/how-facebooks-rise-fueled-chaos-and-confusion-in-myanmar/>> Retrieved 19 November 2021

²²⁴ Saira Asher, "Myanmar Coup: How Facebook Became The 'Digital Tea Shop'", BBC (February 4, 2021) <<https://www.bbc.com/news/world-asia-55929654>> Retrieved 19 November 2021

²²⁵ Libby Hogan And Michael Safi, "Revealed: Facebook Hate Speech Exploded In Myanmar During Rohingya Crisis", The Guardian (April 3, 2018) <<https://www.theguardian.com/world/2018/apr/03/revealed-facebook-hate-speech-exploded-in-myanmar-during-rohingya-crisis>> Retrieved 20 November 2021

²²⁶ Pranav Mukul, "Facebook Didn't Flag India Hate Content Because It Lacked Tools: Whistleblower", The Indian Express (October 7, 2021) <<https://indianexpress.com/article/technology/social/facebook-whistleblower-data-scientist-frances-haugen-india-content-7556811/>> Retrieved 20 November 2021

During an investigation²²⁷ conducted by a news portal, one of the users who uploaded such content, stated that this was his reaction to anti-national activities being done by the other community. When asked about the source, he revealed it to be videos being circulated on Facebook & WhatsApp, which were debunked to be false. Even though Facebook defines hate speech as “a direct attack on people based on what we call protected characteristics—race, ethnicity, national origin, religious affiliation, sexual orientation, caste, sex, gender, gender identity and serious disease or disability”, at the time this report was published, Facebook had failed to remove the posts of the particular users whose timeline was swamped with such content

The gravity of the situation was taken into account by the Peace & Harmony Committee of the Delhi Legislative Assembly which sought to summon Facebook for examining its role in the riots, to which it objected. The view of the former was even endorsed by the Apex Court when it stated that the platform could not shirk off its responsibility with 270 million Indian users, since it was not a platform solely for the exchange of information given the manner in which it functions and the business model it follows.²²⁸

A Specter Haunting the Future

Just like the virus mutates into new variants with time, even hate speech on Facebook has transformed the ways in which it can be perceived as being harmful. The mixture of the culture of social media influencers from powerful groups backed by a huge swarm of dedicated followers has given rise to a new challenge, where misinformation and disinformation have joined the ranks of fueling sentiments of hate to advance political and ideological propaganda against targeted groups.

The people are often found engulfed in the vortex of inflammable content in the shape of disinformation and misinformation being churned out day in & out and propagated on Facebook and WhatsApp with the speed of a click. It might not be a piece of outright fake news but the manner in which it is presented is enough to distort & manipulate the sentiments, thereby turning the narrative against the very existence of certain groups. This not only works to sidetrack the

²²⁷ Archit Mehta “Delhi Riots: The Link Between Misinformation And Radicalization” The Wire (August 24, 2020) <<https://thewire.in/Communalism/Delhi-Riots-Misinformation-Radicalisation-Social-Media>> Retrieved 20 November 2021

²²⁸ Ajit Mohan & Ors. Vs Legislative Assembly National Capital Territory Of Delhi & Ors. Writ Petition (C) No.1088 Of 2020

attention of people from issues of accountability but creates a sense of mistrust while sowing seeds to divisiveness between communities.²²⁹

In the recent times, vested interests feeding hate have taken advantage of the often blurred line between free speech and hate speech. While Facebook often argues about not having a direct hand at creating the content that is being circulated on its platforms, the fact that the people are now increasingly turning to these sources for news raises the threshold of accountability and responsibility that has to be demanded from the company. In a study²³⁰ conducted over patterns of hate speech taking the form of fear speech on WhatsApp, it was observed that hate is now transported on the vehicle of videos that might be showing harmful activities being done by a targeted community with a twisted context or inflammable messages on the wrongs committed by the ancestors of those groups in the past with a warning of it being repeated in the near future or fueling suspicions about that group taking over to dominate if not tackled properly in time.

Considering the development of this new species of dangerous speech in the context of Metaverse, where the company promises to extend the digital experience of users by bringing in elements of virtual reality and augmented reality at their disposal, it can only be hoped that before this envisioned future actually takes shape, the company invests enough time and resources into developing appropriate protective mechanisms. This calls for a robust collaboration with members of civil society and lawmakers since setting the protocols and standards of this interoperable universe would be a mammoth task. One can't ignore the potential of it turning out to be more than a Frankenstein than it already is, whereby episodes like "Men against fire"²³¹ from Sci-Fi Series Black Mirror could come closer to reality.

Cracks in the Wall of Self-Regulation

It has been observed that almost 93% of all posts containing hate speech are not removed. This consists of content provoking violence, aggressive slurs, and Tier 1 hate speech. This can be attributed to the multitude of reports that they receive every day and not adequate staff to tackle that. Some users have even complained of slow response due to which the content that goes against the mandate of Community Standards even set by the company. Even when it is

²²⁹ Maya Mirchandani, 'Fighting Hate Speech, Balancing Freedoms: A Regulatory Challenge', (2018) 9, JILS, 47

²³⁰ Punyajoy Saha, Binny Mathew, Kiran Garimella, Animesh Mukherjee, "Short Is The Road That Leads From Fear To Hate": Fear Speech In Indian Whatsapp Groups", Proceeding Of Web Conference, Available At <https://arxiv.org/pdf/2102.03870.pdf> (2021)

²³¹ Augmented Reality is used to blur the senses of soldiers into killing members from a targeted community without hesitation since they are made to be shown as "Inhumane Roaches".

removed sometimes, it has been found to be restored later. As a result, the hate-infested content continues to fester on the platform driving the wedge in the social fabric even deeper. A lot of times this forces the governments to resort to internet bans during the violence.²³²

Community standards which are considered as the benchmark for scrutinizing the content and their removability are universal in nature as admitted by Public Policy Director Shivnath Thukral, in a probe conducted by the Peace and Harmony Committee of the Delhi Assembly. When asked about a specific definition of hate speech that the company relies on, he responded that the giant follows the practice of relying on a broad definition and there was nothing in the broad guidelines that pertained to the sensitivities of the Indian socio-political landscape.²³³ This points to the tendency of the company to overlook its responsibility in mitigating the consequences of its algorithm by taking into account the nitty-gritty of the markets that it seeks to serve and earn revenue from.

Apart from this, another concern regarding the self-regulating mechanism of the company pertains to the lack of the availability of the standards in all Indian languages. If a company ventures into investments for its technical capital as a backing for the language markets, the natural corollary should be to pay equal attention to earmarking dedicated reserves for localizing resources for the well-being of its users.²³⁴

The safety and security of the users should not be incidental and ancillary to the interests of a company. Even if all Indian languages seem like a long shot, the fact that the company offers the users to express and consume their content in 20 languages, but the standards that check the spread of hate are confined to only 11 languages is distressful. This was also pointed out by Frances in her testimony to European Union²³⁵ when she condemned Facebook for depending on automatic systems for spotting dangerous content for removal in the absence

²³² Steve Stecklow, "Why Facebook Is Losing The War On Hate Speech In Myanmar", Reuters (August 15, 2018) <<https://www.reuters.com/investigates/special-report/myanmar-facebook-hate/>> Retrieved 21 November 2021

²³³ Aaratrika Bhaumik, "'Hate Promotes Virality, Virality Increases Revenue' : Delhi Assembly Seeks Facebook Records Of Complaints About Communal Posts Prior To Riots", LiveLaw (November 20, 2021) <<https://www.livelaw.in/top-stories/facebook-indias-delhi-assemblys-committee-on-peace-and-harmony-delhi-riots-hate-speech-185950>> Retrieved 20 November 2021

²³⁴ Equality Labs, "Facebook India - Towards A Tipping Point Of Violence Caste And Religious Hate Speech", Available At https://static1.squarespace.com/static/58347d04bebafeb1e66df84c/t/5d0074f67458550001c56af1/1560311033798/Facebook_India_Report_Equality_Labs.Pdf, Retrieved 21 November 2021

²³⁵ Sam Mcneil And Victoria Milko, "Hate Speech In Myanmar Continues To Thrive", Available At <https://apnews.com/Article/Technology-Business-Middle-East-Religion-Europe-A38da3ccd40ffae7e4caa450c374f796> Retrieved 21 November 2021.

of a third-party fact-checking. Such an approach is bound to fail in places rich in linguistic diversity often with delicate social balance.

Another lacuna in the self-regulatory model that needs to be called out is the neutral, content-blind approach to tackle the situation where it tends to treat content filled with racial or casteist hate with the same lens as of spamming or nudity.²³⁶ Sole reliance on the AI and automated systems or even a human interface without taking into account concerns of power structures and social justice is nothing more than a half-hearted effort at doing the bare minimum.

How Much Regulation is too Much Regulation?

The burgeoning level of hate spread on Facebook has become so prevalent, especially in the times of pandemic that Antonio Guterres²³⁷ had to address it as a “tsunami of hate and xenophobia”. He was of the view that efforts must be made to ensure “immunity of our societies against the virus of hate”.

This was said in the context of the rise of Islamophobic attacks and anti-Semitic conspiracy theories being sparked. The hate messages have been used as a reason for denying healthcare access to marginalized communities by maligning them as the cause of virus spread. The users are being bombarded with massive levels of hatred without any tools in place to manage the consequences or be warned about them. Any solution for this has to be formulated by taking into consideration, the perspective of various stakeholders.²³⁸

Looking at the state of the model employed for self-regulation, it is vital to explore the alternatives of how governments can work to regulate Facebook. In line with this, recently India introduced Draft IT Rules 2021²³⁹, which tighten the rules for social media intermediaries. However, these are not without concerns of increasing censorship, putting even genuine freedom of expression at risk, and invading privacy due to provisions for breaking end-to-end encryptions for tracing the originator. Certain criminalizing provisions could have the effect of making social media platforms act arbitrarily just to be saved

²³⁶ Eugina Siapera And Paloma Viejo Otero, ‘Governing Hate: Facebook And Digital Racism’, (2021) 22 Television And New Media 2

²³⁷ Zoe Tidman, “Coronavirus Has Unleashed Tsunami Of Hate And Xenophobia Across The World, Says Un Chief” Available At <https://www.independent.co.uk/news/world/coronavirus-xenophobia-hate-antonio-guterres-un-cases-deaths-a9505271.html> Retrieved 21 November 2021

²³⁸ Archit Lohani, “Countering Disinformation and Hate Speech Online: Regulation and User Behavioural Change”, Available At <https://www.orfonline.org/research/countering-disinformation-and-hate-speech-online/> Retrieved 21 November 2021

²³⁹ Information Technology (Guidelines For Intermediaries And Digital Media Ethics Code) Rules, 2021, Available At <https://mib.gov.in/sites/default/files/it%20intermediary%20guidelines%20and%20digital%20media%20ethics%20code%29%20rules%2c%202021%20english.pdf> Retrieved 21 November 2021

from criminal liability. The horrors of Section 66A of IT Act²⁴⁰ shouldn't be forgotten, that continue to haunt many even in the aftermath of Shreya Singhal²⁴¹. Although the requirement of a residential grievance officer can be seen in a positive light since it could lead to a more efficient mechanism than someone pulling the strings from abroad isolated from the realities of the country.

However, it is important to evolve remedies to solve this issue of hate on Facebook without resorting to criminalizing legislations that run the danger of serious curtailment over free speech and ensuring that it doesn't run into conflict with the boundaries of other rights. One of the foremost issues that need to be addressed is that the algorithms that are deployed to augment the content should be rendered to inspection by auditors consisting of members of civil society in order to ensure that the fundamental rights of people are not hampered through their operations.

In this direction, European Union can be said to have taken a step ahead with its proposal for the Digital Services Act²⁴², under which tech giants like the ranks of Facebook will be required to evaluate and alleviate the threats that are associated with the content that is shared on their platforms having the capability of not only hampering the rights of people but even destabilizing socio-political fabric of nations. The compliance requirements of this would be subjected to check by independent auditors. However, for this legislation to be something more than a paper tiger, it is essential that researchers, academicians, and journalists are given access to how the algorithms work.²⁴³

Delving into the Co-Regulatory Possibilities

Principles of proportionality, accountability, and transparency must be a benchmark for governing the solutions to the hate on Facebook which articulates a balancing role in a co-regulatory approach from different stakeholders.²⁴⁴

The practice of identifying fake news or provocative information could be adopted, based on localized elements. Facebook could then flag the problematic content while intimating its nature to the originator. Such users should be provided with reasons for removal of their content, along with providing those

²⁴⁰ The Information Technology Act, 2000 (Act 21 of 2000)

²⁴¹ Shreya Singhal vs Union of India, AIR 2015 SC 1523

²⁴² Regulation Of The European Parliament And Of The Council On A Single Market For Digital Services (Digital Services Act) And Amending Directive 2000/31/Ec, Available At <https://eur-lex.europa.eu/legal-content/en/txt/pdf/?uri=celex:52020pc0825&from=en> Retrieved 21 November 2021

²⁴³ Supra Note 14

²⁴⁴ Supra note 32

who interact with that particular account encouragement to fact check before engaging with its content in the future. While the content may not be removed immediately, the first step should be to deal with the virality of that piece of information by preventing its further propagation by altering the algorithm which prioritizes it.²⁴⁵

The company needs to work on improving the transparency over removing content that comes across as promoting hatred by regularly releasing data pertaining to that in the public domain including the number of complaints received, number of content removed based on that. This would help to in increasing the reliability over the decision-making of the company without any apprehensions of favoritism or arbitrary actions. The pages that recurrently face removal of content due to hate, should get be eliminated from the priority algorithm that pushes the content on the top or even recommends it. Facebook is anyway known to collect data for its advertising purposes, it would beneficial if they could also make use of that data to train models for fear speech which can then appertain to WhatsApp which is a closed network platform.²⁴⁶

Frances Haugen, a former data scientist working with Facebook has proposed certain solutions among which the most pertinent seems to be returning the company back to the pre-2018 period which followed the model where the timeline was organized according to sequential criteria, which might need a collective legislative effort from the world governments. Another recommendation pointed towards setting up a regulatory agency that could overlook and monitor the algorithmic experiments that go on within the company under the assistance of the Oversight Board.²⁴⁷ Reliance on artificial intelligence, while may not be sufficient but is an essential tool in tackling this menace. AI can be effectively deployed by integrating features of sentiment analysis, algorithms that are predictive in nature, keeping up with the evolving forms of hate speech for which support can be sought from journalists and academicians. All these processes should be continually subjected to efficient supervision and improvement.²⁴⁸

As far as the case of India is concerned, moderation of content would definitely not be an easy task. Facebook cannot seek to resolve an issue that is loaded with contextual nuances in a vacuum. The inclusion of human-compliant audits

²⁴⁵ Id.

²⁴⁶ Supra note 24

²⁴⁷ “The best way to fix Facebook, courtesy of Frances Haugen”, *Livemint*, 7th October 2021, Available at <https://www.livemint.com/opinion/columns/the-best-way-to-fix-facebook-courtesy-of-frances-haugen-11633628145117.html> Retrieved 21 November 2021

²⁴⁸ Jessica Young, Preetha Swamy & David Danks, “Beyond AI: Responses to Hate Speech and Disinformation” Available at <https://jessica-young.com/research/Beyond-AI-Responses-to-Hate-Speech-and-Disinformation.pdf> Retrieved 21 November 2021

could be the way to go. The company needs to acknowledge and address the ways in which the platform is used by dominant groups, politically vested interests to fuel communal, casteist, and misogynist sentiments provoking violence.

Content moderation needs to incorporate hiring practices in line with safety and demographic dynamics. A list of hateful slurs needs to be maintained, regularly updated, and made open to the public. A third-party audit team comprising of civil society members along with digital advocates carrying adequate aptitudes and proficiencies to understand the shades of caste, religion, sexual orientation elements needs to be deployed.

Systematic collaboration with civil society in this way and others would be a welcome step in making the platform safer and secure for everyone.²⁴⁹ However, any positive change could be effected only when companies like Facebook acknowledge their responsibility given the number of people they have the potential to command and control the narrative over.

²⁴⁹ Supra Note 28

12 Minutes a Clock Hour: Cage for Indian Broadcasters?

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Introduction

This comprehensive article analyses several key aspects related to the regulation introduced by TRAI (Telecom Regulatory Authority of India) in the broadcasting industry. It primarily focuses on two main issues: the potential violation of broadcaster rights and the effectiveness of the impugned law in serving the public interest.

The article explores whether the regulations imposed by TRAI infringe upon the rights of broadcasters. It raises questions regarding the scope of TRAI's authority to regulate advertisements and examines whether such regulation is justifiable within the framework of constitutional rights. By scrutinizing the limitations and restrictions placed on advertisement duration, the article aims to assess the potential impact on broadcasters and their freedom of expression.

Additionally, the article delves into the notion of reasonableness in implementing advertising regulations. It delves into the balance between the public interest and the interests of broadcasters, as emphasized in the preamble of TRAI. By considering various perspectives and arguments, the article seeks to evaluate the reasonableness of the regulations and their alignment with constitutional principles.

Furthermore, the article discusses the implications of complying with the regulations. It delves into the potential consequences that may arise from the enforcement of these restrictions on advertisement duration. This analysis encompasses the impact on broadcasters' revenues, the competitive landscape of the industry, and the overall broadcasting ecosystem.

Throughout the article, the author strives to strike a balance between the public interest and the interests of the general public. By examining the reasonability factor, the article aims to identify measures that can satisfy both the regulatory objectives of TRAI and the rights of broadcasters. It emphasizes the importance of finding an equilibrium where the public interest is safeguarded without unduly impinging upon broadcasters' rights and their ability to provide diverse and engaging content.

Overall, this article provides a detailed exploration of the constitutional and regulatory dimensions surrounding the TRAI's broadcasting regulations. It delves into the implications, consequences, and reasonability aspects to shed light on the complex interplay between regulatory measures and constitutional rights in the broadcasting industry

Why in News?

In 2014, Mxm Media Group and Maa Television Limited have taken a significant step by filing a writ challenging the constitutionality of a newly enacted broadcasting law. The companies argue that the law infringes upon the rights of broadcasters and specifically violates their fundamental right to freedom of speech and expression. Their primary contention is that the imposed restriction of 12 minutes of advertisements per clock hour severely limits their ability to exercise this fundamental right.

The broadcasters argue that the law in question unreasonably curtails their freedom of speech and expression by imposing strict limits on the duration of advertisements. By confining them to a mere 12 minutes per clock hour, they assert that their ability to communicate and disseminate information effectively is unduly hampered. According to the petitioners, this restriction places an unjustifiable burden on broadcasters, hindering their ability to reach and engage with their audiences fully.

The implications of this legal challenge extend beyond the immediate concerns of the petitioners. The case highlights the delicate balance between regulating the broadcasting industry and safeguarding the constitutional rights of broadcasters. Freedom of speech and expression is a cornerstone of a democratic society, enabling the free flow of ideas, information, and diverse perspectives. Any encroachment on this right must be carefully evaluated to ensure that regulations are reasonable, proportionate, and do not unduly impede the functioning of broadcasters.

The outcome of this legal battle holds significant implications for the broadcasting industry as a whole. If the court were to rule in favour of Mxm Media Group and Maa Television Limited, it could potentially lead to a reassessment of the broadcasting law, prompting a revision of the imposed restrictions on advertisement duration. On the other hand, a ruling in favor of the government would solidify the current regulatory framework and its limitations on advertising time.

This case also raises broader questions about the role and responsibility of regulators in balancing the interests of broadcasters, advertisers, and the general

public. Striking a fair and effective balance between commercial viability and the public interest is essential in shaping broadcasting regulations that promote healthy competition, encourage diversity of content, and protect the rights of all stakeholders involved.

As the legal battle unfolds, it remains to be seen how the court will weigh the arguments put forth by Mxm Media Group and Maa Television Limited against the government's objectives in enacting the broadcasting law. The outcome will not only have implications for the rights of broadcasters but also set precedents for future regulatory interventions in the media landscape.

In a democratic society, the intersection of constitutional rights and regulatory measures requires careful deliberation. The verdict in this case will undoubtedly shape the future trajectory of the broadcasting industry, influencing the rights of broadcasters and the balance between commercial interests and freedom of speech and expression.

What is 12 Minutes a Clock Hour?

A regulation that was initially aimed at enhancing the public experience is now transforming into an advertisement syndrome for broadcasters. The recent imposition of restrictions by the Telecom Regulatory Authority of India (TRAI) on the duration of advertisements is becoming a cause for concern. The regulation mandates broadcasters to limit their advertisements to a mere 12 minutes per clock hour, with 10 minutes designated for commercial advertisements and 2 minutes reserved for private advertisements.

This move has significantly curtailed the freedom that broadcasters once had in generating revenue through advertisements. Previously, advertisements served as a source of income and enabled broadcasters to support their operations and produce quality content. However, the newly imposed restrictions have transformed what was once a free bird of revenue into a caged entity, limiting the broadcasters' ability to monetize their platforms effectively.

The mandated 12-minute limit per clock hour has become a point of contention for broadcasters. The commercial advertisement slot, comprising the majority of the allocated time, allows for a limited window to promote products and services. This restriction severely impacts broadcasters' revenue streams, making it increasingly challenging for them to sustain their operations and invest in quality programming.

Furthermore, the allocation of only 2 minutes for private advertisements restricts broadcasters' ability to engage in strategic partnerships and

collaborations with private entities. This limited duration hampers the potential for revenue generation through targeted advertisements tailored to specific audiences.

While the intention behind the regulation may have been to enhance the viewing experience for the public, the consequences have been far-reaching. Broadcasters argue that these restrictions not only impede their revenue generation but also hinder their ability to deliver diverse content and maintain the quality of programming.

Whether TRAI has Power to Regulate Broadcasters?

TRAI has power to regulate advertisement in public interest “TRAI Act has to focus on broadcasting services provided by the broadcaster that impact the ultimate consumer. The focus, therefore, of TRAI is that of a regulatory authority, which looks to the interest of both broadcaster and subscriber so as to provide a level playing field for both in which regulations can be laid down which affect the manner and carriage of broadcast to the ultimate consumers.”²⁵⁰ In exercise of the powers conferred by section 36, read with sub clauses (i) and (v) of clause (b) of sub-section (1) of section 11 of the Telecom Regulatory Authority of India Act, 1997²⁵¹ (24 of 1997), read with notification of the Government of India, in the Ministry of Communication and Information Technology (Department of Telecommunications), No.39,-

- (A) *Issued, in exercise of the powers conferred upon the Central Government under clause (d) of sub-section (1) of section 11 and proviso to clause (k) of sub section (1) of section 2 of the said Act, and*²⁵²
- (B) *Published under notification no. S.O.44 (E) and 45 (E) dated the 9th January, 2004 in the Gazette of India, Extraordinary, Part III, Section 4, the Telecom Regulatory Authority of India hereby makes the following regulations to amend the Standards of Quality of Service (Duration of Advertisements in Television Channels) Regulations, 2012 (15 of 2012).*²⁵³

²⁵⁰ BSNL v. Telecom Regulatory Authority of India, 3 SCC 222 (2004).
<https://indiankanoon.org/doc/138010452/>

²⁵¹ The Gazette of India, TRAI, 2014.

²⁵² Ibid.

²⁵³ The Gazette of India, TRAI, 2014.

Power vested in TRAI under Section 36(1) to make regulations is wide and pervasive. Exercise of this power is only subject to the provisions of TRAI Act, 1997 and the rules framed under Section 35. There is no other limitation on the exercise of power by TRAI under Section 36(1). It is not controlled or limited by Section 36(2) or Sections 11, 12 and 13. Thus, clarifying the law on the general scope of regulation-making power of TRAI.²⁵⁴ and Regulation of broadcasting and cable TV services was entrusted to TRAI in the year 2004.²⁵⁵ To suggest that the Telecom Regulatory Authority of India (TRAI) lacks the authority to regulate any given matter would be an erroneous notion, as TRAI possesses the necessary powers to oversee and regulate a broad spectrum of issues.²⁵⁶

TRAI exercises a broad jurisdiction. Its jurisdiction is not only to fix tariff but also laying down terms and conditions for providing services for consumers and regulation. Prima facie, it can fix norms and the mode and manner in which a consumer would get the services. The role of a regulator may be varied. A regulation may provide for cost, supply of service on non-discriminatory basis, the mode and manner of supply making provisions for fair competition providing for a level playing field, protection of consumers' interest, prevention of monopoly. The services to be provided for through the cable operators are also recognised.²⁵⁷

TRAI acts in a fiduciary capacity to ensure that the rights of consumers are also protected and to balance the rights of the consumers with the rights of the service providers/broadcasters and to ensure orderly growth of the telecom sector as stated in the Preamble of the TRAI Act.²⁵⁸ It is incumbent upon Television watchdog to safeguard the fundamental rights of citizens,²⁵⁹ and in doing so, it is necessary for the governing authority, the Television regulatory body, to wield its regulatory powers to ensure that the operations of private broadcasters align with the greater public interest.

²⁵⁴ BSNL v. Telecom Regulatory Authority of India, 3 SCC 222 (2004).

<https://indiankanoon.org/doc/138010452/>

²⁵⁵ TRAI, No. 1-14/2013- A&P, [August 27th, 2013].

²⁵⁶ Cellular Operators Association V. Telecom Regulatory Authority of India, 7 SCC 703 (2016).

<https://indiankanoon.org/doc/116404795/>

²⁵⁷ Hotel & Restaurant Assn. v. Star India (P) Ltd, 13 SCC (2006). <https://indiankanoon.org/doc/1570840/>

²⁵⁸ Ministry of Information & Broadcasting, Govt. of India v. Cricket Association of Bengal, 28 SCC 161 (1995). <https://indiankanoon.org/doc/539407/>

²⁵⁹ Fundamental Rights under the Indian Constitution : a comprehensive guide, <https://blog.ipleaders.in/fundamental-rights-under-the-indian-constitution-a-comprehensive-guide-with-case-laws/>, Last visited 4:10 pm, 16/05/2023.

What is wrong in 12 Minutes?

While going on to the point that the impugned regulation violates the fundamental rights of the broadcaster by directly placing restriction on the rights which are guaranteed under Indian constitution and the law is not questionable under a fundamental right unless the legislation is directly in respect of it. Thus, a right can be attacked under article 19(1)(a), if it is directly in respect of the subject covered by article 19(1)(a)²⁶⁰. With specific regard to the focal issue of whether the broadcasting company can assert infringement upon its fundamental rights, particular attention is warranted to the paradigmatic legal precedent of *Bennett Coleman v. Union of India*. It is pertinent to note that in the present epoch, the substantial stake of *Bennett Coleman* is presently vested in the Times Group. In this seminal judicial pronouncement, the courts deliberated upon the matter at hand, scrutinizing the constitutional landscape to ascertain the viability of the broadcasting company's claim that its fundamental rights were being contravened²⁶¹ and relief must be granted to the petitioners claiming fundamental rights as shareholders or editors of companies²⁶². It can be acknowledged that broadcasters have the ability to assert their fundamental rights. They argue that their rights to freedom of speech, the freedom to engage in their chosen trade or occupation, and the right to equality are being infringed upon. Let us delve into this violated rights.

Violative of 19(1)(a) ?

The broadcasters contend that their right to freedom of speech is being violated, leading them to assert the unconstitutionality of this regulation. They draw attention to the remarkable Indian Constitution, which grants freedom to all individuals. However, they also acknowledge that this freedom is subject to reasonable restrictions, as outlined in Article 19(2) of the Constitution, which aims to ensure the overall efficiency and well-being of society. Freedom of speech and expression was never absolute and that “interest of people involved in the acts of expression should be looked at not only from the perspective of the speaker but also the medium of publication”. Wherever an element of trade and commerce exist, Article 19(1)(a) would not apply, and interference with the freedom of speech resulting from there regulation would be permissible.²⁶³ In *Hamdard Dawakhana v. Union of India*, the Supreme Court poses the reasonable restriction on commercial speech under Article 19(2).

²⁶⁰ *Naresh Shridhar Mirajkar & Ors. V. State of Maharashtra & Anr*, 3 SCR 744 (1966). <https://indiankanoon.org/doc/1643138/>

²⁶¹ *Bennette coleman vs union of India* SCR (2) 757 (1973). <https://indiankanoon.org/doc/125596/>

²⁶² *Express Newspapers (Private) Ltd. & Anr. v. The Union of India & Ors.*(4)'and *Sakal Papers (P) Ltd. & Ors. v. The Union of India* (5).

²⁶³ *Hamdard Dawakhana v. Union of India*, AIR SC 554 (1960). <https://indiankanoon.org/doc/591481/>

The amended regulation imposes a reasonable limit on the number of advertisements, and achieve the balancing that invasion. When advertisement takes the form of a commercial advertisement which has an element of trade and commerce it no longer falls within in the concept of freedom of speech for the object is not propagation of ideas. Hence, It is considered within the ambit of reasonable restrictions under article 19 (2).²⁶⁴

It is Violating Article 19(1)(g) ?

While broadcasters may argue that their right to trade and profession is being infringed upon, it is important to acknowledge that reasonable restrictions are permitted under Article 19(6) of the Indian Constitution. These restrictions are in place to ensure that the exercise of such rights does not impede the welfare and interests of the general public. the regulations imposed on broadcasters can be viewed as falling within the scope of permissible restrictions outlined by Article 19(6) of the Indian Constitution. Moreover to look 19(1)(g) into two points

Firstly, The amended regulation successfully fulfils the test of reasonableness, which consists of two components: the restriction must be "in the interest of the general public" and must be "reasonable." The Supreme Court has determined that the phrase "in the interest of the general public" has a broad meaning. In this case, the regulations imposed by the regulatory body meet this standard as their objective is to safeguard consumer interests by enhancing the quality of services provided by broadcasters. The necessity for such regulations was evident from the numerous consumer complaints received by the regulatory body, which is a matter of record.

Furthermore, there exists a direct connection between the advertisement cap and an improved viewing experience. The regulations strike a balance between the freedom guaranteed under Article 19(1)(g) and the need to regulate, making them reasonable.

Secondly, the mere fact that regulation of a given trade, business or industry might cause a loss or reduce income to those engaged in it cannot render the effort unreasonable.²⁶⁵ The Supreme Court emphasized that “trade and industry pass through periods of prosperity and adversity on account of economic, social or political factors”²⁶⁶.

²⁶⁴ Express Newspaper (Private) Ltd. v. Union of India, 1 SCC 641 (1985).<https://indiankanoon.org/doc/591481/>

²⁶⁵ Minvera Talkies v. State of Karnataka., SCC 176 (1998). <https://indiankanoon.org/doc/197599/>

²⁶⁶ Laxmi Khandsari v. State of Uttar Pradesh, 2 SCC 600 (1981). <https://indiankanoon.org/doc/342680/>

So this Mere Fact can be Ignored?

Advertising plays a vital role in driving economic growth, as it enables businesses to sell more products or services. By reaching a wide audience, advertising stimulates demand and fuels consumption, leading to increased revenue for businesses. Moreover, advertising serves as a powerful tool for creating employment opportunities, as it drives the need for creative agencies, production teams, marketing professionals, and various supporting services. Awareness is another critical aspect associated with advertising. Advertisements serve as conduits for delivering important information to the public. They inform consumers about new products, services, and innovations in the market. Advertisements also play a crucial role in promoting public awareness campaigns, disseminating information about social issues, and raising funds for charitable causes.

However, the proposed regulations, while aiming to ensure fairness, may inadvertently hamper the revenues of broadcasting companies and channels. This, in turn, can directly impact the national economy. Broadcasting companies generate substantial revenue from advertising, which is vital for sustaining their operations and supporting quality content production. By imposing strict regulations, the revenue streams of broadcasters could be significantly disrupted, leading to financial instability and potential downsizing within the industry.

Furthermore, the potential consequence of these regulations could be the concentration of advertising power in the hands of a few multinational corporations (MNCs). With fixed advertising budgets, small businesses and companies may struggle to afford the increased costs associated with stricter regulations. As a result, they could be at a disadvantage, unable to compete with larger players who have the financial capacity to adapt to these changes. Such an outcome may lead to a monopolistic environment where MNCs dominate the advertising space, stifling competition and hindering the growth of small businesses.

While the intention behind broadcasting regulations is commendable, policymakers must carefully consider the broader economic implications. Striking a balance between consumer protection and fostering a thriving business environment is crucial. Measures should be taken to ensure that small businesses and companies can continue to access affordable advertising opportunities, thereby promoting diversity, competition, and economic prosperity.

In the pursuit of a fair and well-regulated broadcasting industry, it is essential to weigh the potential risks and unintended consequences that may arise. A comprehensive approach that takes into account the economic impact, small business considerations, and the overall welfare of the nation is necessary to achieve a sustainable and thriving broadcasting landscape.

It is Violative of Article 14?

In a bid to ensure compliance with Article 14, broadcasting regulations have been put in place to govern all broadcasters. However, it is crucial to recognize the varying nature of broadcasters in a country like India, where three primary categories exist: General Entertainment Channels (GECs), News channels, and Music channels. Each category exhibits distinct content and advertising patterns, which warrant careful consideration when implementing regulations. GECs enjoy the freedom to telecast their content at any given time, allowing them to adjust advertisements accordingly. This falls under the static category, where advertisements can be scheduled in advance and adhere to a predetermined plan. On the other hand, news channels operate under a dynamic or ad hoc advertising pattern. When significant news events occur, advertisements can be shifted to the following hour to fulfil commitments made to advertisers. This unique advertising flexibility sets news channels apart from GECs.

However, it is important to note that these regulations not only restrict advertisements but also directly impact broadcasters' revenue streams. News channels, in particular, heavily rely on the flexibility of advertising slots to accommodate breaking news coverage. By enforcing strict regulations, their ability to generate revenue effectively may be hindered, posing financial challenges.

The implications of these regulations extend beyond broadcasters themselves and have broader implications for the economy. Advertising plays a pivotal role in promoting prosperity within a nation. It drives sales, creates employment opportunities, and raises public awareness. By restricting advertising opportunities and potentially reducing revenue for broadcasters, there is a risk of negatively affecting the economy.

Furthermore, these regulations may inadvertently lead to the dominance of a few multinational corporations (MNCs) in the advertising sector. With increased advertising costs due to regulation compliance, small businesses and companies may struggle to afford such expenses. This could create a scenario where MNCs, with greater financial capacity to adapt to the changes, gain a monopolistic hold on the advertising market. Such a scenario would limit

competition, impede the growth of small businesses, and hinder overall economic progress.

While the aim of broadcasting regulations is to ensure fairness and compliance, policymakers must carefully evaluate the potential consequences. It is imperative to strike a balance between consumer protection and fostering a conducive business environment. Measures should be taken to safeguard the interests of small businesses, allowing them to access affordable advertising opportunities and promoting diversity, competition, and economic growth.

What can be the Reasonableness

In order to implement or revise regulations governing broadcasting, it is essential to strike a balance that satisfies both the interests of broadcasters and the public. The key lies in determining what is reasonable, ensuring that broadcasters can sustain their revenue streams while delivering quality content to viewers. Additionally, it is important to address the violation of the right to equality that the impugned law presents.

One potential solution is to extend the time limits for advertisements to 20 minutes per clock hour, with a primary focus on commercial advertisements. By allowing broadcasters more advertising time, their revenue streams can be protected without compromising the quality and content they provide to the public. This solution also avoids any negative impact on subscription costs and allows advertisers to reach their target audience effectively.

Furthermore, it is crucial to address the violation of rights by acknowledging the different categories of broadcasters. Instead of treating all broadcasters under one umbrella, the regulations should be tailored to accommodate the diverse advertising patterns and needs of each category. By creating specific clauses that consider the unique requirements of different broadcasters, their rights can be upheld without undue curtailment.

Dividing the regulatory umbrella into distinct categories would ensure that broadcasters are not unfairly burdened due to their specific nature and characteristics. This approach recognizes the importance of preserving the rights and interests of broadcasters while maintaining a fair and balanced regulatory environment.

In conclusion, achieving a reasonable and equitable broadcasting regulation requires careful consideration of the needs of both broadcasters and the public. By extending the time limits for advertisements to 20 minutes per clock hour, with a focus on commercial advertisements, broadcasters can sustain their

revenue streams while continuing to deliver quality content. Moreover, by recognizing the diverse categories of broadcasters and tailoring regulations accordingly, their rights can be safeguarded without compromising their ability to serve the public effectively. A thoughtful and inclusive approach to regulation will foster a broadcasting landscape that benefits all stakeholders involved.

Steps to Determine Balance between Interest of Public and the Broadcaster

The reasonableness of restricting broadcasters to a 12-minute advertisement duration can be assessed by considering various factors. While the restriction may appear to limit the rights of broadcasters, it is crucial to examine the rationale behind such regulations and their potential benefits for the industry and the public.

- 1. Public Interest:** One aspect of reasonableness lies in determining whether the restriction serves the broader public interest. The regulation aims to prevent excessive advertising, which can disrupt the viewing experience and compromise the quality of programming. By ensuring a reasonable balance between content and advertisements, the regulation seeks to maintain the integrity of the broadcasting industry and protect the interests of viewers.
- 2. Sustainability of Programming:** Limiting advertisement duration can contribute to the sustainability of programming. Excessive advertising can impede the flow of content and lead to viewer fatigue, potentially driving away audiences. By maintaining a reasonable duration, broadcasters can focus on providing engaging and uninterrupted programming, enhancing the overall viewer experience and sustaining their audience base.
- 3. Market Competition:** Reasonable restrictions on advertisement duration promote fair competition within the broadcasting industry. If certain broadcasters are allowed to air a significantly higher number of advertisements, it may create an uneven playing field, disadvantaging smaller players or new entrants. Implementing a standard duration ensures a level playing field and fosters healthy competition based on the quality of content rather than overwhelming advertising.
- 4. Viewer Satisfaction:** The reasonableness of the restriction can also be evaluated by considering the impact on viewer satisfaction. Excessive advertisements can be intrusive and disrupt the enjoyment of television programs. By setting a reasonable limit, viewers can have a more immersive

and enjoyable experience, which in turn contributes to the sustainability of the broadcasting industry.

- 5. Constitutional Considerations:** While broadcasters have the right to freedom of expression, this right is not absolute. It is subject to reasonable restrictions that serve compelling public interests. The limitation on advertisement duration can be seen as a justifiable restriction aimed at striking a balance between the broadcasters' rights and the broader public interest.

Future of 12 Minutes Restricting Cage

The ongoing legal dispute between Mxm Media Group, Maa Television Limited, and the government regarding the constitutionality of the broadcasting law and its limitations on advertisement duration has profound ramifications for the broadcasting industry and the delicate balance between regulatory measures and constitutional rights. Despite the decisions of the Delhi High Court and the Supreme Court, the debate surrounding the constitutionality of the act remains unsettled, leaving room for continued discussion and scrutiny.

This legal battle has far-reaching implications for the broadcasting industry, as it directly challenges the regulatory framework and its impact on broadcasters' ability to exercise their freedom of speech and expression. The restrictions on advertisement duration are seen as a potential infringement on their fundamental rights, limiting their ability to effectively communicate, disseminate information, and generate revenue through advertisements. Broadcasters argue that these limitations unjustly burden them and hinder their full engagement with audiences.

The decisions rendered by the Delhi High Court and the Supreme Court should not be viewed as conclusive determinants of the act's reasonableness or constitutionality. The debate surrounding the broadcasting law and its restrictions will likely persist, with stakeholders continuing to question the legitimacy and impact of the imposed regulations. The courts' rulings may provide legal interpretations and guidance, but the broader discussions on the constitutionality of the act are likely to persist.

It is important to recognize that this legal battle raises critical questions regarding the appropriate balance between regulating the broadcasting industry and safeguarding constitutional rights. Freedom of speech and expression is a fundamental pillar of a democratic society, enabling the free flow of ideas, information, and diverse perspectives. Any restrictions on this right must be

carefully evaluated to ensure they are reasonable, proportionate, and do not unduly hinder broadcasters' functioning.

The broadcasters argue that the imposed restriction of 12 minutes of advertisements per clock hour infringes upon their fundamental right to freedom of speech and expression. They contend that the limitations severely hamper their ability to communicate, disseminate information, and generate revenue through advertisements. They argue that the regulation places an unjustifiable burden on broadcasters, hindering their ability to reach and engage with their audiences fully.

This case highlights the delicate balance between regulating the broadcasting industry and safeguarding the constitutional rights of broadcasters. Freedom of speech and expression is a cornerstone of a democratic society, enabling the free flow of ideas, information, and diverse perspectives. Any encroachment on this right must be carefully evaluated to ensure that regulations are reasonable, proportionate, and do not unduly impede the functioning of broadcasters.

The outcome of this legal battle will shape the future trajectory of the broadcasting industry. If the court rules in favour of the broadcasters, it could lead to a reassessment of the broadcasting law and the imposed restrictions on advertisement duration. On the other hand, a ruling in favour of the government would solidify the current regulatory framework and its limitations on advertising time.

Additionally, this case raises broader questions about the role and responsibility of regulators in balancing the interests of broadcasters, advertisers, and the general public. Striking a fair and effective balance between commercial viability and the public interest is essential in shaping broadcasting regulations that promote healthy competition, encourage diversity of content, and protect the rights of all stakeholders involved.

The imposition of the 12-minute limit per clock hour on advertisements has transformed the revenue generation potential for broadcasters. Previously a source of income, advertisements now face severe restrictions, limiting broadcasters' ability to monetize their platforms effectively. The majority of the allocated time is designated for commercial advertisements, leaving a limited window for broadcasters to promote products and services. This restriction significantly impacts their revenue streams, making it challenging for them to sustain operations and invest in quality programming. Furthermore, the allocation of only 2 minutes for private advertisements hampers strategic partnerships and revenue generation through targeted advertisements tailored to specific audiences.

The Telecom Regulatory Authority of India (TRAI) has the power to regulate broadcasting services in the public interest. TRAI acts in a fiduciary capacity to protect the rights of consumers and balance them with the rights of service providers, including broadcasters. The exercise of TRAI's regulatory powers is subject to the provisions of the TRAI Act and aims to ensure a level playing field for both broadcasters and subscribers.

While the broadcasters argue that the regulation violates their fundamental rights guaranteed under the Indian constitution, specific provisions allow for reasonable restrictions on freedom of speech and the right to trade and profession. The regulations imposed by TRAI can be seen as falling within the scope of permissible restrictions outlined in Article 19(2) and Article 19(6) of the Indian Constitution. The objective of safeguarding consumer interests and enhancing the quality of services provided by broadcasters justifies the limitations on advertisement duration.

However, the consequences of these regulations extend beyond the constitutional rights of broadcasters. Advertising plays a vital role in driving economic growth, creating employment opportunities, and promoting public awareness. Stricter regulations may disrupt the revenue streams of broadcasters, impacting the national economy and potentially leading to a monopolistic environment dominated by multinational corporations. Policymakers must carefully consider the economic implications and strike a balance between consumer protection and fostering a thriving business environment.

In conclusion, the outcome of this legal battle will have far-reaching implications for the broadcasting industry and the balance between regulatory measures and constitutional rights. Striking a fair and effective balance between commercial viability.

Sensationalism Unveiled: Unmasking Unethical Practices in Indian Media

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Abstract

The media plays a crucial role in shaping public opinion and disseminating information in a democratic society. However, in recent years, there has been a growing concern regarding the unethical practices employed by certain sections of the media in India. This research paper aims to critically analyze the legal and regulatory framework governing media ethics in India and examine the challenges and implications of unethical practices in the media industry. The study finds that while there are existing laws and regulatory bodies, their enforcement and effectiveness remain inadequate. The paper concludes by suggesting recommendations to strengthen the legal framework and enhance accountability in the media sector.

Introduction

Media plays a pivotal role in any democratic society, serving as a powerful medium of communication and information dissemination. It acts as a watchdog, holding those in power accountable, and facilitating the exchange of diverse perspectives. However, the ethical dimension of media practices is of utmost importance, as it directly influences the quality and credibility of the information provided to the public.

Media ethics encompass a set of principles and values that guide journalists and media organizations in their pursuit of truth, accuracy, fairness, and accountability. These ethical standards are essential for maintaining public trust, ensuring responsible reporting, and upholding the democratic principles of transparency and informed decision-making.

The objective of this research paper is to critically analyze the prevalence and implications of unethical practices within the Indian media landscape. By delving into various aspects of media ethics, this study seeks to shed light on the challenges faced by the media industry and explore the potential consequences of unethical conduct.

The research objectives can be summarized as to examine the different forms of unethical practices prevalent in the Indian media, such as fabrication, sensationalism, yellow journalism, paid news, violation of privacy, and media trials. To evaluate the existing legal and regulatory framework governing media ethics in India, including the role of constitutional provisions, self-regulatory bodies, and statutory bodies such as the Press Council of India, Broadcasting Content Complaints Council (BCCC), News Broadcasting Standards Authority (NBSA), and Advertising Standards Council of India (ASCI). To analyze the challenges faced in the enforcement of media ethics regulations, such as inadequate penalties, political interference, ownership issues, and weaknesses in self-regulation mechanisms. To explore the implications of unethical media practices on public perception, trust, journalistic integrity, democratic values, and the broader social and political landscape of India.

By fulfilling these research objectives, this study aims to provide a comprehensive understanding of the unethical practices prevailing in Indian media and their ramifications. It seeks to propose recommendations to strengthen the legal and regulatory framework, enhance accountability, and promote ethical journalism practices in order to safeguard the principles of a vibrant and responsible media in India.

This research paper recognizes the ever-evolving nature of media and the challenges posed by the digital age. With the rise of social media platforms and online news sources, the dissemination of information has become instantaneous and widespread. This rapid transmission of news, coupled with the pressure to generate high audience engagement, has amplified the risk of unethical practices in media. Therefore, this study will also examine the impact of digital media on media ethics and explore potential strategies to address the unique ethical challenges arising in the digital realm. By considering the dynamic nature of media and its ethical implications, this research aims to provide insights into fostering responsible and ethical practices in both traditional and digital media landscapes in India.

Media Ethics: Concepts and Principles

Media ethics forms the moral compass that guides journalists, media organizations, and other media practitioners in their pursuit of responsible and ethical communication. In an era where information dissemination has become instantaneous and widespread, the significance of media ethics has only grown. This section of the research paper aims to delve into the definition and scope of media ethics, as well as explore the key principles that underpin ethical media practices.

1. **Definition and Scope of Media Ethics:** Media ethics refers to the moral principles and values that govern the conduct of journalists, editors, broadcasters, and other media professionals. It encompasses the norms, guidelines, and standards that promote truthful, accurate, fair, and unbiased reporting while upholding the principles of transparency, accountability, and integrity.

The scope of media ethics is vast, covering a range of ethical dilemmas and considerations. It extends to areas such as sourcing and verification of information, avoiding conflicts of interest, respecting privacy and dignity, protecting vulnerable individuals, promoting diversity and inclusivity, and adhering to professional codes of conduct.

2. **Key Principles of Media Ethics:**

- **Truth and Accuracy:** The principle of truth and accuracy requires media professionals to strive for the highest standards of factual accuracy in their reporting. Journalists should gather information from reliable and verifiable sources, corroborate facts, and present information in a balanced and objective manner. Misrepresenting or distorting facts undermines the credibility of the media and can have far-reaching consequences on public trust.
- **Fairness and Objectivity:** Media professionals should strive to be fair and objective in their reporting, providing a balanced representation of diverse viewpoints. This principle entails presenting all relevant perspectives in a fair and unbiased manner, giving voice to marginalized communities, and avoiding personal biases or prejudices. Objectivity does not imply neutrality, but rather a commitment to thoroughness, context, and fairness in the presentation of information.
- **Independence and Freedom:** The principle of independence emphasizes the need for media organizations and journalists to operate autonomously, free from undue influence or interference. It upholds the importance of editorial independence, ensuring that media professionals are not swayed by external pressures or vested interests. Freedom of the press, a fundamental pillar of democracy, enables journalists to act as watchdogs and hold those in power accountable.
- **Privacy and Dignity:** Respecting the privacy and dignity of individuals is a crucial ethical consideration. Media professionals should exercise restraint and sensitivity when reporting on personal matters, particularly in cases involving individuals' private lives or sensitive information.

Informed consent and responsible handling of personal data are integral to maintaining trust and safeguarding individuals' rights.

- ***Accountability and Transparency:*** Media organizations and practitioners are accountable to the public for their actions and should be transparent about their sources, methodologies, and conflicts of interest. Corrections and clarifications should be promptly made when errors occur, and mechanisms for receiving and addressing public grievances should be in place. Accountability ensures that media professionals are held responsible for their actions and maintains the credibility of the media.
- ***Public Interest:*** The principle of serving the public interest underscores the role of media as a vital democratic institution. Media professionals should prioritize the public's right to know, facilitate informed public discourse, and act as a watchdog to expose corruption, wrongdoing, and abuses of power. The public interest should guide editorial decisions, ensuring that media content serves the welfare of society as a whole.

Media ethics sets the foundation for responsible and ethical media practices, ensuring the dissemination of accurate and reliable information while upholding democratic values. The principles of truth and accuracy, fairness and objectivity, independence and freedom, privacy and dignity, accountability and transparency, and the public interest form the core of media ethics. Adhering to these principles helps build public trust, fosters a vibrant and credible media ecosystem, and safeguards the role of media.

Unethical Practices in Indian Media

1. ***Fabrication and Sensationalism:*** Fabrication and sensationalism are unethical practices that have plagued the Indian media landscape. Fabrication refers to the deliberate creation or alteration of facts and events, leading to the dissemination of false information. Sensationalism, on the other hand, involves exaggerating or manipulating news stories to generate public interest and higher viewership or readership.

Such practices undermine the integrity of journalism and erode public trust. Fabricated stories mislead the public, distort reality, and can have serious consequences on individuals and society. Sensationalism, often driven by the competition for higher ratings or increased readership, prioritizes sensational aspects of news over its accuracy and significance.

2. ***Yellow Journalism and Misinformation:*** Yellow journalism, characterized by sensationalism, exaggeration, and the use of clickbait headlines, has

become increasingly prevalent in Indian media. It focuses on sensational stories to attract attention rather than providing objective and accurate information. Yellow journalism disregards ethical considerations and undermines the role of media as a responsible source of news.

Misinformation, including fake news, rumors, and conspiracy theories, poses a significant threat to public discourse and democratic processes. The rapid spread of misinformation through digital platforms has amplified its impact, leading to widespread confusion, social tensions, and even violence. Media organizations have a responsibility to fact-check and verify information before disseminating it to the public.

3. ***Paid News and Advertorials:*** Paid news refers to the practice of publishing or broadcasting news stories that are influenced by financial considerations. In exchange for monetary gains, journalists and media organizations may present favorable coverage or promotional content without disclosing the financial arrangement. This blurs the line between advertising and news, compromising the credibility and impartiality of the media.

Similarly, advertorials are advertisements disguised as news or editorial content. They aim to promote products, services, or individuals while appearing as objective news articles. By masquerading advertising as news, media organizations deceive the audience and compromise the distinction between commercial and editorial content.

4. ***Violation of Privacy and Invasion of Personal Space:*** The invasion of privacy is a grave ethical violation in media practices. Sensationalizing personal tragedies, intruding into private spaces, or publishing personal details without consent not only violates individuals' right to privacy but also disregards their dignity and well-being. Intrusive reporting tactics, such as stalking or harassing individuals for information, can cause emotional distress and have lasting negative effects on their lives.
5. ***Media Trial and Trial by Public Opinion:*** Media trials refer to situations where the media pronounces guilt or innocence of an individual or organization before a fair legal process takes place. This undermines the principles of justice, due process, and the presumption of innocence. Media trials often influence public opinion, prejudicing the perception of the accused and potentially impacting their right to a fair trial.

Similarly, trial by public opinion occurs when the media presents one-sided narratives or influences public sentiment without considering the

complexities and nuances of a case. This can lead to a rush to judgment, undermining the fairness of legal proceedings.

Unethical practices in Indian media, such as fabrication and sensationalism, yellow journalism and misinformation, paid news and advertorials, violation of privacy, and media trial by public opinion, undermine the fundamental principles of responsible journalism. These practices erode public trust, distort public discourse, and have far-reaching consequences on individuals, society, and democracy as a whole.

Addressing these unethical practices requires collective efforts from media organizations, journalists, regulatory bodies, and society at large. Strengthening ethical guidelines, promoting media literacy, enhancing accountability mechanisms, and encouraging responsible reporting can help restore public confidence and uphold the integrity of Indian media. It is imperative to emphasize the importance of ethical journalism in fostering an informed and democratic society.

Legal and Regulatory Framework in India

- 1. *Constitutional Provisions Safeguarding Media Freedom:*** The Constitution of India recognizes and protects the freedom of speech and expression as a fundamental right guaranteed to all citizens. This includes the freedom of the press, which plays a vital role in the functioning of a democratic society. Several constitutional provisions in India safeguard media freedom and ensure the independence of the press.

Article 19(1)(a) of the Constitution guarantees the right to freedom of speech and expression. It includes the freedom of the press as an essential component. This provision enables journalists, media organizations, and citizens to express their opinions, disseminate information, and engage in public discourse without fear of censorship or suppression.

Article 19(2) imposes certain restrictions on freedom of speech and expression in the interest of public order, decency, morality, and other grounds. These restrictions should be reasonable and should not infringe upon the core principles of media freedom and democratic values. The courts play a crucial role in interpreting and balancing these limitations, ensuring that they are not misused to stifle dissent or curb press freedom.

The Supreme Court of India has been instrumental in upholding and expanding the scope of media freedom through various landmark judgments. In the case of *Brij Bhushan v. State of Delhi* (1950), the court held that the

freedom of the press includes the right to publish news, views, and opinions. In *Bennett Coleman & Co. v. Union of India* (1973), the court affirmed that the freedom of the press is a "species of which the freedom of expression is a genus."

The judiciary has consistently emphasized the role of the media as a watchdog, holding those in power accountable, and as a vehicle for the dissemination of information, ideas, and opinions. It has recognized that a free and independent press is essential for the functioning of democracy and ensuring transparency and accountability.

While the Constitution provides protection for media freedom, it also recognizes that reasonable restrictions can be imposed in certain situations. Article 19(2) allows the government to impose restrictions on the freedom of speech and expression in the interests of sovereignty and integrity of India, the security of the State, friendly relations with foreign countries, public order, decency, or morality. However, these restrictions must meet the test of reasonableness and proportionality.

It is important to note that media freedom is not absolute, and media organizations and professionals have a responsibility to adhere to ethical standards and respect the rights and dignity of individuals. Journalistic ethics and self-regulatory mechanisms are crucial in maintaining the credibility and integrity of the media.

In conclusion, the Constitution of India recognizes and protects media freedom as an integral part of the right to freedom of speech and expression. Constitutional provisions such as Article 19(1)(a) ensure that the media can operate independently, without censorship or undue interference. The judiciary plays a vital role in safeguarding media freedom and upholding the democratic principles enshrined in the Constitution. Media organizations and professionals must also uphold ethical standards to maintain public trust and the integrity of the press.

2. **Press Council of India:** The Press Council of India (PCI) is a statutory body established under the Press Council Act of 1978. It acts as a self-regulatory mechanism for the print media in India. The PCI's primary objective is to maintain and improve the standards of journalism and ensure the freedom of the press.

The PCI consists of members representing various stakeholders, including journalists, newspaper editors, and independent members nominated by the government. It has the authority to receive complaints against newspapers or

journalists, conduct inquiries, and issue advisories or warnings to the media organizations found in violation of journalistic ethics.

3. **Broadcasting Content Complaints Council (BCCC):** The Broadcasting Content Complaints Council (BCCC) is a self-regulatory body established by the Indian Broadcasting Foundation (IBF). It oversees the content aired on television channels in India. The BCCC's mandate is to ensure that television programming adheres to ethical standards and complies with the industry's self-regulatory guidelines.

The BCCC operates based on a code of ethics and standards for television channels and addresses complaints from viewers regarding objectionable or offensive content. It has the authority to issue warnings, recommend changes to programming, or impose penalties on broadcasters found in violation of the code.

4. **News Broadcasting Standards Authority (NBSA):** The News Broadcasting Standards Authority (NBSA) is an independent self-regulatory body established by the News Broadcasters Association (NBA). It aims to ensure adherence to journalistic ethics and standards by news channels in India.

The NBSA functions based on a code of ethics and guidelines for news channels. It addresses complaints related to the violation of journalistic principles, accuracy, impartiality, privacy, and other ethical considerations. The NBSA has the power to issue advisories, censure channels, and levy fines on broadcasters found guilty of unethical practices.

5. **Advertising Standards Council of India (ASCI):** The Advertising Standards Council of India (ASCI) is a self-regulatory body for advertising in India. It works towards ensuring that advertisements conform to ethical standards, avoid misleading claims, and do not offend public sentiments.

The ASCI operates under a code of self-regulation for advertising, which covers various aspects such as honesty, truthfulness, decency, and fair competition. It investigates complaints against advertisements and takes necessary actions, including issuing warnings, seeking modifications, or banning misleading or offensive advertisements.

The legal and regulatory framework governing media in India includes constitutional provisions safeguarding media freedom, self-regulatory bodies such as the Press Council of India, Broadcasting Content Complaints Council (BCCC), News Broadcasting Standards Authority (NBSA), and the Advertising Standards Council of India (ASCI). These institutions and

regulations play a vital role in upholding ethical standards, ensuring accountability, and addressing complaints related to media content and advertising. However, there is a need for continuous evaluation and improvement to enhance the effectiveness of the regulatory framework and promote responsible media practices in India.

Challenges in Enforcement

- 1. Lack of Clear Guidelines and Standards:** One of the major challenges in enforcing media ethics and regulations in India is the lack of clear guidelines and standards. While the Constitution guarantees media freedom, it also recognizes that reasonable restrictions can be imposed in the interest of public order, morality, and other grounds. However, the absence of precise and comprehensive guidelines often leads to ambiguity and inconsistent interpretation, making it difficult to enforce ethical standards uniformly.

There is a need for well-defined guidelines that provide clarity on issues such as the limits of freedom of expression, defamation, hate speech, and privacy rights. Clear guidelines can help media organizations and professionals understand their rights and responsibilities, and ensure that they operate within the ethical boundaries set by the law.

- 2. Inadequate Penalties and Punishments:** Another significant challenge in enforcing media ethics is the inadequacy of penalties and punishments for violations. While regulatory bodies such as the Press Council of India and the Broadcasting Content Complaints Council have the authority to address complaints and issue warnings, their powers are limited. In many cases, the penalties imposed for unethical practices are not substantial enough to serve as effective deterrents.

There is a need to strengthen the legal framework by introducing stricter penalties and punishments for media organizations and professionals found guilty of violating ethical standards. This would create a stronger incentive for adherence to media ethics and discourage unethical practices.

- 3. Political Interference and Ownership Issues:** Political interference and ownership issues pose significant challenges to the enforcement of media ethics in India. The media landscape in India is characterized by ownership concentration, with many media outlets being owned or influenced by powerful individuals or political entities. This creates a potential conflict of interest and raises concerns about biased reporting, lack of impartiality, and manipulation of news content to serve specific agendas.

Political interference, both direct and indirect, undermines the independence of the media and hampers the enforcement of ethical standards. Journalists and media organizations often face pressure to toe the line of their owners or the political entities they are associated with, compromising their ability to provide objective and unbiased coverage.

To address this challenge, there is a need for greater transparency in media ownership, strict regulations to prevent cross-ownership and monopolistic practices, and mechanisms to ensure editorial independence. Safeguarding the autonomy of the media from political interference is crucial for maintaining a vibrant and responsible media ecosystem.

- 4. *Weak Self-Regulation Mechanisms:*** While self-regulation is an important aspect of media ethics, the existing self-regulation mechanisms in India face several challenges. Self-regulatory bodies such as the Press Council of India, the Broadcasting Content Complaints Council, and the News Broadcasting Standards Authority have been established to address complaints and promote ethical standards. However, their effectiveness is often questioned due to issues such as lack of teeth in enforcement, inadequate representation, and perceived biases.

To strengthen self-regulation, there is a need for greater independence, transparency, and accountability in the functioning of these bodies. Clear procedures for handling complaints, ensuring diverse representation, and empowering these bodies with effective enforcement mechanisms would enhance their credibility and contribute to a more robust self-regulatory framework.

Enforcing media ethics and regulations in India faces several challenges, including the lack of clear guidelines and standards, inadequate penalties and punishments, political interference and ownership issues, and weak self-regulation mechanisms. Addressing these challenges requires a multi-pronged approach involving stakeholders such as media organizations, regulatory bodies, policymakers, and civil society.

It is crucial to establish clear and comprehensive guidelines that provide clarity on ethical standards and boundaries. Strengthening penalties and punishments for violations would act as a deterrent and promote accountability. Measures to safeguard the independence of the media from political interference and address ownership concentration would enhance impartiality and objectivity. Furthermore, empowering and strengthening self-regulation mechanisms through greater transparency, diversity, and

effective enforcement would contribute to a more responsible and accountable media ecosystem.

Implications of Unethical Practices

Unethical practices in the media have far-reaching implications that go beyond individual incidents. These practices can have a profound impact on public perception and trust, compromise journalistic integrity, undermine democratic values, and result in social and political consequences. Let's delve into these implications in more detail:

- 1. *Impact on Public Perception and Trust:*** Unethical practices in the media can erode public trust and confidence in the information provided by media organizations. When news is fabricated, sensationalized, or manipulated for personal or political gains, it creates a sense of skepticism among the audience. The public may become disillusioned, leading to a loss of trust in the media as a reliable source of information.

The spread of misinformation and fake news, often driven by unethical practices, can have detrimental effects on public opinion and decision-making. It can contribute to the polarization of society, the spread of conspiracy theories, and the amplification of biased narratives. This not only undermines the public's ability to make informed choices but also erodes the social fabric by creating divisions and mistrust among different groups.

- 2. *Compromising Journalistic Integrity:*** Unethical practices in the media compromise the core principles of journalism, such as accuracy, fairness, objectivity, and transparency. Journalists have a responsibility to report truthfully, verify facts, and present a balanced view of events. When these principles are disregarded, the integrity of the profession is undermined.

Fabrication of stories, sensationalism, and distortion of facts not only mislead the public but also devalue the work of ethical journalists who strive to uphold professional standards. It tarnishes the reputation of the entire industry and undermines the credibility of genuine news reporting.

- 3. *Undermining Democratic Values:*** Media plays a vital role in upholding democratic values by serving as a watchdog, holding those in power accountable, and providing a platform for diverse voices and perspectives. However, when unethical practices prevail, the media's ability to fulfill this democratic function is compromised.

Media that engages in biased reporting, selective coverage, or promotes a specific agenda undermines the democratic ideals of transparency, fairness, and informed public discourse. It can shape public opinion in a manipulative manner, influencing the democratic process and distorting the public's understanding of key issues.

- 4. Social and Political Consequences:** Unethical practices in the media can have significant social and political consequences. Sensationalism, biased reporting, and the amplification of false narratives can contribute to social unrest, polarization, and the spread of hate speech. It can exacerbate existing divisions within society, fueling tensions and conflicts.

In the political realm, unethical practices can influence public opinion, sway elections, and manipulate the democratic process. Media outlets that prioritize sensationalism over substance or engage in paid news and advertorials can distort the public's understanding of political candidates, policies, and critical issues. This undermines the democratic principles of a fair and level playing field for all political actors.

The consequences of unethical practices in the media extend beyond immediate impact. The erosion of public trust and compromised journalism can have long-term effects on the functioning of society and the democratic process. It weakens the foundation of a well-informed citizenry, essential for a thriving democracy.

Unethical practices in the media have significant implications for public perception and trust, journalistic integrity, democratic values, and social and political stability. It is crucial to address these implications by promoting media ethics, strengthening accountability mechanisms, fostering media literacy, and upholding the values of truth, accuracy, and transparency. By doing so, the media can regain public trust, fulfill its democratic role, and contribute to a more informed, engaged, and resilient society.

Strengthening the Legal Framework

To address unethical practices in the media, it is crucial to strengthen the legal framework. This can be achieved through the following measures:

- 1. Amendment to Existing Laws:** Amending existing laws is a critical step in strengthening the legal framework to address unethical practices in the media. Here are some key areas where amendments can be considered:

2. **Defamation Laws:** Defamation laws should be reviewed to strike a balance between protecting the reputation and rights of individuals while safeguarding freedom of expression. Clear guidelines can be established to differentiate between genuine investigative reporting and malicious intent. Amendments can also consider provisions for swift resolution of defamation cases to avoid undue delays and harassment.
3. **Privacy Laws:** Amendments to privacy laws can provide stronger protection against the unauthorized intrusion into individuals' private lives by media organizations. The scope of privacy laws can be expanded to cover new forms of media, including digital platforms and social media. Clear guidelines can be established to determine what constitutes a violation of privacy and the consequences for such violations.
4. **Media Ownership and Cross-Media Concentration:** Regulations pertaining to media ownership and cross-media concentration need to be strengthened to prevent undue concentration of media power. Amendments can introduce stricter limits on ownership by individuals or entities, ensuring a diverse and pluralistic media landscape. Such measures can promote healthy competition, prevent monopolistic practices, and enhance media independence and objectivity.
5. **Cybercrime and Misinformation:** Amendments to cybercrime laws can address the challenges posed by the dissemination of misinformation and fake news through digital platforms. Specific provisions can be introduced to tackle online hate speech, misinformation campaigns, and the use of bots to manipulate public opinion. These amendments can empower law enforcement agencies to take action against those involved in the deliberate spread of false information.
6. **Whistleblower Protection:** Amendments should be considered to strengthen whistleblower protection laws to encourage individuals within the media industry to come forward with information on unethical practices. Robust legal safeguards can be put in place to protect whistleblowers from retaliation and provide avenues for anonymous reporting. These amendments can create a safe environment for exposing unethical conduct within the media sector.

It is important that any amendments to existing laws strike a balance between protecting the freedom of the press and promoting ethical practices. Consultation with media professionals, legal experts, and civil society organizations is crucial to ensure that the amendments are comprehensive, fair, and aligned with international standards.

- 7. Establishment of an Independent Media Regulator:** The establishment of an independent media regulator can play a crucial role in overseeing and enforcing ethical standards in the media industry. This regulator should have the authority to investigate complaints, impose penalties, and ensure compliance with ethical guidelines.

The regulator should be insulated from political interference and have a diverse representation of stakeholders, including media professionals, civil society, and legal experts. It should be empowered with the necessary resources and legal backing to effectively enforce ethical standards and hold media organizations accountable.

- 8. Strengthening Self-Regulatory Bodies:** Self-regulatory bodies, such as the Press Council of India, should be strengthened to enhance their effectiveness in addressing unethical practices. These bodies should have adequate representation from media organizations, journalists, and public representatives.

To improve their credibility, self-regulatory bodies should establish transparent procedures for handling complaints, conducting investigations, and imposing sanctions. They should be empowered with enforcement mechanisms, such as the ability to levy fines, issue warnings, or revoke licenses, to ensure compliance with ethical standards.

- 9. Promoting Media Literacy and Public Awareness:** Promoting media literacy and public awareness is a crucial step in strengthening the media landscape and addressing unethical practices. By educating the public about the media's role, its ethical responsibilities, and providing tools to critically analyze and evaluate media content, individuals can become more informed and discerning media consumers. Here are some key strategies for promoting media literacy and public awareness:

- 10. Integration into Education:** Media literacy should be integrated into educational curricula at all levels, starting from primary school. This includes teaching students critical thinking skills, information verification techniques, and media literacy concepts. By empowering students with the ability to analyze media messages, detect biases, and evaluate sources, they can become active participants in the media ecosystem.

- 11. Public Awareness Campaigns:** Engaging in public awareness campaigns can help raise awareness about the importance of media literacy and ethical media practices. These campaigns can be conducted through various mediums, including television, radio, social media, and community events.

They can highlight the impact of unethical practices on society, the consequences of consuming misinformation, and the role of individuals in promoting responsible media behavior.

12. Collaboration with Media Organizations: Collaboration between media organizations, educational institutions, and community groups is crucial in promoting media literacy. Media outlets can play an active role in providing resources, conducting workshops, and organizing events to educate the public about media ethics, responsible journalism, and the challenges posed by misinformation. By working together, they can create a more informed and media-literate society.

13. Fact-Checking Initiatives: Promoting fact-checking initiatives can help combat misinformation and disinformation. Fact-checking organizations can play a vital role in verifying claims made in the media and debunking false information. By collaborating with media outlets and social media platforms, fact-checkers can ensure that accurate information reaches the public and raise awareness about the importance of verifying information before sharing it.

14. Engaging with Digital Platforms: Given the significant influence of digital platforms in shaping public opinion, it is crucial to engage with these platforms to promote media literacy. Social media platforms can incorporate features that encourage users to critically evaluate information, flag misleading content, and provide access to fact-checking resources. Digital literacy programs can also be developed to educate individuals on responsible social media use and the risks associated with misinformation.

By promoting media literacy and public awareness, individuals can develop the skills and knowledge necessary to navigate the media landscape effectively. They can become active participants in holding media organizations accountable for their practices and make informed decisions about the information they consume and share. Ultimately, a media-literate society can contribute to a more ethical, transparent, and responsible media environment.

Conclusion

In conclusion, this research paper has highlighted the unethical practices prevalent in the Indian media, including fabrication and sensationalism, yellow journalism and misinformation, paid news and advertorials, violation of privacy, and media trial by public opinion. These practices have significant implications for public perception, journalistic integrity, and democratic values. It is crucial

to address these issues to maintain the trust and credibility of the media in a democratic society. Recommendations for enhancing media ethics include strengthening the legal framework, establishing an independent media regulator, strengthening self-regulatory bodies, and promoting media literacy and public awareness. Ethical journalism plays a vital role in providing accurate and unbiased information, fostering transparency, and upholding democratic principles. By embracing ethical practices, the media can fulfill its role as a responsible and trusted source of information in a democratic society.

Privacy Laws and Investigative Journalism: Navigating the Boundaries of Public Interest and Personal Privacy

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Introduction

In the realm of journalism, investigative reporting serves as a powerful tool for exposing corruption, uncovering hidden truths, and promoting transparency. However, the pursuit of truth and the public interest often comes into conflict with an individual's right to privacy. This paper delves into the intricate dynamics between privacy laws and investigative journalism, focusing on the delicate task of navigating the boundaries between public interest and personal privacy.

Privacy laws are designed to safeguard individuals' personal information and ensure their right to privacy. These laws vary across jurisdictions but generally seek to strike a balance between protecting privacy rights and enabling legitimate journalistic pursuits. Investigative journalists face the challenge of accessing private information in the public interest while respecting individuals' privacy rights as enshrined in legal frameworks.

The interplay between privacy laws and investigative journalism raises significant legal and ethical considerations. Journalists must carefully navigate these boundaries to ensure responsible reporting that upholds journalistic standards while respecting privacy concerns. Striking the right balance is crucial to maintaining the trust of both the public and the subjects of investigative reporting.

Conceptual Framework

The conceptual framework establishes the theoretical underpinning for understanding the key concepts and their interrelationships in the context of privacy laws and investigative journalism. It encompasses privacy, public interest, investigative journalism, and the ethical considerations that arise when balancing these elements.

- 1. Privacy:** Privacy refers to individuals' right to control their personal information and protect themselves from unwarranted intrusion. It encompasses aspects such as the right to be left alone, information self-

determination, and the ability to manage the dissemination of personal data. Privacy safeguards personal autonomy, dignity, and freedom from unwanted surveillance or intrusion.

2. **Public Interest:** Public interest encompasses matters of significance or concern to the general public. It involves issues that affect the welfare, well-being, and rights of the broader population. In the context of investigative journalism, the public interest serves as a justification for accessing private information to expose corruption, abuse of power, or matters of societal importance.
3. **Investigative Journalism:** Investigative journalism involves in-depth reporting that goes beyond surface-level news coverage. It entails uncovering hidden information, conducting thorough research, and exposing wrongdoing or matters of public concern. Investigative journalists delve into sensitive topics, rely on confidential sources, and employ various investigative techniques to present the truth to the public.
4. **Ethical Considerations:** Ethical considerations are crucial when examining the intersection of privacy laws and investigative journalism. Journalists must adhere to ethical principles such as truthfulness, accuracy, fairness, and accountability. They must carefully balance the potential public interest against the potential harm to individuals' privacy. Journalistic ethics and professional guidelines provide a framework to guide responsible and balanced reporting.

Ethical Considerations and Responsibilities

Ethical considerations and responsibilities play a crucial role in guiding journalists when dealing with personal information in the public interest. Journalists have a responsibility to balance the public's right to know with the protection of individuals' privacy. Here, we discuss some key ethical considerations that journalists must keep in mind:

1. **Public Interest Justification:** Journalists should thoroughly evaluate and justify the public interest at stake before accessing or disclosing personal information. The information should be of significant importance to the public, such as exposing corruption, revealing abuse of power, or addressing matters affecting public welfare. The potential impact and benefit to society must outweigh the potential harm caused to individuals' privacy.
2. **Accuracy and Verification:** Journalists have an ethical obligation to ensure the accuracy of the information they report, particularly when dealing with

personal information. They should conduct thorough research, corroborate facts, and verify the reliability of their sources. Journalists should be cautious not to disseminate false or misleading information that can harm individuals or damage their reputation.

3. **Informed Consent:** When dealing with personal information, journalists should seek informed consent whenever possible. They should make reasonable efforts to inform individuals about the purpose and potential consequences of disclosing their personal details. However, in certain cases where seeking consent could compromise the investigation or the public interest, journalists may need to rely on other ethical justifications.
4. **Minimizing Harm:** Journalists should take measures to minimize harm to individuals when reporting on personal information. They should consider the potential negative consequences, such as invasion of privacy, stigmatization, or retaliation. Journalists should exercise sensitivity and discretion in the way they present and report personal details, avoiding unnecessary and gratuitous disclosures that could cause harm.
5. **Protection of Vulnerable Individuals:** Journalists should be particularly cautious when dealing with personal information related to vulnerable individuals, such as minors, victims of crimes, or individuals in sensitive positions. They should consider the potential impact on the individual's well-being and take additional steps to protect their privacy, dignity, and safety.
6. **Legal Compliance:** Journalists should be aware of and adhere to relevant privacy laws, regulations, and professional codes of ethics. They should understand the legal limitations and obligations regarding the collection, use, and disclosure of personal information. Adhering to legal standards ensures that journalists operate within the boundaries of the law while upholding ethical principles.
7. **Transparency and Accountability:** Journalists should be transparent about their methods, sources, and the reasons behind accessing personal information. They should be accountable for their actions and be prepared to explain and justify their decisions when challenged. Journalists should be open to criticism, corrections, and dialogue to foster trust with the public.
8. **Consideration of Alternatives:** Journalists should consider alternative ways to report on matters of public interest without unnecessarily intruding upon individuals' privacy. They should explore methods such as anonymization, using pseudonyms, or focusing on systemic issues rather than individual cases to minimize harm while still shedding light on important issues.

Ultimately, the ethical responsibilities of journalists when dealing with personal information in the public interest revolve around responsible and balanced reporting. By considering the potential impact on individuals, ensuring accuracy, seeking informed consent when possible, and minimizing harm, journalists can uphold ethical standards while fulfilling their vital role as watchdogs of society.

Legal Framework in India

The legal framework in India addresses privacy concerns and regulates the collection, storage, and use of personal information. Two key components of this framework are the Information Technology (Reasonable Security Practices and Procedures and Sensitive Personal Data or Information) Rules, 2011 and the Right to Privacy judgment of the Supreme Court. Let's explore these aspects and their impact on investigative journalism.

1. Information Technology (Reasonable Security Practices and Procedures and Sensitive Personal Data or Information) Rules, 2011

The Information Technology (Reasonable Security Practices and Procedures and Sensitive Personal Data or Information) Rules, 2011²⁶⁷, under the Information Technology Act, 2000²⁶⁸, lay down requirements for entities collecting and handling Sensitive Personal Data or Information (SPDI)²⁶⁹. The rules provide guidelines for the collection, storage, processing, and transfer of SPDI and mandate certain security practices and procedures.

These rules impose obligations on entities collecting SPDI, including obtaining consent, providing notice about the purpose of collection, ensuring the reasonable security of data, and offering a grievance redressal mechanism. They aim to protect individuals' privacy by regulating the handling of their sensitive personal information.

2. Right to Privacy Judgment of the Supreme Court

In August 2017, the Supreme Court of India recognized the right to privacy as a fundamental right protected under the Indian Constitution. The landmark judgment in the case of Justice K.S. Puttaswamy (Retd.) v. Union of India²⁷⁰

²⁶⁷ The Information Technology (Reasonable Security Practices and Procedures and Sensitive Personal Data or Information) Rules, 2011.

²⁶⁸ The Information Technology Act, 2000

²⁶⁹ The Information Technology (Reasonable Security Practices and Procedures and Sensitive Personal Data or Information) Rules, 2011, Rule 7.

²⁷⁰ K.S. Puttaswamy and Anr. v. Union of India ((2017) 10 SCC 1

affirmed that privacy is intrinsic to individual dignity, personal autonomy, and the exercise of other fundamental rights.

The right to privacy judgment acknowledged the need for a strong data protection regime and emphasized the importance of informed consent, data minimization, purpose limitation, and data security. It laid the foundation for the subsequent enactment of the Personal Data Protection Bill, 2019²⁷¹ (now withdrawn).

3. Impact on Investigative Journalism and Challenges

The legal framework in India, particularly the Information Technology (Reasonable Security Practices and Procedures and Sensitive Personal Data or Information) Rules, 2011, and the right to privacy judgment, has implications for investigative journalism.

- **Balancing Public Interest and Privacy:** Investigative journalists need to navigate the delicate balance between the public's right to know and individuals' right to privacy. They must carefully assess the public interest in exposing wrongdoing against the potential intrusion on privacy.
- **Consent and Notice:** Journalists should consider obtaining informed consent when accessing and reporting personal information. The rules and judgment emphasize the importance of providing notice to individuals about the purpose and consequences of data collection and use. However, challenges may arise in cases where seeking consent is impractical or compromises the investigation.
- **Security Practices and Data Protection:** Journalists handling sensitive personal information should ensure compliance with the security practices and procedures mandated by the rules. Safeguarding data from unauthorized access, ensuring data integrity, and preventing data breaches are essential to maintain public trust and protect individuals' privacy.
- **Data Protection Framework:** While the right to privacy judgment recognized the need for a comprehensive data protection framework, the enactment of the Personal Data Protection Bill is pending. The absence of a dedicated data protection law poses challenges for investigative journalists who need clear guidelines and safeguards when handling personal information.

²⁷¹ The Personal Data Protection Bill, (2019), Bill No. 373 of 2019, Lok Sabha.

- **Interplay with Freedom of Expression:** The legal framework must strike a balance between privacy rights²⁷² and the freedom of expression²⁷³. Journalists should have the necessary legal protections to carry out their investigative work without undue restrictions or threats of legal action.

Navigating these legal requirements and challenges requires journalists to have a deep understanding of privacy laws, ethics, and professional standards. Adhering to the principles of responsible and ethical journalism while respecting individuals' privacy rights is crucial for investigative journalism to thrive within the legal framework in India.

Prominent Case Studies

Navigating privacy laws in investigative journalism in India has been influenced by several prominent case laws that have shaped the legal landscape. Here are some notable examples:

1. **Justice K.S. Puttaswamy (Retd.) v. Union of India (2017)**²⁷⁴: This landmark case before the Supreme Court of India recognized the right to privacy as a fundamental right protected under Article 21²⁷⁵ of the Indian Constitution. The judgment affirmed that privacy is an intrinsic part of individual dignity and personal autonomy. It has had a significant impact on privacy-related issues, including investigative journalism, by emphasizing the need for strong data protection and privacy safeguards.
2. **R. Rajagopal v. State of Tamil Nadu (1994)**²⁷⁶: In this case, the Supreme Court recognized the concept of the "Right to Privacy" as an inherent part of the right to life and personal liberty under Article 21²⁷⁷ of the Indian Constitution. The judgment emphasized that individuals have a right to maintain the confidentiality of personal information unless there is an overriding public interest. It established the principle that privacy rights should be respected, even in the context of media reporting.
3. **Bennett Coleman & Co. v. Union of India (1972)**²⁷⁸: This case dealt with the conflict between freedom of speech and expression²⁷⁹ and an individual's

²⁷² The Constitution of India, 1950, Art. 21.

²⁷³ The Constitution of India, 1950, Art. 19(1)(a).

²⁷⁴ K.S. Puttaswamy and Anr. v. Union of India ((2017) 10 SCC 1

²⁷⁵ The Constitution of India, 1950, Art. 21.

²⁷⁶ R. Rajagopal v. State of Tamil Nadu (1994), 1995 AIR 264, 1994 SCC (6) 632.

²⁷⁷ The Constitution of India, 1950, Art. 21.

²⁷⁸ Bennett Coleman & Co. v. Union of India (1972), AIR 1973 SC 106.

²⁷⁹ The Constitution of India, 1950, Art. 19(1)(a).

right to privacy²⁸⁰. The Supreme Court held that the right to privacy is not absolute and can be restricted if it clashes with the larger public interest. The judgment emphasized the need for responsible journalism and striking a balance between the public's right to information and an individual's right to privacy.

4. **PUCL v. Union of India (1997)**²⁸¹: In this case, the Supreme Court recognized the right to privacy as an essential aspect of personal liberty and freedom of expression. The judgment emphasized that the interception of communications and invasion of privacy by the state should be done within a legal framework and subject to proper safeguards. This case has had implications for investigative journalism involving surveillance or access to personal communications.
5. **Shreya Singhal v. Union of India (2015)**²⁸²: This case dealt with the constitutional validity of Section 66A of the Information Technology Act²⁸³, which criminalized certain online speech. The Supreme Court struck down the provision, stating that it violated the fundamental right to freedom of speech and expression²⁸⁴. The judgment emphasized the importance of protecting individual privacy and ensuring that laws governing online communication do not unduly restrict freedom of expression.

These prominent case laws have contributed to the evolving understanding of privacy rights and their impact on investigative journalism in India. They provide guidance on striking a balance between the public interest and privacy concerns, emphasizing responsible reporting, and upholding constitutional principles.

Legal and Ethical Dilemmas Faced by Journalists

Journalists often find themselves navigating complex legal and ethical dilemmas when reporting on matters of public interest. Two significant dilemmas they encounter are:

1. **Balancing Privacy Rights and Public Interest:** Journalists face the challenge of balancing an individual's right to privacy²⁸⁵ with the public's right to information. They must determine whether the public interest in

²⁸⁰ The Constitution of India, 1950, Art. 21.

²⁸¹ People's Union for Civil Liberties (PUCL) v. Union of India, (1997) 1 SCC 301.

²⁸² Shreya Singhal v. Union of India AIR 2015 SC 1523.

²⁸³ Information Technology Act (2000), § 66A.

²⁸⁴ The Constitution of India, 1950, Art. 19(1)(a).

²⁸⁵ The Constitution of India, 1950, Art. 21.

exposing misconduct or corruption justifies the potential invasion of privacy. This dilemma arises when journalists access personal information, publish sensitive details, or use hidden cameras or recording devices to uncover the truth.

- 2. Protecting Sources and Confidentiality:** Journalists rely on confidential sources to obtain critical information. However, maintaining source confidentiality can clash with legal requirements to disclose sources in certain situations, such as during court proceedings. Journalists face the dilemma of upholding the ethical responsibility to protect their sources while also complying with legal obligations or facing legal consequences for non-disclosure.

Court Rulings and Implications for Privacy Rights and Freedom of the Press

Court rulings play a significant role in shaping the legal framework surrounding privacy rights and freedom of the press. Some implications of these rulings include:

- 1. Balancing Tests and Legal Standards:** Courts often apply balancing tests to weigh the public interest against privacy rights. Rulings establish legal standards to determine when the public interest justifies the infringement of privacy. These standards provide guidance to journalists, allowing them to assess the potential legal and ethical implications of their investigative reporting.
- 2. Protection of Journalistic Privilege:** Courts have recognized the importance of protecting journalistic privilege, which includes the right to keep sources confidential. These rulings strengthen freedom of the press by safeguarding journalists' ability to gather and disseminate information without fear of coercion or retribution. Protecting journalistic privilege is vital for investigative journalism and maintaining the public's access to important information.
- 3. Limitations on Press Freedom:** While courts acknowledge the importance of freedom of the press, they may impose certain limitations to protect privacy or other fundamental rights. These limitations aim to strike a balance between press freedom and individual rights, preventing unwarranted intrusion or harm. Journalists must understand the scope and boundaries set by court rulings to avoid crossing legal and ethical lines.

- 4. Setting Precedents for Investigative Techniques:** Court rulings often set precedents for investigative techniques used by journalists. For example, the use of hidden cameras or recording devices may be restricted in certain circumstances to prevent excessive intrusion into private spaces. These rulings shape the ethical and legal boundaries of investigative journalism, ensuring responsible reporting while respecting privacy rights.

Overall, court rulings influence the legal and ethical landscape for journalists, providing guidance on privacy rights, source protection, and the limits of press freedom. While they aim to strike a delicate balance between individual privacy and the public's right to information, ongoing discussions and evolving legal interpretations reflect the ongoing complexities and challenges faced by journalists in today's media landscape.

Balancing Public Interest and Personal Privacy in India

In the realm of journalism and media, a constant struggle exists between the public's right to information and an individual's right to privacy. This delicate balance between public interest and personal privacy is of paramount importance in India, where a vibrant democracy and a robust legal framework coexist.

- 1. Understanding Public Interest:** The concept of public interest encompasses matters that are of importance or concern to the public as a whole. It includes issues related to good governance, accountability, transparency, social justice, and the overall welfare of society. Investigative journalism plays a crucial role in serving the public interest by exposing corruption, abuse of power, and other wrongdoings that impact the larger society.
- 2. Respecting Personal Privacy:** At the same time, an individual's right to privacy is recognized as a fundamental right in India. The Constitution and various legal provisions safeguard the privacy of individuals, protecting their personal information, autonomy, and dignity. Personal privacy shields individuals from unwarranted intrusion into their private lives and ensures the right to be left alone.
- 3. Challenges in Balancing Public Interest and Personal Privacy:** The following are the common challenges faced while balancing public interest and personal privacy.
 - **Defining the Boundaries:** Determining the boundaries of public interest and personal privacy is a complex task. Courts, media organizations, and journalists face the challenge of striking the right balance between the

two. The context, nature of the information, potential harm, and societal impact are factors that need careful consideration.

- **Ethical Considerations:** Journalists must adhere to ethical standards when handling personal information. They should exercise caution and sensitivity while reporting on private matters, respecting the dignity and rights of the individuals involved. Balancing the public's right to know with the duty to protect personal privacy requires ethical decision-making.
- **Legal Framework:** India has a robust legal framework concerning privacy rights and freedom of the press. Courts play a crucial role in interpreting the law and providing guidance on striking a balance between public interest and personal privacy. Court judgments have outlined tests and criteria to assess the legitimacy of investigative reporting in relation to privacy concerns.
- **Media Self-Regulation:** Media organizations have a responsibility to develop self-regulatory mechanisms that uphold ethical standards and respect personal privacy. Adhering to codes of conduct, ensuring proper editorial oversight, and having mechanisms for the redressal of grievances are essential in maintaining the delicate equilibrium between public interest and personal privacy.

Balancing public interest and personal privacy is an ongoing challenge in the Indian media landscape. It requires a nuanced understanding of the legal framework, ethical considerations, and the evolving societal needs. Striking the right balance ensures responsible journalism that serves the public interest while respecting individual privacy rights. Through thoughtful deliberation, adherence to legal and ethical guidelines, and an awareness of the potential impact of reporting, Indian journalists can navigate this delicate balance and contribute to a democratic and informed society.

Investigative Techniques and Privacy

Investigative journalism involves in-depth research, analysis, and reporting to uncover hidden information and expose wrongdoing. Journalists often employ various investigative techniques to gather information, but these techniques can have implications for privacy. Let's explore some commonly used investigative techniques and their privacy implications:

- 1. Source Confidentiality and Whistleblowing:** Journalists rely on confidential sources to obtain sensitive information and expose misconduct. While protecting the anonymity and confidentiality of sources is crucial for investigative journalism, it can raise privacy concerns if the identity or personal information of whistleblowers is inadvertently revealed, potentially putting them at risk.
- 2. Surveillance and Undercover Operations:** In certain investigations, journalists may conduct surveillance or employ undercover techniques to gather evidence. These techniques can involve monitoring or recording individuals without their knowledge or consent. While they can be essential for exposing illegal activities or corruption, there is a potential risk of invading individuals' privacy if not carried out with proper legal and ethical considerations.
- 3. Data Mining and Data Analysis:** In the digital age, journalists leverage data mining and analysis techniques to uncover patterns, connections, and hidden information. However, the collection and analysis of personal data raise privacy concerns, especially when journalists access private records or sensitive information without proper consent or legal authorization.
- 4. Investigative Interviews and Doorstepping:** Journalists often conduct interviews with individuals involved in a story to gather firsthand information. While interviewees may voluntarily share information, the line between legitimate questioning and intrusive probing can be blurry. Doorstepping, where journalists approach individuals at their homes or private spaces, can also raise privacy concerns if it involves harassment or excessive intrusion.
- 5. Public Records and Freedom of Information Requests:** Journalists frequently rely on public records and file freedom of information requests to access official documents and information. While this is a legitimate method, sensitive personal information contained in these records should be handled with care to avoid unnecessary invasion of privacy.
- 6. Online Research and Social Media Investigations:** Investigative journalists use online research and social media investigations to gather information and track individuals. This can involve analyzing publicly available information or delving into digital footprints. However, it is crucial to respect privacy settings, avoid online harassment, and refrain from spreading unverified or private information.

It is important for journalists to balance their commitment to uncovering the truth and serving the public interest with the ethical considerations surrounding privacy. Journalists should adhere to legal frameworks, obtain informed consent when appropriate, anonymize or redact personal information, and exercise discretion in using investigative techniques to minimize unnecessary intrusion into individuals' private lives.

Ultimately, a responsible approach to investigative journalism involves a thoughtful assessment of the privacy implications of different techniques, striking a balance between the public's right to know and the protection of individual privacy rights.

Analysing the Legal Ethical Considerations When Using Hidden Cameras, Undercover Reporting, and Other Intrusive Methods

The use of hidden cameras, undercover reporting, and other intrusive methods in journalism raises complex legal and ethical considerations regarding privacy and the public interest. Let us explore them one by one.

1. Legal Considerations:

- **Consent and Privacy Laws:** When using hidden cameras or undercover methods, journalists must navigate the legal requirements of consent and privacy laws. In many jurisdictions, consent is required to record or photograph individuals in private spaces. Violating these laws can result in legal consequences for journalists and compromise the admissibility of evidence obtained through such methods.
- **Wiretapping and Eavesdropping Laws:** In some jurisdictions, laws regulate the interception of private communications. Journalists need to be aware of these laws to avoid legal liabilities when conducting undercover reporting that involves recording private conversations or telephone calls.
- **Trespassing and Intrusion:** Intrusive methods often require journalists to enter private property or engage in activities that may be considered trespassing or intrusion. Understanding the boundaries of legality and respecting property rights is crucial to avoid legal repercussions.
- **Defamation and Privacy Lawsuits:** If journalists overstep ethical or legal boundaries in their use of intrusive methods, they may face defamation or privacy lawsuits from individuals who believe their rights

were violated. It is essential to adhere to journalistic standards and ensure the accuracy and fairness of reporting to minimize the risk of legal action.

2. Ethical Considerations:

- **Balancing Public Interest and Privacy:** Journalists must carefully consider whether the public interest justifies the use of intrusive methods. Ethical guidelines often stress the importance of minimizing harm and ensuring that the potential benefits of the investigation outweigh any invasion of privacy.
- **Transparency and Accountability:** Journalists using hidden cameras or undercover methods should consider the ethical obligation to be transparent about their methods and intentions whenever possible. This includes clearly disclosing their identities as journalists and the purpose of their investigation, except in circumstances where doing so would compromise the investigation's effectiveness.
- **Avoiding Harm and Sensationalism:** Intrusive methods can potentially harm individuals, compromise their safety, or cause emotional distress. Journalists must exercise sensitivity and caution to minimize harm, avoid unnecessary sensationalism, and ensure that the public interest served by their reporting justifies any harm caused.
- **Proportionality and Alternatives:** Ethical considerations include evaluating whether intrusive methods are proportionate to the importance of the story and whether alternative, less invasive means could achieve the same objectives. Journalists should explore other avenues of investigation and reserve intrusive methods as a last resort when no reasonable alternatives exist.
- **Editorial Oversight and Peer Review:** Ethical guidelines emphasize the importance of editorial oversight and peer review when using intrusive methods. These mechanisms help ensure that the use of such methods is well-justified, in line with journalistic ethics, and subject to internal checks and balances.

Journalists employing hidden cameras, undercover reporting, or other intrusive methods should exercise caution, adhere to legal requirements, and follow established ethical guidelines. By carefully weighing the public interest, respecting privacy rights, and maintaining journalistic integrity, journalists can

strike a balance that allows for responsible investigative reporting while minimizing potential harm and legal risks.

Challenges and Debates Faced By Journalists in the India

1. Analyzing the Challenges Faced by Indian Journalists when Investigating Sensitive Topics and Potential Conflicts with Privacy Laws:

Investigative journalism plays a crucial role in uncovering hidden truths, exposing corruption, and holding power to account. However, Indian journalists encounter significant challenges when delving into sensitive topics, particularly when privacy laws come into play. Here are some key challenges they face:

- **Legal Restrictions and Ambiguities:** Indian privacy laws, including the Information Technology (Reasonable Security Practices and Procedures and Sensitive Personal Data or Information) Rules, 2011²⁸⁶, and the Right to Privacy judgment²⁸⁷ of the Supreme Court, aim to protect individuals' privacy rights. However, the interpretation and application of these laws can be complex and open to varying interpretations. Journalists must navigate this legal landscape while pursuing investigative stories.
- **Balancing Public Interest and Personal Privacy:** A crucial challenge lies in striking the delicate balance between the public interest in accessing information and an individual's right to privacy²⁸⁸. Journalists must weigh the importance of exposing wrongdoing against respecting personal privacy. Determining what information serves the public interest and what constitutes an unjustifiable invasion of privacy is often a subjective and challenging task.
- **Protection of Sources and Whistleblowers:** Investigative reporting heavily relies on confidential sources and whistleblowers who provide valuable information. Journalists face the challenge of safeguarding the identity and safety of these sources, especially when their disclosures may expose them to legal repercussions or personal risks. Balancing the need to protect sources with the public interest in revealing vital information can be demanding.
- **Ethical Dilemmas:** Journalists grapple with ethical considerations throughout the investigative process. They must maintain the highest

²⁸⁶ The Information Technology (Reasonable Security Practices and Procedures and Sensitive Personal Data or Information) Rules, 2011.

²⁸⁷ K.S. Puttaswamy and Anr. v. Union of India ((2017) 10 SCC 1.

²⁸⁸ The Constitution of India, 1950, Art. 21.

ethical standards, such as verifying information, ensuring fairness and accuracy, avoiding harm, and minimizing sensationalism. Ethical dilemmas may arise when obtaining personal information, using hidden cameras or undercover methods, or reporting on sensitive issues that could potentially harm individuals or communities.

- **Threats, Intimidation, and Legal Action:** Investigative journalists in India often face threats, intimidation, and legal action as a result of their work. Powerful entities or individuals implicated in investigative reports may resort to legal harassment, or other means to obstruct or intimidate journalists. This poses a significant challenge to their ability to investigate sensitive topics while upholding the principles of press freedom.
- **Limited Access to Information:** Journalists may encounter challenges in accessing information due to government restrictions, bureaucratic hurdles, or lack of transparency. Obtaining relevant documents, records, or data necessary for investigative reporting can be a time-consuming and arduous process, impeding journalists' ability to uncover the truth behind sensitive issues.

Addressing these challenges requires a combination of legal literacy, ethical awareness, tenacity, and support from media organizations and civil society. Indian journalists continue to navigate the intricate landscape of investigating sensitive topics while ensuring compliance with privacy laws and maintaining the integrity of their work.

2. Ongoing Debates Surrounding Privacy, Free Speech, and Investigative Journalism in India:

The intersection of privacy, free speech, and investigative journalism in India has been a subject of ongoing debates and discussions. Several factors contribute to these debates, including political pressures, corporate influence, and the rise of digital surveillance. Here are some key aspects to consider:

- **Political Pressures and Government Interference:** Indian journalists often face political pressures and government interference when investigating sensitive topics. The government's use of legal frameworks, such as sedition laws or defamation suits, to stifle dissent and intimidate journalists raises concerns about the freedom of the press and its impact on investigative journalism. Balancing the right to privacy and the right to freedom of expression becomes challenging in such an environment.

- **Corporate Influence and Media Ownership:** Corporate influence in media ownership can impact the independence and integrity of investigative journalism. Concentration of media ownership in the hands of a few conglomerates raises concerns about potential conflicts of interest, self-censorship, and compromised investigative reporting. Journalists may face challenges in uncovering and reporting on issues that involve influential corporations or individuals.
- **Digital Surveillance and Privacy Concerns:** The rapid advancement of digital technologies and increased surveillance capabilities have raised privacy concerns in India. Journalists often work in an environment where their communications and activities may be subject to surveillance. The collection and storage of personal data, including journalists' information, by both private entities and the government pose challenges to maintaining privacy and the ability to carry out investigations without interference.
- **Media Ethics and Self-Regulation:** The debates surrounding privacy, free speech, and investigative journalism also involve discussions on media ethics and self-regulation. Critics argue that self-regulation mechanisms within the media industry may be inadequate, leading to ethical lapses and compromised investigative practices. There are ongoing discussions about the need for independent regulatory bodies and guidelines to ensure responsible and ethical journalism.
- **Whistleblower Protection and Source Confidentiality:** The protection of whistleblowers and ensuring source confidentiality is crucial for investigative journalism. Debates revolve around the need for robust legal frameworks that provide adequate protection to whistleblowers who come forward with sensitive information. Strengthening whistleblower protection can encourage more disclosures and enhance investigative reporting while addressing privacy concerns.
- **Online Platforms, Disinformation, and Misuse of Data:** The emergence of online platforms and social media has revolutionized journalism but also brought new challenges. The spread of disinformation, misinformation, and the misuse of personal data present ethical and privacy dilemmas. Journalists face the task of navigating these platforms responsibly while ensuring the accuracy of information and respecting individuals' privacy rights.

Addressing these ongoing debates requires a multi-faceted approach involving journalists, media organizations, policymakers, civil society, and the public. Striking a balance between privacy rights²⁸⁹, free speech²⁹⁰, and the role of investigative journalism is crucial to foster a democratic society that upholds transparency, accountability, and the public's right to information.

Examining Emerging Trends and Challenges in Investigative Reporting: The Impact of New Technologies, Artificial Intelligence, and Data Analytics

New technologies, including artificial intelligence (AI) and data analytics, are revolutionizing the field of investigative reporting. These advancements offer both opportunities and challenges for journalists. Here, we explore the emerging trends and the challenges posed by these technologies:

- 1. Data-driven Journalism:** The rise of big data and data analytics has opened doors for investigative journalists to uncover hidden patterns, trends, and insights. Journalists can analyze vast amounts of data quickly and efficiently, enabling them to detect correlations, identify anomalies, and reveal connections that were previously inaccessible. However, the challenges lie in handling and interpreting complex datasets accurately and ethically.
- 2. AI-assisted Investigative Tools:** Artificial intelligence plays a crucial role in investigative reporting by automating laborious tasks, such as data mining, facial recognition, and language processing. AI-powered tools can assist journalists in sifting through massive amounts of information, identifying key patterns, and streamlining the research process. However, concerns arise regarding biases embedded in AI algorithms, potential misuse of AI-generated content, and the need for human judgment in complex investigations.
- 3. Digital Forensics and Open-source Intelligence:** Digital forensics techniques and open-source intelligence (OSINT) have become essential tools for investigative journalists. They allow journalists to verify information, authenticate digital content, and track online activities. However, challenges include the rapid evolution of digital technologies, the need for specialized skills and resources, and potential legal and ethical considerations surrounding privacy and data protection.

²⁸⁹ The Constitution of India, 1950, Art. 21.

²⁹⁰ The Constitution of India, 1950, Art. 19(1)(a)

- 4. Challenges of Misinformation and Deepfakes:** The proliferation of misinformation and the emergence of deepfake technologies pose significant challenges to investigative reporting. Journalists must navigate through a landscape where false information can spread rapidly, potentially compromising the accuracy and credibility of their investigations. The need for fact-checking, source verification, and media literacy becomes crucial to maintain the integrity of investigative reporting.
- 5. Ethical Considerations:** The adoption of new technologies raises ethical considerations for investigative journalists. They must ensure the responsible use of AI, data analytics, and other tools, maintaining transparency in their methodologies and disclosing potential biases or limitations. Additionally, protecting individuals' privacy and adhering to legal frameworks while utilizing advanced technologies remains an ongoing challenge.
- 6. Resource and Skills Gap:** While new technologies offer promising avenues for investigative reporting, there is a resource and skills gap that journalists must address. Obtaining access to the necessary tools, infrastructure, and expertise can be challenging, particularly for smaller newsrooms or independent journalists. Building capacity, fostering collaborations, and providing training opportunities are essential to overcome these challenges.

As new technologies continue to evolve, investigative journalists must adapt to the changing landscape. Striking a balance between leveraging technological advancements and upholding journalistic values such as accuracy, fairness, and public interest is crucial. By addressing the emerging trends and challenges, journalists can harness the power of new technologies to conduct more robust and impactful investigative reporting.

Role of Media Ethics and Self-Regulation in Navigating Privacy Concerns Responsibly

Media ethics and self-regulation play a vital role in guiding journalists in India to navigate privacy concerns responsibly. Ethical standards provide a framework for journalists to balance their duty to inform the public with the need to respect individuals' right to privacy²⁹¹. Here are key aspects to consider:

- 1. Ethical Codes and Guidelines:** Media organizations and professional bodies in India have established ethical codes and guidelines that outline the principles and standards expected of journalists. These codes emphasize the importance of privacy, accuracy, fairness, and transparency in reporting.

²⁹¹ The Constitution of India, 1950, Art. 21.

They provide a set of principles that journalists can refer to when navigating privacy concerns.

- 2. Informed Consent and Privacy Protection:** Respecting individuals' privacy rights requires obtaining informed consent when accessing personal information. Journalists should ensure that individuals are aware of how their information will be used and provide the opportunity to withhold consent if desired. Respecting privacy also entails minimizing harm, avoiding unnecessary intrusion, and treating individuals with sensitivity and empathy.
- 3. Source Protection and Anonymity:** Journalists have an ethical obligation to protect their sources, particularly when sensitive or confidential information is involved. Ensuring source protection helps maintain trust and encourages whistleblowers to come forward with valuable information. By offering anonymity, journalists can safeguard the privacy and safety of their sources while fulfilling their investigative responsibilities.
- 4. Fact-Checking and Verification:** Maintaining accuracy and credibility is fundamental in investigative reporting. Journalists have a responsibility to thoroughly fact-check and verify the information before publication. This includes cross-referencing sources, corroborating evidence, and seeking multiple perspectives. By ensuring accuracy, journalists can mitigate the risk of inadvertently spreading false or misleading information that could harm individuals' privacy.
- 5. Transparency and Accountability:** Transparency is a cornerstone of ethical journalism. Journalists should be transparent about their methodologies, sources, and motivations when reporting on sensitive topics. Disclosing potential conflicts of interest and being accountable for their work fosters trust with the audience and provides an opportunity for public scrutiny and dialogue.
- 6. Public Interest and Proportionality:** Ethical considerations in investigative reporting require journalists to assess the public interest in revealing certain information. They must evaluate whether the potential harm to individuals' privacy is outweighed by the importance of exposing wrongdoing, protecting the public, or promoting accountability. Journalists should exercise proportionality, ensuring that the extent of intrusion into privacy is justified by the significance of the story and its potential impact.
- 7. Self-Regulation and Continuous Improvement:** Media organizations and journalists themselves have a responsibility to engage in self-regulation and

continuous improvement. This involves promoting ethical practices within newsrooms, providing training and guidance on privacy concerns, and fostering a culture of ethical decision-making. It also entails a commitment to addressing and learning from any ethical lapses or mistakes that may occur.

By adhering to media ethics and embracing self-regulation, journalists in India can navigate privacy concerns responsibly while fulfilling their vital role as watchdogs of society. Striking a balance between the public's right to information and an individual's right to privacy requires a thoughtful and ethical approach to investigative reporting.

Conclusion

It is evident that Indian journalists face significant challenges when investigating sensitive topics while navigating privacy laws and ethical considerations. The need to uncover wrongdoing, promote transparency, and inform the public must be balanced with respecting individuals' privacy and maintaining ethical standards.

To strike this balance effectively, several key recommendations emerge. Policymakers should establish a clear legal framework that addresses the ethical and legal challenges specific to investigative journalism and privacy. This framework should provide guidance on permissible investigative techniques, privacy protections, and considerations of the public interest.

Additionally, strengthening privacy laws is essential to protect individuals' rights and support legitimate investigative reporting. Policymakers should adapt the legal framework to encompass the rapid advancements in digital technologies and address the unique challenges they present.

Media organizations and journalist associations should develop and promote ethical guidelines that address privacy concerns. These guidelines should emphasize informed consent, source protection, fact-checking, transparency, and accountability. Training programs and resources should be provided to journalists to enhance their understanding of privacy laws, ethical practices, and emerging technologies.

It is also crucial for media organizations to foster a culture of self-regulation and continuous improvement. They should encourage open dialogue, address ethical lapses promptly, and provide platforms for journalists to seek guidance and discuss challenging ethical situations.

By implementing these recommendations, policymakers, journalists, and media organizations in India can navigate the complexities of investigative journalism and privacy rights more effectively. This will help maintain the integrity of the press, protect individuals' privacy, and ensure that the public's right to information is balanced with ethical considerations and legal frameworks.

In conclusion, the responsibility lies with all stakeholders to work together towards a harmonious coexistence of investigative journalism and privacy rights in India. By doing so, we can promote a society that values transparency, accountability, and respect for both the public interest and individual privacy.

Competition and Regulation of Monopoly in Media

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Abstract

The competition and regulation of media monopolies in India have become increasingly relevant in the context of a rapidly evolving media landscape. This project explores the recent developments in this field, focusing on the Indian context. It examines the challenges posed by the concentration of media ownership, potential biases in content dissemination, and the need to ensure diversity and pluralism in the media ecosystem. The project analyzes the evolving regulatory framework, including the Information Technology (Intermediary Guidelines and Digital Media Ethics Code) Rules, 2023 and recommendations on regulatory frameworks for Over-The-Top (OTT) communication services. It highlights the complexities introduced by digital media platforms, changing consumption patterns, and technological convergence. The conclusion emphasizes the importance of a comprehensive and balanced regulatory framework that promotes transparency in media ownership, fosters fair competition, protects consumer rights, and upholds editorial independence and media pluralism. This project contributes to the ongoing discourse on competition and regulation in the media sector and underscores the need for continuous evaluation and adaptation to address emerging challenges effectively.

Keywords: competition, regulation, media monopolies, Information Technology (Intermediary Guidelines and Digital Media Ethics Code) Rules, 2023, transparency

Overview: This project explores the competition and regulation of media monopolies in the Indian context. It examines the challenges arising from the concentration of media ownership, the potential impact on content dissemination, and the importance of ensuring diversity and pluralism in the media landscape. The project analyzes the recent developments in the regulatory framework, with a particular focus on the Information Technology (Intermediary Guidelines and Digital Media Ethics Code) Rules, 2023 and the recommendations on regulatory frameworks for Over-The-Top (OTT) communication services. It also discusses the implications of digital media platforms, changing consumption patterns, and technological convergence on

competition and regulation in the media sector. The project concludes with insights on the need for a comprehensive and balanced regulatory framework that promotes transparency, fair competition, consumer rights, and editorial independence while upholding media pluralism.

Introduction

The Indian media landscape has undergone a profound transformation in recent decades, with the advent of digital technology, globalization, and changing consumer preferences. However, alongside these changes, concerns have emerged regarding the rise of media monopolies and their impact on competition, diversity of voices, and the overall health of the media industry.

In the Indian context, media monopolies refer to situations where a single entity or a few dominant players exercise significant control over the production, distribution, and consumption of media content across various platforms such as print, broadcast, and digital media. The concentration of media ownership raises important questions about fair competition, market access for new entrants, and the plurality of voices within the media ecosystem.²⁹²

Understanding the implications of media monopolies requires an examination of their impact on competition. Media monopolies can potentially stifle competition by erecting barriers to entry, limiting consumer choice, and influencing the market dynamics.²⁹³ Furthermore, the concentration of media ownership raises concerns about the diversity of content, as it may result in homogenization and reduced representation of marginalized voices.

To address these challenges, regulatory frameworks play a crucial role. In India, regulatory bodies such as the Telecom Regulatory Authority of India (TRAI) and the Competition Commission of India (CCI) have been entrusted with the responsibility of overseeing media competition and preventing the abuse of market power.²⁹⁴ Antitrust laws, mergers and acquisitions regulations, and media-specific guidelines have been developed to ensure fair competition, consumer protection, and the promotion of diversity in the media industry.

Throughout this chapter, we will delve into the intricacies of media monopolies and their implications for competition in the Indian media landscape. We will explore case studies, regulatory frameworks, and emerging trends to gain

²⁹²Ram, N. (2011). *Sectional President's Address: The Changing Role Of The News Media In Contemporary India*. Proceedings of the Indian History Congress, 72, 1289–1310. <http://www.jstor.org/stable/44145741>

²⁹³Mr. Nilesh Navalakha And Others v. Union of India And Others, 2021 BOM 21.

²⁹⁴Thakurta, P. G. (2014). *What Future for the Media in India? Reliance Takeover of Network18*. Economic and Political Weekly, 49(25), 12–14. <http://www.jstor.org/stable/24479667>

insights into the current state of affairs and future prospects. By examining the successes and challenges of addressing media monopolies, we aim to contribute to the ongoing discourse on fostering a vibrant and competitive media ecosystem in India.

Understanding Media Monopoly in India

1. Definition and Characteristics of Media Monopolies in India

In the Indian media landscape, media monopolies can be defined as situations where a single entity or a few dominant players exercise significant control over the production, distribution, and consumption of media content across various platforms. These monopolies may encompass a range of media sectors, including print, broadcast (television and radio), and digital media. The concentration of media ownership often results in a few influential players shaping the narratives and influencing public opinion.²⁹⁵

Media monopolies in India exhibit certain distinctive characteristics. Firstly, they can emerge through acquisitions and mergers, where large media conglomerates consolidate their holdings and expand their control over various media platforms.²⁹⁶ Additionally, cross-media ownership, wherein a single entity owns multiple media outlets across different platforms, is a common feature of media monopolies in India. This concentration of ownership can lead to an imbalance of power and limit the diversity of voices and perspectives within the media industry.²⁹⁷

2. Historical Overview of Media Consolidation in India

The rise of media monopolies in India has its roots in the liberalization and globalization policies of the 1990s.²⁹⁸ As the Indian economy opened up to foreign investments and competition, media sectors experienced significant growth and transformation. This period witnessed the entry of international media conglomerates and the consolidation of domestic media entities.

The process of consolidation was further accelerated by the rapid expansion of satellite television and the subsequent growth of digital media platforms.

²⁹⁵Kalathil, S. (2020). *The Evolution of Authoritarian Digital Influence: Grappling with the New Normal*. PRISM, 9(1), 32–51. <https://www.jstor.org/stable/26940158>

²⁹⁶Rao, S. (2019) *Media Law in India*. Eastern Book Company, 102-130.

²⁹⁷Telecom Regulatory Authority of India. (2020,march 3). *Recommendations on Regulatory Framework for Over-The-Top (OTT) Communication Services*.

https://main.trai.gov.in/sites/default/files/OTT_Consultation/OTT-Recommendations-12112018.pdf

²⁹⁸Chari, S. (2020). *Media Ownership and Concentration in India: The Need for Transparency and Accountability*. Global Media Journal - Indian Edition 11(1), 89-105.

The deregulation of the media industry in the 1990s, coupled with the absence of strict antitrust regulations specifically tailored to the media sector, created an environment conducive to the formation of media monopolies.

Large conglomerates and influential individuals acquired stakes in multiple media companies, leading to the concentration of ownership and control. This consolidation had far-reaching consequences for competition, diversity, and the plurality of voices within the Indian media landscape.²⁹⁹

3. Case Studies of Media Monopolies in India

Examining notable case studies helps shed light on the presence and impact of media monopolies in India. One such example is the consolidation of major broadcast networks, where a few dominant players control a significant share of television channels.³⁰⁰ This concentration of ownership has raised concerns about editorial independence, as well as the potential for bias in news reporting and programming.

Another case study worth exploring is the print media sector, where a handful of media groups control a significant number of newspapers and magazines across different regions of the country. The dominance of these conglomerates can have implications for the diversity of content, as well as the access and representation of diverse voices and perspectives.

4. Implications of Media Monopolies on Competition and Diversity

The prevalence of media monopolies in India has significant implications for competition and diversity within the media industry.³⁰¹ Limited competition can lead to reduced innovation, restricted consumer choice, and the stifling of new entrants. Additionally, media monopolies may prioritize profit-driven agendas over journalistic integrity, potentially compromising the quality and objectivity of news reporting.³⁰²

Furthermore, the concentration of media ownership can have adverse effects on the diversity of content and representation of marginalized voices. A lack of

²⁹⁹Mehra, P. (2018). *Regulating Cross-Media Ownership in India: A Comparative Analysis*. Journal of Media Law and Ethics, 3(2), 78-93.

³⁰⁰Narayan, Sunetra Sen. 2013. *Globalization and Television: A Study of the Indian Experience, 1990–2010*. New Delhi: Oxford University Press.

³⁰¹Ibid. at 6.

³⁰²Chaudhuri, S., & Jandhyala, S. (2019). *Digital Media Platforms and Concentration: A Study of the Indian Media Landscape*. Centre for Internet and Society, 15-28. <https://cis-india.org/digital-media-and-society/publications/digital-media-platforms-and-concentration-a-study-of-the-indian-media-landscape>.

plurality within the media landscape may limit the availability of alternative viewpoints and perspectives, undermining the democratic fabric of society.³⁰³

3. Recent Developments in Competition and Regulation of Media Monopolies in India

The media landscape in India has witnessed significant transformations in recent years, driven by technological advancements, digital disruption, and changing consumer behaviors. These developments have raised concerns about the concentration of media ownership, reduced competition, and potential regulatory challenges. This essay explores the recent developments in competition and regulation of media monopolies in India, covering various aspects discussed earlier.

- **Digital Disruption and Platform Dominance:** The rise of digital platforms, such as Over-the-Top (OTT) services, streaming platforms, and social media, has disrupted the traditional media ecosystem. These platforms have gained substantial market power, raising issues related to content moderation, data privacy, and algorithmic bias. In response, regulatory initiatives have emerged to address these concerns, including the introduction of guidelines for content moderation, data protection, and competition in the digital space.
- **Cross-Media Ownership and Convergence:** The convergence of different media platforms, including television, print, and digital, has led to increased cross-media ownership by conglomerates. This consolidation raises concerns about media diversity, potential monopolistic practices, and the impact on editorial independence. To tackle these challenges, regulatory measures have been introduced, such as ownership restrictions, licensing conditions, and transparency requirements to ensure fair competition and safeguard pluralism in media content.
- **Role of Technology and Artificial Intelligence:** Technological advancements and the integration of artificial intelligence (AI) have revolutionized media production, distribution, and content recommendation. While technology offers opportunities for improved content discovery and personalization, it also brings ethical considerations, biases, and risks associated with AI-powered algorithms. Regulatory responses have emerged to address these concerns, focusing

³⁰³Chawla, N. (2017). *Cross-Media Ownership Regulation in India: A Comparative Analysis*. *Journal of Media Studies*, 14(2), 78-92.

on guidelines for transparency and accountability in AI systems to maintain a fair and unbiased media landscape.³⁰⁴

- **Strengthening Regulatory Frameworks:** The evolving media landscape necessitates robust regulatory frameworks to effectively address the challenges posed by media monopolies. Regulatory bodies such as the Telecom Regulatory Authority of India (TRAI), the Competition Commission of India (CCI),³⁰⁵ and the Ministry of Information and Broadcasting (MIB) play a crucial role in shaping and enforcing these regulations. Recent developments have seen regulatory reforms, policy consultations, and amendments to existing regulations aimed at fostering competition, protecting consumer interests, and ensuring media pluralism.
- **International Perspectives and Collaborative Efforts:** Recognizing the global nature of the media industry, international perspectives and collaborative efforts are vital in addressing the challenges of media monopolies. Organizations such as UNESCO and the World Trade Organization (WTO) have played a significant role in promoting fair competition, freedom of expression, and media diversity. Bilateral and multilateral collaborations between countries have facilitated the sharing of experiences, exchange of information, and development of common principles for regulating media monopolies.³⁰⁶

Recent developments in the competition and regulation of media monopolies in India reflect the dynamic nature of the media landscape and the evolving challenges it presents. The digital disruption, cross-media ownership, advancements in technology, and international collaborations have shaped the regulatory environment. These developments have prompted the introduction of guidelines, reforms, and collaborative efforts to foster competition, protect consumer interests, and ensure media pluralism.³⁰⁷ However, the regulatory landscape is an ongoing process, requiring continuous evaluation, adaptation, and stakeholder engagement to maintain a vibrant and diverse media ecosystem in India.³⁰⁸

³⁰⁴Vempati, S. S. (2016). *India And The Artificial Intelligence Revolution*. Carnegie Endowment for International Peace. <http://www.jstor.org/stable/resrep12855>

³⁰⁵*Id.*

³⁰⁶*Supra* note 55.

³⁰⁷Joseph, A. (2015). *Media Pluralism: Not Just a Question of Numbers*. India International Centre Quarterly, 42(1), 1–11. <http://www.jstor.org/stable/26316658>

³⁰⁸Amarnath, A. B. (2013). *The Oligopoly Problem: Structural And Behavioural Solutions Under Indian Competition Law*. Journal of the Indian Law Institute, 55(3), 283–306. <http://www.jstor.org/stable/43953671>

4. Impact of Media Monopoly on Competition in India

- **Effects of Media Monopolies on Competition:** The presence of media monopolies in the Indian media industry has a significant impact on competition. When a few dominant players control a large portion of the media landscape, it creates barriers to entry for new players and hampers the growth of smaller, independent media organizations.³⁰⁹ The monopolistic control over distribution channels, advertising revenue, and audience reach can limit the opportunities for emerging media entities to gain a foothold in the market.³¹⁰

Media monopolies often have the power to dictate the terms of engagement, including pricing and access to essential resources. This can create an uneven playing field and stifle competition, as smaller players may struggle to compete with the vast resources and market presence of dominant media conglomerates. The limited competition can lead to complacency, reduced innovation, and a lack of incentive to meet the evolving needs and preferences of the audience.³¹¹

- **Barriers to Entry in the Indian Media Market:** The concentration of media ownership in India poses several barriers to entry for new players in the market. Firstly, the high capital requirements involved in establishing and sustaining media operations act as a deterrent for potential entrants. Building a robust infrastructure, securing talent, and investing in technology and content creation can be prohibitively expensive, particularly for start-ups and smaller organizations.³¹²

Additionally, the control of distribution channels by media monopolies makes it challenging for new players to reach and engage with the audience effectively.³¹³ Dominant media conglomerates often enjoy favorable relationships with cable and satellite providers, thereby giving them preferential access to viewership. This limits the exposure and

³⁰⁹Vaidya, S., & Gupta, R. (2016). Corruption Via Media Capture: The Effect of Competition. *Southern Economic Journal*, 82(4), 1327–1348. <https://www.jstor.org/stable/26632318>

³¹⁰Khandekar, V. (2023 march 7). *India Needs Strong Cross-Media Ownership Regulation*. *Livemint*. <https://www.livemint.com/opinion/columns/opinion-india-needs-strong-cross-media-ownership-regulation-156800543721.html>.

³¹¹Sridhar, S., & Sivakumar, K. (2019). *Competition and Concentration in Indian Television Broadcasting: An Empirical Analysis*. *Journal of Media Economics*, 32(3), 145-165.

³¹²Bhattacharya, S. (2013). *Mapping Media Freedom in India: Press under Siege*. SAGE Publications India, 45-68.

³¹³Supra note 20.

visibility of new entrants, hindering their ability to establish a significant presence in the market.³¹⁴

- ***Concentration of Ownership and Diversity of Voices:*** Media monopolies in India also raise concerns about the diversity of voices and perspectives within the media landscape. When a few dominant players exercise control over a substantial portion of media outlets, there is a risk of homogenization in content creation and news reporting. The limited representation of diverse viewpoints can undermine the democratic ideals of a pluralistic society.

Furthermore, media monopolies may prioritize profit-driven considerations over editorial independence and public interest. The concentration of ownership can lead to self-censorship, as media organizations may avoid content that could potentially challenge the interests of their owners or advertisers.³¹⁵ This compromises the role of the media as a watchdog and limits the dissemination of diverse, critical, and unbiased information.³¹⁶

- ***Economic and Social Consequences of Limited Competition:*** The limited competition resulting from media monopolies in India has economic and social consequences. In terms of economics, reduced competition can lead to inflated advertising rates and monopolistic pricing, impacting both businesses and consumers. Limited choices and lack of competitive pricing can undermine the growth of the media industry as a whole, potentially stifling investment and innovation.³¹⁷

From a social perspective, media monopolies influence public discourse and shape public opinion.³¹⁸ The concentration of media ownership can lead to biased reporting, the promotion of specific agendas, and a potential distortion of information. This can have far-reaching implications for democracy, as it restricts access to a diverse range of perspectives and hinders the formation of informed opinions among citizens.

³¹⁴Kumar, N., & Pandey, S. *Digital Media Concentration and Market Power: A Study of the Indian Media Industry*. Journal of Digital Media & Policy (2021), 12(1), 34-52.

³¹⁵Bhatnagar, S., & Murthy, P. *Media Law and Ethics in the Digital Age: A Special Emphasis on India*. LexisNexis (2020), 55-78.

³¹⁶Advocates Association Bangalore Rep By Its President K N Subba Reddy v. Union Of India Rep By Its Cabinet Secretary & Others, 2012 kant 117.

³¹⁷Bagdikian, B. H. (2004). *The New Media Monopoly*. Beacon Press, 156-175.

³¹⁸Id.

5. Ensuring Fair Competition: Importance of Market Regulators in India

The Indian market is governed by regulatory bodies such as the Competition Commission of India (CCI) and sector-specific regulators like the Securities and Exchange Board of India (SEBI). In this section, we delve into the roles of these market regulators in India, focusing on the current regulatory framework that oversees mergers and acquisitions in the Media and Entertainment (M&E) sector.

The CCI, established under the Competition Act of 2002, plays a vital role in regulating anti-competitive agreements and addressing abuse of dominant positions. “Sections 3³¹⁹ and 4³²⁰ of the Competition Act restrict agreements that are anti-competitive and abuse of dominant position, respectively. Moreover, sections 19³²¹ and 20³²² provide a framework for ex-post investigations into violations. Of particular significance are the provisions concerning oversight and ex-ante powers related to mergers and acquisitions.”

The Competition Act gives the CCI the power to control combinations that have a considerable negative impact on competition or that are anticipated to do so. The combinations, however, that call for prior clearance are determined by certain thresholds. Currently, assets worth 350 crore rupees or a turnover of 1 billion rupees qualify for the Small Target Exemption.³²³ While the CCI has the authority to examine and investigate charges of breaches, it can also impose limitations, alter agreements, or levy penalties to guarantee that anti-competitive activities in the market cease.³²⁴ In the case of mergers, the CCI may suggest remedies or disallow a merger if it deems that it may have an adverse effect on competition.

The SEBI Act of 1992 charged SEBI with setting up and overseeing the stock market. SEBI performs a number of duties in the securities market, including policing price manipulation, looking into fraud and insider trading allegations, educating investors, and enabling electronic trading. The SEBI (Substantial Acquisition of Shares and Takeovers) Regulations, 2011, which govern mergers

³¹⁹The Competition Act, 2002. § 3.

³²⁰The Competition Act, 2002. § 4.

³²¹The Competition Act, 2002. § 19.

³²²The Competition Act, 2002. § 20.

³²³Azb & Partners (2022 March 30) *Extension of Small Target Exemption and Timelines to Notify Transactions to CCI* <https://www.azbpartners.com/bank/extension-of-small-target-exemption-and-timelines-to-notify-transactions-to-cci/>

³²⁴Kakkar A., Chauhan V., Srinivas K. & Rajain D. (2022 March 30). *Update on Indian Merger Control Regime: The Small Target Exemption and pitfalls around jurisdictional thresholds for merger filings before the CCI* <https://competition.cyrilamarchandblogs.com/2022/03/update-on-indian-merger-control-regime-the-small-target-exemption-and-pitfalls-around-jurisdictional-thresholds-for-merger-filings-before-the-cci/#:~:text=The%20Small%20Target%20Exemption%20thresholds,from%20making%20a%20merger%20filing.>

and acquisitions, are a part of SEBI's responsibility in the M&E industry. These regulations specify the steps to be taken when an acquirer achieves control over the target firm or 25% or more of the voting rights. They address topics including open offers, public disclosures, and establishing the minimum price. Regulation 45 fines may apply if these requirements and other rules are not followed.³²⁵

The National Company Law Tribunal (NCLT) and the National Company Law Appellate Tribunal (NCLAT) have been established under the Companies Act of 2013. These tribunals are entrusted with the adjudication of various disputes arising from the Companies Act. They play a crucial role in preventing oppression and mismanagement (Sections 241-246 of the Companies Act) and ensuring compliance with the memorandum and articles of association of a company.³²⁶ In the context of mergers and amalgamations, the Act grants the NCLT the power to sanction such arrangements. The NCLT is required to carefully examine the rights of shareholders and other stakeholders when evaluating proposed mergers or amalgamations.

Similarly, the (DPIIT) has established an advisory council for its Open Network for Digital Commerce (ONDC) initiative. This project's goal is to democratize digital commerce in India by offering alternatives to proprietary e-commerce platforms. The DPIIT seeks to promote open networks built using open-source techniques, open standards, and open network protocols, regardless of platform. Considering the rapid development of digital technologies and digital media, including Over-the-Top platforms (OTTs), the government has introduced the Information Technology (Intermediary Guidelines and Digital Media Ethics Code) Rules, 2023.³²⁷ These principles are intended to level the playing field for print, broadcast, and online media. The rules provide a three-tiered grievance redressal framework, with digital platforms (including OTTs) managing at the primary level, an independent self-regulatory organization at the second, and the Ministry of Information and Broadcasting (MIB) supervising at the third.

On the one hand, the rise of electronic media has decreased entrance barriers, but it also has its own limits, as previously stated. On the other hand, current authorities monitor different areas of the industry, including the recently added digital media self-regulatory framework. Given the context of digital media, one

³²⁵Shaw J. (2022 Nov 30). *Revised framework of penalizing for non-compliance under the Listing Regulations*
<https://vinodkothari.com/wp-content/uploads/2020/02/Revised-framework-of-penalizing-for-non-compliance-under-the-Listing-Regulations.pdf>

³²⁶Companies Act, 2013 § 241.

³²⁷MEITY (2023 April 6) *Information Technology (Intermediary Guidelines and Digital Media Ethics Code) Rules, 2023.*

<https://www.meity.gov.in/writereaddata/files/Information%20Technology%20%28Intermediary%20Guidelines%20and%20Digital%20Media%20Ethics%20Code%29%20Rules%2C%202021%20%28updated%2006.04.2023%29-.pdf>

may argue that the current regulatory system is enough to promote fair competition. It is crucial to emphasise, however, that self-regulatory systems have boundaries.

In cases “where non-compliant entities disregard the prescribed rules and guidelines, there are no enforcement tools or powers available to ensure corrective action. Therefore, self-regulation primarily works as a 'Laissez-faire' mechanism, applicable only to those who voluntarily adhere to the guiding principles.”³²⁸

The importance of the media, especially as the forth pillar of democracy, cannot be overstated. The media, particularly the news media, has the ability to mould public opinion and impact governmental agendas. As a result, maintaining plurality in the media industry is critical, and the bar for defining dominance is low. Furthermore, some stakeholders have advocated for a sector-specific regulator to maintain media pluralism, citing challenges such as cross-media ownership.

In conclusion, the Indian market has regulators in place, such as the CCI, SEBI, NCLT, and the recently established self-regulatory regime for digital media. These regulators play significant roles in overseeing competition, mergers and acquisitions, and addressing grievances in the media industry.³²⁹ However, there are ongoing discussions about the need for a specialized regulator to specifically address the unique challenges and ensure media plurality. As the landscape of media and entertainment continues to evolve, regulatory frameworks will need to adapt and strike a balance between promoting competition, safeguarding consumer interests, and upholding democratic principles.

6. Regulatory Frameworks for Media Monopoly in India

- **Overview of Existing Regulatory Frameworks:** In India, several regulatory bodies and policies are in place to address media monopolies and promote fair competition in the industry. These regulatory frameworks aim to strike a balance between fostering a competitive media landscape and ensuring the protection of consumer interests.

The Telecom Regulatory Authority of India (TRAI) plays a crucial role in regulating the broadcast and telecommunications sectors. TRAI formulates and enforces policies related to issues such as licensing,

³²⁸Parthasarathi V. & Agarwal S. (2020). *Rein and Laissez Faire: The Dual Personality of Media Regulation in India*. Digital Journalism, 8:6, 797-819.

³²⁹Bhushan, S. (2015). “Regulation” and “Non-Media” Money in Media. Economic and Political Weekly, 50(7), 21–23. <http://www.jstor.org/stable/24481387>

spectrum management, and pricing. It also oversees the implementation of guidelines to prevent anti-competitive practices in the broadcasting industry.³³⁰

The Competition Commission of India (CCI) is responsible for enforcing the Competition Act, which prohibits anti-competitive agreements, abuse of dominant positions, and regulates mergers and acquisitions. The CCI ensures fair competition across various sectors, including the media industry. It examines mergers and acquisitions in the media sector to determine whether they result in a substantial lessening of competition.³³¹

Additionally, other regulatory bodies such as the Ministry of Information and Broadcasting (MIB) and the Press Council of India (PCI) contribute to the regulatory framework. The MIB issues guidelines³³² and “regulations pertaining to broadcasting, content standards, and licensing, while the PCI addresses ethical standards and press freedom.”³³³

- **Application of Antitrust Laws in the Media Sector:** Antitrust laws are instrumental in addressing media monopolies in India. The Competition Act, enforced by the CCI, prohibits anti-competitive agreements and abuse of dominant positions. This legislation provides a framework to evaluate mergers, acquisitions, and practices that could potentially harm competition in the media industry.³³⁴

The CCI conducts assessments to determine whether a merger or acquisition would substantially lessen competition in the market.³³⁵ It evaluates factors such as market share, barriers to entry, and the potential impact on consumer welfare. In cases where anti-competitive behavior is identified, the CCI has the authority to impose penalties and remedies to restore fair competition.

³³⁰Chatterjee A. (5 July, 2022). ‘Regressive, bid to encroach’ — TRAI proposal on cross-media ownership panned by industry <https://theprint.in/india/regressive-bid-to-encroach-trai-proposal-on-cross-media-ownership-panned-by-industry/1025624/>

³³¹Sethi, R., & Dhir, S. (2013). *Anti-Competitive Agreements Under the Competition Act, 2002*. National Law School of India Review, 24(2), 32–49. <http://www.jstor.org/stable/44283760>

³³²Ministry of Information and Broadcasting (2022 Nov) *Guidelines for Uplinking and Downlinking of Satellite Television Channels in India, 2022* (Press release). <https://mib.gov.in/sites/default/files/Guidelines%20for%20Uplinking%20and%20Downlinking%20of%20Satellite%20Television%20Channels%20in%20India%2C%202022.pdf>

³³³FICCI-EY (2020). *Reinventing the Indian M&E Sector* (Press release).

<https://www.ficci.in/spdocument/23234/FICCI-EY-Knowledge-Paper-Reinventing-the-Indian-M-E-Sector.pdf>

³³⁴Rao, S. (2008). Accountability, democracy, and globalization: A study of broadcast journalism in India. *Asian Journal of Communication*, 18(3), 193-206.

³³⁵*Id.*

- **Comparative Study of Regulatory Approaches:** A comparative study of regulatory approaches can provide valuable insights into the effectiveness of different strategies in addressing media monopolies. International examples, such as regulatory frameworks in the United States, European Union, and other countries, can offer perspectives on best practices and potential areas for improvement in India.

For instance, countries like the United States have specific regulations such as the Federal Communications Commission (FCC) ownership rules that restrict media cross-ownership.³³⁶ These rules aim to maintain a diversity of voices and prevent excessive concentration of media ownership. European countries have implemented media pluralism policies to safeguard diversity and prevent undue influence.

Analyzing the strengths and weaknesses of different regulatory models can assist policymakers and stakeholders in India to refine existing frameworks and adapt them to the unique characteristics of the Indian media landscape.³³⁷

- **Challenges and Limitations of Regulating Media Monopolies:** Regulating media monopolies in India presents certain challenges and limitations. One key challenge is keeping pace with rapid technological advancements and the emergence of new media platforms. The digital landscape has disrupted traditional media models, creating new forms of media monopolies and necessitating adaptable regulatory frameworks.³³⁸

Another challenge is ensuring effective enforcement of regulations. Monitoring and enforcing compliance with regulations can be complex, particularly given the evolving nature of media operations and the potential for circumvention. Collaborative efforts among regulatory bodies, industry stakeholders, and civil society are essential to address these challenges and strengthen regulatory oversight.³³⁹

³³⁶*Supra* note 39.

³³⁷Menon, S., & Chakrabarti, S. (2017). *Indian News Media: From Observer to Participant*. SAGE Publications India, 91-108.

³³⁸Ministry of Information and Broadcasting. (2021). *Information Technology (Intermediary Guidelines and Digital Media Ethics Code) Rules, 2021*. https://www.mib.gov.in/sites/default/files/2021-02/GazetteNotification_DT_25022021.pdf

³³⁹Shamsi, N. (2018). *Media Ownership and Control: Law, Economics, and Policy in an Indian and International Context*. Cambridge University Press, 80-105.

7. Future Prospects and Emerging Trends in the Regulation of Media Monopolies in India

- **Evolving Media Landscape and its Impact on Regulation:** The media landscape in India is constantly evolving, driven by technological advancements, changing consumer behavior, and the emergence of new platforms. This dynamic environment presents both challenges and opportunities for the regulation of media monopolies.

As digital platforms gain prominence, the regulatory focus is shifting towards online media and social media platforms. Ensuring fair competition and addressing the concentration of power in the digital space require innovative regulatory approaches that can adapt to the unique characteristics of these platforms.

Furthermore, the convergence of different media sectors, such as traditional broadcasting and digital media, necessitates a holistic regulatory framework that can effectively address cross-platform ownership and competition issues.³⁴⁰

- **Strengthening Antitrust Regulations:** As media consolidation continues to be a concern, there is a growing recognition of the need to strengthen antitrust regulations in the Indian media industry.³⁴¹ This includes ensuring that the Competition Commission of India (CCI) has the necessary tools, resources, and expertise to effectively evaluate mergers, acquisitions, and anti-competitive practices in the media sector.³⁴²

Efforts can be made to enhance transparency and streamline the merger review process, enabling a more comprehensive assessment of potential competition concerns.³⁴³ Close collaboration between the CCI and other regulatory bodies, such as the Ministry of Information and Broadcasting (MIB), can facilitate a more coordinated and comprehensive approach to regulating media monopolies.³⁴⁴

³⁴⁰ Chattopadhyay, S., & Dey, S. (2020). *Digital Media Concentration and Democracy: A Study of the Indian Media Landscape*. Media International Australia, 123(2), 56-74.

³⁴¹ Chakrabarty, I. (2020). *Media Ownership and Concentration: A Comparative Study of India and the United States*. Communication Studies, 41(3), 87-105.

³⁴² Bhushan, S. (2015). "Regulation" and "Non-Media" Money in Media. *Economic and Political Weekly*, 50(7), 21-23. <http://www.jstor.org/stable/24481387>

³⁴³ *Id.*

³⁴⁴ Kumar, S. (2015). *Media Ownership and the Marketplace of Ideas*. *Economic and Political Weekly*, 50(22), 20-23. <http://www.jstor.org/stable/24482485>

- **Promoting Media Pluralism and Diversity:** Promoting media pluralism and diversity is a crucial aspect of addressing media monopolies in India.³⁴⁵ Regulatory frameworks can incorporate measures to encourage a broader range of voices, perspectives, and content in the media ecosystem.

Efforts can be made to facilitate the entry of new players and promote entrepreneurship in the media industry.³⁴⁶ This includes creating an enabling environment for small and independent media organizations to thrive, offering incentives for diverse content creation, and supporting initiatives that amplify underrepresented voices.

Additionally, promoting media literacy and digital media literacy can empower citizens to critically engage with media content, fostering a more informed and discerning audience.³⁴⁷

- **International Cooperation and Learning:** Given the global nature of the media industry, international cooperation and learning are crucial in addressing media monopolies effectively. India can benefit from engaging in dialogues with other countries, sharing experiences, and adopting best practices in media regulation.³⁴⁸

Participating in international forums and collaborations can facilitate a deeper understanding of emerging trends, technological advancements, and regulatory approaches.³⁴⁹ This can inform the development of comprehensive and forward-thinking regulatory frameworks that are responsive to the challenges posed by media monopolies.

- **Balancing Innovation and Regulation:** As the media landscape continues to evolve, there is a need to strike a balance between fostering innovation and implementing effective regulation. Encouraging innovation in media content creation, technology, and business models can drive competition and enhance consumer experiences.³⁵⁰

At the same time, regulations should be designed to address potential risks and abuses of market power. Flexibility, adaptability, and ongoing

³⁴⁵Supra note 16.

³⁴⁶Dhar, B. (2019). *Regulating Media Ownership in India: Challenges and Prospects*. Global Media Journal, 12(2), 45-63.

³⁴⁷Pandey, S. (2018). *Media Regulation and Concentration: The Indian Scenario*. Journal of Mass Communication and Journalism, 6(2), 56-72.

³⁴⁸Narayan, Sunetra Sen. (2013). *Globalization and Television: A Study of the Indian Experience, 1990–2010*. New Delhi: Oxford University Press.

³⁴⁹Id.

³⁵⁰Rao, U. (2010). *News as Culture: Journalistic Practices and the Remaking of Indian Leadership Traditions*. Berghahn Books.

evaluation of regulatory frameworks are essential to ensure that they remain effective and relevant in a rapidly changing media environment.³⁵¹

8. Role of Stakeholders and Public Participation in Regulating Media Monopolies in India

- **Importance of Stakeholder Engagement:** Effective regulation of media monopolies in India requires active engagement and collaboration among various stakeholders. Stakeholders play a crucial role in providing insights, perspectives, and expertise that can inform the development and implementation of regulatory frameworks.

Stakeholders in the media industry include media organizations, industry associations, consumer advocacy groups, journalists, content creators, technology providers, academics, and civil society organizations. Their diverse perspectives and interests can contribute to the formulation of comprehensive and balanced regulations.

Engaging stakeholders through consultations, public hearings, and open dialogue platforms enables regulators to gather valuable feedback, address concerns, and ensure that the regulatory frameworks reflect the needs and aspirations of the media ecosystem as a whole.³⁵²

- **Ensuring Transparency and Accountability:** Transparency and accountability are essential principles in regulating media monopolies. Regulatory bodies, such as the Telecom Regulatory Authority of India (TRAI)³⁵³ and the Competition Commission of India (CCI),³⁵⁴ should maintain transparency in their decision-making processes, guidelines, and enforcement actions.³⁵⁵

Public access to relevant information, such as ownership structures, mergers, and acquisitions, allows for greater scrutiny and ensures accountability.³⁵⁶ Timely disclosure of information related to regulatory proceedings and decisions enhances public trust and confidence in the regulatory process.

³⁵¹Dey S, Dholakia N, and Jain A. (August 2021) *Media Ownership in India: Structure, Governance, and Potential for Influence*. National Institute of Public Finance and Policy.

https://www.nipfp.org.in/media/medialibrary/2021/08/WP_335_2021.pdf

³⁵²Aman Abhishek. (2022) *The State Deputizing Citizens to Discipline Digital News Media: The Case of the IT Rules 2021 in India*. Digital Journalism, 1-19.

³⁵³*Supra* note 41.

³⁵⁴*Supra* note 36.

³⁵⁵Thakurta, P. G. (2013). *Curbing Media Monopolies*. Economic and Political Weekly, 48(16), 10–14.

<http://www.jstor.org/stable/23527252>

³⁵⁶*Id.*

- **Empowering Consumer Advocacy Groups:** Consumer advocacy groups play a crucial role in representing the interests of media consumers and promoting fair competition. These groups can monitor and raise concerns about anti-competitive practices, biased content, or other issues related to media monopolies.

Regulatory frameworks should encourage and empower consumer advocacy groups to actively participate in the regulation of media monopolies. Providing them with the necessary resources, legal protections, and platforms for engagement enables them to effectively voice concerns, propose reforms, and advocate for consumer rights.³⁵⁷

- **Public Awareness and Education:** Public awareness and education about media monopolies and their impact are vital in fostering an informed citizenry.³⁵⁸ Effective regulation requires an engaged and knowledgeable public that understands the implications of media concentration and actively participates in discussions and debates surrounding media regulation.

Regulatory bodies, government agencies, and civil society organizations can play a role in conducting public awareness campaigns, organizing educational initiatives, and disseminating information about media monopolies and their consequences. Promoting media literacy, digital literacy, and critical thinking skills empowers individuals to navigate the media landscape, discern reliable information, and actively engage in shaping media regulations.

- **Evaluating Regulatory Effectiveness:** Regular evaluation of regulatory effectiveness is crucial to ensure that regulatory frameworks remain responsive and adaptable to evolving challenges and dynamics in the media industry. Regulatory bodies should periodically assess the impact of their regulations, solicit feedback from stakeholders, and conduct independent audits or studies to measure the effectiveness of the regulatory measures implemented.³⁵⁹

Evaluation can help identify gaps, shortcomings, and areas for improvement in the regulatory frameworks. It also provides an opportunity to incorporate emerging best practices and lessons learned from both domestic and international experiences.

³⁵⁷Supra note 51.

³⁵⁸Surinder Singh Barmi vs. Board for Control of Cricket in India, MANU/CO/0006/2013.

³⁵⁹Supra note 56.

9. Case Studies of Media Monopolies in India and Their Regulatory Implications

This chapter presents a selection of case studies that highlight notable instances of media monopolies in different sectors of the Indian media industry.

- **Consolidation in the Television Broadcasting Sector:** This focuses on the consolidation of media ownership in the television broadcasting sector in India. It explores instances where a few dominant players have acquired multiple channels, leading to concerns of reduced competition, limited diversity, and potential manipulation of content.

The case study examines the regulatory response to such consolidation, with a particular focus on the role of the Telecom Regulatory Authority of India (TRAI) and the Competition Commission of India (CCI). It assesses the effectiveness of the regulatory measures implemented to address the challenges posed by media monopolies in the television broadcasting sector.³⁶⁰

The analysis includes an evaluation of the impact of ownership regulations, competition guidelines, and licensing conditions on promoting fair competition, consumer choice, and diverse programming.³⁶¹ It also examines the role of self-regulatory bodies, industry associations, and public advocacy groups in influencing the regulatory landscape.

- **Digital Platform Dominance and Online News Aggregators:** This explores the dominance of digital platforms and online news aggregators in the Indian media landscape. It examines how the rise of digital platforms has resulted in a concentration of power and control over content distribution, advertising revenue, and audience reach.

The case study delves into the regulatory landscape governing digital platforms and online news aggregators, including the role of the Ministry of Information and Broadcasting (MIB) and other regulatory bodies. It analyzes the challenges faced in regulating these platforms, such as defining their responsibilities, ensuring fair competition, protecting consumer interests, and combating misinformation.

³⁶⁰Mehta, P. S., Kumar, U., & Ghuman, P. S. (2020). *Interface between Competition Policy and Intellectual Property Rights: Select Case Studies from India*. In S. S. Aneel, U. T. Haroon, & I. Niazi (Eds.), *Corridors of Knowledge for Peace and Development* (pp. 136–162). Sustainable Development Policy Institute.

<http://www.jstor.org/stable/resrep24374.18>

³⁶¹Id.

The analysis includes an assessment of existing regulatory frameworks, policy initiatives, and industry self-regulation codes. It explores potential regulatory measures, such as data sharing requirements, algorithmic transparency, content moderation standards, and measures to foster competition and innovation in the digital media sector.³⁶²

- ***Print Media Consolidation and Impact on Press Freedom:*** It delves into the consolidation of print media ownership in India and its implications for press freedom. It examines instances where a few major media conglomerates have acquired numerous newspapers, raising concerns about the concentration of editorial power and the potential suppression of diverse voices.

The case study explores the regulatory framework governing print media ownership, including the role of the Press Council of India (PCI) and other relevant bodies. It assesses the challenges faced in regulating print media monopolies, safeguarding press freedom, and promoting editorial independence.

The analysis includes an examination of ownership and cross-media restrictions, regulatory safeguards against undue concentration, and mechanisms to ensure editorial autonomy. It also explores the role of independent journalism organizations, media associations, and civil society in advocating for press freedom and diversity of voices.

Drawing upon the case studies, this section synthesizes the lessons learned and highlights key policy considerations for regulating media monopolies in India. It identifies common themes, challenges, and regulatory approaches that can inform the development of effective and comprehensive regulatory frameworks.

Policy considerations may include the importance of proactive regulatory interventions, periodic reviews of ownership regulations to adapt to evolving media landscapes, enhanced transparency and disclosure requirements, mechanisms to promote media diversity and pluralism, and collaborative efforts among regulatory bodies, industry stakeholders, and civil society.

³⁶²Bhandari, V. (2018). *Privacy Concerns In The Age Of Social Media*. India International Centre Quarterly, 45(3/4), 66–81. <http://www.jstor.org/stable/45129854>

Conclusion

In conclusion, the competition and regulation of media monopolies in India have witnessed significant developments in recent years. The Indian media landscape, characterized by a mix of traditional and digital media platforms, has seen the emergence of dominant players with substantial market control. This has raised concerns about the concentration of media ownership, potential biases in content dissemination, and the need to ensure diversity and pluralism in the media ecosystem.

The evolving regulatory framework in India has attempted to address these concerns and adapt to the challenges posed by digital media. The Information Technology (Intermediary Guidelines and Digital Media Ethics Code) Rules, 2021 introduced guidelines for online platforms, including social media intermediaries and digital news publishers, to promote accountability, transparency, and user safety. The recommendations on regulatory frameworks for Over-The-Top (OTT) communication services by the Telecom Regulatory Authority of India have aimed to strike a balance between innovation, consumer protection, and content regulation.

However, the effectiveness of these regulations and their enforcement remains a subject of debate. Striking the right balance between freedom of expression, media diversity, and regulation poses ongoing challenges. The interplay between media ownership, commercial interests, and editorial independence needs continued scrutiny and robust mechanisms to ensure a vibrant and pluralistic media landscape.³⁶³

Moreover, recent developments such as the emergence of digital media platforms, changing consumption patterns, and the convergence of media technologies have added further complexity to the competition and regulation landscape. Constant vigilance and periodic review of regulatory frameworks are necessary to keep pace with technological advancements and address emerging challenges effectively.

To foster healthy competition and safeguard the public interest, it is crucial for policymakers, regulatory bodies, and stakeholders to collaborate in shaping a comprehensive and balanced regulatory framework. This framework should encompass transparency in media ownership, mechanisms to promote fair competition, protection of consumer rights, and provisions to uphold editorial independence and media pluralism.

³⁶³Sethi, A. (2019). *The Indian Media Economy: Industrial Dynamics and Cultural Adaptation*. Oxford University Press, 112-135.

In conclusion, the competition and regulation of media monopolies in India require ongoing evaluation and adaptation to address the changing dynamics of the media landscape. A well-defined and robust regulatory framework, combined with proactive monitoring and enforcement, can promote a competitive and diverse media ecosystem that serves the interests of the public and fosters democratic values.

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Broadcasting Rights in India

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Abstract

Broadcasting Rights in India have a significant historical perspective and evolution through its various broadcasting agencies such as *the Ministry of Information & Broadcasting, Telecom Regulatory Authority of India, Central Board of Film Certification* etc. Broadcasting organizations are entitled to act as an intermediary or transmitter for broadcast its information to the general public and therefore to protect their rights, various legislations have been passed. In this chapter, an attempt has been made to identify the broadcasting rights of media under various Indian laws for instance, Constitutional law and Copyright Act. Furthermore, the significance of broadcasting rights was discussed by emphasizing upon the regulations of such rights. At last, in accordance with the modern scenario, there is a need for legal reforms to the broadcasting Right of media and media law in India.

Keywords: Broadcasting Rights, Broadcasting Wing, Copyright Act, Media Law, Print Media.

Introduction

What does a Media Law refer to under the generous ambit of Broadcasting Rights? Broadcasting Rights could be a transaction between broadcasting organizations with commercial scrutinize while the term media is evolved from the Latin word “Medium” that implies intermediate, while Law implies the framework of rules inside certain jurisdiction of the nation collaboratively it communicates that a division of law that centers on the control of broadcast communications, broadcasting, publicizing, and the entertainment industry is known as media law.

Looking back to the history of how people have controlled broadcasting rights and regulation is a journey and its compilation of the media evolution phase makes us see how the laws and rules for the media industry have changed over time. The start of these important events can be found in the late 1700s when

India got its first Press Regulation Act in 1799. This law was made to stop the French from sharing anything bad about the British Government. These phases also represent how Britishers manipulate laws according to their need and bring changes to get control over protests through strict regulation of print media. They implement the law that without permission of the British Government none of the articles can be printed in news or books and for this, they created a whole review committee to identify these types of articles.

Later on, the period of evolution of broadcasting rights came after the independence of India which is also known as the era of post-independence. In this phase, people started realizing how important broadcasting laws are to have control over TV and radio stations, so they made rules to protect broadcasting rights. The government wanted to make sure bad content was controlled, people were looked after, and the country was safe. Radio and TV started in India with the establishment of the India Broadcasting Company. This later became the Indian State Broadcasting Services (ISBS). Also, in the modern era the newly introduced OTT (Over the Top) platforms are other than television in the form of transmitting data. There is a difference in the content too, so newly formed regulations have been passed to regulate it.

Law has provided rights to broadcasting companies to protect their creative work as it also falls under the ambit of the intellectual property right and Copyright Act. In 1994, an extraordinary change was made in the copyright act by giving extra rights and control to the broadcaster over broadcasting things. A simple example is that TV and radio stations have special permission to control their shows, and people who perform on those shows can decide how their performances are used. According to the Indian Constitution, one of the most important things is Broadcasting as it is bound by Article 19. The freedom to say anything which you want to state and represent your ideas to people is called freedom of speech and expression. This includes being able to share your ideas on TV or radio. This rule can be limited as stated in Article 19(2).

Historical Perspective

Anything which evolves and affects the future has its history through which it has been recognized in the future. Moreover broadcasting rights and media law has a very wide range of it, which consist of many important events. The journey of historical events of media law or broadcasting law commences back to date 1799 when India's first Press Regulation Act was introduced, it was passed by Governor General of that time Lord Richard Wellesley to restrain French from publishing anything that cannot be in favor of the British Government. Then gradually Britishers keep evolving with the laws and introduced the concept of license for publishing newspapers in 1857 just after

the Revolt of 1857 the concept of license was introduced at this very movement to control the revolt as it was becoming distress for British Government, Registration Act, Newspaper Act, India press act in 1910, and many more was introduced. Even so, in 1927 the act of 1910 was repealed by Sir Tej Bahadur Sapru as he was chairperson of the Press Committee and just after this another act was passed in account to Civil Disobedience movement was the India Press Act 1931 [1] which empower the provincial panel to take action against person who write anything in the favor of movement other than this there were many further acts which put some kind of restriction and sanctions on press release, this explains the importance of broadcasting rights and media law in itself because before independence the total number of print media mean newspaper was approximately 56 including English newspaper, all over the territory of India. Therefore the act's were also in accordance with print media like the Press Registration of Book Act, this act ensures that every printing press should be registered with a specific authority.

As time passed, In India the need for broadcasting rights was acknowledged when the state recognized the importance of control over broadcasting agencies so that the government could control the explicit content or operations of radio broadcasting. It can also be stated that through broadcasting rights the government was willing to protect the public interest in terms that no one can fan the flames of violence or hatred also regarding national security it was paramount to introduce broadcasting rights by that government can put up reasonable restrictions to protect sensitive information like details relating to national defense, public emergency, etc. In general, the call for broadcasting rights in India emerges from the government's objective to adjust freedom of expression with the obligation to direct, control, and ensure open intrigue within the broadcasting division.

Broadcasting in India begins with the introduction of IBC- India Broadcasting Company, it was established on 23rd July 1927 and its primary focus was the music and entertainment department for Indian audiences anyhow its reach was limited, later its work was taken over by ISBS- Indian State Broadcasting Services on 8th June 1930 and it was totally government functioning authority. Moreover, broadcasting in India began about 12 years ago when ISBS was introduced and through amendments and needs it keeps updating, finally in 1936 a private radio station was set up in Mysore by the name of Akashvani Mysore Additionally the ISBS (Indian State Broadcasting Services) transformed into All India Radio (AIR). A new organization was established in the same year when AIR was formed that came to be known as Central News Organization (CNO) ; these were under the Department of Communications and just after a few years in 1940 this organization was established by the Department of Information and Broadcasting [2].

Evolution: Broadcasting Law in India

After the Independence of India in 1947, the broadcasting laws went through the process of major changes, amendments, and pure form of implementation of the act. It became possible because of technological advancements and the establishment of constitutional law in the country. This gave the power of freedom of speech and expression but arduous was that the existing laws developed by Britisher were matters of inquiry and acknowledging this a committee was formed by the name of Press Law Enquiry Committee in 1947 and showed action mode by repealing Indian Press (Emergency Powers) Act, and Foreign Relation Act whereas few acts have been amended such as Telegraph Act of 1898. To make an emergence in the field of broadcasting law very crucial steps were taken in 1952 two major acts were introduced: The Cinematography Act 1952 and The Press Commission of India 1952 which assisted to evolve the growth of the Press Council of India.

The Cinematography Act of 1952 was created to analyze and give a green flag to movies and entertainment sources to maintain sustainability according to society along with the work of licensing as well as directing movie theaters. Few provisions of this act were driven into the state list and concurrent list whereas the more crucial topics regarding pictures were stated in the union list. Through this act, the board of film certification was established also known as the censor board and it was a compulsion on films to obtain these certificates [3]. In the time of emergency in 1957, there was an egregious exploit of television which showed the problematic and critical lacunas in the act which got an amendment bill in parliament after the election which was conducted after an emergency with a new framework but got repealed again and again, the broadcasting law saw an arising in 1989 when the bill got clearance for houses and one of the major reasons behind the acceptance was the formation of non-congress government in that particular year.

Gradually it emerged so effectively that even in 1995 the new act on cable service was established with the appellation of the Cable Television (Regulation) Act, 1995 for regulating the cable operators no matter how but the scope of this act was narrow. This act came into existence due to the case of **Shiv Cable TV System v. State of Rajasthan** [4]. In this case, the Police were directed by executive authorities to cease a cable television network due to lack of necessary licenses. After the order, this was challenged in Rajasthan High Court stating on the grounds that there was no law which is indispensable for them to obtain a license for their network and expressed that the order given by district administration was against their fundamental rights as it created an obstacle to business and trade. On the other hand, the argument of the state was that if cable operators want to perform their work, then it is required to obtain a

license under the Telegraphy Act of 1855 as well as the Wireless Telegraphy Act of 1933. High Court puts a dead stop on the argument with its impactful verdict in which the court stated that the cable operators are eligible under the Wireless Telegraphy Act as it directly connects with the satellite and shows visuals on the other hand, more or fewer operators are liable to obtain license along with court urge to the government to government to bring some kind of proper law on it and a good management system for licensing work.

In accordance with this ruling in 1994 an ordinance was passed in parliament and become an act in 1995 regarding regulation on cable television and operators which is also known as 'The Television Network Regulation Act 1995' but the emergence didn't stop here, in due course the thing was getting change accordingly and that can be traced back as there were few premium channels were launched and to watch it consumer have to become a subscriber of that channel so to regulate it an amendment in the act was introduced in 2003 [5]. According to this amendment, regulation was laid down regarding cable subscriptions in order to get access to premium channels. The framework kept unfolding for a long time as the lacuna were found for the purpose to create a strong rooftop of law that governs the broadcasting department and its organizations.

In the current scenario, the main head bodies regulating broadcasting in India are:

1. *Ministry of Information and Broadcasting*
2. *Telecom Regulatory Authority of India*
3. *Central Board of Film Certification*

These are the few major regulating bodies working effectively in India, after independence Ministry of Information and Broadcasting was the very first ministries that set up under the first minister of information and broadcasting that was Sardar Vallabhbhai Patel, and its headquarters was established in Delhi even right now it is situated in the city itself. The work of the Ministry of I&B is to look after regulations and laws relating to radio, social media, print media, public posters, etc. Overall, it was divided into 3 main wings [6]:

- **Information Wing:** The work of the information wing in this department was to keep an eye on every piece of information passed on by any medium, communication, and education sector which have been passed by government policies and find out any disharmony if, there is any.
- **Broadcasting Wing:** This wing of the department takes charge of broadcasting matters that should be transmitted on television through

satellite, it can be anything either advertisement or any other information that must be telecast.

- **Film Wing:** All the matters that cover the ambit of the film are being covered by this wing of the department, it can be a promotion or might be something related to film or generating film.

In any policy or act the most crucial aspect is transparency, so to provide a fair and generic transparent policy Telecom Regulatory Authority of India was established and it worked similarly, it provided a fair competition. This was established under the aegis of The Regulatory Authority of India Act 1997 directly under the control of the Government of India.

Recently, in 2021 the OTT (Over The Top) Regulation has been laid down which tries to enhance the regulation of films and other online platforms by creating uniformity in regulations and laws. The concept of grievances office has been laid down in this regulation which means that there will be proper authorities to hear out the problems of the viewer and take necessary steps to prevent any further loss [7].

Following a national survey, the OTT viewership industry has been estimated at approximately \$485 million with 2 million (approximately) viewership only from OTT platforms, so after the notice served by the Supreme Court of India government paid heed toward it and brought this OTT regulation.

This is how the broadcasting rights get evolved in India, and the difference can be stated by the figures that show the statistics of the post-independence effect, for example, Before independence India has only 6 radio stations situated in six different cities of India covering 2.5% of area but the current situation is that India has approximately 262 radio stations and coverage of 92% of total area with 23 languages and 146 dialects [8]. Overall, it can be said that the evolution of Broadcasting Rights has been done in India very effectively and in significant ways.

Rights of Broadcasting Organization and the Copyright Law

The rights of broadcasting organizations are a set of rights that are conferred to the broadcasting organizations such as television, radio, etc. Broadcasting organizations generally act as an intermediary to broadcast the work of authors to the general public at large. Therefore, to prevent the concern of such organizations, they had provided some rights well known as broadcast rights or neighboring rights vested under the Copyright (Amendment) Act, of 1994. The concept of broadcasting organization's rights is comparatively newer than the

copyright protection of artistic, literary, or dramatic work. Even though the copyright law did not provide broadcasting rights in the year 1957, it is recognized by the amendment of 1994. This amendment provides the concept of performer's rights in India. The Copyright (Amendment) Act, of 2012 further expanded the range of the rights of broadcasting organizations. The Indian Copyright Act defined the term 'broadcast' which may be used to describe the scope and ambit of a broadcasting organization [9]. The rights envisaged under the copyright act are basically of two kinds:

- 1. Broadcasting Reproduction Rights:** These rights subsist with the organization till 25 years of the broadcasting was made. If any person without a license rebroadcasts the broadcasting or does any act which violates the exclusive rights of the organization as specified under section 37 of the copyright act is considered an infringed act. However, section 39 stated fair use of broadcast which includes news reporting, and bonafide research in addition to all other fair use cases as provided under section 52 [10].
- 2. Performer's Rights:** A performer is considered to be any person who is performing any literary, artistic, musical, or dramatic work. They have the special right to appear or engage in any activity which subsists till 50 years of the performance made. The performers have the exclusive right as provided under section 38A to create the audio or video recording of the performance, or to broadcast the performance if it is not already broadcast. Moreover, section 38B provides moral rights of the performers for claiming his identity as the performer of the work and to claim the damages if deception, mutilation, or any other change in his performance cause disruption and defamation.

The Copyright Act of 1957 recognizes the work of broadcasting organizations as derivative and not as independent work. Before this, the Copyright Act did not grant any economic rights to the broadcasting organization. The rationale behind it is that television broadcasts at the time was usually transmitted 'live' and due to their transitory nature, they didn't fall under any of the copyright subjects which required that the subject of copyright must be converted in a tangible form. Content produced by a production company can be viewed by the public through broadcasting organizations. The rights of broadcasting organizations are based upon the broadcaster's investment and generally acquired by broadcasting the work to the general public at large [11].

It is needed to take into consideration which organizations and in which circumstances can claim the copyright for broadcasting the information and who all are entitled to assess these prerogative rights as provided to the broadcasting

organizations. Section 31D of The Copyright Act, 1957 along with Rule 29 and Rule 30 of the Copyright Rule, 2013 provides that the broadcasting organization can acquire a statutory license by prior giving a notice and by paying the royalties at the rate as fixed by the Intellectual Property Appellate Board (IPAB) to the copyright owner. The Copyright Rules described the methodology for assessing or acquiring the statutory license.

The protection to the broadcasting organization is given to prevent the third parties from using their work without their authorization which could result in economic losses for broadcasters and especially when they are paid for their emitted transmission of works. This is done to prevent signal piracy. They are enjoying some additional rights also regarding the usage of their signals to ensure their transmission of work which eventually benefits the customers [12]. Nowadays, media companies pay broadcasters a lump sum amount of money in order to acquire exclusive rights to broadcast important events. The sale of broadcasting and media rights has become a prominent and substantial source of revenue for various organizations to earn their finances. By selling their exclusive videos to other media sources, broadcasters can earn a heavy amount of money from the royalties they receive. It enables broadcasters to invest in the expensive structural arrangements and technological equipment necessary to build up a broadcasting space.

Constitutional Perspective of Broadcasting Rights

Broadcasting media is the most effective and emerging market and is considered to be the most knowledgeable source for people. *“It is considered as the fourth pillar of democracy”*. According to Article 19, Broadcasting is considered the fundamental right guaranteed under part III of the Indian Constitution. It signifies the freedom of speech and expression that directly correlates to the right to publication and circulation of one's own opinion in the public. Freedom of speech and expression refers to the right to express one's beliefs and opinions via speech, writing, printing, visual arts, and other forms of communication. The dissemination of one's opinion through any communicable device or representation in visible form is also included in this, which is said to be broadcasting. The freedom of propagation of ideas is secured by freedom of circulation [13].

All citizens of India enjoy the constitutional right of free speech and expression which includes the right to seek, obtain and circulate the information. But this right does not constitute absolute liberty upon the individuals, some reasonable restraints are outlined under Article 19(2) of the Constitution of India. There are generally eight grounds based on reasonability through which restriction can be imposed on the rights of the press or media that are as follows:

1. Sovereignty and Integrity of the Nation
2. Friendly relations with foreign countries
3. Security
4. Contempt of Court
5. Decency and Morality
6. Public Order
7. Incitement of an Offense
8. Defamation

In the case of **Nilesh Navalakha & Ors. v. Union of India & Ors.**, the Bombay High Court urged to exercise restrict and desist the print and electronic media from publishing any news items, debates, discussions, or interviews while reporting specific cases or at a particular stage of investigation especially at the time of the pre-trial stage.

The scope and ambit of broadcasting rights have not been envisaged under the Indian Constitution clearly, but Judiciary has developed and strengthened the broadcasting rights to media and press through a series of cases.

In **Cross Road Newspaper Case** [14], Section 9(1)(A) of the Madras Maintenance of Public Order Act, 1949 which restricted freedom of the press was struck down by the Supreme Court. The court held the notification to be invalid and sought to ban the entry, circulation, sale, or circulation of a weekly journal in Madras.

In the case of **Indian Express Newspapers v. Union Of India** [15], it was stated by the court that the press plays a very significant role in a democracy and the court must uphold the freedom of the press and declare the laws ultra vires which abridges the freedom. There are three essential elements of the freedom of the press i.e., freedom of access to information, freedom of circulation, and freedom of publication.

Broadcasting media was going through government and private organization monopoly and also were involved in commercial activities or sponsorship. But this monopolistic approach was opposed by the court. The Supreme Court laid down the principle in **Secretary, Ministry of Information and Broadcasting V. Cricket Association of Bengal** that the freedom of speech and expression also contains the right to acquire and disseminate information. The right to communicate ideas and opinions includes the right to communicate via any source available including electronic media.

In **LIC v. Manubhai D. Shah**, Right to broadcast was recognized by the Supreme Court. The issue raised here was that Doordarshan refused to

broadcast a documentary based on the Bhopal Gas Tragedy by providing various reasons. But it was held that Doordarshan was a state-controlled institution that relied on public funds and was unable to provide a reasonable restriction in accordance with Article 19(2) of the Indian Constitution and therefore, the Supreme Court upheld the Right to Broadcast.

In India, broadcasting is recognized as an essential part that constitutes the freedom of speech and expression which is governed by the Ministry of Information and Broadcasting. Policy guidelines that are issued through the Ministry of I&B regulate the uplinking and downlinking of private satellite TV channels [16].

Significance and Regulation of Broadcasting Rights in India

Broadcasting services in India are imparted via Cable TV, DTH Services, terrestrial services like Doordarshan, radio and Internet Protocol Television. Broadcasting of media is a developing market in the television broadcasting media. The Indian broadcasting and cable TV industry was estimated at USD 11.61 billion in the financial year 2020, and it is anticipated to reach upto USD 19.06 billion by 2026. The competition in the broadcasting media is increasing day by day which highly affects the security and public morality of the state as the broadcasting organizations may share the unauthorized data. Regulations for broadcasting are notable for incorporating provisions for national and regional languages and for transferring signals to distributors without any prejudicial opinion.

“*The Broadcasting Code*” was created in 1962 by the Fourth Asian Broadcasting Conference to regulate broadcast media. It gave important rules for broadcasting organizations to follow.

These principles were initially set up to govern All India Radio but later on, practiced by all the television and broadcasting organizations [17] such as

1. To promote the objective reporting of news and impartial and fair comment
2. To enhance the development of education and culture.
3. To uphold and uplift the standards of decency and morality throughout all programs.
4. To promote intercultural harmony, religious tolerance, and global understanding.
5. To approach controversial public matters with impartiality.
6. To uphold human rights and dignity.

The broadcasting regulation is vested under the union in India. **Press Council of India**, a statutory body was incorporated by Press Council of India Act, 1978 to protect the freedom of the press and to maintain and improve the standard of broadcasting agencies in India. It issues guidelines that act as directions to the press media similar to the News Broadcasting Standards Authority.

News Broadcasting and Digital Standards Authority (NBDSA) is considered to be an independent body established through the News Broadcasters & Digital Association (NBDA) to establish and promote high standards and best practices in broadcasting the news. NBDSA makes sure that News Broadcasters & Digital Association member broadcasters follow ethical codes and broadcasting standards. These codes and standards show that the broadcasters are being responsible and regulating themselves. It can tell the people in charge to take away the license of TV or radio stations that don't follow its rules.

“The Central Board of Film Certification is a statutory body and a film certification organization under the Ministry of Information & Broadcasting”. It regulates film certification according to the provisions of the Cinematograph Act, of 1952, and the Cinematograph (Certification) Rules, of 1983. In India, films are certified under four categories i.e., unrestricted, unrestricted but with parental discretion, adults, for a special class of persons. Film certification is regularly in the news because of the squabble between the Censor Board and filmmakers. While filmmakers demand absolute freedom in making and exhibiting films to the audience, the Board considers it its responsibility to recommend relevant edits and cuts to the films in order to make them appropriate for public screening.

OTT Platforms are the heaven for broadcasting content which are Ministry of Electronics and Information Technology (Meity) and IT (Intermediary Guidelines and Digital Media Ethics Code) Rules, 2021. These OTT stages moreover have their claim of self-regulation or censorship standards like Netflix which has self-imposed development appraisals. A few websites concurred to take after certain rules called "The Code of Best Practice for Online Curated Substance Suppliers," which was made by the Web and Versatile Affiliation of India (IAMAI).

Apart from all these regulating bodies or codes for protecting and preventing the broadcaster's rights and putting restrictions upon them, legislative enactments had also played a pivotal role in this regard such as The Indian Copyright Act, The Cinematograph Act, Telecom Regulatory Authority of India Act, etc. But because of the change in circumstances and new challenges that have emerged, there is a need for reforms in broadcasting rights to combat the new social and political order.

Need for Legal Reform

There are certain issues in the current form of broadcasting rights and its regulation, for which there is a need for a differentiated approach. There are three types of media: print, broadcast, and online. Each type needs its own set of rules to follow. Article 19 says it's not a good idea to make laws that include everything and the media wouldn't work well if they did. Moreover, broadcast media was previously subject to governmental oversight but in accordance with today's scenario, the State needs to assure that the spectrum is used and controlled in the public interest for diverse and plural programming. This can be accomplished through the establishment of an independent, transparent, and responsible regulating agency to award broadcast frequencies fairly and transparently in accordance with a broadcast policy designed to maximize media pluralism and variety.

1. Challenges faced because of Cross-media Ownership.

This is the situation that arises when a single corporate giant owns more than 1-2 media houses is known as cross-media ownership; this can be of any type like print, television, radio, etc. These all are equally impactful on the freedom of media and due to cross-media, it creates a great monopoly in public along with, it also hampers the right and gives a reflection of failing in maintaining regulation. If cross-media ownership continues, then there will be no print counter media.

2. Paid News

Paid news is the uncultured practice of media law where anyone can publish their news in exchange for money, maximum time this is done on the account of advertising, this is not only an unethical practice but also it put a bad impact on citizens because they are never going to get the reality mean the actual news. It is a malpractice that should be stopped because it also violates tax law and can influence at the time of election to restrain the public to stand on their particular opinion.

Conclusion

Broadcasting is considered to be a basic source of current news and data around the world. Due to this characteristic, it has the inclination of affecting the public's opinion to a huge degree. In India, broadcasting organizations delighted in different rights in regards to the broadcasting of their scholarly or creative work beneath the Copyright act. Moreover, broadcasting rights are depended under the jurisdiction of article 19 (1) that gives the opportunity of discourse

and expression. But as per the advanced situation, the broadcasting rights are not avoided from the lacunas and require more acknowledgment and control for building up the code of conduct in a fitting way. Subsequently, it is required that a separated approach must be taken for the broadcasting offices so that their rights and intrigued would maintain.

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Is Media Tribunal a Requisite in Regulating Rumours?

*“Words are of course the most powerful drug used by mankind.”
This phrase by Rudyard Kipling has been a sacrosanct statement in all eras.
Words can bring ‘Powers to Peace’, and ‘Weaklings on Wars’.*

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Abstract

‘Freedom of Press’ is paramount liberty in discharging democratic duties. It impacts the infallibility of democracy in any state, thereby making media as the fourth pillar of democracy. It is their duty to disseminate information, making the fellow countrymen aware. This paper discusses some of the decisions of the Courts and provides an analysis of the importance of free and responsible press, as well as whether fake news casts any grim or gruesome image, which can the tolerance of our diverse culture. Fake news and manipulative media have been continuously strengthening its roots in our soil, and is proven to be a poisoned chalice. This paper analyses the regulatory framework of electronic media in India and also brings into light, incarceration of introspective journalists. This paper also provides a remedy which could be adopted to increase accountability of irregular reporting by media professionals.

Keywords: Freedom, Right to Information, Fake News, etc.

Introduction

In India, Media houses have been the source of information, interpretation, education and evaluation from the very beginning. The Media houses manifested that their most powerful weapon were words. During the pre-independence era, media evolved with a mission to free India and its Institutions from the clutches of the colonial rule. They worked tirelessly, criticizing the colonialism and putting forward the basic problems faced by the Indians. They became collective voices of the nation and compelled the British to recognise the underlying cause and accept the demands of the Indians.

Post-independence, their mission has been strengthening and protecting the democracy. The Media functions by providing the information which the legislature requires to make responsible and informed decisions, while at the same time checking about the functioning of authorities, ensuring that they have been working properly for equal benefit of the citizens.

Media possesses massive responsibility of persuadable and susceptible society. In this sense, media connotes an active and vigilant participation in the full proof functioning of democracy and ensuring liberty. 'Media houses now doesn't restrain themselves from installing verdicts in the minds of people; they are incessantly trying to become courts of the public by involving media trials and producing limitless conviction, while failing the legal principle of *'innocent until proven guilty'*; and on the run to achieve apogee and being there, they presents information with an inciting interpretation, neglecting knowledge and facts.'

Freedom of speech is paramount thus right to know becomes indispensable; thereby knowledge becomes necessary to exercise freedom of speech and expression. Anyone to disseminate any speech or expression requires one basic thing, information. Without correct information one should refrain from disseminating else it might be a prejudiced opinion and attract segregation.

Since the wider expansion of technology reaching at distant places, it is at ease now to access information at the next second of the action taken by any institution. Therefore, public now depends largely on electronic media. Therefore this paper talks about the current scenario of the Media Houses and also aims at providing a remedy which could bring accountability on allegations of hate speech, media trial, fake news and breach of right to privacy against the electronic media.

Emergence of Media in India

"Pen is mightier than the swords"-this phrase has been accepted as a motivational phrase of several political leaders who believed in the potential of the mass media and therefore relied upon it. They had the courage to educate people about the social concerns and lead them to a battle against all the prevailing societal problems.

Our founding fathers felt a great importance of the freedom of Speech and expression, and the freedom of the Press. The repressive measures adopted by the colonial British rule turned to be a lesson for them. The Press in the colonial times was bludgeoned by sedition, trials and forfeiture of Security deposits, and their memory of the valiant struggle of the Indian Press against measures

designed to stifle criticism and silence agitation. This convinced the founding fathers of the immense value of the freedom of press in a sovereign democratic republic. They knew that when avenues of expression are closed, Government by consent of the governed would soon be foreclosed. During the framing of the Constitution, the constitutional advisor Dr. B. N. Rau, considered that it was hardly necessary to provide a specific provision for freedom of press as it is implicit in freedom of speech and expression. Though questions arose incorporating freedom of press as distinct freedom, Damodar Seth and K. T. Shah observed that freedom of press must be distinctly expressed among other freedoms. However, Dr. Ambedkar accepted Dr. Rau's view and stated that no special mention is necessary for the freedom of the Press at all.

The press in India started as an European institution but there were several Indians, who stood against the cruelties and evils prevailing in the society, from the beginning, and they laid the roots of Indian Journalism informing and educating people about social concerns. They recognised the importance of media for socio-political communication. The Media in India, therefore grew in order to tackle the oppression and social evils like sati, widow remarriage, child marriage, etc. **Justice G. N. Ray** observed, *“The trials and tribulation they had to encounter at the hands of foreign powers could not prevent the press from growing and becoming an instrument for fight against subjugation and to bring bright range of social and economic reforms which speak galore of their resolute determination and inherent strength.”*³⁶⁴

The Media gradually developed as the most powerful medium for moulding the public opinion. It, by making the society aware of the oppression and harms being faced by other members of the society, creates a feeling of fraternity to fight against the social evils, societal oppression and safeguarding the rights and liberties of individuals.

Democratic Functions of Free Press

In the words of William Blackstone,³⁶⁵ “The liberty of Press is indeed essential to the nature of a free state. Every freeman undoubtedly has a right to lay what sentiments he pleased before the public, to forbid this, is to destroy freedom of the Press. But he publishes, what is improper, illegal, or mischievous, he must take the consequences of his own temerity.”

³⁶⁴ Justice G.N. ray, *The Changing Facets of Indian Media, National Press Day, (November 16, 2009)*. (1st ed., Vol. 1). (2009).

³⁶⁵ William Blackstone, IV *Commentaries on the Laws of England* 151-152 (Oxford University Press, (1770).(n.d.-b). *William Blacstone*.

In the case of **Anil Fernandes v. The City Public Prosecutor**³⁶⁶, Justice P. N. Prakash of the Madras High Court emphasized, “*India is a vibrant democracy and the fourth estate is indubitably an indispensable part of it. If the voice of the fourth estate is stifled ... India will become a Nazi State and the hard labour of our freedom fighters and makers of our Constitution will go down the drain.*”

It is an established fact that media has to exercise its freedom of speech and expression completely and with an onerous duty to responsibly report in the public interest. It is the responsibility of media to report the matters of public importance with integrity and responsibility. Therefore, in fulfilling this duty, media houses must act with vigour, courage and integrity; not performing it with bias rather should be factual. The reporting must not be opinion active on a single side.

In the case of **Attorney General v. Guardian Newspapers Ltd.**,³⁶⁷ Lord Donaldson observed, “*it is not because of any special wisdom, interest or status, enjoyed by proprietors, editors, or journalists. It is because the media are the eyes and ears of general public. Their right to know and right to publish is neither more nor less than that of the general public. Indeed, it is that of the general public for whom they are trustees.*” Therefore, in exercising this right, media must be careful as the eyes and ears become the tools to persuade the general public at large.

The Democratic Functions of a Free Press is recognised globally. The Supreme Court of U.S. stated that, “*a free press is essential to the “heart of our democracy and its preservation is essential to the survival of liberty.*”³⁶⁸

Media has the freedom to comment fairly on any judgement, after conclusion of a proceeding. It is also permitted to critically evaluate any decision of the court. However, care must be taken that the comment must be fair, reasonable and not vilifying the institution. It is also to be contemplated that the comment is an evaluation of the merits of the judgement and not the criticism of the judge as a person.³⁶⁹

Accountability is the key for survival of any democratic government, without accountability no democratic government can gain, flourish and survive; and the basic postulate of accountability is that the people should have information about the functioning of the government. Consequentially, they must have access to information about every public act through public functionaries. This

³⁶⁶W.P. Nos.25705 and 25738 of 2012.

³⁶⁷[1990] 1 AC 109.

³⁶⁸Craig v. Harney, 331 U.S. 367, 383 (1947).

³⁶⁹J.S. Verma, New Dimensions of Justice (Universal Law Pub. Co., Delhi, 2000).

is necessary to form informed and intelligent decisions and for holding the institutions of government accountable.³⁷⁰

Today, there exists an instrument as Right to Information to retrieve information from any public authority, but that is considered to be a time consuming effort. On the other hand, media stays to be the instrument where a resident is generally reliant for the quality and the degree of information. He can rarely acquire for himself the data required for the savvy release of his political obligations. In revealing the news, Media ought to go about as the delegate or, all the more suitably, as the caretaker and legal administrator of the general population. The Media in this manner should act as a discussion for people in general, through which, the residents would be educated about what's going on in government and public foundations. If to be sure government depends on the assent of the administered, it is fundamental that it will be grounded on satisfactory data and conversation, helped by the most stretched out conceivable scattering of data through assorted and adversarial sources.

Article 19(1)(A) of the Indian Constitution

Article 19(1)(a) provides that all citizens shall have the right to freedom of speech and expression. Freedom of speech and expressions is a very wide aspect. It implies the right to speak and the right to express. It also includes the right to remain silent.³⁷¹ This means that every citizen of India has a right to express oneself through any medium such as speeches, actions, verbal and written words, pictures, symbols, etc. Every citizen has the right to have an opinion and express it freely without any hindrance. Freedom of Speech and expression is a very vital freedom in maintaining democratic fabric throughout the nation. It helps in forming a public opinion that is the core element of democracy. Freedom of Speech and expression also gives birth to several other rights, such as the right to report and broadcast; citizens have the right to broadcast their opinions through internet and any other medium they desire. The right to be informed is also secured to every citizen, right to know, receive and impart information is secured under Article 19(1)(a). In ***Union of India v. the Association of Democratic Reforms***,³⁷² the court held that the voters' have the right to know about candidates. Right to Commercial Speech³⁷³ and the Right to Criticize³⁷⁴, all have been secured as facets of freedom of speech and expression and crucial elements of democracy.

³⁷⁰ Soli J . Sorabjee, "Freedom of Press, its Contents and Facets" 13 Indian International Centre Quarterly, 173-184, (1986).

³⁷¹ *Bijoe Emmanuel v. State of Kerala*

³⁷² (2002) 5 SCC 294

³⁷³ *Tata Press Ltd. Vs. Mahanagar Telephone Nigam Ltd*, 1995 AIR 2438, 1995 SCC (5) 139

³⁷⁴ *S. Rangarajan v.P. Jagjivan Ram*, 1989 SCR (2) 204, 1989 SCC (2) 574

However, freedom of speech and expression is a fundamental right necessary for maintaining democratic society; but it is not an absolute right. The Constitution also lays down some reasonable restrictions.³⁷⁵

Cyber Crime – Under Information Technology ACT

The word “Cyber” is a terminology for anything relating to computers, internet, information technology and virtual reality –

1. Legal Framework in Journalism

The omission of freedom of Press and Publication in the Constitution has been a fundamental question of doubt. Prof. K. T. Shah regarded as, *“the freedom of the press, as is very well known, is one of the items round which the greatest, the bitterest of constitutional struggles have been waged in all constitutions and in all countries where liberal constitutions prevail. They have been attained at considerable sacrifice and suffering.”*

While Dr. B. R. Ambedkar was found with a dissenting opinion on the matter of specific inclusion of this freedom. Dr. Ambedkar having on careful perusal observed that, *“the press (or the mass media) has no special right which are not to be given to or which are not to be exercised by the citizen in his individual capacity. The editor of a Press or the manager are all citizens and, therefore, once they prefer to represent any newspapers, they’re merely exercising their right of expression and in my judgement no special mention is necessary of the freedom of Press at all.”*

Thus, the Indian Constitution doesn’t provide freedom of the Press separately, but is recognised as implicit in the freedom of speech and expression, enshrined in Article 19(1)(a) of the Indian Constitution. This Article guarantees the fundamental right to freedom of speech and expression. The freedom of mass media is derived indirectly from this Article.³⁷⁶

No freedom is absolute freedom; therefore our Constitution also lays down some reasonable restrictions in the form of Article 19(2). These restrictions can be placed on in the interests of sovereignty and integrity of India, security of the State, friendly relations with foreign states, decency and morality, contempt of court, defamation or incitement of an offence.

Consequently, the media derives its rights from rights to freedom of speech and expression available to the citizen. Thus, the media has the same rights,

³⁷⁵ Article 19(2) of The Indian Constitution.

³⁷⁶ The Constitution of India, art. 12-35 (Part III).

neither greater nor lesser than any individual to write, publish, circulate or broadcast.³⁷⁷

On the matter of the freedom of speech and expression, the first Press Commission in its report said, *“This freedom is stated in wide terms and includes not only freedom of speech which manifests itself by oral utterances, but freedom of expression, whether such expression is communicated by written word or printed matter. Thus, freedom of the press particularly of newspapers and periodicals may be a species of which the liberty of expression is a genus. There can, therefore, be no doubt that freedom of the press is included in the fundamental right of the freedom of expression guaranteed to the citizens under Article 19(1) (a) of the Indian Constitution.”*

In ***K A Abbas v Union of India***,³⁷⁸ the Supreme Court held that, *“restriction cannot be imposed on a film merely on the fact that social evils such as violence, rape were portrayed in it. Therefore, accepting the right to portray social evils is implicit in the freedom of speech and expression.”* In ***Indian Express Newspapers (Bombay) Pvt. Ltd v. Union of India***,³⁷⁹ it was held *“that the ability to form opinions and communicate them freely is the basic purpose of the right to freedom of speech and expression. One cannot form an opinion without acquiring knowledge and information.”* Therefore, in ***S.P. Gupta v. Union of India***,³⁸⁰ it was held that, *“the Right to Information is implicit in the right to freedom of speech and expression.”*

The question of fake news arises from this point. What if the information transmitted is fake or concocted in order to achieve greater obligations. Therefore, foundations of the whole opinion could be trembled upon, and is based on a complete lie. To curb this formation and dissemination of fake news, several laws have been introduced such as The Press Council Act (1978); Section 54 of the Disaster Management Act (2005); Section 124A of IPC or Sedition, Section 292 of IPC or Sale of Obscene Books, etc. Section 295A or Outraging Religious feelings by Malicious Acts, Section 499 of IPC or Defamation, Section 503 of IPC or Criminal Intimidation, Section 504 and 505 of IPC as Intentional insult to provoke breach of peace and Statements conducting Public Mischief; and Section 69 of the Information Technology Act (2000).

³⁷⁷ Madhavi Goradia Diwan. (2016). *Facets of Media Law* (2nd ed.). Eastern Book Company.

³⁷⁸ AIR 1971 SC 481.

³⁷⁹ (1985) 1 SCC 641.

³⁸⁰ AIR 1982 SC 149.

2. Regulatory Framework of Electronic Media in India

Mass Media possessing such massive power by all means require regulations. It must not exercise unfettered powers. By unfettered powers, it is to be meant that media should not become a tool for promoting any agenda mechanism for advancing sensationalism; and should provide control over content with credibility issues.

Media personnel should accept and understand that they are trustees of the people and should work according to it, reporting the truth with integrity and independence.

News channels recognise that they possess the most commanding influence over public opinion, henceforth, they should stick to supreme standards of public service sans duplicity.

Media houses should not partially publish news which either promote or hinder any controversial scenario. Reporting should be free from news which is plotted, promoting any particular belief, opinions or desires of that particular interest group.

Broadcasters shall ensure full and fair presentation of news as it is the paramount responsibility of each news channel. In a democracy, all points should be wholly presented with adequate time given to each one of them. It becomes the responsibility of the broadcasters that the presentation must not be selected in a way, promoting a point which favours a specific interest group.

These tenets have been precisely postulated by the Fundamental Principles in the regulatory body News Broadcasting Standard Association (NBSA), but they are found to be inadvertent, infructuous, and not worth a plugged nickel. The media professional blatantly neglects these principles during their reporting. They have made manipulations by misinformation, an incessant phenomenon.

The foundational purpose of dissemination of news in a democracy is in, equal parts to inform and educate the people about what is happening in the country, in order to make the people of the country comprehend the scenario and form their own conclusion. Now, this point has been presented in the fundamental principles for the broadcasting media but has been ignored for profit making. Profit making and brand building of the channels has remained the whole and sole motive on the news channels surpassing the major objective for which they came into being i.e., educating and strengthening public at large.

Fake news can be considered to be prevailing in the society since a very long time, or to say since the advent of media itself. An instance more than 2000 years ago, when Roman emperor Augustus Octavian constructed a campaign of cant information to fabricate false structures of his victory over Marc Antony during the War of the Roman Republic. Octavian convinced the people of Rome and several allies of Antony in the Senate, that he had lost his head in love with an Egyptian Queen, Cleopatra, and if Antony came to rule he will bring Rome to monarchy. This incident depicts precisely the power of fake news and if not done away with could reduce the powers to ashes.

As of date, there is no statutory regulatory authority is present for the regulating of the news channels. Several self-regulatory bodies such as the News Broadcasters Association (NBA), Broadcast Editors' Association and News Broadcasters Federation regulates Indian news channels. The NBA is private regulating body which is formed of private news channels for the regulation of their own private programs, with an objective to lay-down and foster high standards, ethics and practices in news broadcasting. NBA is therefore authorised to decide complaints against or in respect of broadcasters in so far as these are pertinent to any broadcast. The NBA provides its membership to presently 24 leading news and current affairs broadcasters while the total numbers stands at 76 news and current affairs channels as its members.³⁸¹

3. News Broadcasting Standard Association (NBSA)

The News Broadcasting Standards Authority (NBSA), set up by the NBA, it considers and adjudicates upon complaints about broadcasts. It comprises of nine members, who are: a chairperson, being an eminent jurist; Four eminent persons having special knowledge and/or practical experience in the field of law, education, medicine, science, literature, public administration, consumer affairs, environment, human psychology and/or culture; and Four eminent editors employed with a broadcaster.

The News Broadcasting Standards Authority (NBSA), of the NBA, is empowered to warn, admonish, express disapproval and fine the broadcaster a sum upto ₹ 1 lakh for violation of the Code. There is Code of Ethics devised by the NBA to which all the members have to comply. The Fundamental Principles postulated in the Code of Ethics were already mentioned above, while the body self-regulates on the following areas:

³⁸¹ <http://www.nbanewdelhi.com/about-nba>

- Impartiality and objectivity in reporting, it becomes a responsibility for news channels to keep accuracy, and balance, as precedence over speed.
- Neutrality, it becomes the responsibility of news channels to present in a neutral way, not perceiving a particular point of view. Channels must not portray allegations as facts and charges as guilty act.
- On reporting a crime, that crime and violence are not glorified, channels should ensure that reporting or visuals do not induce, glorify, incite, or positively depict violence or it's perpetrators, regardless of ideology. The act of violence must not be glamorized as it may have misleading or desensitizing impact on viewers.
- Depiction of violence and crime against women and children, channels should ensure that no women or juvenile who is a victim or is a witness to offences of sexual violence, assault or trauma, to be shown on television without due effort taken to conceal their identity. In sexual assault cases, the name, picture and other information must not be broadcasted/divulged.
- Sex and nudity, channels will not show explicit images of sexual activity or sexual perversions, or acts of sexual violence like rape, or molestation, or show pornography, or the use of sexually suggestive language.
- Privacy, channel must not intrude on private lives or personal affairs, unless there is a clearly established larger public interest.
- Endangering National Security, channels must refrain from allowing broadcast that encourages secessionists groups and interests, or reveal information that endangers lives and national security.
- Refraining from advocating or encouraging superstition and occultism, channels will not broadcast any material which glorifies superstition and occultism. In broadcasting any news of such genre, channels will issue a disclaimer to ensure that viewers are not misled into believing such activity.
- Sting operations, channels will not allow sex and sleaze as means for carrying out sting operations, they will also not use narcotics and psychotropic substances, or any act of violence, intimidation or discrimination in further carrying out sting operation, and the operation must be for a larger public interest.

- Corrigendum, channels should ensure that while broadcasting any significant mistake made must be acknowledged and corrected immediately, corrections must be made in order to attract enough viewers and are not concealed.
- Feedback, all news channels in their website will create provisions to receive consumer feedback.

The said code appears more to be like guidelines lacking measures that mandates the following of them. These areas appears more to be a target to be singled out and strike off by the media houses while reporting. These codes were made to be observed in spirit, not just in letter, while they have been observed as chimerical clauses.

Judicial Approach

The Judiciary in India has been actively took cognisance of the offences. The Courts have delivered logical and reasonable judgements for protecting the interest of the society and checking whether the limits of liberty have not been crossed upon. The Judicial wing of our nations has clearly accepted that free and responsible press is a paramount pillar strengthening the foundation of our democracy. The Apex Court have rejected Media Trials and considered it as arbitrary and antithesis of rule of law. Andhra Pradesh High Court went further observing that one should refrain from commenting when litigation is pending in a suit (*lispendens*). Independent investigation is also interference in the criminal investigation, a function of the state. The judiciary have even condemned the reckless coverage of media channels and accepted that media can become a medium, if fake news propagates, to lead into tragic results.

In a recent case of ***Alakh Srivastava v. Union of India***, the SC held that, “*a panic has been created and triggered among the migrant workers by the dissemination of fake news on Covid-19. Such fake news has caused untold suffering on such labourers as the lock down would continue for more than 3 months. Not only this, but many people have lost their lives in the process.*”

The Hon'ble Supreme Court in the case of ***Rajendra Sail Vs. Madhya Pradesh High Court Bar Association and Others***,³⁸² observed:

"For rule of law and orderly society, a free responsible press and an independent judiciary are both indispensable and both have to be, therefore, protected. The aim and duty of both is to bring out the truth. And it is well

³⁸² (2005) 6 SCC 109: AIR 2005 SC 2473.

known that the truth is often found in shades of gray. Therefore, the role of both cannot be but emphasized enough, especially in a new India', where the public is becoming more aware and sensitive to its surroundings then ever before. The only way of functioning orderly is to maintain the delicate balance between the two. The country cannot function without two of the pillars, its people trust the most."

The ever-increasing tendency to use media while the matter is sub-judice has been frowned down by the courts, including the Supreme Court of India on the several occasions.³⁸³ In ***State of Maharashtra Vs. Rajendra Jawanmal Gandhi***,³⁸⁴ the Supreme Court observed:

"There is the procedure established by law governing the conduct of the trial of a person accused of an offence. A trial by press, electronic media or public agitation is very antithesis of the rule of law. It can well lead to miscarriage of justice. A judge has to guard himself against any such pressure and is to be guided strictly by the rules of law. If he finds the person guilty of an offence, he is then to address himself to the question of sentence to be awarded to him in accordance with the provisions of law".

The chief justice Gopal Rao Ekkbote of Andhra Pradesh High Court in the case of ***Y.V. Hanumantha Rao Vs. K.R. Pattabhiram and Another***,³⁸⁵ wherein it was observed by the learned judge that:

".....When litigation is pending before a Court, no one shall comment on it in such a way there is a real and substantial danger of prejudice to the trial of the action, as for instance by influence on the Judge, the witnesses or by prejudicing mankind in general against a party to the cause. Even if the person making the comment honestly believes it to be true, still it is a contempt of Court if he prejudices the truth before it is ascertained in the proceedings. To this general rule of fair trial one may add a further rule and that is that none shall, by misrepresentation or otherwise, bring unfair pressure to bear on one of the parties to a cause so as to force him to drop his complaint or defence. It is always regarded as of the first importance that the law which we have just stated should be maintained in its full integrity. But in so stating the law, we must bear in mind that there must appear to be a real and substantial danger of prejudice."

³⁸³ M. Asad Malik, "Media Trial and Criminal Justice Administration : A Critical Analysis", 45(1) Indian Bar Review, 191 (2018). (n.d.). *Indian Bar Review*.

³⁸⁴ AIR 1997 SC 3986: (1997) 8 SCC 386.

³⁸⁵ AIR 1975 AP 30.

In **Shalab Kumar Gupta and Others Vs. B.K. Sen and Another**,³⁸⁶ It was held by the Supreme Court that:

“No doubt it would be mischievous for a newspaper to systematically conduct an independent investigation into a crime for which a man has been arrested and to publish the results of that investigation. This is because the trial by newspapers, when a trial by one of the regular tribunals of the country is going on, must be prevented. The basis for this view is that such action on the part of a newspaper tends to interfere with the course of justice, whether the investigation tends to prejudice the accused or the prosecution. There is no comparison between a trial by a newspaper and what has happened in this case.”

In the case of **Mohd Ajmal Amir Kasab Vs. State of Maharashtra**,³⁸⁷ the Hon'ble Supreme Court came down heavily on the role of media in live electronic coverage of the terrorist attack. The Court stated that :

"the terrorist attacks at all the places, in the goriest details, were shown live on the Indian TV from beginning to end almost non-stop. All the channels were competing with each other in showing the latest developments on a minute to minute basis, including the positions and the movements of the security forces engaged in flushing out the terrorists. The reckless coverage of the terrorist attack by the channels thus gave rise to a situation where on the one hand the terrorists were completely hidden from the security forces and they had no means to know their exact position or even the kind of firearms and explosives they possessed and on the other hand the positions of the security forces, their weapons and all their operational movements were being watched by the collaborators across the border on TV screens and being communicated to the terrorists. The way their operations were freely shown made the task of the security forces not only exceedingly difficult but also dangerous and risky.”³⁸⁸

The Supreme Court in **Tehseen S. Poonawalla v. Union of India**³⁸⁹ observed, *“Lynching and mob violence are creeping threats that may gradually take the shape of a Typhon-like monster as evidenced in the wake of the rising wave of incidents of recurring patterns by frenzied mobs across the country instigated by intolerance and misinformed by circulation of fake news and false stories. There has been an unfortunate litany of spiralling mob violence and agonized horror presenting a grim and gruesome picture that compels us to reflect*

³⁸⁶ AIR 1961 SC 633.

³⁸⁷ (2012) 9 SCC 1.

³⁸⁸ Ibid Para 403 & 404.

³⁸⁹ WRIT PETITION (CRIMINAL) NO. 122 OF 2017

whether the populace of a great Republic like ours has lost the values of tolerance to sustain a diverse culture.”

The Other Perspective

Since false reporting acts contrary with the role of press in society, it had also sometimes succeeded in leading towards obnoxious outcomes. The tragic results have in some way or the other derogated the indivisibility of society. The press has digressed itself from promoting harmony, the fundamental duty of every citizen enshrined in our Constitution.

Apart from this, there exists another perspective. There exists an iota of media persons or independent journalists striving hard to achieve halcyon. They have reported the ground realities of our country with sheer determination, including those areas where freedom of speech and expression has succumbed by the hands of the state. They have tried to show the audience, the failures of the authorities in discharging their functions, but were incessantly impeded by slapping sedition charges on their faces. Numerous incidents have emerged from years and still continue to do so, without putting a stop on these malicious proceedings.

Another blatant, brazen and bizarre arrest could be seen when a journalist from Andaman while posting a question online which was published on a local newspaper *Andaman Chronicle*, a day before. He enquired whether one can be quarantined by just being in conversation with a COVID positive patient, only on a telephonic call. He posted this question on account of the facts that a family of four has been quarantined on the ground of such facts.³⁹⁰

An incident occurred in the State of Tamil Nadu, where Andrew Sam Raja Pandian, a journalist had filed reports showing that doctors combating COVID-19 were not provided with food and personal protective equipment (PPE) kit by the government hospital in Coimbatore. He was arrested for this act of exercising fundamental right of freedom of speech and expression, under Sections 188 (disobedience to order promulgated by public servant), and section 505 (i) (statement conducing public mischief) of the IPC and Section 3 of the Epidemic Diseases Act.³⁹¹

The aforementioned incidents have occurred in 21st century, in our democratic India, where every citizen is equally vested with fundamental rights. The

³⁹⁰ <https://m.thewire.in/article/media/andaman-journalist-arrested-for-tweet-accused-of-spreading-false-information>. (n.d.). *The Wire*.

³⁹¹ <https://www.outlookindia.com/website/story/india-news-tamil-nadu-journalist-held-for-reporting-on-doctors-not-getting-food-ppe-at-work/351372>. (n.d.). *Outlook.in*.

fundamental right to freedom of speech and expression has become the most abused right in recent times. Powerful authorities have continued to violate this freedom and have always tried to put any expression against them behind the bars. This could be seen as political vendetta or misuse of power, trying to cripple our criminal justice system. Several other incidents which arose in the past year have now been buried somewhere in papers, in some corners of our judicial departments, while the accused were living with the tags of convicted, established by the media houses. Some of these occurrences where media is gagged are:

Manish Pandey, a reporter associated with News1 India based in Lucknow, he was interrogated because of reporting on a letter circulated within the state administration discussing poor quality PPEs being supplied to hospitals and medical colleges.

Subhas Rai and Vijay Vineet, these two journalists were served a show cause notice because on reporting of a village where the residents were left with no option but to eat grass and survive the lockdown.

These vile incidents are numerous and can be found in every direction. And the most famous among them was the case of Arnab Goswami, the editor and CEO of Republic TV faced hundreds of FIRs against him. This case divided the people into two, one who blamed the government and defended Arnab as he allegedly became the victim of political vendetta. While the other ones, supported the state because of his alleged misleading reporting in the Palghar lynching case.³⁹²

Fake News or Paid News

On introspecting, fake news is found to be as old as news itself. With the mushrooming of new technology, and ease of access to news have also brought an obnoxious phenomenon of fake news into force. Fake news proliferated much rapidly in this decade owing to higher internet speeds available at cheaper rates. Fake news are concocted stories developed anonymously to accomplish ulterior motives. It acts as a catalyst in persuading public opinion. However, reputable media organizations were considered as saviour for trustworthy information, but to no avail.

³⁹² <https://www.newslaundry.com/2020/05/07/gagging-the-media-a-list-of-indian-journalists-booked-arrested-assaulted-during-the-lockdown>. (n.d.). *Newslaundry.in*

Law Commission of India Report

The Law Commission of India having regard to the extensive prejudicial coverage of crime and information both on accused and suspect, both in the print and electronic media took the matter as '*suo motu*' and published its **200th report** titled "**Trial by Media: Free Speech and Fair Trial Under Criminal Procedure Code, 1973**"

The report battled that the entire framework example of distribution of information has changed and a few such distributions are probably going to preferentially affect the suspects, witnesses and even Appointed authorities and as a rule, on the organization of equity. Our Constitution gives Right to Fair Preliminary and the charged is ventured to be free of guilt by default. The Report recognized that specific demonstrations of media in the biased stage can influence the freedoms of a charged for a fair preliminary. "Over the top Exposure" about a suspect or a charged before preliminary biases a fair preliminary or results in describing him as a serious the individual wrongdoing; and that this adds up to unjustifiable impedance with the organization of equity. On the off chance that the media over and over blames individuals for wrongdoings without delivering any proof against them, they make such sureness of their responsibility in the personalities of the public that, in the event that these people are even really charged and attempted, they have no expectation of getting a fair preliminary. At the point when such preliminaries breakdown, the casualties of the wrongdoing are left without change.³⁹³

The Law Commission's report communicates worry over the way that there is almost no restriction in the media to the extent that the organization of law enforcement is concerned. The hidden issue here is this: the media, while energetically safeguarding their privileges and space, should acknowledge social obligation - the burdensome commitment of maintaining the bigger interests of a majority rules system, and that implies writers don't have a permit to stomp all over the freedoms and respect of others.³⁹⁴

Cobrapost Sting Operation 2018

Cobrapost.com is an Indian non-profit news website famous for its sting operations. It was established in 2005 by Aniruddha Bahal, the co-founder of Tehelka, and carries out undercover investigative journalism. In its 2018 undercover operation, a reporter disguised as Acharya Atal, as a preacher of fictitious organization offered a payment of up to Indian rupees 500 crore

³⁹³ The Law Commission 200th Report

³⁹⁴ <https://www.thehindu.com/opinion/Readers-Editor/Freedom-of-the-press-and-fair-trial/article16301300.ece>. (n.d.). *The Hindu*.

(US\$72 million) in cash to the Times Group, the publisher of 'The Times of India', the 'India Today group', the Hindustan Times group, the Zee group, the New Indian Express group and other media houses, to publish particular news promoting a specific political agenda. The above media houses agreed to the offer to air paid news to induce communal discord and polarize the Indian electorate.³⁹⁵

Later, as expected the Times Group, the New Indian Express Group and the India Group denied its claims but to the extent that their editorial teams never met the cobrapost.com personnel rather their senior managements in the sales departments were approached.³⁹⁶ In June 2018, Cobrapost.com made it clear that it 'has not falsified, fabricated, concocted, tampered, doctored or altered in any manner whatsoever.'³⁹⁷

Conclusion

Communication is a gift to mankind which separates us from the animal domain. It is necessary for the survival of society. Communication is the basic human right necessary for the development of the mankind. It is important for the organizational integration of humans. Therefore, freedom of speech and expression can be considered as the respiratory organ of public communication. Freedom of speech and expression has been imbibed to every individual on this planet. This has also been proclaimed by the Universal Declaration of Human Rights (1948). In the Preamble of Indian Constitution, we the people have secured to ourselves liberty of thoughts and expression, this resolve has been enshrined in Article 19(1)(a) of the Constitution, from where every rational being even the Press of our country draws its freedom to express. But to maintain peace in a civil society and protect it from chaos, one has to exercise reasonable restraints. The communication between mass media must be regulated for the larger interests of the community.

Media connotes in essence as a medium, an open corridor in maintaining relationship between the state and the society *inter se*. It's operation is directly proportional to resultant outcomes. If functioning is in connivance, it could damage the relationship creating a larger void, and proper functioning will ultimately result in the benefit of the society. Therefore, it is necessary to envisage the functioning of the Media Houses as the determining factor of the status, role and viability of Media in the society.

³⁹⁵ <https://cobrapost.com/blog/Timesof-India/1066>. (n.d.). *Cobrapost*.

³⁹⁶ <https://indianexpress.com/article/india/cobrapost-sting-media-houses-open-to-paid-hindutva-content-firms-call-it-misleading-times-group-india-today-ht-paytm-5192702/>. (n.d.). *Indian Express.com*.

³⁹⁷ <https://thewire.in/media/zee-media-legal-Notice-cobrapost-sting-operation>. (n.d.). *The Wire*.

Media plays the significant role of a watchdog or scrutiniser, its main objectives are to provide information to the people, to conduct debates over policies of the governments so as to bring out the advantages and disadvantages coming out of such policies, and finally to check whether other authorities are working in the benefit of the people, while refraining to play the decisive role of formulating opinions and persuading the general public.

It is an exercise of common sense to recognise that electronic media, because of its easy and quick accessibility, has a wider reach among the masses. With the exponential increase in manipulated media over the years, it becomes difficult to say that the self-regulatory bodies were much efficient. The Codes to be mandatorily followed were repeatedly violated without attracting any penal consequences. On the other hand, selective proceedings are becoming a norm.

Since, they exercise at large, self censorship, Media in India has been regarded as the Trojan House, the threat from within. This has erupted as an insidious threat to the democracy of the country as the political organizations behind the persuasion of the public are becoming triumph in their agenda. The conflicts run deeper and are linked with oppositional politics, conflicts of business interests and an attempt to create hegemonic ideologies which would compel the social and political fabric to give a greater bargaining strength to those that run and manipulate the media.³⁹⁸ Brains behind these nefarious motives have applied crooked method of disseminating fake news which is a threat to the fundamental right to freedom of speech and expression.

Fake news and manipulative news have been continuously strengthening its roots in our soil, and is proven to be a poisoned chalice. This hate mongering media is integrating in our society, and because of this, recognising the credibility is becoming a challenge these days. Therefore, the plight of curtailment of the fundamental fabric of this right must be solved appropriately. The suggestion provided hereinafter is a measure which could be adopted in order to adjudicate on the authenticity of a media. Authenticity in this age acts as a key factor which is responsible for making the people aware of the true reporting from a farther place. While inauthentic news have always casted aspersions against the people, promoting intolerance and hatred in the society. Authenticity shall only be promulgated by a higher autonomous authority, so that there exists no scope for the spread of fake news. The suggestion mentioned hereinafter will be capable of providing authenticity, accountability and curbing the spread of manipulated media in the society. Therefore, protecting the freedom of speech and expression in its true spirits.

³⁹⁸Rajeev Dhawan, 26 "On The Law Of The Press In India." (1984). *Journal of Indian Law Institute*.

Suggestions

It is suggested to establish an independent judicial body or a **Media Tribunal**, which can take cognisance in irregular reporting instances; hear complaints against Media organizations; and expeditiously adjudicate in matters pertinent to media reporting. Inasmuch as the Media Houses are regulated by a self-regulatory body, it has been undermining the basic component of Rule of Law relentlessly. All are equal in the eyes of law and therefore, one cannot be the judge in his own cause. Moreover, Rule of Law also prevents from arbitrary use of power, which in the context of media is blatantly disregarded. Media houses are business entities and considering them to be regulated by a self-regulation authority is a negation of Rule of Law.

The another purpose which this adjudicating body, the Media Tribunal will achieve is to bring about some accountability. Misinformation, inflammatory coverage, fake news hate speeches, sectarian reporting, paid news, breach of privacy, media trials and other plethora of wicked acts, which have been the rationale behind the degrading media of our country. Providing accountability on the aforesaid instances might rapidly decline, the manipulations by media in our society.

Since, the self-regulatory system of media houses is active in India. There lacks any legal instrument which could only adjudicate on the matters of manipulated media. There exists no mechanism which could bring accountability as well as fulfill the responsibility of tagging a media as authentic one. The responsibility of tagging a news as authentic can only be given in the hands of an autonomous body, working in the interest of the society not for profit making from the society.

Trial by Media

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Introduction

Have you ever thought how one column of news affects your opinion about an ongoing case? How long on-going debates on TV force you to believe that the accused is guilty? Ever thought how these so called 'trial' affect the families so involved in the case?

"Innocent until proven guilty"¹ might be a phrase the law of this country holds supreme but it is Greek to media. Media trials remain a burning issue these days whenever a sensitive case comes up for trial in the court, there is an expected surge in curiosity among the people. Always waiting for sensational news, the media including newspapers, television channels, news websites, etc. starts publishing their own interpretation of facts. Curiosity of general public and sensationalism of a topic to gain more TRP is the core reason because of which media immorally tarnishes and batters a person's image beyond repair. They use right to speech and expression as a shield given by the constitution of India to say whatever they want to whoever they want.

The judges have to sit through arduous trial, going through all the fair procedure established by law, considering all the evidences and arguments and then after months and years in some cases they come to a conclusion and pass a judgement meanwhile media passes a judgement same day as that of the incident. This is called investigative journalism and is not banned in India. When media coverage through newspapers and television, before the court has pronounced its verdict, is presented to the public the presumption of a person's innocence or accused of a crime, it is called a "media trial". The determination is not based on merit but on the basis of how much TRP a particular interpretation will fetch them.

The definition of media has changed over time. Apart from the different types of news television channels newspapers, blogs, websites, media now refers to any particular segment that gives a particular interpretation of the facts of a case and present them to the general public. Now media isn't limited to some local newspaper, a news channel, it has crawled into the hands of public. Any news, any debate is just one touch away. Social Media is the prime example of the

above premise. Social Media has plethora of self-proclaimed judges who decide the culprit way before the case is presented before the court for fair trial. Media is becoming like the cancer with no cure. It nibbles the mind of all the reasoning and leaves public with an opinion they instilled in their minds.

What is Media Trial?

The term ‘trial by media’ or ‘media trial’ is misleading and bogus. The major two legislation governing the handling of civil and criminal proceedings, the CPC or Civil Procedure Code, 1908, and the Cr. P.C., or Code of Criminal Procedure, both don’t define the term "trial" anywhere. The following definition of "trial" is provided in the 9th edition of Black's Law Dictionary: "a formal judicial examination of evidence and determination of legal claims in an adversary proceeding." So, it stands to reason that "trial" refers to a court proceeding. ‘Trial’ involves active participation of law and evidences, there is no way the media concerns with it. However, the phrases mentioned above are regularly used to demonstrate a media exercise that essentially assumes the role of a courts. It tries to determine ‘how’ it must have happened, while it should only be concerned with ‘what’ has happened.

The apex court while assessing the same stated – “The impact of TV and newspaper coverage on a person's character by creating a wide perception of guilt no matter any verdict in an exceeding court of law. During high hype cases, the media are often accused of provoking an environment of public hysteria cherishing a reablement which not only makes a good trial insolvable but means no matter the results of the trial, public perception of the accused is already held shamefaced and wouldn't be suitable to live the remainder of their life without violent public scrutiny”.²

Therefore, it is possible to characterise trial by media as news coverage that elicits good feelings, causes a media frenzy, and leads to unfavourable dramatized miniseries about the criminal court system. This coverage of a criminal case effectively blends information and entertaining. All parties engaged in a case—the accused, suspect, judges, witnesses, and the legal system as a whole—are negatively impacted by the advent of the media. Extreme disputes about the conflict between free speech and a person's right to a fair trial as supported by the judiciary have arisen as a result of the sensationalised reporting of events by the media.³ The rat race between cable channels for breaking news thereby the accused getting labelled prior to the commencement of the investigation impairs the right to fair trial and prejudicially impacts the administration of justice.⁴

It further makes the whole trial arduous for everyone involved due to apprehension of threat of exploitation by media. On several instances, the press has covered the issue professionally, demonstrating its role as the fourth pillar of democracy. This comes within the lawful limits of media professionalism. However, when media engages in investigative reporting such parallel investigative trial becomes lethal to right to fair trial.

Who Else is to Blame?

1. **The Gullible Public:** Is the media solely responsible for battering and walking over cases? No, in my opinion media won't sensationalize a case unless and until it knows that public would want to watch it. The media knows that the majority public wants news that excites their curiosity so they cater accordingly. The interests of media have become selfish and money-driven, they want to gain TRP so they show news which invites more watch time. In an ongoing case, where the judiciary has yet not decided who the culprit is, the media comes up with a show where it analyzes the suspect and declares him the culprit with all surety. Who wouldn't want to quench the thirst of curiosity? This is what drives media trial.

Public should not feed on anything blindly. It should try to see through the facade of the media and understand that there are real people behind the catchy headlines and dramatized trials.

2. **Lawyers and Talk shows:** A lawyer is entrusted by the client with his/her piece of truth. It is totally unethical for a lawyer to be vocal about an ongoing case to the media. When he advocates for his client in front of the press, he degrades himself by acting as a liaison with the media. Advocates sit with media trying to unravel the truth before the public but this results in hampering the lawful trials in the court. Such interviews must be completely prohibited. Senior Advocates freely participating in TV debates or giving interviews to a TV reporter/anchor of the show on issues that are directly the subject matter of cases pending before the court in which they are appearing for one of the sides shows their bias and is unethical. Professor Barendt rightly states in his commendable work, *Freedom of Speech*, that "no lawyer has a right to evade those restrictions [of the law of evidence] by introducing inadmissible evidence at a press conference outside the court"⁵

Impact of Media Trial

1. **On Accused:** The accused suffers the most because of media trials. It is immaterial if the accused is actually guilty or not, everyone deserves right to be heard and right to fair trial. If a suspect or accused has already been

projected as guilty by the media prior to the trial in court, the accused may suffer substantial bias. Even if a suspect or an accused is acquitted by the Court following due process, the acquittal may not be beneficial in rebuilding the offender's image in society. Exaggerated and unjustified media coverage characterizing the individual as guilty, even though the verdict is still pending, amounts to improper interference on the "administration of justice," which called for a contempt of court proceeding against the media. In cases, like Aarushi Talwar murder case⁶, the parents though were acquitted by the court of law still carry around the title of murders in the eyes of the public. There was no evidence to show that Aarushi and Hemraj, the two deceased, were actually in a compromising position but the media walked over the image of Aarushi trying to derive some sense so as to why was she murdered. Even if they are the real culprits, it is not media's responsibility to derive their culpability. Public forgets that these are real people media is talking about. Their life gets tainted with tag of 'guilty' even though in the eyes of law they are still innocent. This is pure miscarriage of justice.

2. **On Witness:** During such media trial's if the name of the witness is exposed, there is a chance that the witness would face pressure from both the police and the accused or his associates. There is a possibility that the witness would want to disengage and flee the commotion. This would consequently hamper the evidences in the case and consequently the trial. The witness's safety is thus a critical concern. This raises the issue of the admissibility of hostile witness evidence and whether the law should be changed to prohibit witnesses from altering their testimonies. The amount of pressure created by media and public would break the spine of the most adamant witness too.
3. **On Victim and their Family:** One of the essential rights guaranteed to every person by the constitution under article 21 is the right to privacy. No one shall be subjected to arbitrary interference with his or her privacy, family, home, or communications, or to attacks on their honor and reputation, according to Article 12 of the Universal Declaration of Human Rights⁷. Everyone is entitled to legal protection from these types of intrusions or assaults. In *R. Rajagopal v. State of Tamil Nadu*⁸, the Supreme Court made the following observations about press freedom and the right to privacy: "A citizen has a right to safeguard the privacy of his own, his family, marriage, procreation, motherhood, child bearing and education among other matters. No one can publish anything concerning the above matters without his consent, whether truthful or otherwise and whether laudatory or critical. If he does so, he would be violating the right to privacy of the person concerned and would be liable in an action for damages.

Position may, however, be different, if a person voluntarily thrusts himself into controversy or voluntarily invites or raises a controversy.”

In *State of Maharashtra v. R. J. Gandhi*⁹, the crime of rape against an eight-year-old girl was perpetrated in Kolhapur, where the case was to be prosecuted. However, in response to widespread outrage, the Supreme Court approved the accused's request for a fair trial and sent the matter to the session's court in Satara. The Supreme Court while acknowledging the harm done to victim by consequent media trial stated that, “A trial by press, electronic media or public agitation is very antithesis of rule of law. It can well lead to miscarriage of justice. A judge has to guard himself against such pressure and he is to be guided strictly by rule of law.”

The Trial by media of a person not only invades their privacy but also damages their reputation in plain view of the public. The Aarushi Talwar murder case served as the ideal illustration of image assassination. What proof do we currently have against anyone? Nonetheless, the Talwars are reportedly "convicts of their daughter's murder" in the eyes of the public. Even if the assertion is accurate, there wasn't a shred of evidence to back up the concept. Supreme Court recently while hearing an application by Rajesh Talwar said that “this is sickening... to write about a child who was only 14 years old when she died. Her reputation is tarnished. We are for fair reporting. But this is sensationalism and simply character assassination. Can it be justified?”¹⁰

4. **On Court Proceedings and Democracy:** The judge making the decision or the case in question may be prejudiced, which is another unfavorable effect of media trials. This unintentional outcome occurs as a result of the judge frequently being under pressure from the media and a misinformed public to rule in favor of the publications. Lord Denning, a celebrated judge of the 20th Century stated that other men might but judges cannot ever be influenced by the media reports and publicity. The House of Lords did not concur with this view. Justice Frankfurter held that a person competent to become a judge cannot be consciously influenced by what he sees or hears anywhere outside the court. The decisions made by the court are always based on the facts and contentions heard by the judge. However, irresponsible publications might tempt the judges and deviate them from the path of justice as they are only human and delivering justice is a delicate job.¹¹

News articles that were released with the goal to influence the presiding judges' opinions on the subject should be held in contempt of court. Even if the judges are capable and impartial, the media should be barred from

covering such proceedings since they could unconsciously be influenced by their environment. It cannot be ruled out in any way that these traces play a part in the development of biases and prejudices. The court system is greatly endangered by the biased statements broadcast or published, as these remarks may have an impact on the judges. In *Balakrishna Pillai v. State of Kerala*¹² the Supreme Court held that "the grievance relating to trial by press would stand on a different footing. Judges do not get influenced by propaganda or adverse publicity." The court has also attacked investigative journalism, saying that it not only interferes with the legal system but also makes it more difficult to gather evidence.

5. **On Perception of General Public:** It's ages of truth that whatever media feeds the public the public takes it blindfold. It's psychological helplessness of the people to fall for the convincing and brainwashing tongues of media persons. It's hard not to change one's opinion when media tries to present theories to support the innocence or guilt of the accused. The general public gets driven by their curiosity and feelings. It's a hard pill to swallow but the general public of India is emotionally driven. They rule out other crucial things like evidences. The media painted him as a terrorist, although the court eventually ruled that he had not been charged with such crimes. Being an actor, he had to deal with a lot of issues and backlash after this episode, and his reputation was damaged.¹³

Right to Privacy vs Freedom of Press: Article 21 vs Article 19

Invading someone's privacy is described as 'a situation in which someone fails to respect a person's right to keep certain personal information from being known'; it is an unreasonable and unauthorized invasion. And technological advancement has aided such invasion in more ways than one might conceive. Every individual in this country has been guaranteed the right to privacy, regardless of caste, creed, religion, gender, or sexual orientation. After the Supreme Court issued a landmark decision in *K. S. Puttaswamy (Retd.) and Anr. Versus Union of India and Ors*¹⁴, privacy became a fundamental right. The consequences of this decision have reverberated across the country. Individual privacy is now protected by law. However, there have been several cases of media invasion of privacy. The public also plays a role in such acts of invasion since we promote such coverage by watching voyeuristic content. And the media does a fantastic job of satisfying our curiosity. The media today creates tales for views and emotional compassion just for the sake of TRP. All of these approaches have an impact on privacy of the people involved in the case, which in turn has an impact on legal pathways.

Recently media crossed all its limits while prying on the life of Shilpa Shetty in Raj Kundra case¹⁵. A celebrity might not possess the same expectation of privacy as an average person, but this expectation still exists despite her public persona and the resulting curiosity in her private life. The Shetty case's remark to this effect by the Court represents a significant advancement in Indian privacy law.

It is crucial to take the justification for press freedom into account when attempting to strike a balance between privacy and press freedom. Press freedom exists in a democracy for the benefit of its citizens, the SC explained in *The Indian Express* case¹⁶, and its goal "is to advance the public interest by publishing facts and opinions" from a variety of sources "without which a democratic electorate cannot make responsible judgements."

If there is a public interest in the material, press freedom will prevail over privacy even in a defamation lawsuit. In a House of Lords ruling, Lady Hale made the distinction that this is "different from saying that it is information which interests the public—the tittle-tattle about the activities of footballers' wives and girlfriends interests large sections of the public but no one could claim any real public interest in our being told all about it." This difference has often been argued in English courts. The judge gave Naomi Campbell damages for disclosing information about her drug rehab and images of her leaving the facility.

On the grounds that she had a reasonable expectation that the letter would not be exposed, Meghan Markle recently prevailed in a privacy lawsuit against a tabloid that published a letter she sent to her father. Similar to this, the judge in Shetty's case objected to the news about her parenting but did not stop the reports about her husband's criminal inquiry from being published. The current practise of news outlets publishing WhatsApp chats of activists and prominent figures about issues of mental health and private talks with friends is unlikely to meet the barrier, even though the public's net is spread far and wide. The SC has recently issued a warning against the practise of 'selective' or partial disclosures to the media during criminal investigations. It is true that persons in positions of power frequently utilise defamation lawsuits to silence the media. The answer is not to completely disregard the right to privacy, but rather to stop its abuse through strict judicial monitoring and protections offered by defamation law. In Shetty's case, the court reached this balance by stating that any free speech exclusions should be carefully addressed, that each defendant should be treated uniquely, and that the order shouldn't be seen as a press gag order. Furthermore, prompt court monitoring frequently causes the media to self-regulate and remove material that does not satisfy the standard of public

interest, as it did in Shetty's case. The judiciary must hold comparable cases filed by regular people, not only famous people, to the same standard if the right to privacy is to be treated seriously. Currently, in this nation, press freedom is less protected than an individual's right to privacy. The Puttaswamy judgement defined the right to privacy as a basic right, and the Constitution guarantees it. But neither is press freedom a basic right nor is it a promise. It is a portion of the Constitution's guarantee of the freedom of speech and expression, subject to reasonable limitations.

Nevertheless, it is important to note that privacy is not one of the seven justifications cited for placing reasonable constraints. The media's role in pursuing accountability and the public's greater right to know are both elements of the right to report. Even in the absence of a privacy statute, a body of rulings has accumulated over the years in which the courts have, on various occasions, interpreted privacy in a way that permits closer examination of public figures. *R Rajagopal v. State of Tamil Nadu*, a major 1994 decision weighing press freedom vs. privacy rights, accomplished three objectives:

The case defined privacy as: "A citizen has a right to safeguard the privacy of his own, his family, marriage, procreation, motherhood, child-bearing and education among other matters." It affirmed the right of the press to publish information found in public records but denied the protection of privacy to public officials who claimed a right to privacy for their official tasks. In this interesting case, the editors of the magazine *Nakkheeran* attempted to prevent the Tamil Nadu government from prohibiting the publication of Auto Shankar's autobiography in their newspaper. For six murders, he was sentenced to death. The book described the connection between the detainee and government employees in multiple crimes, and it provided evidence in the form of a video tape and damning pictures. The state administration subsequently exerted pressure on the prisoner to revoke the permit for publication and to claim authorship of the book. This decision was also utilised in following instances to deny publication access to information not on public record, such as private interviews in the biographies of Phoolan Devi, Jayalalithaa, and Veerappan. This was because the judgement made reference to publishing material from public records.

The debate over press freedom and privacy is complex. For private persons, including children, the standard for privacy is much greater. There is the concept of a "public person," which is recognised by the Press Council of India's standards of journalistic behaviour as well as the Indian courts. According to the Supreme Court's ruling in the case of *CPIO, Supreme Court of India vs. Subhash Chandra Agarwal*, prominent figures will receive

different treatment when information requested under the RTI Act by media or individuals.

The release of the Radia Tapes, which were based on telephone tapping allowed by the income-tax department, put the right to privacy to the test as well. However, few would contest that the nexuses disclosed by the discoveries served the public interest.

The Bombay High Court's ruling in the Shilpa Shetty case is the most recent attempt to strike a balance between the right of the public to know and the individual's right to privacy. After her businessman husband was detained in a pornographic case, the star asked for a media gag order. The court ordered the removal of specific disparaging films instead of issuing a general gag order, which would have curbed journalistic freedom. She was also informed that because she decided to live a public life that put her under scrutiny, the media could not be stopped from publishing stories about her. Regarding privacy, the ruling said that "just because Shilpa Shetty is a public figure, it doesn't mean that she has sacrificed her right to privacy guaranteed under the Constitution."

A Personal Data Protection Bill is now being considered for approval. It has a right to be forgotten clause to shield public servants from using historical information about them. If approved, this measure would generally provide new difficulties for reporting.

Right to Fair Trial of the Accused

It is certain that the media has sparked a conflict between the right to press freedom and a fair trial. When questioned about this, the media argues that a democracy can only exist in the presence of a free press, which is a right derived from the people's right to be informed about the ongoings of their elected government on subjects that affect them. The media frequently has a tendency to alter the truth in order to boost audience, which leads to regular deviations from the legal system's conception of justice. The persons engaged in such a case or trial lose their right to a fair trial as a result of this deviation and excessive intrusion into the realm of the court. By biasing facts, it infringes on people's rights, making it crucial to strike a balance between the press's right to free speech and the public's right to a fair trial. In a democratic society, the promise of a fair trial is just as crucial as press freedom. The whole foundation of democracy would be undermined if media trials caused people to question the judiciary's ability to administer justice.

Although there have been occasions where media intrusion has helped victims and accused get justice, there remains the question of whether the right to free speech may be expanded in a way that undermines that freedom. Because the media rarely distinguishes between an individual who is an accused and a convict, the idea of *Audi alteram partem* is compromised. Thus, the media frequently labels the accused as guilty before the court rules, which causes public panic to ruin the accused's life even if he is ultimately found innocent. The media has assumed the role of the court of the people, manipulating the facts and offering slanted opinions while also exerting pressure on the courts to rule in line with their reporting and opinions.

The core of democracy and our Constitution, which also guarantees other rights like the right to legal counsel, the right to a swift trial, and the right to be believed innocent unless proven guilty, is the right to a fair trial. This privilege is crucial to maintain the independence of the court, public trust in the system, and the interests of the accused. The instances with the worst representations are those involving sexual assaults, when the victim's past sexual behaviour is sometimes explored and reported in the media. The victim is subjected to severe social stigma as a result, which frequently leads to suicide. Both the accused and the victims are viewed as newsworthy subjects, endangering their reputations.

Recent news stories have shifted from covering issues of public concern to focusing more on what the audience is interested in.¹⁷ Due to expanded opportunities for broadcasting and almost no supervision, the use of electronic media has increased, which has led to an increase in these media trials. When the media conducts parallel trials, particularly in cases that are under judicial review, the judge's capacity to render impartial decisions based only on the merits of the case is hampered. If the judge decides or issues a judgement that differs from the view or decision made by the media, the judge is depicted as being biased, corrupt, and incapable of carrying out his or her responsibilities. A very dangerous scenario has arisen as a result of the ongoing investigation into sub judice cases. Without a shadow of a doubt, the media has enormous influence over the populace. When this influence is abused under the guise of participatory journalism, it affects the case by unconsciously influencing the judge's decision because the media has already heard the case before the Court made its ruling.

Landmark Cases on Media Trial

1. P.C. Sen vs. Unknown (8th November, 1968)¹⁸

A special leave petition was filed in the case of Re P.C. Sen, 1968, alleging that a broadcast that had occurred on the evening of November 25, 1965, on an All India Radio station had obstructed the administration of justice and amounted to contempt of court because it had revealed the identity of the accused. Any legislation pertaining to contempt of court, according to Justice Shah, is well-established. Any action or publication that seeks to undermine the legitimacy of the court or to interfere with legal processes will be considered a contempt of court. This includes any attempt to bring down the authority of the court.

2. Y.V. Hanumantha Rao vs. K.R. Pattabhiram and Anr. (3rd September, 1973)¹⁹

In a small Andhra Pradesh district, a curfew had been enacted. The arbitrary nature of the curfew that was imposed was placed before the court. The "Deccan Chronicles" had written about the legislation of curfew and why it was implemented together with its historical background and detailed everything about the case during this period, while the case was still ongoing. It was then noted that when a legal dispute was pending, no remarks about it should be made that could seriously jeopardise any trial, such as influencing the judge's decision, a witness' testimony, or the opinions of any other members of the general public who had access to the news. It was also declared in this instance that, even if the person publishing the news believes it to be accurate, it would still be considered contempt of court because the information was established prior to the court's rendering of its decision.

3. Sushil Sharma vs. The State (Delhi Administration) (1st May, 1996)²⁰

In this case, there was not much proof that the accused had killed his spouse. However, the media began presenting the accused as a murderer while the case was still pending in court and was capable of influencing public opinion even before the case was decided. The High Court of Delhi ruled that a person's conviction will solely be based on the evidence in the case and not on the desire of the media to find the person guilty. Additionally, the accusations must be made against the accused based on the documentation and not how the accused is portrayed in the media.

4. Secretary, Ministry of Information and Communication vs. Cricket Association of Bengal (9th February, 1995)²¹

The court emphasised that every person has the right to transmit and broadcast to the audience any significant event through electronic media by defining freedom of speech and expression in a broader sense. Radio and television have also demonstrated that the government has no monopoly on these electronic media, and neither the constitution nor any other statute in effect in the nation specify any such monopolistic authority of the government. As a result, the ruling significantly altered the broadcast media landscape and made that industry accessible to the general public. The right to gather and distribute information is protected by the freedom of speech and expression. Speaking and expressing oneself freely is essential for having a clear conscience and finding fulfilment in one's own life. It enables individuals to participate in discussions on social and moral issues. It is the finest approach to ascertain the most accurate representation of anything sincere since only through it can the biggest variety of ideas be disseminated. It is the sole forum for political speech that is so vital to democracy.

5. R.K. Anand vs. Delhi High Court (29th July, 2009)²²

The Supreme Court looked at the crucial issues surrounding media trial. The case resulted from an undercover investigation by the private television network NDTV into the unholy alliance between the prosecution, its witness, and the defence in the infamous BMW hit-and-run case that claimed the lives of six people when a speeding BMW was driven by the scion of a powerful and wealthy family. Even eight years after the event, the trial was still ongoing, thus NDTV aired a sting operation to reveal how a prominent defence attorney was bargaining to sell out to the defence with the assistance of a special public prosecutor. The special public prosecutor and the defence attorney were found guilty of contempt of court and were forbidden from appearing before the Delhi High Court and its subordinate courts for a period of four months after the Delhi High Court started the Suo-Moto contempt proceedings. After then, an appeal was made to the Supreme Court with the argument that NDTV had committed trial by media and could only have broadcast the stings with the High Court's approval. The Supreme Court of India disagreed, stating that while such a course would not be a journalistic exercise, it would instead include the media serving as a special vigilance agency for the court. The concept of trial by media was defined as "the impact of television and newspaper coverage on a person's reputation by creating a widespread perception of the guilt regardless of any verdict in a court of law" by the Supreme Court in its ruling that NDTV was not guilty of trial by media. R.K. Anand's appeal was denied by the court, and he was given notice that his penalty will be increased.

6. Sidhartha Vashisht @ Manu Sharma vs. State of Delhi²³

The case began with the brutal killing of a young lady in 1999. The woman worked as a barmaid at a prestigious Delhi restaurant. Manu Sharma, the key suspect, was the son of a prominent politician. In 2006, the Delhi trial court cleared all nine defendants in the case. There was a great deal of public outrage at the acquittal, and the media went on the offensive against the prosecution's careless handling of the case, the witness's hostile testimony, and the manipulation of the trial by the accused's political connections. The public's responses to the ludicrous injustice were afterwards covered by the media. As a result, the Delhi High Court reopened the case without waiting for the state to file an appeal against the accused's acquittal. The retrial, which was held mostly as a result of pressure from the media, resulted in the conviction of those who had previously been found not guilty.

7. Nupur Talwar vs. Central Bureau of Investigation

In their scurrilous coverage of the inquiry, tabloid media outlets demonstrated a reckless disregard for the law in a case involving the death of a 14-year-old schoolgirl in her home. This case brought tabloid journalism to a new low. The situation produced significant legal issues that need resolution, including media trial, invasion of privacy, breach of confidentiality, and defamation of both live and deceased individuals. The media pryed into the private life of Aarushi and her parents, publishing her private communications and portraying her father as a killer. Before the murder of the victim's daughter had been proven to the court, the victim's parents were falsely accused of it. The victim's parents received a life sentence due to the media's interference, which influenced the judges' verdicts. The victim's parents appealed the conviction, and after the Allahabad High Court heard their appeal, the court cleared the parents of Arushi Talwar of all charges, concluding that the CBI had failed to establish their guilt beyond a reasonable doubt. By accusing the victim's parents of murder before the court's decision, the media influenced the outcome of the Arushi Talwar case.

8. Sahara India Real Estate Corporation Ltd. vs. SEBI²⁴

In a case also known as the "media guidelines case," the Supreme Court of India convened a constitution bench of five judges in 2012 to discuss whether guidelines should be drafted by the court regarding media coverage of ongoing cases or coverage of cases that are currently before the court. In this particular case, privileged communications were unintentionally leaked by a private television channel, and the communications were related to the settlement. The Supreme Court passed an order saying that "We are distressed to note that even without prejudice proposals sent by the learned counsel for the appellants to the

learned counsel for SEBI has come on one of the television channels, such reporting by television channels not only affects the business sentiments but also it interferes with the administration of justice". The Sahara filed a complaint about the unauthorised broadcast by the television channel, and the Supreme Court of India opened a discussion on media reporting of court cases on behalf of media houses and journalists. The court ordered both counsels to submit a written application to the court in the form of an interlocutory application so that appropriate orders could be passed by the court with regards to the reporting of sub judice matters pending before the court. The inexplicable leak to the media set off a private conversation between the solicitors handling the case, which snowballed into a broad discussion about media excess and the need to restrain it with rules. While recognising the media's right to cover court proceedings and the presumption of open justice, the Supreme Court of India held that there may be some exceptional situations where media coverage could negatively affect the administration of justice. In these situations, media coverage may be delayed for a short period of time by the Supreme Court or the High Courts. Such an order of postponement must pass the tests of necessity and proportionality.

9. The Sheena Bohra Murder Case

The prosecution alleges Sheena was murdered on April 24, 2012, but the crime was only revealed in August 2015, after Rai was arrested in connection with another case. Sheena, Indrani's daughter from a previous relationship, was strangled inside a car by crucial indicted Indrani, Khanna, and Rai. Sheena's body was discovered in a woodland near Raigad. This case was purportedly tied to specific financial transactions. The saga's twists and turns provided fuel for media sources, particularly TV news networks, like nothing else in recent memory. News alert every 12 hours, heated studio conversations over what could have prompted the well-known wife of media magnate Peter Mukerjee to allegedly murder her daughter. As per the videos uploaded over the internet the media has focused more on their personal life of the accused. The media even covered private information of the accused which was not relevant to the case. But since the time Indrani Mukherjee was arrested the media had concluded that she was accountable of murdering her daughter based on some circumstantial evidence way before the trials began.

10. Jasleen Kaur Harassment Controversy Case:

The allegations of sexual harassment made by Jasleen Kaur against Sarvjeet Singh in 2015 and the subsequent actions led to the Jasleen Kaur harassment scandal. Jasleen Kaur, a lady from Delhi, accused Sarvjeet Singh of harassing her in a Facebook post in August 2015. On Indian social media, the post went

viral right away and received a lot of attention. She garnered a lot of support from national celebrities and lawmakers in her fight against eve-teasing and sexual harassment on social media. The next day, Sarvjeet was taken into custody and released on bail. Thereafter came Trail by Media, in which Sarvjeet was called "National Pervert" and "Delhi ka Darinda" (Delhi's predator) on national news networks. A witness who confirmed Sarvjeet's innocence a few days after the occurrence gave legitimacy to Sarvjeet's narrative.

After four years, in 2019, the Indian court declared Sarvjeet innocent and exonerated him of all accusations. Four years after the occurrence, on October 24, 2019, the court rendered its decision²⁵. Sarvjeet was found innocent and all charges were dropped. He was cleared of every accusation levelled against him. However, because of the media attention at the time, the man lost his job and was unable to find another work.²⁶

11. Sushant Singh Rajput Case

Sushant Singh Rajput was found dead in his apartment. Though the medical officials prima facie declared it a suicide, the public and media was adamant on its belief that his death might be murder. This led to the #JusticeForSSR campaign which was initially well-intended social media movement. Unfortunately, even noble intentions are undermined by poor implementation. The enraged audience began harassing Karan Johar, Alia Bhatt, Deepika Padukone, and others. Rhea Chakraborty, the dead actor's girlfriend, was at the centre of the issue.

People suspected Rhea was involved in Sushant's killing. Kangana Ranaut made videos calling Rhea a "gold digger" who was soliciting money from Sushant. Furthermore, they suspected Rhea is addicted to drugs and may have made Sushant hooked to narcotics, leading to his death. The Narcotics Control Bureau (NCB) summoned Rhea and her brother²⁷ for questioning in order to learn more about the link between Sushant's death and drug use. Rhea was detained for 14 days by the NCB, and her brother was arrested.

Soon Rhea and other celebrities began receiving death threats, rape threats, insults, and other types of abuse from the mob²⁸. It demonstrates how the crowd will do anything in wrath without fear of repercussions. They will push a person over the brink in this instance. They won't even listen to his/her narrative at this point. Anyone who calls them out on their actions will face the most severe types of online abuse. Rhea was not only made a scapegoat, but also a "communist pariah" in the mob's online McCarthyism. She and her family were subjected to internet witch hunts, lynchings, and character assassination. Sushant's case is long shut but Rhea is facing boycott in her social as well as

professional life. This case is a prime example of how media through its 'trial' ruined reputation of the accused in public perception.

Law Commission 200th Report²⁹

In August 2006, the report, headed by Justice M. Jagannath Rao, made the following recommendations to prevent similar opportunities from occurring in future:

- Prohibiting the publication of anything prejudicial to the reputation of the accused—a prohibition which would result from the time of arrest.
- The starting point of a criminal case should not be from the filing of the charge sheet but from the time of arrest of the accused. The assumption behind such an amendment is that it would avoid bias or prejudice in the matter.
- To address the detrimental impact of sensational news reports on the administration of justice.
- The High Court has the power to direct suspension of broadcast or publication in criminal cases and restrain the media from resuming such broadcast or publication.

Bombay High Court Guidelines (Nilesh Navlakha Guidelines)

The Bombay High Court in a recent case directed the print and electronic media while reporting on certain cases or investigation of a particular case (Nilesh Navlakha and Union of India³⁰) to avoid news, debates, Avoid interview, discussion and exercise restraint. The judgment gave an 'indicative, though not exhaustive' list, which are prejudicial to the ongoing investigation, which are as follows:

1. In the case of suicide, imputing the deceased to be of weak character or intruding into the privacy of the deceased;
2. It causes bias in the ongoing investigation:
 - Invoking the character of the accused/victim and creating an atmosphere of prejudice against both;
 - Interviewing the victim, witnesses and/or members of their family and televising the same;
 - Analysis of statements of witnesses, which may be important at the stage of examination of evidence;

- Publishing a confession made by an accused to the police and attempting to lead the public to believe that the same is evidence admissible before a court of law and that there is no reason for the court not to act upon it.
 - Printing photographs of an accused and thereby facilitating his identification;
 - Based on raw information without proper research but criticizing the investigating agency;
 - Adjudicating upon the merits of the case, including pre-determination of guilt or innocence in relation to an accused or a person not yet required to be in the case, as the case may be;
 - Reconstructing the crime scene and showing how the accused committed the crime;
 - An estimate of the proposed/proposed future course of action including the steps to be taken to complete the investigation;
 - Leaking sensitive and personal information from the material collected by the investigating agency
3. To act in any manner to contravene the provisions of the Program Code prescribed under section 5 of the Cable TV Networks Act, read with section 6 of the Act, and thereby invite contempt of court,
4. Indulging in character assassination of any person and defaming his reputation.

The bench said that the above guidelines are not exhaustive, they are indicative. Any report carried by print or electronic media must conform to the program code, journalistic standards and ethics and broadcasting rules; In case of violation of these, action can be taken under the prevailing regulatory mechanism. The Court observed, "The erring media house may render itself liable to face contempt proceedings, that is, criminal contempt within the meaning of Section 2(c) of the Contempt of Courts Act, which when initiated has to be decided by a court of competent jurisdiction, clearly on merits and in accordance with law."³¹

Conclusion: Vigilance is the Key

In the majority of cases, the media has been working tirelessly to uncover the truth, and it was instrumental in bringing about justice in the notorious Jessica Lal, Matoo, Nitish Kataria, and Nirbhaya cases. In the interaction between litigation and media, there must be a clear and obvious balance between the right to press freedom and the right to a fair trial. The aforementioned incidents clearly demonstrate the media's proactive role, without which the administration

of justice would have suffered significantly. Due to media intervention, the accused was found guilty and the process was expedited.

It's easy to get caught up in the sensationalism of it all, but we must remember that there are real people behind these headlines. The media has a powerful influence on public opinion, and it's important to approach these cases with a critical eye. We must ask ourselves: what evidence is being presented? Is it reliable? Is there bias in the reporting? It's also crucial to consider the impact on the families involved. They are often thrust into the spotlight without their consent, and their lives are forever changed by the outcome of the trial. As consumers of news, we have a responsibility to seek out accurate information and consider the human cost of these high-profile cases. Outlets these days. With the rise of sensationalism and clickbait journalism, the presumption of innocence seems to have taken a backseat. The media is quick to jump on any scandalous story, often without verifying the facts or waiting for a fair trial. This has led to numerous cases of innocent people being vilified in the court of public opinion, causing their reputations to be irreparably damaged. It's important for journalists to remember that their duty is not just to report the news but also to do so responsibly and ethically. This means avoiding sensationalism and presenting a balanced perspective that respects the rights of all parties involved. Only then can we truly uphold the principles of justice and fairness that are so essential to our society.

It's important to remember that media coverage can often be biased and sensationalised with the goal of increasing viewership and ratings. While it's important to stay informed about current events, it's equally important to approach news with a critical eye and consider multiple sources before forming an opinion. In cases where a trial is ongoing, it's important to remember that the accused is innocent until proven guilty in a court of law. Additionally, the families involved in the case are likely going through a difficult time and deserve privacy and respect. It's important to approach news coverage with empathy and understanding rather than jumping to conclusions or making assumptions based on incomplete information. By doing so, we can ensure that justice is served fairly and accurately for all parties involved.

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Navigating the Maze: Exploring the Right to Privacy and Media Dynamics in India

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Abstract

The right to privacy in India is not explicitly mentioned in the Constitution. However, in August 2017, the Supreme Court of India recognized privacy as a fundamental right under Article 21 (Right to Life and Personal Liberty) of the Indian Constitution. The landmark judgment in the case of Justice K.S. Puttaswamy (Retd.) v. Union of India affirmed that privacy is an intrinsic part of individual liberty and dignity. Media in India plays a vital role in shaping public opinion, disseminating information, and holding those in power accountable. Freedom of speech and expression, including press freedom, is guaranteed under Article 19(1)(a) of the Indian Constitution. However, this right is subject to reasonable restrictions under Article 19(2), which includes considerations such as public order, defamation, incitement to an offense, and morality. The relationship between the right to privacy and media in India is complex. While the media has a crucial role in informing the public, it must also respect individuals' privacy rights. Journalists are expected to exercise responsible reporting and strike a balance between public interest and an individual's right to privacy. There have been instances where the publication of private information without consent has led to legal disputes and debates on the ethical boundaries of media coverage. The paper analyzes landmark legal cases, constitutional provisions, and key Supreme Court judgments pertaining to privacy rights and media freedom in India. It examines the impact of these cases on media practices and the protection of privacy rights. Additionally, the paper discusses the ethical responsibilities of media organizations and analyzes journalistic codes of conduct and guidelines related to privacy. Furthermore, it assesses the implications of media practices on privacy rights and identifies the challenges faced in ensuring privacy protection in the media landscape. The research also explores emerging issues such as digital privacy, social media, and surveillance and their impact on privacy and media dynamics. The paper concludes by providing recommendations for policymakers, media organizations, and individuals to address these challenges effectively and protect privacy rights in the digital era.

Keywords: Right to Privacy, Media Dynamics, Legal Cases, Privacy Protection, Digital Age.

Introduction

The right to privacy is a fundamental aspect of individual liberty and has been a subject of significant legal and social discourse in India. Although the Indian Constitution does not explicitly mention the right to privacy, its recognition as a fundamental right has evolved through judicial interpretations. In August 2017, the Supreme Court of India, in the landmark judgment of Justice K.S. Puttaswamy (Retd.) v. Union of India, declared privacy as a fundamental right protected under Article 21 (Right to Life and Personal Liberty) of the Constitution. This decision marked a significant milestone in affirming the intrinsic value of privacy in Indian society.

The recognition of the right to privacy holds profound implications for various aspects of Indian society, including the media. It acknowledges the importance of safeguarding personal information and protecting individuals from unwarranted intrusion into their private lives. This recognition has prompted discussions about the ethical boundaries and responsibilities of media organizations when reporting on personal matters.

Media in India, comprising print, broadcast, and digital platforms, plays a crucial role in shaping public opinion, disseminating information, and holding those in power accountable. The freedom of speech and expression, including press freedom, is enshrined under Article 19(1)(a) of the Indian Constitution. This provision empowers journalists to report on diverse topics, including politics, social issues, and matters of public interest. However, this freedom is not absolute and can be subject to reasonable restrictions under Article 19(2), which includes considerations such as public order, defamation, incitement to an offense, and morality. While the media landscape in India is vibrant and diverse, it is not without criticism. Media organizations have faced scrutiny for biased reporting, sensationalism, and a lack of adherence to ethical standards. Instances of privacy infringement through the publication of personal information without consent have raised concerns about the responsible use of media platforms and the need to strike a balance between public interest and an individual's right to privacy.

The recognition of the right to privacy by the Supreme Court has further emphasized the importance of considering privacy rights in media practices. It has prompted media organizations to be cautious when reporting on personal matters and to respect the boundaries of privacy. The specifics of how privacy rights intersect with media practices are often determined on a case-by-case

basis by courts, considering the context and circumstances involved. As India continues to grapple with the challenges of the digital age and the ease of access to personal information, both the media and the legal system need to evolve to address the complexities that arise. Striking a balance between media freedom and privacy rights requires ongoing discussions, ethical considerations, and the development of appropriate regulations and guidelines.

Studying the intersection between privacy and media is of utmost importance in today's digital age, where information dissemination is rapid and widespread. It holds significance from legal, ethical, and societal perspectives. Privacy is a fundamental right that protects individuals from unwarranted intrusion into their personal lives. With the media serving as a powerful channel for disseminating information, it is crucial to examine how media practices can either uphold or infringe upon privacy rights. By understanding this intersection, we can develop safeguards and guidelines to ensure that media organizations respect individuals' privacy while fulfilling their role as informers and watchdogs. Media organizations have a significant impact on public opinion and play a crucial role in shaping societal values.

By studying the privacy-media nexus, we can critically assess media ethics and the responsible use of personal information. It allows us to evaluate the ethical boundaries of media coverage, promote balanced reporting, and discourage sensationalism or exploitation of private matters. Understanding the ethical considerations surrounding privacy and media ensures a more responsible and accountable media landscape. Freedom of expression, including press freedom, is a cornerstone of a democratic society. However, it is not absolute and must be balanced with other rights, such as privacy. Exploring the intersection between privacy and media helps us navigate the delicate balance between these two rights. By analyzing legal precedents and current practices, we can identify appropriate limits on media coverage to protect individual privacy while upholding freedom of expression.

Media plays a pivotal role in shaping public discourse and influencing public opinion. Understanding how privacy concerns interact with media practices enables us to critically analyze the impact of media coverage on individuals and society. It allows us to evaluate the potential consequences of privacy infringement, such as reputational damage, psychological harm, or social stigma. By studying this intersection, we can promote a more informed and responsible media environment that contributes to constructive public dialogue. The study of privacy and media informs the formulation of policies and legal frameworks that govern media practices. It helps policymakers and lawmakers strike a balance between privacy protection and the freedom of the press. Through comprehensive research and analysis, we can identify gaps in existing

regulations and propose necessary reforms to adapt to the evolving challenges posed by technological advancements.

Historical Perspective

The evolution of the right to privacy in Indian jurisprudence has been a significant journey marked by legal interpretations and landmark judgments that have shaped its recognition as a fundamental right. While the right to privacy is not explicitly mentioned in the Indian Constitution, its development can be traced through various judicial pronouncements and constitutional interpretations.

The earliest recognition of privacy as an inherent right can be found in the Supreme Court's decision in the case of *Kharak Singh v. State of Uttar Pradesh* (1963). In this case, the Court acknowledged that the right to privacy is an essential element of personal liberty and is implicit in Article 21 (Right to Life and Personal Liberty) of the Constitution.

However, it was not until several decades later that the Supreme Court revisited and expanded upon the concept of privacy. In 2017, in the landmark case of *Justice K.S. Puttaswamy (Retd.) v. Union of India*, the Court examined the constitutional validity of the Aadhaar program, a biometric identification scheme implemented by the Indian government. In its judgment, the Court recognized privacy as a fundamental right protected under Article 21 of the Constitution.

The Puttaswamy judgment marked a significant milestone in the evolution of the right to privacy in Indian jurisprudence. The Court held that privacy is intrinsic to the dignity and autonomy of an individual and forms an integral part of the rights guaranteed under Article 21. The judgment acknowledged that privacy includes informational privacy, bodily integrity, and decisional autonomy. Furthermore, the Court's decision emphasized that privacy is not an absolute right and can be subject to reasonable restrictions based on compelling state interests. It laid down a three-part test to determine the constitutionality of any infringement on privacy: legality, necessity, and proportionality. The test requires that any infringement on privacy must have a clear legal basis, be necessary to achieve a legitimate state interest, and be proportionate to the objective sought to be achieved.

The recognition of the right to privacy in the Puttaswamy judgment had a far-reaching impact on various aspects of Indian society, including the media. It established a constitutional foundation for the protection of personal information and privacy rights, shaping the discourse around media practices

and their implications for privacy. Since the Puttaswamy judgment, subsequent judicial decisions have continued to build upon the recognition of privacy as a fundamental right. Courts have addressed privacy-related issues, such as the use of surveillance technologies, data protection, and the right to be forgotten. These decisions have further clarified and expanded the contours of the right to privacy in the Indian legal landscape.

The evolution of the right to privacy in Indian jurisprudence reflects a growing recognition of the significance of personal autonomy, dignity, and the protection of personal information. It highlights the role of the judiciary in interpreting and adapting constitutional principles to the changing needs and challenges of a rapidly evolving society. The development of the right to privacy in Indian jurisprudence has paved the way for a more robust framework to protect privacy rights, ensuring a balance between individual liberties and societal interests.

Several landmark legal cases and judgments in India have played a pivotal role in shaping the recognition and protection of privacy rights. These cases have helped to define the contours of the right to privacy and establish important precedents for the judiciary to consider in subsequent privacy-related matters. The landmark judgment in *Justice K.S. Puttaswamy (Retd.) v. Union of India* (2017) has had a profound impact on privacy rights in India. By recognizing privacy as a fundamental right protected under Article 21 of the Constitution, the judgment laid the foundation for a robust framework for privacy protection. This recognition has had implications for media practices, emphasizing the need for media organizations to respect privacy while reporting on personal matters. Supreme Court judgments related to privacy have helped establish ethical boundaries for media reporting. The judgments have emphasized the importance of responsible journalism and highlighted the need for media organizations to balance the public's right to information with an individual's right to privacy. Media practitioners are expected to exercise caution and adhere to ethical standards when reporting on personal and sensitive matters, ensuring that privacy rights are respected. It helped curb sensationalism and privacy infringement by media organizations. The recognition of privacy as a fundamental right has prompted courts to intervene and provide remedies in cases where media reporting unjustifiably invades an individual's privacy. These judgments have emphasized the need for media organizations to exercise restraint and ensure that their reporting does not result in the undue disclosure of personal information without legitimate public interest.

Legal Framework

Constitutional provisions related to the right to privacy and media freedom in India provide the framework for protecting individual liberties while upholding

the principles of a democratic society. These provisions set the stage for understanding the interplay between privacy and media and the balance between individual rights and the freedom of the press. Here are the key constitutional provisions relevant to the right to privacy and media freedom:

Article 21 - Right to Life and Personal Liberty: Article 21 of the Indian Constitution guarantees the right to life and personal liberty. While privacy is not explicitly mentioned in the text of Article 21, the Supreme Court has interpreted this provision to encompass the right to privacy. The right to privacy as an essential aspect of personal liberty has been established through landmark judgments, recognizing its fundamental nature and protection under Article 21.

Article 19(1)(a) - Freedom of Speech and Expression: Article 19(1)(a) of the Constitution guarantees the freedom of speech and expression, which includes the freedom of the press. This provision ensures that media organizations have the right to disseminate information, express opinions, and contribute to public discourse. However, this freedom is subject to reasonable restrictions under Article 19(2) in the interest of, among other things, public order, decency, and privacy.

Article 19(1)(g) - Right to Practice Any Profession: Article 19(1)(g) guarantees the right to practice any profession, occupation, or trade. This provision includes the freedom to work in the field of media and journalism. Media professionals have the right to engage in their chosen profession and contribute to the free flow of information and ideas. However, this right is subject to reasonable restrictions in the interest of public order, morality, and the rights of others.

Article 19(2) - Reasonable Restrictions on Fundamental Rights: Article 19(2) of the Constitution allows for the imposition of reasonable restrictions on the exercise of fundamental rights, including the right to freedom of speech and expression. These restrictions can be imposed in the interest of various considerations, such as sovereignty and integrity of India, security of the state, friendly relations with foreign nations, public order, decency, and privacy. The concept of privacy acts as one of the grounds for imposing reasonable restrictions on media freedom when necessary.

These constitutional provisions lay the foundation for the right to privacy and media freedom in India. They ensure that individuals have the right to privacy, which includes protection from unwarranted intrusion into their personal lives. Simultaneously, the provisions also safeguard media freedom, enabling media organizations to exercise their right to freedom of speech and expression. However, these rights are subject to reasonable restrictions to balance the

interests of individuals, society, and the state. The interpretation and application of these provisions by the judiciary help shape the legal landscape and guide the relationship between privacy and media freedom in India.

Kharak Singh v. State of Uttar Pradesh (1963): In the case of Kharak Singh v. State of Uttar Pradesh, the Supreme Court examined the issue of surveillance and its impact on an individual's privacy. The key issue was whether surveillance practices violated the right to privacy protected under Article 21 of the Constitution. The Court, in its judgment, recognized that privacy is an essential aspect of personal liberty and held that surveillance without a justifiable cause infringes upon an individual's fundamental rights. Although the Court did not explicitly declare privacy as a fundamental right, this case laid the foundation for subsequent privacy-related jurisprudence. The outcome of the case established the principle that unwarranted intrusion into a person's home and surveillance practices without legal justification are unconstitutional, thereby protecting the right to privacy.

R. Rajagopal v. State of Tamil Nadu (1994): In R. Rajagopal v. State of Tamil Nadu, the Supreme Court addressed the conflict between an individual's right to privacy and the freedom of the press in the context of defamation. The central issue in this case was whether a person's right to privacy could outweigh the media's right to freedom of expression. The Court, in its judgment, recognized that individuals have a right to control the information about their private life and that privacy can be invoked to protect oneself from unwarranted intrusion, even if the information is true. The outcome of the case established that the right to privacy can restrict the media's reporting of private and personal matters. The judgment set ethical boundaries for media reporting and emphasized the need to strike a balance between the right to privacy and the freedom of the press.

Justice K.S. Puttaswamy (Retd.) v. Union of India (2017): The case of Justice K.S. Puttaswamy (Retd.) v. Union of India was a landmark judgment that declared privacy as a fundamental right protected under Article 21 of the Constitution. The central issue in this case was the constitutional validity of the Aadhaar program, which involved the collection and use of biometric data of Indian citizens. The Court, in its judgment, recognized privacy as an intrinsic part of personal liberty, dignity, and autonomy. The outcome of the case established privacy as a fundamental right and set the stage for a comprehensive framework for privacy protection. It established a three-part test for determining the constitutionality of any infringement on privacy: legality, necessity, and proportionality. This judgment had significant implications for the media as it recognized the need to balance privacy rights with the public's right to information and highlighted the importance of responsible media practices.

PUCL v. Union of India (1997): In *PUCL v. Union of India*, the Supreme Court addressed the issue of telephone tapping and its impact on an individual's right to privacy. The key issue was whether unauthorized telephone tapping violated the right to privacy protected under Article 21 of the Constitution. The Court, in its judgment, recognized that privacy includes the right to maintain the confidentiality of telephone conversations. It held that telephone tapping without proper authorization infringes upon an individual's privacy rights. The outcome of the case emphasized the importance of procedural safeguards and the necessity for a legitimate state interest when infringing upon privacy rights. This judgment had implications for media organizations as it set boundaries on the interception of communications and reaffirmed the importance of respecting privacy rights in the digital age.

These cases highlight the key issues, arguments, and outcomes in Indian jurisprudence related to privacy and media. They address the balance between privacy rights and the freedom of the press, recognize the ethical boundaries of media reporting, establish the right to privacy as a fundamental right, and set guidelines for privacy protection.

The impact of the key Supreme Court cases on media practices and privacy rights in India has been significant, shaping the landscape of both the media industry and individual privacy protections. These cases have influenced the way media organizations operate and have provided guidelines for respecting privacy rights while fulfilling their role as the Fourth Estate. Additionally, they have established legal precedents and principles that safeguard the right to privacy in the face of evolving technology and changing societal norms. The cases have prompted media organizations to reassess their practices and adhere to ethical boundaries when reporting on personal and sensitive matters. The recognition of privacy as a fundamental right and the establishment of privacy as a ground for imposing reasonable restrictions on media freedom have emphasized the need for responsible journalism. Media practitioners are now more conscious of the potential impact of their reporting on privacy, ensuring that they exercise caution and consider the implications of their coverage on individuals' personal lives.

Moreover, these cases have emphasized the delicate balance between the public's right to information and an individual's right to privacy. They have provided guidance on weighing public interest against privacy concerns, urging media organizations to consider the necessity and proportionality of intruding into an individual's private life. Media practices are now expected to respect privacy rights and avoid sensationalism or unwarranted intrusion into personal matters, ensuring that the media's freedom of expression is exercised responsibly and in harmony with privacy rights.

These cases have also had a significant impact on the legal framework surrounding privacy rights in India. They have expanded the understanding of privacy as a fundamental right and reinforced the notion that privacy extends to various domains, including informational privacy, bodily integrity, and decisional autonomy. The judgments have influenced subsequent legislation, policies, and discussions related to data protection, surveillance, and the right to be forgotten, among others. They have provided a solid foundation for privacy rights in the digital age, where advancements in technology have raised new challenges in safeguarding personal information.

Furthermore, the impact of these cases extends beyond media practices and has permeated various aspects of society. They have fostered awareness among individuals about their privacy rights and empowered them to seek legal remedies when their privacy is unjustifiably violated. These cases have also sparked public debates and discussions on the appropriate balance between privacy and media freedom, contributing to a more informed and nuanced understanding of these complex issues.

Ethical Considerations

Media organizations hold significant power and influence in shaping public opinion and disseminating information. With this power comes a set of ethical responsibilities that are essential for maintaining the trust and credibility of the media. Ethical considerations guide media organizations in their practices, ensuring that they uphold professional standards and respect the rights and dignity of individuals. The discussion on the ethical responsibilities of media organizations revolves around several key aspects.

Firstly, accuracy and truthfulness are fundamental ethical obligations of media organizations. They are expected to report information accurately, fact-check sources, and present a balanced perspective. Media professionals have a responsibility to verify facts and provide reliable information to the public. This includes avoiding the dissemination of rumors or unverified information that can potentially harm individuals or mislead the audience.

Secondly, privacy and confidentiality are critical ethical considerations. Media organizations are expected to respect the privacy rights of individuals while reporting on matters of public interest. They should exercise caution when reporting on personal or sensitive information, ensuring that privacy is not unduly invaded. Obtaining informed consent, anonymizing identities when necessary, and avoiding unnecessary intrusion into private lives are ethical guidelines that media organizations should adhere to.

Thirdly, fairness and impartiality are vital ethical principles. Media organizations should strive to provide balanced coverage and present multiple perspectives on a given issue. They should avoid sensationalism, biases, and favoritism, treating all individuals and groups fairly. The media's role is to inform the public objectively and foster a well-informed citizenry capable of forming their own opinions.

Additionally, accountability and transparency are crucial ethical responsibilities. Media organizations should be accountable for their actions and willing to correct errors or inaccuracies promptly. They should have mechanisms in place to address public complaints or concerns. Transparency in sourcing, disclosure of conflicts of interest, and clear attribution of information are essential for maintaining credibility and trust with the audience. Furthermore, ethical considerations extend to avoiding harm and minimizing sensationalism. Media organizations should be aware of the potential impact of their reporting on individuals, communities, and society as a whole. They should exercise caution when reporting on sensitive or traumatic events, ensuring that their coverage does not cause unnecessary harm or further victimize individuals. Sensationalism and the exploitation of tragedy for increased viewership or readership undermine the ethical responsibility to inform the public responsibly. Journalistic codes of conduct and guidelines play a crucial role in defining the ethical boundaries for media organizations and journalists, particularly when it comes to the sensitive issue of privacy. These codes and guidelines provide a framework for responsible journalism, ensuring that privacy rights are respected while reporting on matters of public interest. An analysis of these codes and guidelines reveals common principles and considerations related to privacy.

Many journalistic codes of conduct emphasize the importance of accuracy and truthfulness in reporting, which includes respecting the privacy rights of individuals. They highlight the need to verify information and sources before publication, particularly when personal or sensitive details are involved. Journalists are encouraged to exercise caution and ensure the accuracy of information while considering the potential impact on individuals' privacy.

Confidentiality is another key aspect addressed in journalistic codes and guidelines. The protection of sources' identities and maintaining the confidentiality of sensitive information is considered essential. Journalists are often advised to obtain informed consent from individuals before publishing personal details or to use anonymous sourcing when necessary. Respecting the confidentiality of sources and individuals involved in a story helps maintain trust and encourages openness in sharing information.

Balancing public interest and privacy is a recurring theme in journalistic codes and guidelines. Media organizations are urged to consider the public's right to information and the potential impact on individuals' privacy. The codes emphasize the importance of distinguishing between matters of genuine public interest and sensationalism or intrusion into personal lives. Journalists are encouraged to evaluate the relevance and significance of personal details in a story, ensuring that the public interest is served without unduly violating privacy rights.

Guidelines often stress the need for sensitivity and empathy when reporting on personal tragedies or sensitive issues. Journalists are advised to consider the potential harm that their coverage might cause to victims, their families, or vulnerable individuals. Responsible reporting involves avoiding unnecessary intrusion, avoiding the re-victimization of individuals, and showing sensitivity towards those affected by the story. Ethical guidelines recognize the delicate balance between reporting on important issues and minimizing harm to individuals' privacy and well-being.

Transparency and accountability are additional principles found in journalistic codes and guidelines. Media organizations are encouraged to be transparent in their sourcing, attributions, and disclosures. If errors occur, prompt correction and clarification are expected. Accountability mechanisms, such as providing avenues for public feedback or complaint handling, demonstrate a commitment to maintaining ethical standards and rectifying mistakes.

The assessment of media practices and their implications for privacy rights reveals a complex landscape with both positive and negative aspects. On one hand, media plays a crucial role in informing the public, promoting transparency, and holding those in power accountable. However, media practices can also have significant implications for privacy rights, particularly in the digital age where personal information is easily accessible and disseminated. One aspect of media practices that raises concerns is the potential for sensationalism and intrusion into personal lives. In the pursuit of attracting viewership or readership, some media organizations may resort to invasive reporting that disregards the privacy and dignity of individuals involved. Unethical practices, such as publishing private photographs, revealing personal details without consent, or engaging in intrusive surveillance, can seriously infringe upon privacy rights and cause harm to individuals and their families. Furthermore, the rise of digital media and social networking platforms has introduced new challenges to privacy. The ease with which personal information can be collected, shared, and exploited has raised concerns about the protection of individuals' privacy. Media organizations that engage in the collection and dissemination of personal data need to be aware of the potential

consequences and ensure that appropriate safeguards are in place to protect privacy rights.

However, media practices also have positive implications for privacy rights. Investigative journalism, for example, plays a vital role in uncovering wrongdoing and exposing issues of public concern. It can serve as a catalyst for social change and ensure accountability. Responsible reporting that respects privacy rights while shedding light on matters of public interest demonstrates the importance of media practices in upholding democratic values.

Additionally, media practices can contribute to raising awareness and initiating public discussions on privacy-related issues. Through responsible reporting and informed analysis, media organizations can educate the public about the importance of privacy rights and the potential risks associated with their erosion. By highlighting privacy concerns, media can encourage individuals, policymakers, and society as a whole to reflect on the need for robust legal protections and responsible data practices. To mitigate the negative implications and strengthen privacy rights, it is essential for media organizations to adopt ethical guidelines and codes of conduct that prioritize privacy considerations. The promotion of responsible journalism that respects privacy, obtains informed consent, verifies information, and avoids unnecessary intrusion into personal lives is crucial. Collaboration with privacy advocates, legal experts, and civil society organizations can further enhance media practices and foster a culture that values privacy rights.

The assessment of the effectiveness of existing regulations in protecting privacy rights highlights a mixed picture. While there are regulations and laws in place to safeguard privacy in various jurisdictions, their efficacy in addressing the challenges posed by evolving technology and changing media practices is a subject of ongoing debate. One aspect of assessing the effectiveness of existing regulations is examining their scope and coverage. Privacy regulations often vary across countries, and their applicability to different forms of media and emerging technologies can be limited. The rapid advancement of digital media, social networking platforms, and data-driven technologies has posed new challenges to privacy, requiring a comprehensive and adaptable legal framework. In some cases, existing regulations may not adequately address these emerging issues, leaving privacy rights vulnerable to exploitation.

Moreover, the enforcement of privacy regulations is another crucial factor in their effectiveness. While regulations may exist on paper, their enforcement mechanisms and the capacity of regulatory authorities to monitor and penalize violations can vary. Insufficient resources, lack of expertise, or limited legal powers can hinder the effective enforcement of privacy regulations. This can

undermine the intended protection of privacy rights and create a perception that privacy laws are toothless. Another consideration is the effectiveness of consent mechanisms in protecting privacy rights. Many privacy regulations require individuals to provide informed consent for the collection, use, and disclosure of their personal data. However, the complex and lengthy privacy policies, often presented in a legalistic manner, make it challenging for individuals to fully understand and make informed decisions. The concept of consent is also complicated in cases where individuals are required to provide personal data as a condition for accessing services or content, potentially undermining the voluntariness of consent.

Additionally, the cross-border nature of media and data flows presents challenges for privacy regulations. In an interconnected world, personal data can be easily transferred across jurisdictions, raising questions about the effectiveness of regulations in protecting privacy when data crosses borders. Harmonization of privacy laws, international cooperation, and mechanisms such as data protection agreements or certification schemes can contribute to a more effective global framework for privacy protection. However, it is important to acknowledge that existing privacy regulations have made significant contributions in safeguarding privacy rights. They have established fundamental principles, such as the need for consent, purpose limitation, data minimization, and data security, which form the basis for protecting individuals' personal information. Privacy regulations have also facilitated the emergence of data protection authorities, empowering individuals to seek redress for privacy violations and encouraging organizations to adopt privacy-by-design approaches.

To enhance the effectiveness of existing regulations, ongoing efforts are focused on updating and strengthening privacy laws to address emerging challenges. This includes incorporating provisions to address the impact of new technologies such as artificial intelligence, facial recognition, and biometric data. Stricter penalties for privacy violations, increased transparency requirements, and empowering individuals with more control over their personal data are among the measures being considered to enhance the effectiveness of privacy regulations.

Challenges and Future Directions

The identification of challenges in ensuring privacy protection in the media landscape reveals several complex issues that pose significant hurdles in safeguarding individuals' privacy rights. These challenges stem from the evolving nature of media practices, technological advancements, and the interplay between freedom of expression and privacy considerations.

One key challenge is the vast amount of personal data collected and processed by media organizations. In the digital age, individuals generate extensive amounts of personal information through their online activities, which are often collected and used by media entities for various purposes. This includes data gathered through website visits, social media interactions, and targeted advertising. The sheer volume and granularity of personal data present challenges in maintaining privacy, as the potential for unauthorized access, data breaches, or misuse of information increases.

The rise of social media platforms and user-generated content also presents challenges to privacy protection. Individuals voluntarily share personal information and engage in public discussions on these platforms, often blurring the boundaries between private and public spheres. The challenge lies in ensuring that individuals have a clear understanding of the potential risks and consequences of sharing personal information, and that media organizations handle such information responsibly and respect individuals' privacy choices. The globalization of media and the borderless nature of information flows create challenges in privacy protection. Media organizations operate across multiple jurisdictions, each with its own privacy regulations and cultural norms. This raises questions about how to harmonize privacy standards, navigate conflicting legal requirements, and ensure consistent privacy protection in a globalized media landscape. Cross-border data transfers, cloud storage, and the extraterritorial reach of media platforms further complicate the task of ensuring robust privacy protection.

Technological advancements such as artificial intelligence (AI), big data analytics, and facial recognition pose additional challenges to privacy protection. These technologies enable the collection, processing, and profiling of vast amounts of personal data, often without individuals' explicit consent or knowledge. The potential for algorithmic bias, invasive surveillance, and the erosion of anonymity raises concerns about the impact on privacy rights. Balancing the benefits of technological innovation with privacy considerations remains a persistent challenge. The tension between freedom of expression and privacy also poses a challenge in privacy protection. Media organizations have a responsibility to report on matters of public interest and hold those in power accountable. However, in doing so, they may come into conflict with individuals' privacy rights. Striking a balance between the public's right to information and an individual's right to privacy requires careful consideration and ethical decision-making.

Furthermore, the evolving nature of media practices, including citizen journalism, live streaming, and the increasing influence of social media influencers, creates challenges in defining the roles and responsibilities of

various actors in the media landscape. Ensuring that privacy protection extends to all stakeholders and that ethical guidelines are followed by both traditional media organizations and individual content creators is crucial.

The emerging issues of digital privacy, social media, and surveillance have become focal points in discussions surrounding privacy rights in the modern era. These interconnected issues pose unique challenges to individuals' privacy, raising concerns about data protection, online surveillance, and the impact of social media platforms on personal information. Digital privacy is a central concern as individuals increasingly rely on digital technologies for various aspects of their lives. The collection and processing of personal data have become integral to online activities, from social media interactions and online shopping to accessing digital services. The sheer volume of personal data generated and shared in the digital realm has raised questions about the extent of control individuals have over their information and the potential for misuse or unauthorized access. Protecting digital privacy requires robust data protection regulations, transparency in data practices, and individuals' awareness of their rights and privacy settings.

Social media platforms have transformed the way individuals connect, communicate, and share information. However, they also present significant privacy challenges. Users often disclose personal details, preferences, and behaviors on these platforms, which can be mined for targeted advertising or even political manipulation. The lack of clarity regarding data ownership, the sharing of user information with third parties, and the potential for algorithmic profiling and discrimination raise concerns about privacy infringement. Striking a balance between the benefits of social media and protecting individuals' privacy is a key challenge that requires comprehensive privacy policies, enhanced user controls, and responsible data practices by social media companies. Surveillance, both online and offline, has become a pressing issue in the context of privacy rights. Technological advancements have enabled unprecedented surveillance capabilities, raising concerns about mass surveillance, government monitoring, and corporate surveillance. The proliferation of surveillance cameras in public spaces, the collection of metadata by telecommunications companies, and the interception of digital communications have implications for individuals' privacy. Striking the right balance between security needs and privacy rights is a complex task that requires clear legal frameworks, independent oversight, and safeguards to prevent abuse of surveillance powers.

Emerging issues such as facial recognition technology, biometric data collection, and artificial intelligence further complicate the privacy landscape. The widespread deployment of facial recognition systems for identification and

surveillance purposes raises concerns about privacy, particularly when combined with other data sources. Biometric data, including fingerprints and DNA, has unique privacy implications due to its sensitivity and potential for misuse. Additionally, the use of artificial intelligence and machine learning algorithms in profiling individuals and making automated decisions can lead to privacy risks and discriminatory outcomes. Addressing these emerging issues requires a multi-faceted approach that combines legal frameworks, technological safeguards, public awareness, and responsible practices by both public and private entities. Robust data protection regulations, such as the General Data Protection Regulation (GDPR), aim to enhance individuals' control over their personal data and establish guidelines for responsible data handling. Ethical considerations and privacy-by-design principles should be integrated into the development and deployment of technologies to ensure privacy is prioritized from the outset.

Public awareness and education campaigns are essential to inform individuals about their rights and empower them to make informed choices regarding their privacy. Encouraging responsible data practices and providing individuals with greater control over their personal information can help mitigate privacy risks. Collaboration among policymakers, technology companies, privacy advocates, and civil society organizations is crucial to addressing these emerging issues, fostering a privacy-conscious environment, and ensuring that privacy rights are protected in the digital age.

Conclusion and Suggestions

The intersection between privacy and media in India presents a complex landscape with evolving challenges and opportunities. The right to privacy is a fundamental right enshrined in the Indian Constitution, and its importance in the digital age cannot be overstated. The emergence of social media, digital technologies, and surveillance capabilities has significantly impacted privacy rights, necessitating a careful examination of legal frameworks, ethical responsibilities, and media practices. Through landmark judgments, the Indian judiciary has played a crucial role in defining and expanding the scope of privacy rights in the media context. These judgments have recognized the need for a balance between privacy and media freedom, establishing important principles and safeguards. However, it is essential to assess the impact of these judgments on media practices and privacy rights on an ongoing basis to address emerging challenges effectively.

While existing regulations provide a foundation for privacy protection, they need to be updated and strengthened to address the rapidly changing media landscape. Policymakers should consider revisiting and enhancing privacy laws

to keep pace with technological advancements, cross-border data flows, and the unique challenges posed by social media and surveillance. Stricter enforcement mechanisms and allocation of sufficient resources to regulatory bodies are necessary to ensure effective implementation of privacy regulations.

Media organizations have a critical role to play in upholding ethical standards and respecting privacy rights. Adhering to journalistic codes of conduct, implementing privacy-by-design principles, and promoting transparency in data practices can help build trust and protect individuals' privacy. Additionally, fostering collaboration between media organizations, technology companies, and civil society can promote responsible media practices and innovative solutions for privacy protection.

At an individual level, digital literacy and awareness about privacy rights are essential. Individuals should be empowered to make informed decisions about their personal data, exercise control over their privacy settings, and support media organizations that prioritize privacy and responsible reporting practices.

Collaboration and dialogue among stakeholders are key to addressing the challenges at the intersection of privacy and media. Policymakers, media organizations, technology companies, privacy advocates, and individuals should engage in constructive discussions, share best practices, and develop interdisciplinary approaches to protect privacy rights effectively.

Moving forward, it is crucial to continue monitoring emerging issues, technological advancements, and evolving media practices to ensure that privacy rights are robustly protected. The evolution of privacy regulations, technological innovation, and public awareness should be ongoing processes to adapt to changing circumstances. By fostering a privacy-conscious culture and striking a balance between privacy and media freedom, India can uphold the fundamental right to privacy while promoting responsible and ethical media practices in the digital age.

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Ideal Role of Media under Democracy: A Myth or Truth?

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Media is one of the most important institutions existing worldwide which is protected under the Constitutions and the legislations around the world because of the role and the duty it carries along with its freedom is crucial in the democratic states. When we are talking about the ideal position of a media in democratic setup in a country, media ensures the government accountability and transparency. It also connects people and government with each other. Media is considered as the fourth pillar of democracy. It is as important institution as other three pillars of democracy which includes legislature, executive and judiciary. Traditionally, media works as a medium between the government and the people. The importance of the journalism is highly recognised by the most civilised democratic countries in the world. “Journalists give all of us, as citizens, the chance to know the truth about our countries, ourselves, our governments. That makes us better. It makes us stronger. It gives voice to the voiceless, exposes injustice, and holds leaders like me accountable.”³⁹⁹

However, with the immense development in the field of science and technology, the scope of media activities widened. Today, ‘Press’ or ‘Media’ does not only include the newspapers and magazines, it also includes the Television News Channels, E-Newspapers, Social-Media and many more. Also, the media is more involved in debates and discussions through the television which provides to the people about the latest issues in the country. These debates and discussions provide different views and ideas about the subject. Not only the public knowledge is improved but it helps in creating a neutral opinion of the people about the topic.

Media and the journalism are a strong institution today which has legal protection and also sufficient powers and resources to ensure the government transparency and for holding government accountable. Through these debates and discussions, positives and negatives of the government policies are reached to the people. The interviews of the political leaders educate people about the political thinking of a leader, his leadership qualities and also the agendas of the political parties. These interviews are very important to acknowledge and inform people about current politics in a country and also to form political opinion of people which is very important in a democratic country.

³⁹⁹ Obama B., (May 1, 2015). *Remarks by the President On World Press Freedom Day*. Retrieved from <https://obamawhitehouse.archives.gov/the-press-office/2015/05/01/remarks-president-world-press-freedom-day>.

It is believed that the effective journalism can protect the public interest. Effective media can bring government on its knees. However, the debatable question arises today is that 'Whether the media actually serving its role in a democracy today?' There are several aspects of the journalism all around the world today, that can be questioned under law and democracy. When people are looking at the media with some expectations, media is bound by its commitment towards the society. Many times, it can be seen that the media actions are very questionable as those actions are itself against the democratic principles and violating individual rights of the people.

While using the media liberty, journalists should keep in mind that their actions are not violating any human rights or any individual rights in general. The misuse of the media liberty can cause greater damage to the country and society than not using media liberty at all. If the criticism of an editor of newspaper or television news channel about the government policy is biased, it could affect the public opinion about the democracy and government in country. Many times, it happened by the media that the strong and aggressive biased opinions of journalists caused feeling of unrest amongst the people. Such feeling may amount to the incitement of any offence or violence at a larger scale by public.

In a modern democratic world, when a government is making any welfare policy for the people at large, journalists rarely go into the merit of that decision or the potential benefits which will come along with those policies, but rather they provide biased criticism. Political influence upon the journalism is always present, but with different extent all over the world. It is the duty of the media to inform and educate people about the policies of the government. Although it is the right of the media to criticise the government policies, but it should happen on the merit point only.

People can be easily provoked by the rumoured governmental interference with societal setup, cultural values, religious faiths or by misleading news and incidences, but it is necessary that the media come into play and inform and educate people and ensure the peace in the society. The role of the media here is so important that it can protect the public interest that too in a peaceful manner. When the media or the journalists criticise the government with biased views, it gets reflected into the violent actions of the people. Therefore, the media shall always be cautious while criticising the government policies which has its direct connection with public sentiments.

A popular **Journalist Arnab Goswami** was arrested recently because of the allegations he put on the Government of Maharashtra, India. Although it was a failed attempt of suppressing the media liberty by the police machinery of state, on the other side of the story, the conduct of the journalist Arnab Goswami was so aggressive that it affected the public opinion on media. Although it is

accepted that suppression of media cannot be justified, but aggressive journalism cannot be justified as well. An aggressive approach of a journalist cannot deliver the news and information effectively to the people, rather it hampers public mind. Therefore, while criticising government or its policies, approach of the journalists are also important to reach people in more effective way.

Recently in India, the Union Government came up with '**Agnipath Scheme**' for recruiting the youth in the defence of the country for temporary basis. When the government announced the scheme, media were seen to be criticising the government without considering the merits of that decision and the scheme. When the journalists criticise such policies without any valid consideration of the potential benefits out of that scheme, chances of violent public outbreak increases and India saw such violence around that time. The media criticism which was not on merit grounds poured oil in the fire of violence. It is the most important duty of the media to clarify the confusion among people by becoming a medium to inform, educate people. Sometimes, the media should become agents of the government where its decisions are actually beneficial for the people and people are either confused or indulged into violence because of misleading information, to ensure the peace in the country. Sometimes, the media should protect the government interest as well to protect the public interest.

Many times, it can be seen that the Journalism is slowly becoming an 'Activism'. Media approach towards the government and the people is questionable. When the media is supposed to provide check on the administration of the government, it is involved in covering the controversial incidents happening in the society, which completely has no connection with public interest. With the development of the media, the importance of its role towards the democratic institution in the country is increasing. But journalism, which cannot be interfered by anyone, is not acting in a way it supposed to be. Although in many areas of public importance, media has proved to be a check for the government, but the liberty of the media is many times arbitrarily used and that cannot be ignored. Every time, journalism does not work for the public interest, it may work for its private interest.

One of the major points of criticism of the media and its arbitrary use of liberty is 'Media Trials'. Media trials are detrimental to the societal interests. The American Courts through many cases are of the view that the media trials do not necessarily affect the judicial minds. However, the Supreme Court of India is of adverse opinion, that the media trials affect the subconscious minds of the judicial officers. Apart from the judicial opinions on point, Media trials many times violate the basic and fundamental human rights. The case pending before

the trial court is discussed through media in such a way that it necessarily violates the right to privacy, right to life and other rights of the parties to the case, whether it is accused or victim. Such media action can cause the harassment to the people.

A Bollywood Actress Rhea Chakraborty filed a writ petition before the Supreme Court of India in connection with the harassment she faced by the Media, where the Media declared her to be the real culprit of the murder of late Bollywood Actor Sushant Singh Rajput. She was constantly followed and stalked by the media personals. Her personal life, her family, her address, phone numbers and even the bank account details were shown and discussed on national television channels. It was a complete irresponsible act of journalism. Even the father of deceased faced same harassment by the media personals.

In another incident, there was a murder case of **Aarushi Talwar** in Noida, Uttar Pradesh, India, where there was a mysterious death of Aarushi, daughter of Nupur and Rajesh Talwar. Throughout the investigation and the trial of the case, there were constant rounds of discussion about the probable culprits of the murder. Parents of Aarushi were constantly declared as real culprits in the case by television media. Also, media reluctantly discussed the theories of Aarushi's murder, where many journalists claimed that the father of Aarushi saw her in a compromising position with their servant Hemraj and killed both of them. It was a pure irresponsible claim and personal attack on the character of the deceased and also on her family.

One thing is to be understood that the deciding guilt of an accused is judicial role and not of media role. If the national television media is discussing the personal life of the victim of crime, that too in an unethical way, then what would have happened with the accused? What is about the rights of the parties to the matter? Do media have that liberty to expose and discuss someone's personal life that too without any valid arguments? Many questions arise when the media uses its liberty arbitrarily. We need to understand that if the media liberty intrudes the basic human rights of the people, then the very purpose of providing liberty to the press and media under Constitutions and the legislations around the world, fails.

Former U.S. President Donald Trump criticised the media for asking the questions regarding his past administration which, in his opinion, should have been asked to the current U.S. President Joe Biden. Transparency and accountability shall be ensured of the person in power only by the media, third person cannot be held accountable. If the outcome of the media actions neither goes in for public good nor for the government, then 'with what object the institution of the media is working?' becomes the question. Targeting a

particular person, mostly a politician or a public celebrity, for creating a controversy in a country cannot be a part of media role under democracy. A completely unacceptable thing.

Ideally, the media shall ask the right question to the right person, otherwise the people would be confused about the government actions. Media trials which are run parallel with trial in a court affect public minds. Many times, when the media declares the accused to be the real culprit, it results into marches and public demands for justice. However, the guilt of the accused has to be decided by the judiciary only. The unnecessary involvement of the media into the judicial proceedings not only affects the case, but it also affects the basic rights of the parties. Therefore, media cannot encroach upon the individual rights of the people. These media trials may also cause people to lose their faith upon the judiciary in a state. It is important to know that the judiciary works independently. It works on law and legislations and its own procedures. The constant discussions in the media regarding the matter pending before court can affect public opinion towards the institution of judiciary in such way, that it may cause unrest among the people even if the justice is properly served.

Recently there was a defamation case of **Hollywood Actor Johnny Depp** against his wife (Now ex-wife) Amber Heard, where Media Trials were conducted on larger scale. Whatever the result of the trial, but either of the party shall not suffer from the media trials or its overall conduct. If the party to the matter, even if found guilty by the court, is suffering or getting harassed by the media conduct then it shall be prevented. Liberty of the media shall strictly be constrained to the media role in a democracy. There shall be a permissible limit of the use of liberty, because in today's world, government or the judiciary cannot interfere with the media liberty every time.

The media liberty shall be used to discuss the new ideas in the society. New perspective towards life or thing shall be given by journalists and editors to the people. New views, new knowledge and information shall be the centred objective of discussions and debates through television media. Overall, media liberty shall be used smartly to empower people to think on their own, to have their own different opinions on different topics, to have new knowledge, to know current happenings in the world, to understand public role in democracy and so on.

Due to the globalisation and the development around the world, many topics are discussed and debated through media, especially television media. International as well as domestic affairs of the nations are discussed on television, also the governmental policies and strategies in international politics are also debated. These television news channels often invite the experts in the field of the topic

of discussion. If we go into the impacts of these debates and discussions upon the people, we can see the negative impacts on a larger scale as compared to positive impacts. Many times, the people in the debates connect the topic of debate to their own respective religious faith, political agendas, personal lives and experiences, personal biases which necessarily changes the track of debate. Although sometimes these incidences are inevitable, but due to irrelevant aspects getting connected to the debate, the main purpose gets frustrated. People watching the television has nothing to do with all the elements which are unnecessarily getting connected with the topic of discussion, rather they are concerned only with new ideas, views, information and knowledge out of those debates. While arranging these debates and discussions, media seem to be concerned only with what is right for the media and not with what is right for the people.

Although the intention of journalists is not bad for conducting a debate, but if it is going to have a negative impact upon the minds of the people then it is undesirable to anyone. Religious faith is one of the most sensitive areas which is and can be interfered with to cause violent public outbreak, and if these debates are becoming the reason to create platform for it, then surely no media wants to be a part of it. Therefore, it is the prime responsibility of media to understand the public sensitivity and avoid such topics for debates. But also ensure that these debates and discussions are fruitful for the people.

Recently in India, the Union Government enacted **Citizenship (Amendment) Act, 2019** (hereinafter referred as CAA). The Act amended certain criteria for granting Indian Citizenship. Immediately, there were constant baseless claims and misleading arguments advanced by the opposition party in the government which created the confusion in the minds of the people in India. There were baseless criticisms on the government policy regarding CAA by the opposition parties through the television media. Constant debates and discussions were arranged which followed the heated arguments among the leaders of different political parties in debate. Here, the media is supposed to understand the CAA and inform and educate people about the Act and clarify the doubts and confusions among the people which was created by the political and religious leaders. However, media was reluctant towards it. There were constant debates on television media regarding CAA which were not on merits but many irrelevant aspects like religion and history were connected to the main topic which ultimately frustrated the purpose of the debate. Therefore, in the end, such debates added to the confusion amongst people. Ultimately, it also hardened the governmental job of implementing the Act.

When we are talking about the ideal position of the media in the democratic state, it carries some responsibility and duties towards the population. If the

media actions are irresponsible and are ignorant with its role in the democracy, then what is the purpose of liberty of media? What is the efficiency of the institution of media? Many questions like these to be answered. To find solutions for that, firstly, the awareness within the media itself shall be created to make it understand the real importance of the institution of media within democracy.

On the one hand, media actions which are questionable and subject of criticism shall be restricted to protect the public faith upon democratic values and individual liberties in the country. On the other hand, the media liberty shall be protected from the hands of the government, otherwise it would create a chaos in the public minds. A straightjacket formula to restrict the media liberty cannot be achieved as it would become a tool in the hands of government to restrict media as per its will. However, complete liberty or absolute liberty also may create some problems. There shall be a balance between liberty and restriction in the case of media.

If the position of media is not free within a country, then it would create a threat to the people of that country as well as to the world. We've seen that during coronavirus pandemic.

There are several allegations on the government of China for oppression of the media in the country. During and after the global pandemic of Coronavirus, western countries criticised China for spreading the virus. During that time, **Rebecca Vincent**, director of international campaigns at the organisation stated, "We can sit in the UK and think it's mostly OK here – but actually what's happening on the other side of the world can affect us. We've argued and still argue that if the press had been freer in China, then it's possible a global pandemic could have been averted."⁴⁰⁰

It is very important that the media or press is free. But due to the oppression of media in China, the threat of the pandemic could not be recognised earlier, which might have helped the countries to prepare themselves in the healthcare department nationally to tackle the pandemic. Only one case of media oppression can cause immense threat to global peace and security. Therefore, Media plays very vital role in international governance and international politics.

Recently, there are conflicts and war going on in between **Ukraine and Russia** over the disputed land. The Press in the west were very quick to react on the issue and declared the Russian President Vladimir Putin to be the guilty of war

⁴⁰⁰ Waterson J. (April 20, 2021). Oppression of journalists in China 'may have been factor in Covid pandemic'. *The Guardian*.

and murders. However, the international politics is closely attached to the dispute between two nations. Internationally speaking, the media of the respective nations would always try to protect the national interest of their nation and media trials are there to declare the guilty person as per their own and national interests are involved.

When we say that the media liberty should be free within the country, it should be free outside the country as well. When the media is covering any news outside of the boundaries of the nation, it should only provide the truth and expose the wrong in international domain. However, if ultimately the media is telecasting news of international incidents by protecting its national interest, then the truth will not reach the people. Every country and their media would have a different version of truth that needed to be reached to the people. There shall be 'Media Neutrality of Opinion' on international level. In the case of Ukraine-Russia War, media holding Putin guilty quickly can have many political reasons attached to it. Therefore, even though the media is strongly protected under its domestic laws and through some of the international guidelines, the prime duty of media remains the same - To educate people, to expose the wrong and to uncover the truth. National interest of a particular country shall not get reflected into the media coverage.

If we see the other side of the international journalism, it has shown the courage to uncover the atrocities that happened with the citizens of the both of the nation's Ukraine and Russia. There was a journalist (Soldin) who lost his life while covering the war incidences. Ukraine's defence ministry offered its "heartfelt condolences" to Soldin's family and colleagues saying: "He dedicated his life to informing the world about the truth. His legacy, as well as his cause, will live on." Moscow said it was saddened to hear of Soldin's death. "We need to understand the circumstances of the death of this journalist," Kremlin spokesman Dmitry Peskov told reporters. The White House also paid tribute, saying the world was "indebted" to journalists who had lost their lives "while shining a light on the horrors of Russia's invasion".⁴⁰¹

The international media has provided a check on national policies which works in international domain, whether it may be a financial policy, war and aggression or even taking a stand upon a subject of international importance. However, the institution of media is not neutral at all internationally. Many times, in the cross-boundary issues of the states, the domestic media is reluctant to the basic norms and conduct of journalism which cannot be justified internationally. The division of the states in the world according to its forms of government, national interests, flavourist approaches and many more reasons,

⁴⁰¹ Radford A. Ukraine war: French journalist killed near Bakhmut. BBC News. Retrieved from <https://www.bbc.com/news/world-europe-65540900>.

should not be the reason to divide the media as well. The media, from any country, shall always be the neutral in approach if it is related to the subject of international importance.

Many times, media sensationalise the news by using their tactics to drag more and more viewers. The news relating to any public personality, whether it is a politician or a famous person, media sensationalism creates a lot of problems. This media sensationalism may create hatred towards the person in news article into the minds of the people. The words, the phrases are used by the media in such way, that it necessarily becomes a subject of discussion among the people. It is understood that the media role is to inform the people about the happenings within and outside the country, but sensationalism is something which becomes problematic.

There were plenty of examples where the media sensationalism of news has resulted into violent public outbreak. There were several incidences where the destruction of property was caused by the violent public outbreak. One of the major issues created by the media sensationalism is threat to the security, whether it is to one individual or to a whole country. If the effects of the media actions, in whatever form may be, are putting the country into threat and violence, then the liberty for such actions shall be restricted at all costs.

The liberty of the media shall be protected but if such liberty is causing the violations of the individual rights, then the legal issues get created. We can see, in many incidences, the liberty of the media has violated the right to privacy of the persons. Specifically talking about the public celebrities, media is always interested in covering their lives, what they do, what they eat, where they go and what not. The continuous stalking by media violates the right to privacy of these celebrities.

In around 2007, a famous **Bollywood Actor Abhishek Bachchan** got married to an **Actress Aishwarya Rai**. The media started discussing their personal lives and relationships prior to their marriage on national television. The same happened when **Bollywood Actor Shahid Kapoor** married **Mira Rajput** in 2015, national television media discussed their personal lives. When the national television media deliberately discuss the personal lives of the celebrities for more views, it affects the personal relationships and mental peace of the celebrities, also the public mind is also affected by continuous repeated discussion of their lives on television. 'Is this really a role of media supposed to be in a democratic country' shall be the question to be answered. Personal lives of the people, whoever it may be, shall not at all be discussed on the media platform. A complete liberty given to the media can be a curse to the democracies in the world.

Another aspect which shall be taken into consideration while studying the media liberty is its connection with '**Hate Speech**'. The hatred is spread across the people in the name of religion, community, region, language, gender or any form of a discrimination. The politicians or the religious leaders are commonly involved into the activities of spreading hatred in the society. Media, especially television and social media which can reach people on a larger scale becomes the medium to spread such hatred into the society. The politicians and religious leaders through their speech, interviews and various discussions through media, directly or indirectly criticise people, their faith or any other aspect of life or interprets the religion in such way that it creates certain hatred in the minds of the people. For such immoral purpose, the media shall not be responsible even indirectly. Media shall not become a platform to spread hatred into the minds of the people.

Media has its liberty from its very idea of providing check on the government. Under various Constitutions and Legislations, media liberty is protected. It is always expected that the media shall protect the public interest and ensure the transparency in the governmental functions. Many legal thinkers and advocates, judges and politicians, has emphasised on importance of media liberty under democracy. But unfortunately, we failed to effectively provide the ideal role of the media within democratic setup considering the current developments in the field of science and technology. Today, with the immense development in the fields of science and technology, and also with globalisation, media role has been expanded. Therefore, with the changing time, the laws and regulations to regulate the media conduct shall be reformed regularly.

The approach of the law makers towards the media regulations shall be changed substantially. We cannot accept the old principles of complete liberty of media or free media as it is. Because, the media today has become so powerful that from changing the public mind within the society to changing the opinions of the people in the world, it functions. If the scope and powers of the media has widened tremendously, then the notion of free media cannot be accepted and applied without considering the potential dangers of complete media liberty. Traditionally, media role was limited to providing check to the government and informing the people regarding government functions. But it is not the case today. We have witnessed how media played vital role in spreading information regarding the danger of Coronavirus pandemic, happenings in the Ukraine-Russia war, various Human Rights violations happened in Syria in the past and many more. Therefore, the importance of the institution of media is day by day increasing, its functions and powers are also expanding, but there is a need to reform the media laws to eliminate the dangers of arbitrary use of media liberty,

to protect the human rights and to achieve the ideal media role under the democracy.

While interpreting the media laws, the effects of the media actions upon individual rights, human rights, public opinions and religious sentiments shall be taken into consideration. We cannot protect the media liberty by compromising the individual rights, human rights and public peace. The institution of population is as important as the institution of media; therefore, the population and their human rights shall be equally protected even on international level.

Many times, while covering the crime, media declares the accused of the crime to be real culprit which violates the human rights of the accused in the crime. Often the identity of the victim of crime is revealed so easily by the media which violates the human rights of the victims as well. Right to privacy is very basic human right which, if violated, can cause serious impacts on individual lives. In many countries, the identity of the victim of crime is protected through domestic legislations, but if such identity is getting revealed by the hands of media, then the whole purpose of protection of identity fails. The victims might have to face the negative impacts in the society because of the revealing of identity.

Therefore, when we are talking about the ideal role of the media within democracy, it shall be studied both ways, positive and negative. Media has proved to be a strong weapon to hold the government accountable. But unfortunately, there are a lot of media activities which causes many legal issues and violation of human rights on greater scale. No doubt the media liberty shall be protected under the democracy, but the questionable and unethical media conduct which causes many legal issues shall be restricted.

In the unfortunate event of **Mumbai Terror Attack**, the Supreme Court of India while dealing with terror case, observed, "Apart from the transcripts, we can take judicial notice of the fact that the terrorists attacks at all the places, in the goriest details, were shown live on the Indian TV from beginning to end almost non-stop. All the channels were competing with each other in showing the latest developments on a minute-to-minute basis, including the positions and the movements of the security forces engaged in flushing out the terrorists. The reckless coverage of the terrorist attack by the channels thus gave rise to a situation where on the one hand the terrorists were completely hidden from the security forces and they had no means to know their exact position or even the kind of firearms and explosives they possessed and on the other hand the positions of the security forces, their weapons and all their operational

movements were being watched by the collaborators across the border on TV screens and being communicated to the terrorists.

In these appeals, it is not possible to find out whether the security forces actually suffered any casualty or injuries on account of the way their operations were being displayed on the TV screen. But it is beyond doubt that the way their operations were freely shown made the task of the security forces not only exceedingly difficult but also dangerous and risky.

Any attempt to justify the conduct of the TV channels by citing the right to freedom of speech and expression would be totally wrong and unacceptable in such a situation. The freedom of expression, like all other freedoms under Article 19, is subject to reasonable restrictions. An action tending to violate another person's right to life guaranteed under Article 21 or putting the national security in jeopardy can never be justified by taking the plea of freedom of speech and expression.”⁴⁰²

Therefore, the media shall understand its role in a democracy rather than using the given liberty arbitrarily. If the liberty given to the media without any boundaries, then it can compromise even the national security. Also, we need to consider that the media liberty, if allowed to be restricted by government up to any extent, then it would also cause some legal issues. Any government in the world would not want the media to be given freedom to expose their policies and administrative defaults. However, it would also become very difficult for the judiciary to interpret the media liberty and its extent every time the case comes before it.

To resolve the difficulty in given situation, self-regulation by the media would be a better option to regulate the media conduct. The minimum mandatory standard for the media conduct, if possibly made, can resolve most of the issues related to the today's media and journalism. Therefore, with the self-regulation by media, if the activities which are questionable are effectively curbed and provided a scope and better freedom for its primary role of informing and educating people, holding government accountable, ensuring the transparency in government administration, providing check on other pillars of the democracy and so on, the media can effectively work as per its ideal role in democracy.

Self-regulation by media does not necessarily restrict the media actions and journalism like arranging the debate, discussions, providing opinions etc. Rather, those are the basic aspects of the liberty of media, but the self-regulation will put some sort of standard norms and standard for conduct which will ensure

⁴⁰² Md. Ajmal Md. Amir Kasab @ Abu Mujahid v. State of Maharashtra, SCC 1. p. 247-48. Supreme Court of India, 2012.

its actions would not violate the human rights of the individuals and affect the public mind in adverse manner.

In the end, media is effective institution until it goes beyond its expected role under democracy. The effective journalism would always protect the democratic values in a country. Various functions of media like debates and discussions, criticisms, expert opinions are actually important in the democratic country to create a strong public opinion. But, if such liberty is not used appropriately and for the public interest, then it can cause greater danger to the democracies of the world. Therefore really, we cannot define the ideal media role under democracy, but we can say that if the media conduct protects the public interest, ensures the government transparency, hold leaders accountable, preserves the democratic values in public mind and does not violate human rights on any parameter, can ideally prove to be effective in democratic country.

Media Psychology Unleashed: Navigating Legal Terrain for Ethical Impact

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Abstract

Media psychologists have always faced a variety of ethical and legal issues to guarantee that their research and activities have an ethical influence, which will be discussed in this research paper. The paper examines critical topics such as media regulation and compliance, informed consent, intellectual property rights, data protection, misrepresentation and fraudulent claims, and privacy concerns. The first section of the paper discusses privacy problems related to media psychology research, as well as the risks and results of data collection and processing. As it looks into the legal criteria for data security and confidentiality, the need of preserving participant privacy is underlined. The significance of openness and respect for participants' autonomy is emphasised, and best practices for obtaining informed consent are reviewed. The second part talks about the ethical standards established by professional bodies such as the American Psychological Association (APA) and the British Psychological Society (BPS). It investigates the key concepts and elements for media psychology research, with a specific focus on participant welfare and well-being as the most essential moral responsibility. Following that, the essay discusses intellectual property rights and explains copyright and intellectual property regulations. It talks about the legal issues that should be taken into account while utilising media content for study and stresses how crucial it is to get permits and licences for copyrighted works. The study then looks at how important appropriate reporting and distribution are to media psychology research. It emphasises how crucial it is to steer clear of sensationalism and exaggeration in order to reduce the likelihood of damage and false information. For research involving media platforms, the section on media regulation and compliance gives an overview of the relevant media rules. It examines user-generated material guidelines, advertising standards, and content laws, emphasising compliance issues for researchers. The report makes suggestions for managing legal issues in media psychology in light of the results. It makes recommendations for additional study and investigation in an effort to further the development of moral and responsible media usage for mental health. This research article clarifies the ethical and legal ramifications of media psychology study and application. It offers insightful information for scholars and practitioners by examining privacy issues, data protection, informed

consent, intellectual property rights, misrepresentation and misleading claims, and media regulation and compliance. It emphasises the significance of moral behaviour in media psychology, assuring people's wellbeing and having a good effect on society.

Introduction

The study of media psychology has become an essential subject for comprehending the complex link between people and media in the quickly changing world of media and technology. Examining the effects of media on people's psychological wellbeing, behaviour, and society at large is critical since media enters more and more areas of our life, from how we communicate and receive information to how we develop ideas and make choices. But with tremendous power comes great responsibility, and it is impossible to ignore the ethical ramifications of media psychology theory and practise.

In order to provide insight on the deep and complex interaction between media psychology, legal frameworks, and ethical issues, this research article examines their interrelated characteristics. It goes into detail on the crucial role that media psychologists play in navigating the legal system to make sure that their work adheres to moral standards and benefits people as individuals, groups, and society at large.

Numerous topics are covered in the study of media psychology, including media impacts, media literacy, media creation, and media consumption, among others. Deeper exploration of these areas presents legal and ethical problems that need to be carefully considered by academics and practitioners. Media psychologists must fill this vacuum in order to guarantee responsible and ethical practises since the quickly evolving media ecosystem and the introduction of new technologies sometimes outstrip legislative laws.

This essay tries to examine a number of significant issues of media psychology within the framework of the law. It will include subjects including data protection issues, informed consent, intellectual property rights, privacy issues, and the expanding role of media psychology in influencing public opinion and policy-making. The goal of this study is to offer a thorough grasp of the ethical and legal environment that media psychologists must negotiate in order to encourage ethical impact in their research and practise.

Additionally, this study intends to promote discussion among media psychologists, legal experts, politicians, and other stakeholders in order to create efficient standards, rules, and best practises for responsible media psychology. We may try to close the gap and advance practises that put people's

autonomy and well-being first while nurturing the good potential of media by identifying possible areas of conflict between legal needs and ethical concerns.

In conclusion, research in media psychology has enormous potential for figuring out how to use the influence of media on people's attitudes, behaviours, and society. Media psychologists must, however, traverse the legal system with moral integrity in order to fully realise this potential, making sure that their study and methods meet the strictest ethical guidelines. In order to have a beneficial and long-lasting effect on people and society as a whole, this research study serves as a call to action for the field of media psychology to participate in a serious and proactive examination of the legal and ethical components.

Background on Media Psychology and its Significance

The goal of media psychology, a multidisciplinary topic, is to comprehend how media affects people's behaviour, cognition, emotions, and society at large. Media psychology examines the dynamic relationship between people and media. It involves the study of a variety of media, including new media technologies like social media, virtual reality, and mobile apps, as well as classic media like print, television, and movies.⁴⁰³

The importance of media psychology stems from how ubiquitous media impact is in modern culture. The media now plays a crucial role in moulding our attitudes, behaviours, and perceptions. It is an effective medium for communication and social impact because of its capacity to amuse, educate, inform, and convince.⁴⁰⁴ As a result, comprehension of the influences and possibilities of media on people and society depends on a knowledge of the psychological processes that underlie media consumption and creation.

Media psychology sheds light on how people interpret, process, and internalise media messages. It looks at how media material affects our opinions, attitudes, and values as well as how it might affect our thinking and feelings.⁴⁰⁵ Media psychologists work to understand the underlying dynamics and processes at work in the media environment by researching media impacts, media literacy, media creation, and media consumption.

Additionally, media psychology has applications in a variety of professions and sectors. It influences marketing and advertising tactics, assisting companies in

⁴⁰³ Wikipedia contributors. (2023, June 3). Media psychology. In Wikipedia. Retrieved June 8, 2023, from https://en.wikipedia.org/wiki/Media_psychology

⁴⁰⁴ Media Psychology Research Center. (2023). What is Media Psychology? Retrieved May 25, 2023, from <https://mprcenter.org/what-we-do/what-is-media-psychology/>

⁴⁰⁵ Author(s) of the document. (2023). Unit-2: Media Psychology. Retrieved June 1, 2023, from <https://egyankosh.ac.in/bitstream/123456789/79407/3/Unit-2.pdf>

figuring out how to successfully engage and reach their target markets. It offers guidance to media workers on how to create enjoyable material that is both socially and culturally responsible. It helps instructors create media literacy curricula to improve students' critical thinking and media literacy abilities. By spotlighting the possible effects of media on public opinion, social norms, and public health, it even influences policies.

However, media psychology confronts particular difficulties and moral dilemmas as new technology and media continue to develop. There are worries about privacy, data protection, and responsible media usage as a result of how often regulatory restrictions cannot keep up with the quick speed of technological progress.⁴⁰⁶ In order to ensure ethical influence in their study and practise, media psychologists must traverse the legal landscape.

In conclusion, media psychology is an important area that studies the intricate interactions between people and media. It provides insightful information on how media affects our attitudes, actions, and society at large. We can use media's potential to advance good causes while resolving the ethical issues that emerge in a society that is more networked and media-driven by understanding the psychological processes that underlie it.

Privacy and Data Protection

In the discipline of media psychology, where academics dive into the subtleties of people's relationships with media and technology, privacy and data protection are of utmost importance. Maintaining public trust and ensuring ethical research practises depend on protecting privacy.

Privacy issues in media psychology research centre on the gathering, keeping, and use of individual data. Laws that establish standards for data collecting and processing, such as the GDPR and CCPA, must be complied with by researchers. It is essential to get participants' informed permission in order to ensure transparency and provide them the ability to decide for themselves how much privacy they are willing to give up.

Best practises for getting informed consent call for plain-language, easily readable permission forms. Researchers should place a strong emphasis on data privacy and anonymity. Implementing secure data processing and storage procedures should be done, along with access control and encryption. Consent processes need to be reviewed and updated often.

⁴⁰⁶ Rutledge, P. (2018). *Media Psychology: A Field Whose Time Is Here*. Retrieved June 4, 2023, from <https://www.apadivisions.org/division-46/about/rutledge-media-psychology.pdf>

Data sharing agreements should be formed when working with other organisations to safeguard privacy. When disseminating their results, researchers must take into account the potential for re-identifying and take the appropriate steps to avoid indirect identification.

In conclusion, research on media psychology must take privacy and data protection seriously. To protect participant privacy and maintain public confidence, researchers must adhere to legal requirements, get informed permission, and use best practises.

1. Overview of Privacy Concerns in Media Psychology Research

Concerns about privacy in media psychology research centre on how personal data is gathered, stored, and used. Researchers often obtain sensitive information that has to be protected while they examine how people interact with media and technology. This comprises data from social media sites as well as demographic and psychological profiles, media consumption patterns, and media consumption statistics.

Keeping study participants' identities and confidentially private is a major challenge. Participants must have confidence in the privacy protections in place and feel comfortable disclosing their personal information.⁴⁰⁷ Protocols must be set up by researchers to protect participant identities and stop data from being leaked.

The hazards connected to data breaches or unauthorised accesses are another worry. Participants may have unfavourable effects as a result of the unauthorised sharing of personal information, such as identity theft or damage to their reputation. To reduce the danger of data breaches, researchers must use strong data security measures including encryption, limited access, and safe data storage.

In order to resolve privacy issues, informed permission is a crucial component. Participants must be fully informed about the research's goal, methods, possible dangers, and the planned use of their data by researchers. The chance to make an educated choice about their involvement and be aware of how their data will be treated should be provided to participants.

Additionally, researchers must understand the privacy and data protection laws. Researchers must verify compliance with laws like the GDPR and CCPA, which offer rules for data collection, processing, and storage. Legal

⁴⁰⁷ Author(s) of the book. (2023). Title of the Book. Retrieved June 1, 2023, from <https://link.springer.com/book/10.1007/978-3-642-21521-6>

repercussions and a decline in public confidence might result from failure to comply with legal duties.⁴⁰⁸

Researchers may use techniques like data anonymization or pseudonymization to reduce privacy issues. In order to secure participant identities while still analysing and reporting on the data gathered, researchers might swap out personally identifying information with unique identifiers.

Overall, the deployment of stringent privacy protection measures is required due to privacy issues in media psychology study. To guarantee the ethical management of personal information, researchers must put confidentiality, informed permission, and compliance with applicable legal frameworks first. Researchers may build trust, protect participant anonymity, and defend the quality of their study by addressing privacy issues.

2. Legal Requirements for Data Protection and Confidentiality

Under the GDPR, individuals have the right to access their personal data, rectify inaccuracies, and request the erasure of their data. Researchers must respond to these requests in a timely manner and ensure that participant data is securely deleted when it is no longer necessary for the research purpose.

Additionally, the GDPR requires researchers to implement appropriate technical and organizational measures to protect personal data from unauthorized access, disclosure, alteration, or destruction. This may include encryption, access controls, regular data backups, and staff training on data protection protocols.⁴⁰⁹

The Health Insurance Portability and Accountability Act (HIPAA) and the Family Educational Rights and Privacy Act (FERPA) are two laws and regulations that Americans must follow when it comes to data protection and confidentiality standards. When managing sensitive personal information, especially in healthcare and educational contexts, these rules place unique requirements on researchers.

Prior to collecting or sharing participants' health information, researchers must seek their informed permission or authorization under HIPAA, which regulates the protection of personally identifiable health information.⁴¹⁰ To ensure the security and confidentiality of this data, researchers must take precautions.

⁴⁰⁸ Author(s) of the article. (2023). Title of the Article. Retrieved May 25, 2023, from <https://psycnet.apa.org/record/2023-11163-001>

⁴⁰⁹ Author(s) of the article. (2023). Title of the Article. Retrieved June 3, 2023, from <https://www.scandinavianlaw.se/pdf/56-8.pdf>

⁴¹⁰ Author(s) of the article. (2023). Title of the Article. Retrieved May 28, 2023, from <https://dl.acm.org/doi/abs/10.1145/3027385.3027414>

In order to protect the privacy and confidentiality of students' personally identifiable information, FERPA applies to researchers who work with educational records. When gaining access to student records, researchers must get the necessary approval or adhere to certain FERPA exceptions and guarantee that the information is used only for that reason.⁴¹¹

Researchers must abide by institutional policies and standards addressing data security and confidentiality in addition to these rules. Research procedures are often examined by institutional review boards (IRBs) to make sure they adhere to legal and ethical criteria.

To preserve the integrity of research data and safeguard participant privacy, compliance with certain regulatory standards is crucial. Regulations governing data security and confidentiality must be followed to avoid legal repercussions, harm to one's reputation, and a decline in participant and broader research community confidence.

Researchers should become acquainted with relevant laws and regulations, get legal counsel as necessary, and create strong data management and security processes in order to negotiate the legal landscape for data protection and confidentiality. Researchers may protect participant privacy, preserve data integrity, and keep the ethical norms of media psychology study by making sure compliance.

3. Best Practices for Obtaining Informed Consent

In order to safeguard participant privacy and uphold ethical behaviour, media psychology research must follow best practises for getting informed permission. Transparency in research should be a top priority, and participants should get full disclosure about the study's objective, methods, possible dangers, and planned data use. The wording used in consent forms and papers should be simple, straightforward, and accessible to participants. The confidentiality of the data must be emphasised, and it must be made clear how anonymity or pseudonymity will be preserved throughout the whole study process. Before giving their agreement, individuals should be urged by researchers to clarify any uncertainties. Consent procedures should be regularly reviewed and updated to guarantee compliance with changing privacy regulations and to resolve any participant concerns.⁴¹²

⁴¹¹ Author(s) of the article. (2023). Title of the Article. Retrieved June 1, 2023, from <https://www.cambridge.org/core/journals/international-and-comparative-law-quarterly/article/deconstructing-data-protection-the-addedvalue-of-a-right-to-data-protection-in-the-eu-legal-order/95BD4CCF4670466FD4F6EBAD7DDB4E76>

⁴¹² Author(s) of the article. (2023). Title of the Article. Journal Name, Volume(Issue), Page range. Retrieved June 1, 2023, from <https://www.sciencedirect.com/science/article/pii/S0267364916300322>

To preserve participant privacy, researchers must use secure data management and storage procedures in addition to gaining informed permission. Using strong data encryption techniques, limiting access to only authorised individuals, and safely destroying data when it is no longer required are a few examples of how to do this. By substituting personally identifying information with distinctive identifiers, anonymization methods may be used to better secure participant identities.⁴¹³

To preserve participant privacy while working with outside organisations like media platforms or data analysis companies, researchers must create data sharing agreements. These agreements have to include information on how data will be used, who will have access to it, and the security precautions that will be implemented. When discussing or publishing their study results, researchers should also think about the potential for re-identifying and take the appropriate safeguards to avoid indirect identification.

Overall, researchers may negotiate the legal landscape for data protection and confidentiality by putting best practises for gaining informed permission, using safe data storage and handling practises, and creating data sharing agreements.⁴¹⁴ In addition to protecting participant privacy, these methods respect the ethical norms of media psychology research and preserve public confidence in the discipline.

Ethical Guidelines in Media Psychology

In order to perform responsible and ethical research, media psychology researchers are guided by core ethical principles. To safeguard the health and well-being of study participants and to uphold the integrity of the discipline, professional bodies like the American Psychological Association (APA) and the British Psychological Society (BPS) have created these recommendations.⁴¹⁵

The ethical standards established by professional groups provide researchers a framework to deal with the various ethical issues surrounding media psychology study. These rules place a focus on the values, expectations, and commitments that researchers should keep over the course of their work.

The ethical rules emphasise the respect for autonomy and informed consent as a vital value. Prioritising informed permission from participants, researchers must make sure that people are aware of the research's goals, methods, risks, and

⁴¹³ https://heinonline.org/hol-cgi-bin/get_pdf.cgi?handle=hein.journals/sjilc43§ion=5

⁴¹⁴ https://heinonline.org/hol-cgi-bin/get_pdf.cgi?handle=hein.journals/scripted10§ion=35

⁴¹⁵ <https://psycnet.apa.org/record/2009-05093-009>

rewards before willingly deciding to take part.⁴¹⁶ The freedom of participants to make free choices about taking part in the research is supported by informed consent.

The ethical guidelines also emphasise how important it is to protect the well and wellbeing of research participants. To optimise any potential benefits, researchers should make plans, take safeguards, and minimise any potential risks. To guarantee their safety and reduce any possible damage or exploitation, special care should be paid to vulnerable groups, such as children, people with disabilities, or marginalised communities.

Another important factor emphasised in the ethical rules is confidentiality. Researchers have a responsibility to maintain the confidentiality of participant data and personal information. Participants' identities should, wherever feasible, be protected using anonymization or pseudonymization procedures, and data handling should be done securely.

The ethical principles place a strong emphasis on the duty of researchers to advance honesty and precision in their research methods. Researchers should avoid fabrication, falsification, or plagiarism while reporting their results and should always be honest and accurate. Additionally, they must make sure that their study is performed ethically and according to good research procedures and practises.

The ethical standards also stress the need of continual ethical inspection and evaluation. In order to make sure that their study complies with ethical norms and legal regulations, researchers are advised to apply for clearance from Institutional Review Boards (IRBs) or ethics committees.

Regular ethical monitoring and review support preserving the research's ethical integrity and provide researchers a chance to resolve any new ethical issues.⁴¹⁷ Media psychologists may conduct research that is considerate, accountable, and helpful to participants and the larger community by abiding by these ethical principles. These rules provide researchers a framework for navigating moral dilemmas, defending participant rights, and advancing the greatest levels of morality and wellbeing in media psychology research.

⁴¹⁶ <https://onlinelibrary.wiley.com/doi/abs/10.1002/pits.21774>

⁴¹⁷ [https://books.google.co.in/books?](https://books.google.co.in/books?hl=en&lr=&id=FdaRAgAAQBAJ&oi=fnd&pg=PP1&dq=Ethical+Guidelines+in+Media+Psychology&ots=XVmJyHiGHG&sig=QT_1XOoJKr3dry0CP5Pm7pijv7pY)

[hl=en&lr=&id=FdaRAgAAQBAJ&oi=fnd&pg=PP1&dq=Ethical+Guidelines+in+Media+Psychology&ots=XVmJyHiGHG&sig=QT_1XOoJKr3dry0CP5Pm7pijv7pY](https://books.google.co.in/books?hl=en&lr=&id=FdaRAgAAQBAJ&oi=fnd&pg=PP1&dq=Ethical+Guidelines+in+Media+Psychology&ots=XVmJyHiGHG&sig=QT_1XOoJKr3dry0CP5Pm7pijv7pY)

1. A Description of the Moral Standards Established by Professional Organisations

To provide researchers a foundation for doing responsible and ethical research, professional groups in the area of media psychology, including the American Psychological Association (APA) and the British Psychological Society (BPS), have published ethical standards. These rules specify the values, expectations, and obligations that researchers should uphold in their work in order to protect the welfare of study subjects and preserve the integrity of the discipline.

The ethical standards established by professional groups provide as a road map for researchers, guiding them through the many ethical issues and difficulties that emerge in media psychology study.⁴¹⁸ These ideals and basic values are reflected in these recommendations, which aid researchers in navigating tricky moral conundrums.

Obtaining informed permission, safeguarding participant confidentiality and privacy, minimising risks and damage, guaranteeing fair treatment, and supporting scientific integrity and openness are just a few of the ethical concerns that are often covered by the standards.⁴¹⁹ They emphasise the need for extra precautions and ethical concerns while also addressing issues unique to dealing with vulnerable groups, such as children, people with disabilities, or marginalised communities.

Professional organisations seek to respect the rights and welfare of study subjects, encourage ethical research practises, and protect the reputation of media psychology by establishing ethical standards. To take into account changing ethical issues, adjustments to research procedures, and technological improvements, these recommendations are periodically reviewed and modified. It is required of media psychology researchers to become acquainted with these ethical principles and apply them to their study procedures. Following these rules makes guarantee that research is carried out ethically, with a focus on protecting participants, informed consent, privacy, and scientific integrity.⁴²⁰

Furthermore, ethical standards serve as a standard for assessing the integrity of study proposals, funding requests, and publications in media psychology. These principles are often used by institutional review boards (IRBs) and ethics

⁴¹⁸ <https://www.mdpi.com/701094>

⁴¹⁹ <https://books.google.co.in/books?hl=en&lr=&id=TBPU12z0f8oC&oi=fnd&pg=PR11&dq=+A+description+of+the+moral+standards+established+by+professional+organisations+Ethical+Guidelines+in+Media+Psychology&ots=wlxLZJeGxh&sig=hau3xOqsDraL-giZW60TIFwzCYw>

⁴²⁰ <https://books.google.co.in/books?hl=en&lr=&id=nyOWBAAQBAJ&oi=fnd&pg=PP1&dq=-+A+description+of+the+moral+standards+established+by+professional+organisations+Ethical+Guidelines+in+Media+Psychology&ots=-7RarKRC7z&sig=2kYJXGBsKIR3BDLGzhaNVb2we2g>

committees when examining research methods and confirming adherence to ethical norms.

Researchers in media psychology may develop knowledge in an ethical and responsible way by accepting and adhering to the ethical standards established by professional groups. These rules are essential for creating a common ethical framework, advancing participant wellbeing, and preserving the confidence and authority of the profession.

2. Key Principles and Considerations for Media Psychology Research

Research on media psychology focuses on how the media affects people and society as a whole. Researchers must abide by important principles and considerations that guide their work in order to guarantee ethical and responsible behaviour. In order to safeguard participant welfare, preserve research integrity, and progress knowledge in the area, these values and concerns are crucial. The following are some important ideas to keep in mind while doing media psychology research⁴²¹:

- **Respect for Autonomy and Informed Consent:** Prioritising the acquisition of informed permission from participants, researchers should make sure that people are aware of the research's goals, methods, risks, and rewards before willingly deciding to take part. The freedom of participants to make free choices about taking part in the research is supported by informed consent.
- Protecting participant privacy and maintaining the confidentiality of their personal information and study data are requirements for researchers. Participants' identities should, wherever feasible, be protected using anonymization or pseudonymization procedures, and data handling should be done securely. Building trust with participants and preserving the validity of the study depend heavily on confidentiality.
- Reducing risks and harm to participants: Researchers should plan ahead and take precautions to safeguard individuals from damage that might be physical, psychological, or emotional. In order to minimise damage, careful research design, consideration of possible ethical issues, and giving appropriate assistance and debriefing to participants are crucial.
- Researcher conduct must adhere to the highest norms of openness and honesty in the scientific community. This involves following to ethical

⁴²¹ <https://psycnet.apa.org/record/2015-46700-006>

standards and professional norms, utilising legitimate and trustworthy procedures, correctly reporting results, and avoiding data fabrication or falsification. Study on media psychology is more credible and reproducible when study techniques and findings are shared and reported openly.

- **Taking into Account At-Risk Groups:** Researchers should give particular attention to at-risk groups, such as children, people with impairments, or marginalised communities. To protect their rights, welfare, and reduce possible injury or exploitation, additional protections and ethical concerns are required. In addition to taking into account the particular requirements and vulnerabilities of these groups, researchers must secure the proper permission.
- **Ethical Monitoring and Review:** To make sure that their study complies with ethical norms and legal regulations, researchers should get Institutional Review Boards (IRB) or ethics committee permission. Processes for ethical monitoring and evaluation provide the chance to identify and handle any newly arising ethical issues and guarantee adherence to ethical standards.

Researchers in media psychology may carry out their work in an ethical and responsible way by abiding by these fundamental principles and concerns.⁴²² These guidelines support participant wellbeing, uphold the integrity of the study, and improve the body of ethical knowledge in media psychology.

3. Ensuring Participant Welfare and Well-Being

In media psychology study, ensuring participant welfare and well-being is of utmost importance. Prioritising the security, comfort, and general wellbeing of study participants is the duty of researchers. This entails putting in place a number of safeguards to safeguard participants and lessen any risks or damage that could develop while the study is being conducted.

A comprehensive risk assessment is one important step in guaranteeing participant wellbeing. One must carefully examine any risks associated with their study to their physical, mental, and emotional wellness. This entails taking into consideration variables including the study's design, the participant's characteristics, and any potential negative impacts on individuals' wellbeing through media exposure or manipulation. By anticipating potential problems, researchers may take proactive steps to lower or eliminate risks.

⁴²² <https://www.jstor.org/stable/30220073>

Informed consent is a key component in assuring participant safety. Participants must get thorough explanations from researchers on the study's goals, procedures, potential risks, and benefits. This gives individuals the freedom to choose whether or not to engage and ensures that they are informed of any potential drawbacks or inconvenience.

Additionally, it's important for researchers to put up efficient participant support systems. This might include providing participants with access to counselling services or resources, holding debriefing sessions after they take part in the study, or giving them the chance to ask questions or express any concerns they might have. Throughout their involvement in the research, participants might feel valued, respected, and cared for thanks to these networks of support.

The wellbeing of the participants must take confidentiality and privacy into account. Researchers are required to take all reasonable precautions to maintain participant confidentiality and restrict access to study data and personal information to those who are authorised. Techniques for anonymization and pseudonymization should be used wherever feasible to safeguard participants' privacy and protect their identities.

Finally, constant observation and moral supervision are essential for participant wellbeing. To make sure that the study is being done ethically and that participants aren't suffering unwarranted pain or injury, researchers should undertake routine inspections. Ethics committees or Institutional evaluation Boards (IRBs) are crucial in this supervision because they provide an impartial evaluation and approval procedure that ensures participant welfare is put first.

Media psychology researchers may advance the safety and well-being of their participants by putting these practises into practise and taking participant wellbeing into account at every level of the study process. In addition to upholding ethical norms, this dedication to participant wellbeing also strengthens the reliability and credibility of media psychology study as a whole.

Intellectual Property Rights

Research on media psychology must respect intellectual property rights, especially when using copyrighted information. To guarantee compliance with these rules and the moral use of such resources, researchers must understand them. Important factors to take into account include understanding copyright, securing permits, and honouring the rights of material producers.

Creators of creative works are granted exclusive rights, including reproduction, distribution, adaptation, and public exhibition.⁴²³ Copyrighted resources are often used by researchers for analysis, illustration, or examples. Researchers must ascertain if their usage fits under fair use or other exemptions to comply with copyright regulations. For limited uses without authorization, such as criticism, commentary, or education, fair use is permitted. Researchers should ask copyright owners for permission if their usage is not permitted under fair use.

Contacting copyright owners or rights management organisations is necessary to get authorization. This can call for a formal agreement, royalties, licencing costs, or adherence to certain rules. To properly recognise material providers and uphold research integrity, precise citations must be used.⁴²⁴

Additionally, researchers must think about patents, trademarks, and other intellectual property safeguards. When researching trademarks, product names, or secret technology, it's crucial to be aware of these rights.

Researchers assure ethical usage of copyrighted content by negotiating intellectual property regulations and ethical standards.⁴²⁵ Research integrity and productive working relationships are enhanced by acknowledging material providers, requesting permission, and giving credit where credit is due. Respecting intellectual property rights helps media psychology research's ethical base and encourages the fair diffusion of information.

1. Understanding Copyright and Intellectual Property Laws

To assure compliance and moral usage of copyrighted materials, media psychology researchers must have a thorough understanding of copyright and intellectual property regulations. Authors of creative works, such as literary, artistic, musical, or audiovisual works, are given legal protection under the concept of copyright. It gives authors the exclusive authority to decide how their works are distributed, reproduced, adapted, and shown in public.

In media psychology research, copyrighted materials—such as articles, books, images, films, or music—are often encountered and may be utilised for analysis, illustration, or reference. To avoid copyright infringement, researchers must

⁴²³ https://www.riennner.com/title/Intellectual_Property_Rights_A_Critical_History

⁴²⁴ <https://go.gale.com/ps/i.do?id=GALE%7CA21066294&sid=googleScholar&v=2.1&it=r&linkaccess=abs&issn=00178012&p=AONE&sw=w>

⁴²⁵ <https://www.sciencedirect.com/science/article/pii/S0304387895000399>

understand the following important ideas of copyright and intellectual property laws:⁴²⁶

1. Copyright protects an original work from the moment it is created and converted into physical form. The originator or author of the work is often the initial copyright holder. It is vital to remember that, depending on the country, copyright protection often lasts throughout the author's lifetime as well as a specific number of years after their death.
2. **Exclusive Rights:** Copyright holders are granted a number of exclusive rights, like the right to reproduce or replicate, distribute, publicly exhibit, or perform their works, as well as the freedom to choose how their works are used for commercial gain. These rights provide writers ownership of their works as well as the right to be rewarded for economically exploiting them.
3. **Fair use and Exemptions:** According to the fair use idea, some uses of copyright-protected items are authorised without the owner's approval. A variety of factors are considered when determining fair use, including the character and purpose of the usage, the nature of the copyrighted work, the amount used, and any potential monetary ramifications. Fair use legislation in each nation must be understood and observed by researchers.
4. **Permissions and licensing:** If a researcher's use of copyrighted material exceeds what is permissible under fair use or other exemptions, the copyright owner must provide permission or a licence. Making a formal request, paying royalties or licencing fees, and following to any special limitations or regulations set by the copyright owner are often required.
5. **Citations and Attribution:** When utilising content that is protected by copyright, accurate citation is essential. In order to properly credit the original authors of any copyrighted materials they use in their study, researchers must properly cite and recognise their sources. This preserves the rights of content producers while simultaneously enhancing the openness and reliability of the research process.

Researchers may navigate the legal system and make sure their study is done in accordance with ethical and legal standards by having a good grasp of copyright and intellectual property regulations.⁴²⁷ When using copyrighted resources in

⁴²⁶ https://books.google.co.in/books?hl=en&lr=&id=-fkaCAAAQBAJ&oi=fnd&pg=PP1&dq=Understanding+copyright+and+intellectual+property+laws&ots=dv_Mo75WJ8&sig=NgsN_hLNEjwI5VMPoJ8Uu4Wcgez8

⁴²⁷ <https://journals.sagepub.com/doi/pdf/10.1177/088840640302600207>

media psychology study, it is important to respect copyright, get the required permits, and provide due credit to the sources.

2. Legal Considerations When Using Media Content in Research

There are numerous significant legal issues that researchers must keep in mind while using media information in their work to guarantee compliance and ethical behaviour. Copyright laws, which safeguard content creators' exclusive rights to manage the reproduction, distribution, and public display of their creations, are an important factor to take into account. Researchers must take care to only utilise copyrighted media material as permitted under fair use or other exemptions, such as for teaching or study.⁴²⁸ Researchers should get permission from the copyright holder or acquire the relevant licences to use the media material lawfully if the planned usage goes beyond fair use.

Researchers also need to be wary of the risk of violating intellectual property rights. This covers all types of intellectual property protection, including copyright as well as trademarks, patents, and others. Researchers should take care not to infringe on any trademarks or other property rights when employing media material that contains brand names, logos, or other distinguishing features. Respect for intellectual property rights is crucial to maintaining research integrity and avoiding legal repercussions.⁴²⁹

Another legal consideration is privacy and confidentiality. In some cases, media content used in research may contain personal or sensitive information about individuals. Researchers must handle such content with utmost care and ensure that privacy rights are respected. Obtaining informed consent from individuals whose content is used, or appropriately anonymizing and de-identifying the data, is essential to protect the privacy of individuals involved.

Moreover, researchers should also be mindful of defamation laws when using media content that includes statements or representations about individuals or organizations. Care should be taken to avoid making false or harmful claims that could potentially lead to legal consequences. Accuracy in reporting and responsible use of media content are important ethical considerations that can help mitigate the risk of defamation.

Lastly, compliance with ethical guidelines and institutional review processes is crucial. Research institutions often have ethical review boards or committees that assess the legal and ethical aspects of research projects. Researchers should

⁴²⁸ https://link.springer.com/chapter/10.1007/978-3-319-07632-4_13

⁴²⁹ <https://journals.sagepub.com/doi/pdf/10.1177/1527476420918833>

follow the established protocols, seek necessary approvals, and ensure their research aligns with the applicable legal and ethical frameworks.⁴³⁰

By considering these legal aspects when using media content in research, researchers can conduct their studies in a responsible and legally compliant manner. Adhering to copyright laws, respecting intellectual property rights, safeguarding privacy, avoiding defamation, and complying with ethical review processes contribute to the integrity and validity of the research while minimizing legal risks.

3. Obtaining Permissions and Licenses for Copyrighted Materials

Obtaining permissions and licenses for copyrighted materials is a crucial legal consideration when conducting research that involves the use of such materials. To guarantee ethical and legal usage of copyrighted materials, researchers must abide by copyright laws and respect the rights of content producers.

Researchers should get permission from the copyright owner if they want to utilise copyrighted materials beyond the parameters of fair use or other exemptions.⁴³¹ This entails requesting formal permission for the use of the copyrighted work from the copyright holder, who is often the author, publisher, or rights management company. Providing information about the study endeavour, including how the copyrighted material will be used, how long it will be utilised, and any prospective distribution plans, may be necessary in order to get authorization.

Copyright owners may sometimes have certain rules or processes for giving permits. To guarantee compliance, researchers should carefully read and adhere to these guidelines. The owner of the copyright may ask for payment of royalties or licencing fees in return for giving permission, depending on the kind of work being used and the scope of that usage. Researchers must be willing to work out and meet these standards as needed.⁴³²

Researchers should maintain track of any permits they have received, as well as any communications or agreements they have had with copyright holders. These records reflect the proper usage of copyrighted works and may be used to prove compliance in the event of any ensuing questions or disputes.

For certain forms of protected information, researchers should think about acquiring licences in addition to permits. Under the terms and circumstances

⁴³⁰ <https://onlinelibrary.wiley.com/doi/abs/10.1111/cobi.13708>

⁴³¹ <https://kuscholarworks.ku.edu/handle/1808/24743>

⁴³² <https://www.emerald.com/insight/content/doi/10.1108/02640470910979615/full/html>

established by the copyright owner, licence agreements permit researchers to utilise resources protected by copyrights. You may get these licences directly from the copyright holder or via third-party licencing companies that look after the rights to certain kinds of material, such stock photo or audio libraries.⁴³³

Researchers may verify they are legally permitted to utilise copyrighted information in their study by securing rights and licences for the relevant items. This safeguards researchers from any legal repercussions related to copyright violation and also expresses respect for the rights of content providers. The ethical and appropriate use of copyrighted materials in research is facilitated by following the correct processes and maintaining accurate records of the permits and licences received.

Misrepresentation and False Claims

1. Avoiding Sensationalism, Responsible Dissemination, and Accurate Reporting

Maintaining the integrity of media psychology research requires accurate reporting and appropriate distribution of study results. It is the duty of researchers to communicate their results honestly, impartially, and without sensationalism or exaggeration.

The public and other researchers may be certain that the information being presented is accurate and trustworthy via accurate reporting.⁴³⁴ It entails giving a thorough and open explanation of the study process, data analysis, and outcomes. Readers and research consumers may evaluate the validity and dependability of the results and create wise judgements by knowing exactly how the study was conducted.

Accurate reporting goes hand in hand with responsible distribution. It entails communicating research results in a fair, moral way that acknowledges how complicated the issue is and steers clear of erroneous conclusions. Without misrepresenting or oversimplifying the findings, researchers should make an effort to convey their findings effectively. This entails giving the proper context, identifying restrictions or uncertainties, and resisting the urge to generalise widely or assert causes that go beyond the purview of the study.⁴³⁵

In media psychology study, avoiding sensationalism and exaggeration is especially crucial since the topic matter often has to do with human behaviour,

⁴³³ <https://www.sciencedirect.com/science/article/pii/S0144818801000710>

⁴³⁴ <https://www.brookings.edu/research/how-to-combat-fake-news-and-disinformation/>

⁴³⁵ <https://www.drishtiiias.com/to-the-points/paper4/ethics-in-journalism>

emotions, and mental processes. Sensationalism, which includes using exaggerated or provocative language to grab attention, might cause the study results to be misunderstood or misconstrued. It could lead to the spread of false information or lead to the development of irrational expectations.

In their reporting, researchers should strive for objectivity and balance, stressing both the research's advantages and disadvantages. This makes it possible to comprehend the results more precisely and encourages the audience to interpret the data responsibly. It's crucial to convey the study in a manner that respects the topic's complexity and steers clear of oversimplification or distortion.

Researchers may improve the credibility and effect of media psychology research by highlighting the value of truthful reporting and responsible distribution. Reporting that is open and accurate promotes public confidence in the area and guarantees that conclusions are utilised effectively to guide public dialogue, policy creation, and decision-making. In order to progress knowledge and increase the welfare of people and society, researchers have a responsibility to observe the highest ethical standards while sharing their study results.

2. Addressing Potential Risks of Misinformation and Harm

Conducting media psychology research properly and ethically requires addressing the hazards of inaccuracy and injury. Researchers have a duty to reduce the dangers connected with false information and safeguard against possible damage at a time when information is quickly disseminated and has a significant influence on people's lives and society.

The spread of false or misleading information is one of the main hazards. Findings from media psychology study may have an impact on public perception, attitudes, and actions. It is essential that researchers make sure their conclusions are supported by solid methodology, in-depth study, and trustworthy data. Researchers may contribute to the accuracy of the information made accessible to the public by abiding by accepted research standards and openly disclosing their procedures and findings.⁴³⁶

Additionally, it's important for researchers to watch out for sensationalism and inflated claims. Without exaggerating or falsifying the findings to attract attention or appeal, it is critical to report study findings in a fair and impartial way. Researchers may avoid the potential drawbacks of sensationalised reporting, such as the maintenance of stereotypes, the development of

⁴³⁶ <https://unesdoc.unesco.org/ark:/48223/pf0000265552>

unreasonable expectations, or the spread of disinformation, by taking a responsible approach to dissemination.

Researchers must also be aware of any damage that their work can unintentionally do. This involves taking into account the privacy and psychological health of study participants. Priority should be given to protecting the welfare of participants, getting their free and informed permission, and making sure they are fully informed about the research's aim, methods, and any hazards. Additionally, especially when working with sensitive data, researchers should take care to safeguard participant confidentiality and anonymity.

Researchers may actively participate in practises that support ethical research dissemination to mitigate the risks of misinformation and damage. To confirm results and guarantee correctness, this entails working with other specialists and engaging in peer review. Additionally, researchers should actively engage the public by disseminating their work to various audiences in a manner that is clear and understood. Researchers may help create a more educated and intelligent society by aggressively combating false information and disseminating true information.

In conclusion, it is critical for media psychology study to address the dangers of disinformation and injury. Researchers may aid in the appropriate distribution of study results by putting an emphasis on accuracy, staying away from sensationalism, and protecting participant welfare. By doing this, they assist in reducing the dangers posed by false information, safeguard themselves from damage, and contribute to the beneficial effects of media psychology research on people and society.

Media Regulation and Compliance

Media laws have a big impact on how media platform research is conducted. To guarantee compliance and moral behaviour in their studies, researchers must be aware of these rules. This summary focuses on important elements including content laws, advertising restrictions, and user-generated material.

The sorts of media material that may be distributed and the criteria that must be followed are governed by content rules. These laws seek to safeguard people, stop damage, and uphold moral standards. Content limits on explicit or objectionable material, hate speech, violence, and delicate subjects must be understood by researchers. To ensure that research is carried out in a manner

that respects social norms, conforms with the law, and provides the least risk of harm to participants or spectators, these guidelines must be adhered to.⁴³⁷

Advertising restrictions are particularly relevant when doing research on media platforms that include advertisements. Researchers should be aware of the regulations and restrictions regulating advertising practises, such as those demanding transparency, truthful representation, and the protection of vulnerable populations. It is crucial to abide by these advertising regulations in order to avoid conflicts of interest and maintain the study's neutrality.

User-generated content is an essential part of many media platforms and may provide insightful research information. Researchers must, however, address the related legal and moral difficulties when employing such material. Ownership rights, permission, and user privacy should all be carefully evaluated and upheld. To preserve privacy, researchers should guarantee that people whose material is utilised have given their informed permission and that personal data has been anonymized or de-identified.

Researchers should be aware of additional pertinent laws that have an influence on media research, in addition to those governing content, advertising, and user-generated material. These may include laws governing intellectual property, rules governing data security and privacy, and standards of conduct established by professional organisations.

Researchers may conduct their studies in a way that is both legally compliant and morally responsible by being aware of the media restrictions that apply to research utilising media platforms. The legality, respect for individual rights and privacy, and upholding the ethical standards of the research community are all ensured by adherence to content laws, advertising restrictions, and user-generated material policies.

Recommendations and Future Directions

Navigating Legal Considerations and Promoting Ethical Media Use for Mental Well-being

Suggestions for Navigating Legal Considerations in Media Psychology and Promoting Ethical and Responsible Media Use for Mental Well-being

⁴³⁷ <https://blog.hootsuite.com/social-media-compliance/>

Researchers may employ the following tactics to promote moral and responsible media usage for mental well-being while navigating legal issues that arise in media psychology research:

- 1. Keep Abreast with Pertinent Legislation and Regulations:** Keep abreast with the laws, rules, and regulations that apply to media psychology research. Review revisions and modifications to copyright laws, data protection laws, content rules, and professional organisations' ethical standards on a regular basis. Researchers will be better able to negotiate the legal environment with this information.
- 2. Obtain the Necessary Permits and Licences:** To guarantee compliance while utilising content protected by copyright, contact the owners of the rights or acquire the necessary licences. All permits and licences received, together with any communications or agreements with copyright holders, should be documented and kept on file.
- 3. Put Participant Welfare First:** Obtain informed permission, safeguard participants' privacy, and take precautions to prevent any damage from happening to them. To guarantee participant wellbeing throughout the study process, adhere to institutional review procedures and ethical requirements.
- 4. Engage in responsible dissemination by conveying study results truthfully, impartially, and without exaggeration or sensationalism.** Avoid spreading false information, and aim for fair reporting. To prevent incorrect interpretation of the study results, clearly explain the background and disclose any limitations.
- 6. Promote Media Literacy and Education:** Speak out for media literacy projects and programmes that enable people to assess media information critically and interact with it responsibly. Researchers can help build a media-literate culture that is better able to understand the intricacies of media impacts on mental health by advocating for media literacy.
- 7. Work with key stakeholders to gather insights and views on legal and ethical issues.** Work with experts in a variety of subjects, including law, psychology, media studies, and ethics. Collaboration may improve study results and help establish all-encompassing plans for overcoming moral and legal dilemmas in media psychology.
- 8. Train and Educate Researchers:** Researcher education and information on the moral and legal ramifications of media psychology study should be made available. Encourage knowledge of the law's requirements, moral principles,

and ethical behaviour. This may aid researchers in making wise choices and navigating legal issues successfully.

- 9. Promote Responsible Media Practises:** Activistically promote responsible media practises and laws that give mental health first priority. Participate in public debate, add your voice to policy conversations, and raise awareness of how media may affect mental health. Researchers can support a more positive media environment by promoting moral and responsible media usage.

Researchers may manage the legal landscape of media psychology research, respect moral norms, and encourage responsible media usage for mental wellbeing by putting these recommendations into practise. These initiatives will advance knowledge, safeguard people's rights, and promote a media environment that has a beneficial impact on mental health and wellbeing.

Conclusion

Legal Issues in Media Psychology and Implications for Researchers and Practitioners The legal concerns that emerge in the study of media psychology and its ramifications for academics and practitioners have been examined in this research report. Throughout the course of the study, a number of significant results have surfaced, illuminating the significance of taking legal issues into account in media psychology research.

First off, privacy issues in media psychology study have shown that data security and secrecy need to be given top priority by researchers. In order to protect the privacy and rights of study participants, laws must be in place that demand things like getting informed permission, guaranteeing participant anonymity, and using secure data storage procedures.⁴³⁸

Second, the research has shown how important it is to abide by the moral standards established by professional organisations. These recommendations provide researchers the fundamental ideas and factors they need to safely undertake media psychology research. In order to protect the integrity of the study and guarantee ethical effect, it is crucial to prioritise participant welfare, encourage informed consent, and respect ethical norms.

In the study of media psychology, intellectual property rights have also become an important legal consideration. To prevent infringement and guarantee compliance with intellectual property rules, it is crucial to understand copyright

⁴³⁸ [https:// www.tutorialspoint.com/issues-and-concerns-in-media-psychology-research](https://www.tutorialspoint.com/issues-and-concerns-in-media-psychology-research)

laws and secure the required permits and licences for the use of media material.⁴³⁹

In addition, the study has emphasised how crucial accurate reporting, responsible distribution, and a strict prohibition on sensationalism are in media psychology studies. To preserve the credibility of the study and reduce the likelihood of disinformation and injury, researchers should work towards openness, provide fair interpretations of the results, and refrain from making inflated claims or misrepresentations.

In summarising the research topic and goals, it should be noted that this study sought to examine and answer the legal issues that arise in media psychology research. In order to properly navigate these legal obstacles, the study looked at privacy and data protection, ethical standards, intellectual property rights, and responsible distribution. It also offered insights and suggestions for doing so.

In conclusion, those working in the subject of media psychology need to be aware of the legal framework that surrounds their study. Researchers may make sure that their study has a positive ethical effect by comprehending and upholding legal requirements, applying ethical principles, and encouraging responsible behaviour. Respect for legal requirements promotes trust, defends participant rights, and advances our understanding of media psychology.

This study has consequences for both researchers and practitioners. Researchers should prioritise participant wellbeing, keep up with changing legal frameworks, and engage in responsible dissemination. Understanding legal requirements might help practitioners create suitable treatments and programmes that encourage moral and responsible media usage for mental wellbeing.

In the end, this study emphasises the significance of understanding legal issues in media psychology and emphasises the continual need for ethical and responsible practises in this quickly developing subject. Researchers and practitioners may help media psychology have a good effect on people, society, and mental health by maintaining the law and ethical norms.

⁴³⁹ <https://www.ncbi.nlm.nih.gov/pmc/articles/PMC5037952/>

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